

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[84 NE3d 959, 62 NYS3d 288]

ROSEMARIE A. HERMAN, et al., Respondents, et al., Plaintiffs, v
JULIAN MAURICE HERMAN et al., Appellants, et al., Defendants.
(And a Third-Party Action.)

Decided October 12, 2017

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 1, 2016. The Appellate Division affirmed an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 2016 NY Slip Op 30808[U] [2016]), which had, to the extent appealed from as limited by the briefs, (1) granted plaintiffs' motion to preclude defendant Julian Maurice Herman from participating in the inquest to assess plaintiffs' damages against him, and (2) denied defendant Julian Maurice Herman's cross motion to preclude plaintiffs from offering certain evidence at the inquest. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as affirmed by this Court, properly made?"

The Appellate Division determined that Supreme Court properly precluded defendant from participating in a damages inquest against him due to his failure to comply with a conditional order that would preclude him if he did not timely produce properly redacted tax returns and certain communications, and due to his failure to establish any reasonable excuse for his noncompliance. Furthermore, the Appellate Division determined that Supreme Court properly denied that part of defendant's cross motion seeking to exclude from the inquest any evidence that postdated the transaction at issue, finding that in light of the default judgment against him, defendant was liable on numerous claims, including unjust enrichment

and constructive trust, for which plaintiffs' damages might not have been limited to out of pocket losses from that transaction.

Herman v Herman, 144 AD3d 433, affirmed.

HEADNOTE

Disclosure — Penalty for Failure to Disclose — Enforcement of Conditional Order — Preclusion from Damages Inquest

Supreme Court did not abuse its discretion in precluding a defaulting defendant from participating in the inquest to assess damages against him. Moreover, the denial of that defendant's cross motion to preclude certain evidence from the inquest was proper.

APPEARANCES OF COUNSEL

Baker & Hostetler LLP, New York City (*John Siegal* and *Erica Barrow* of counsel), for appellants.

Jaspan Schlesinger LLP, Garden City (*Natasha Shishov* and *Steven R. Schlesinger* of counsel), and *Law Offices of Craig Avedisian P.C.*, New York City (*Craig Avedisian* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Supreme Court did not abuse its discretion in precluding defendant Julian Maurice Herman from participating in the inquest to assess damages against him. Moreover, the denial of that defendant's cross motion was proper.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson. Taking no part: Judge Feinman.

In the Matter of ALFONSO AMELIO, Appellant, v DOUGLAS E. HOFFMAN et al., Respondents.

Decided October 12, 2017

Reported below, 149 AD3d 588.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MARTHA G. CAFFERTY, as Executor of the Estate of PETER G. CAFFERTY, Deceased, Appellant, v COUNTY OF BROOME et al., Respondents.

Decided October 12, 2017

Reported below, 151 AD3d 1512.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of CATHERINE M., a Child Alleged to be Neglected. CATHERINE L., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted July 10, 2017; decided October 12, 2017

Reported below, 151 AD3d 517.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

Judge FEINMAN taking no part.

CONTACT CHIROPRACTIC, P.C., as Assignee of Girtha Butler, Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appellant.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 135 AD3d 804.

Motion by American Transit Insurance Company for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 146 AD3d 576.

Motion by The Real Estate Board of New York, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 146 AD3d 576.

Motion by CaringKind et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 146 AD3d 576.

Motion by Services & Advocacy for Gay, Lesbian, Bisexual & Transgender Elders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 146 AD3d 576.

Motion by City of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

NEIL HUTCHINS, Appellant, v PETER HUTCHINS et al., Respondents.

Decided October 12, 2017

Reported below, 150 AD3d 426.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JAMIE J. WAYNE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MICHELLE E.C., Appellant.

Submitted September 18, 2017; decided October 12, 2017

Reported below, 145 AD3d 127.

Motion by Lawyers for Children, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of JEMIMA M. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; AURA M., Appellant.

Submitted July 10, 2017; decided October 12, 2017

Reported below, 151 AD3d 862.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of LEON R. KOZIOL, a Suspended Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Decided October 12, 2017

Reported below, 149 AD3d 1344.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judges STEIN and FAHEY taking no part.

In the Matter of LUKES JACOB R., a Child Alleged to be Permanently Neglected. CYNTHIA R., Appellant; THE CHILDREN'S AID SOCIETY, Respondent.

Submitted August 14, 2017; decided October 12, 2017

Reported below, 148 AD3d 420.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 913 (2017)].

Judge FEINMAN taking no part.

In the Matter of LIONEL MCCRAY, Appellant, v HAROLD GRAHAM, Superintendent, Auburn Correctional Facility, Respondent.

Decided October 12, 2017

Reported below, 2017 NY Slip Op 74184(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of FREDERICK McMILLIAN, Appellant, v JOHN B. LEMPKE, Superintendent, Wende Correctional Facility, et al., Respondents.

Decided October 12, 2017

Reported below, 149 AD3d 1492.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMEL
BETHEA, Appellant.

Submitted October 2, 2017; decided October 12, 2017

Reported below, 152 AD3d 454.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALI
CISSE, Appellant.

Submitted September 18, 2017; decided October 12, 2017

Reported below, 149 AD3d 435.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALEX
FLORES, LUCIO RAMIREZ, BENIGNO AGUILAR and EMMANUEL
FLORES, Respondents.

Submitted October 10, 2017; decided October 12, 2017

Reported below, 153 AD3d 182.

Motion for assignment of counsel granted and Leonard J. Levenson, Esq., 225 Broadway, Room 1804, New York, NY 10007 assigned as counsel to the respondents on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARY
ANNE GRADY FLORES, Appellant.

Submitted September 18, 2017; decided October 12, 2017

Motion by Vera House, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAMIAN JONES, Appellant.

Submitted September 25, 2017; decided October 12, 2017

Reported below, 149 AD3d 407.

Motion for assignment of counsel granted and Christina A. Swarns, Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

In the Matter of PEOPLE OF THE STATE OF NEW YORK, Appellant, v CONRADO JUAREZ, Defendant. FRANCES ROBLES, Nonparty Respondent.

Submitted October 2, 2017; decided October 12, 2017

Reported below, 143 AD3d 589.

Motion by Asian American Journalists Association, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN MYERS, Appellant.

Submitted September 25, 2017; decided October 12, 2017

Reported below, 145 AD3d 1596.

Motion for assignment of counsel granted and John A. Cirando, Esq., c/o D.J. & J.A. Cirando, Esqs., 101 South Salina Street, Suite 1010, Syracuse, NY 13202 assigned as counsel to the appellant on the appeal herein.

LENORA PIERCE, Appellant, v STEVEN W. HICKEY et al., Respondents.

Submitted July 10, 2017; decided October 12, 2017

Reported below, 2017 NY Slip Op 75568(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STATE ex rel. JEROME A., Appellant, v JOSEPH PONTE, Commissioner, et al., Respondents.

Decided October 12, 2017

Reported below, 151 AD3d 613.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[88 NE3d 303, 66 NYS3d 145]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP WRIGHT, Appellant.

Argued September 13, 2017; decided October 12, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 23, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Alan D. Marrus, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Wright, 134 AD3d 1059, reversed.

HEADNOTE

Crimes — Jurors — Selection of Jury — Denial of For-Cause Challenge to Prospective Juror

In a criminal prosecution, the trial court erred in denying defendant's for-cause challenge to a prospective juror, where the prospective juror's statements raised serious doubt regarding her ability to be unbiased and the

court did not inquire further to obtain unequivocal assurance that she could be fair and impartial. Pursuant to CPL 270.20 (1) (b), a prospective juror may be challenged for cause if the juror evinces “a state of mind that is likely to preclude [the juror] from rendering an impartial verdict based upon the evidence adduced at the trial.” Under the circumstances, where it was error to deny defendant’s challenge for cause and he eventually exhausted his peremptory challenges, defendant’s conviction was reversed and a new trial ordered.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Mark W. Vorkink of counsel), for appellant.

Eric Gonzalez, Acting District Attorney, Brooklyn (Jean M. Joyce and Leonard Joblove of counsel), for respondent.

Wilmer Cutler Pickering Hale and Door LLP, New York City (Tiffany E. Payne and Mark G. Matuschak of counsel), Lindsay A. Lewis, Committee of the National Association of Criminal Defense Lawyers, New York City, and Richard D. Willstatter, Committee of the New York State Association of Criminal Defense Lawyers, White Plains, for National Association of Criminal Defense Lawyers and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant Phillip Wright challenges his conviction of second-degree criminal possession of a weapon (Penal Law § 265.03 [3]) on the ground that the trial court erred in denying his for-cause challenge to a prospective juror. Pursuant to CPL 270.20 (1) (b), a prospective juror may be challenged for cause if the juror evinces “a state of mind that is likely to preclude [the juror] from rendering an impartial verdict based upon the evidence adduced at the trial.” Here, the prospective juror’s statements raised serious doubt regarding her ability to be unbiased, and the trial court did not inquire further to obtain unequivocal assurance that she could be fair and impartial (*see People v Chambers*, 97 NY2d 417, 419 [2002]; *People v Johnson*, 94 NY2d 600, 614 [2000]). Under the circumstances of this case, where it was error to deny defendant’s challenge for cause and he eventually exhausted his peremptory challenges, defendant’s conviction should be reversed and a new trial ordered (CPL 270.20 [2]; *see also People v Nicholas*, 98 NY2d 749 [2002]). Given our decision, we do not reach defendant’s challenge to the legality of his sentence.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order reversed and a new trial ordered, in a memorandum.

[88 NE3d 304, 66 NYS3d 146]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VILMA BAUTISTA, Appellant.

Argued September 12, 2017; decided October 19, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 20, 2015. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment of the Supreme Court, New York County (Renee A. White, J.), as had convicted defendant, upon a jury verdict, of criminal tax fraud in the first degree and offering a false instrument for filing in the first degree.

People v Bautista, 132 AD3d 523, affirmed.

HEADNOTES

Crimes — Argument and Conduct of Counsel — Summation Remarks

1. Defendant was not deprived of a fair trial by the prosecutor's remarks in summation, as they reflected arguments that were fairly inferable from the evidence adduced at trial.

Crimes — Disclosure — Failure to Disclose Exculpatory Material — Notes from Interview with Unindicted Alleged Coconspirator

2. The lower courts properly determined that the notes taken during the interviews of an unindicted alleged coconspirator were not subject to disclosure under *Brady v Maryland* (373 US 83 [1963]) because the notes were not exculpatory as to defendant's convictions.

APPEARANCES OF COUNSEL

Nathan Z. Dershowitz, LLC, New York City (*Nathan Z. Dershowitz* and *Amy Adelson* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Garrett A. Lynch*, *Allen J. Vickey* and *Vincent Rivellese* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed.

[1, 2] Defendant was not deprived of a fair trial by the prosecutor's remarks in summation, as they reflected arguments that were fairly inferable from the evidence adduced at trial. Further, we agree with the courts below that the notes taken during the interviews of an unindicted alleged coconspirator were not subject to disclosure under *Brady v Maryland* (373 US 83 [1963]) because, contrary to defendant's contention, the notes were not exculpatory as to defendant's convictions of criminal tax fraud in the first degree and offering a false instrument for filing in the first degree.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order, insofar as appealed from, affirmed, in a memorandum.

In the Matter of TALIB ALSAIFULLAH, Appellant, v NEW YORK STATE LEGISLATURE, AMENDED LAWS, CHAPTER 19 OF THE LAWS OF 2012 (OCTOBER 1, 2012), Respondent.

Submitted August 21, 2017; decided October 19, 2017

Reported below, 2017 NY Slip Op 80574(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of HAMILCAR BARCA, Appellant, v ANTHONY J. ANNUCCI, Respondent.

Submitted August 14, 2017; decided October 19, 2017

Reported below, 2017 NY Slip Op 77416(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of NILDA CASIANO, Appellant. COMMISSIONER OF LABOR, Respondent.

In the Matter of NILDA CASIANO, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted August 14, 2017; decided October 19, 2017

Reported below, 2015 NY Slip Op 92436(U); 2015 NY Slip Op 92437(U).

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 1040 (2017)].

Judges STEIN and FEINMAN taking no part.

KEVIN CHECKSFIELD, Appellant, v STEFAN D. BERG, Respondent.

Submitted August 14, 2017; decided October 19, 2017

Reported below, 148 AD3d 1376.

Motion for reargument denied [see 29 NY3d 1044 (2017)].

Judge FEINMAN taking no part.

In the Matter of the Claim of GUY COZZI, Appellant, v AMERICAN STOCK EXCHANGE et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted July 24, 2017; decided October 19, 2017

Reported below, 148 AD3d 1500; 2017 NY Slip Op 77140(U).

Motion, insofar as it seeks leave to appeal from the June 2017 Appellate Division order denying reconsideration, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the March 2017 Appellate Division order, dismissed as untimely (see CPLR 5513 [b]).

PATRICIA J. CURTO, Appellant, v NEW YORK LAW JOURNAL et al., Respondents.

Submitted August 7, 2017; decided October 19, 2017

Reported below, 144 AD3d 1543.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 1073 (2017)].

Judge FEINMAN taking no part.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 146 AD3d 576.

Motion by American Academy of Pediatrics et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 146 AD3d 576.

Motion by Gale Brewer, Manhattan Borough President, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served within seven days.

In the Matter of THE FRIENDS OF P.S. 163, INC., et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents.

In the Matter of DAISY WRIGHT et al., Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 146 AD3d 576.

Motion by Cardozo Bet Tzedek Legal Services et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

GARY K. GAINES, Appellant, v 1840 7TH AVENUE HOUSING DEVELOPMENT FUND CORPORATION, Respondent.

Submitted July 31, 2017; decided October 19, 2017

Reported below, 2017 NY Slip Op 63276(U).

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 911 (2017)].

Judge FEINMAN taking no part.

GLOBAL REINSURANCE CORPORATION OF AMERICA, Successor in Interest to CONSTITUTION REINSURANCE CORPORATION, Respondent, v CENTURY INDEMNITY COMPANY, Successor in Interest to CCI INSURANCE COMPANY, Successor in Interest to INSURANCE COMPANY OF NORTH AMERICA, Appellant.

Submitted October 16, 2017; decided October 19, 2017

See 843 F3d 120.

Motion by Continental Casualty Company et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

GLOBAL REINSURANCE CORPORATION OF AMERICA, Successor in Interest to CONSTITUTION REINSURANCE CORPORATION, Respondent, v CENTURY INDEMNITY COMPANY, Successor in Interest to CCI INSURANCE COMPANY, Successor in Interest to INSURANCE COMPANY OF NORTH AMERICA, Appellant.

Submitted October 16, 2017; decided October 19, 2017

See 843 F3d 120.

Motion by Aon Benfield U.S. et al. for leave to appear amici curiae on consideration of the certified question herein granted only to the extent that the proposed brief and addendum are accepted as filed.

In the Matter of WILLIAM MITCHELL, Appellant, v RICHARD M. AMBRO, a Justice of the Supreme Court, Suffolk County, et al., Respondents.

Submitted August 7, 2017; decided October 19, 2017

Reported below, 148 AD3d 810.

Motion to vacate this Court's July 5, 2017 dismissal order denied [*see* 29 NY3d 1089 (2017)].

In the Matter of THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CONRADO JUAREZ, Defendant. FRANCES ROBLES, Nonparty Respondent.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 143 AD3d 589.

Motion by Reporters Committee for Freedom of the Press et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROHAN MANRAGH, JR., Appellant.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 150 AD3d 762.

Motion for assignment of counsel granted and Thomas E. Scott, Esq., 115 Broadhollow Road, Suite 250, Melville, NY 11747 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REGINALD WIGGINS, Appellant.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 143 AD3d 451.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of PROMETHEUS REALTY CORP. et al., Respondents, v NEW YORK CITY WATER BOARD et al., Appellants.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 147 AD3d 519.

Motion by Natural Resources Defense Council et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

ERIC WHITE et al., Appellants, v ERIC T. SCHNEIDERMAN, New York State Attorney General, in His Official Capacity, et al., Respondents.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 140 AD3d 1636.

Motion by Seneca Nation of Indians et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

ERIC WHITE et al., Appellants, v ERIC T. SCHNEIDERMAN, New York State Attorney General, in His Official Capacity, et al., Respondents.

Submitted October 16, 2017; decided October 19, 2017

Reported below, 140 AD3d 1636.

Motion by Cayuga Nation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

[89 NE3d 515, 67 NYS3d 125]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROSS CAMPBELL, Appellant.

Argued September 12, 2017; decided October 12, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 29, 2015. The Appellate Division modified, on the law, and otherwise affirmed a judgment of the Supreme Court, Bronx County (Wayne M. Ozzi, J.), which had convicted defendant, upon a jury verdict, of sex trafficking, promoting prostitution in the second degree, rape in the first degree, criminal sexual act in the first degree and kidnapping in the second degree. The modification consisted of reducing the crime victim assistance fee from \$25 to \$20.

People v Campbell, 131 AD3d 882, affirmed.

HEADNOTE**Crimes — Right to Counsel — Effective Representation**

Defendant failed to meet his burden of establishing that his trial counsel's performance was constitutionally deficient by demonstrating the absence of strategic or other legitimate explanations for counsel's alleged failures. Defendant's ineffective assistance of counsel claims were of the type where it is essential that an appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Abigail Everett* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Ramandeep Singh, Nancy D. Killian* and *Peter D. Coddington* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Under both federal and state constitutional standards, defendant “bears the burden of establishing his claim[s] that counsel’s performance is constitutionally deficient” (*People v Nicholson*, 26 NY3d 813, 831 [2016]). Defendant “must demonstrate the absence of strategic or other legitimate explanations for counsel’s alleged failure” (*id.*). On this record, defendant has not met that burden.

Defendant presents ineffective assistance of counsel claims that are “of the type where ‘it . . . [is] essential . . . that an

appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10' " (*People v Henderson*, 28 NY3d 63, 66 [2016], quoting *People v Brown*, 45 NY2d 852, 854 [1978]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

[86 NE3d 514, 64 NYS3d 622]

GARTHON BUSINESS INC. et al., Respondents, v KIRILL ACE STEIN et al., Appellants.

Argued September 12, 2017; decided October 12, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 26, 2016. The Appellate Division, insofar as appealed from, with two Justices dissenting, (1) reversed, on the law, those portions of the orders of the Supreme Court, New York County (Shirley Werner Kornreich, J.), which had granted that branch of defendants' separate motions which was to compel arbitration; and (2) denied that branch of the motions.

Defendants provided financial consulting advice to plaintiffs and the terms of their arrangement were initially set forth in two agreements, the first of which provided that any disputes arising thereunder were to be litigated in the United States courts, and the second of which provided that the courts of England were to have exclusive jurisdiction over any disputes arising thereunder. The parties entered into third and fourth agreements which expressly terminated the first two agreements, had merger clauses, and provided that any disputes arising out of them were to be resolved by arbitration under the London Court of International Arbitration rules. Plaintiffs commenced an action alleging, among other things, breach of the consulting agreements, and defendants moved for a stay of the action and an order compelling arbitration of all the claims in London. The Appellate Division determined that the merger clause in the latter agreements did not serve to negate the

forum selection clause in the first agreement or plaintiffs' right to pursue their claims in court. The Appellate Division further determined that to the extent that the third and fourth agreements contained language releasing the parties from liability arising out of their predecessor agreements, that language only served to alter the substantive rights of the parties; and that, absent express language to the contrary, it could not be interpreted as having altered the forum selection provisions contained in the first agreement.

Garthon Bus. Inc. v Kirill Ace Stein, 138 AD3d 587, reversed.

HEADNOTE

Arbitration — Matters Arbitrable — Successive Agreements

In an action alleging, among other things, breach of financial consulting agreements, defendants' motions to compel arbitration were granted. Under the circumstances, including the terms of the parties' final agreements, which incorporated the rules of the London Court of International Arbitration, the issue of whether the parties' dispute was arbitrable was an issue to be resolved by the arbitrator.

APPEARANCES OF COUNSEL

Turek Roth Grossman LLP, New York City (*Jason A. Grossman* and *Gaddi Goren* of counsel), for Kirill Ace Stein, appellant.

Siri & Glimstad LLP, New York City (*Aaron Siri* and *Mason Barney* of counsel), for Aurdeley Enterprises Limited, appellant.

Hogan Lovells US LLP, New York City (*Pieter Van Tol* and *Daryl L. Kleiman* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the motions to compel arbitration granted.

Under the circumstances of this case, including the terms of the parties' final agreements, which incorporated the rules of the London Court of International Arbitration, the issue of whether the dispute is arbitrable should be resolved by the arbitrator (*see Matter of Monarch Consulting, Inc. v National Union Fire Ins. Co. of Pittsburgh, PA*, 26 NY3d 659, 676-677 [2016]; *Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91, 95 [1975]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order, insofar as appealed from, reversed, with costs, and motions to compel arbitration granted, in a memorandum.

[86 NE3d 550, 64 NYS3d 658]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
L. CARR, Appellant.

Argued September 6, 2017; decided October 19, 2017

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 1, 2015. The Appellate Division affirmed an order of the Supreme Court, Erie County (M. William Boller, J.), which had denied defendant's motion pursuant to CPL 440.10 to vacate a judgment of that court which had convicted defendant, upon a jury verdict, of murder in the second degree (two counts) and robbery in the first degree.

In connection with the stabbing death of the victim in his home, the prosecutor charged the grand jury with a single count of burglary in the second degree. Defendant was convicted of that offense and, following his conviction, the People presented evidence to a second grand jury that included the testimony of an inmate that defendant had admitted to committing the murder. As a result, defendant was indicted and convicted of murder and robbery. Defendant moved pursuant to CPL 440.10 to vacate the judgment convicting him of the murder and robbery counts on the ground that the People failed to seek leave to re-present the matter to another grand jury, in violation of CPL 190.75 (3). The Appellate Division determined that the People did not withdraw the charges of murder and robbery from the first grand jury's consideration and, thus, the first grand jury's action was not the functional equivalent of the dismissal of the murder and robbery counts.

People v Carr, 128 AD3d 1402, affirmed.

HEADNOTE

Grand Jury — Dismissal of Charge — Additional Charges Presented to Second Grand Jury

Defendant's motion to vacate the judgment convicting him of the murder and robbery charges submitted to the second grand jury was properly denied.

Under the circumstances, the People were not required to seek court permission under CPL 190.75 (3) before presenting additional charges to a second grand jury.

APPEARANCES OF COUNSEL

Evan M. Lumley, Buffalo, for appellant.

Michael J. Flaherty, Jr., Acting District Attorney, Buffalo (*Nicholas T. Texido* and *Michael J. Hillery* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

There was no error in the denial of defendant's motion to vacate the judgment. Under these circumstances, the People were not required to seek court permission under CPL 190.75 (3) before presenting additional charges to a second grand jury. We do not pass upon whether a CPL 440.10 motion lies to bring this claim, as that question is not before us.

Chief Judge DiFiore and Judges Rivera, Stein, Garcia, Wilson and Feinman concur; Judge Fahey taking no part.

Order affirmed, in a memorandum.

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(September 1, 2017 through September 30, 2017)

Vidal, Matter of, v Annucci	3d Dept: 149 AD3d 1366	9/26/17
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APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2017 through September 30, 2017)

Scavetta v Wechsler	1st Dept: 149 AD3d 202	9/7/17
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2017 through September 30, 2017)

People v Adamson	2d Dept: 147 AD3d 869 (Kings)	denied reconsideration 9/13/17 (Wilson, J.)
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MEMORANDA

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People v Agard (Kenith)	1st Dept: 151 AD3d 456 (NY)	denied 9/18/17 (Stein, J.)
People v Agard (Kenith)	1st Dept: 151 AD3d 456 (NY)	denied 9/18/17 (Stein, J.)
People v Aguilar	App Div, 1st Dept: 2017 NY Slip Op 63269(U) (NY)	denied 9/7/17 (Rivera, J.)
People v Alali	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 130(A) (Queens)	denied 9/7/17 (Rivera, J.)
People v Allen	2d Dept: 149 AD3d 764 (Westchester)	denied 9/22/17 (Fahey, J.)
People v Anderson (Daquan)	1st Dept: 151 AD3d 542 (Bronx)	denied 9/11/17 (DiFiore, Ch. J.)
People v Anderson (Guy)	3d Dept: 149 AD3d 1407 (Albany)	denied 9/22/17 (Fahey, J.)
People v Anonymous	1st Dept: 152 AD3d 417 (Bronx)	denied 9/14/17 (Stein, J.)
People v Anwar	4th Dept: 151 AD3d 1628 (Onondaga)	denied 9/27/17 (Wilson, J.)
People v Arias	1st Dept: 151 AD3d 598 (NY)	denied 9/7/17 (Rivera, J.)
People v Atkinson	2d Dept: 150 AD3d 870 (Kings)	denied 9/7/17 (Garcia, J.)
People v Babcock	3d Dept: 152 AD3d 962 (Ulster)	denied 9/18/17 (Fahey, J.)
People v Baird	4th Dept: 150 AD3d 1639 (Monroe)	denied 9/7/17 (Rivera, J.)
People v Baisley	App Term, 2d Dept, 9th & 10th Jud Dists: 55 Misc 3d 148(A) (Orange)	granted 9/11/17 (Stein, J.)
People v Bajes	2d Dept: 151 AD3d 1073 (Kings)	denied 9/7/17 (Rivera, J.)
People v Bell	1st Dept: 153 AD3d 401 (Bronx)	denied 9/13/17 (Rivera, J.)
People v Best	2d Dept: 152 AD3d 617 (Nassau)	denied 9/28/17 (DiFiore, Ch. J.)
People v Bisnauth	2d Dept: 149 AD3d 860 (Suffolk)	denied 9/13/17 (Rivera, J.)
People v Blake	1st Dept: 147 AD3d 591 (NY)	denied 9/7/17 (Rivera, J.)
People v Bloom	4th Dept: 149 AD3d 1462 (Genesee)	denied 9/7/17 (DiFiore, Ch. J.)
People v Bolt	1st Dept: 152 AD3d 408 (Bronx)	denied 9/28/17 (Fahey, J.)
People v Bonilla	2d Dept: 151 AD3d 735 (Nassau)	denied 9/18/17 (Stein, J.)
People v Braine	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 55 Misc 3d 142(A) (Richmond)	denied 9/27/17 (Wilson, J.)
People v Brevard	1st Dept: 149 AD3d 546 (NY)	denied 9/18/17 (Stein, J.)
People v Broccoli	2d Dept: 152 AD3d 536 (Suffolk)	denied 9/18/17 (Fahey, J.)

People v Butler	4th Dept: 151 AD3d 1959 (Steuben)	denied 9/13/17 (Wilson, J.)
People v Candel	1st Dept: 152 AD3d 435 (NY)	denied 9/13/17 (Rivera, J.)
People v Cardona-Velasquez	2d Dept: 152 AD3d 618 (Putnam)	denied 9/7/17 (Rivera, J.)
People v Casanova	3d Dept: 152 AD3d 875 (Albany)	denied 9/13/17 (Garcia, J.)
People v Charles	1st Dept: 152 AD3d 423 (NY)	denied 9/18/17 (Fahey, J.)
People v Chernel	App Term, 2d Dept, 9th & 10th Jud Dists: 56 Misc 3d 85 (Westchester)	denied 9/19/17 (Fahey, J.)
People v Childress	2d Dept: 150 AD3d 1140 (Suffolk)	denied 9/7/17 (Rivera, J.)
People v Chirse	2d Dept: 151 AD3d 737 (Kings)	denied 9/20/17 (Rivera, J.)
People v Chrysler	3d Dept: 152 AD3d 825 (Albany)	denied 9/13/17 (Garcia, J.)
People v Coke (William)	App Div, 4th Dept, 6/1/17 (Niagara)	dismissed 9/13/17 (Rivera, J.)
People v Coke (William)	App Div, 4th Dept, 5/10/17 (Niagara)	denied reconsideration 9/13/17 (Rivera, J.)
People v Collier	3d Dept: 146 AD3d 1146 (Rensselaer)	denied 9/4/17 (Garcia, J.)
People v Colvin	4th Dept: 151 AD3d 1781 (Oneida)	denied 9/11/17 (Garcia, J.)
People v Connelly	3d Dept: 151 AD3d 1480 (Broome)	denied 9/27/17 (Wilson, J.)
People v Costa	1st Dept: 152 AD3d 430 (NY)	denied 9/27/17 (Wilson, J.)
People v Costello	2d Dept: 148 AD3d 1180 (Queens)	denied reconsideration 9/28/17 (Rivera, J.)
People v Cross	App Div, 1st Dept, 12/22/16 (Bronx)	denied 9/19/17 (Fahey, J.)
People v Cruz-Garcia	2d Dept: 150 AD3d 759 (Putnam)	denied 9/18/17 (Stein, J.)
People v Cuatlal	2d Dept: 152 AD3d 539 (Kings)	denied 9/28/17 (Fahey, J.)
People v Cuba	3d Dept: 152 AD3d 875 (Albany)	denied 9/13/17 (Garcia, J.)
People v Curry	3d Dept: 152 AD3d 818 (Schenectady)	denied 9/28/17 (Fahey, J.)
People v D'Attore (Gaetano)	1st Dept: 151 AD3d 548 (Bronx)	denied 9/14/17 (Wilson, J.)
People v D'Attore (Gaetano)	App Div, 1st Dept: 2017 NY Slip Op 66018(U) (Bronx)	denied 9/27/17 (Wilson, J.)
People v Davis	2d Dept: 150 AD3d 1146 (Queens)	denied 9/13/17 (Wilson, J.)

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People v Dean	4th Dept: 151 AD3d 1967 (Ontario)	denied 9/11/17 (Garcia, J.)
People v DeJesus	1st Dept: 152 AD3d 426 (NY)	denied 9/11/17 (Garcia, J.)
People v Dennard	4th Dept: 151 AD3d 1741 (Onondaga)	denied 9/18/17 (Stein, J.)
People v Dorcinvil	2d Dept: 149 AD3d 867 (Kings)	denied reconsideration 9/28/17 (DiFiore, Ch. J.)
People v Dorsey	3d Dept: 151 AD3d 1391 (Albany)	denied 9/28/17 (Rivera, J.)
People v Eaves	4th Dept: 152 AD3d 1226 (Monroe)	denied 9/8/17 (Stein, J.)
People v Edwards	4th Dept: 151 AD3d 1832 (Steuben)	denied 9/13/17 (Garcia, J.)
People v Ellison	4th Dept: 151 AD3d 1905 (Niagara)	denied 9/14/17 (Garcia, J.)
People v Etienne	2d Dept: 152 AD3d 790 (Kings)	denied 9/14/17 (Garcia, J.)
People v Fernandez	1st Dept: 151 AD3d 552 (NY)	denied 9/25/17 (Wilson, J.)
People v Flax	4th Dept: 151 AD3d 1781 (Erie)	denied 9/18/17 (Stein, J.)
People v Fusco	2d Dept: 149 AD3d 776 (Nassau)	denied reconsideration 9/20/17 (Rivera, J.)
People v Galtieri	2d Dept: 151 AD3d 879 (Richmond)	denied 9/14/17 (Stein, J.)
People v Garcia-Collado	2d Dept: 151 AD3d 982 (Suffolk)	denied 9/28/17 (Rivera, J.)
People v Gavidia	2d Dept: 151 AD3d 883 (Suffolk)	denied 9/4/17 (Garcia, J.)
People v Gillard	1st Dept: 151 AD3d 622 (Bronx)	denied 9/18/17 (Fahey, J.)
People v Gilliard	1st Dept: 151 AD3d 622 (Bronx)	denied 9/18/17 (Fahey, J.)
People v Giuliano (Riccardo)	4th Dept: 151 AD3d 1958 (Monroe)	denied 9/28/17 (Rivera, J.)
People v Gottfried	App Div, 4th Dept, 6/21/17 (Onondaga)	dismissed 9/8/17 (Stein, J.)
People v Gray	3d Dept: 151 AD3d 1470 (Ulster)	denied 9/28/17 (Rivera, J.)
People v Griffin	4th Dept: 151 AD3d 1824 (Monroe)	denied 9/18/17 (Stein, J.) (Appeal No. 1)
People v Guerrero	4th Dept: 151 AD3d 1875 (Monroe)	denied 9/11/17 (Garcia, J.)
People v Guiliano	4th Dept: 151 AD3d 1958 (Monroe)	denied 9/28/17 (Rivera, J.)

People v Gums	4th Dept: 152 AD3d 1226 (Monroe)	denied 9/8/17 (Stein, J.)
People v Hall	1st Dept: 151 AD3d 621 (NY)	denied 9/18/17 (Fahey, J.)
People v Harris (Louis)	1st Dept: 151 AD3d 490 (NY)	denied 9/6/17 (Stein, J.)
People v Harris (Tishara)	4th Dept: 151 AD3d 1720 (Monroe)	denied 9/27/17 (Wilson, J.)
People v Harvey	App Div, 2d Dept: 2017 NY Slip Op 79582(U) (Kings)	dismissed 9/28/17 (Rivera, J.)
People v Heisler	1st Dept: 150 AD3d 612 (NY)	denied 9/28/17 (Rivera, J.)
People v Hines	4th Dept: 151 AD3d 1967 (Cayuga)	denied 9/4/17 (Garcia, J.)
People v Holder	2d Dept: 150 AD3d 886 (Kings)	denied 9/7/17 (Rivera, J.)
People v Homer	4th Dept: 151 AD3d 1949 (Onondaga)	denied 9/29/17 (Wilson, J.)
People v Hough	4th Dept: 151 AD3d 1591 (Erie)	denied 9/21/17 (DiFiore, Ch. J.)
People v Houghtaling	4th Dept: 144 AD3d 1591 (Livingston)	denied reconsideration 9/20/17 (Rivera, J.)
People v Huitt	4th Dept: 149 AD3d 1481 (Monroe)	denied 9/7/17 (Rivera, J.)
People v Hulsén	2d Dept: 150 AD3d 1261 (Nassau)	denied 9/7/17 (Rivera, J.)
People v Hurley	App Div, 3d Dept: 2016 NY Slip Op 91183(U) (Franklin)	denied reconsideration 9/20/17 (Rivera, J.)
People v Husain	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 73 (Queens)	denied 9/18/17 (Stein, J.)
People v Inman	3d Dept: 151 AD3d 1283 (Broome)	denied 9/18/17 (Fahey, J.)
People v Iovino	3d Dept: 149 AD3d 1350 (Albany)	denied 9/20/17 (Rivera, J.)
People v Isidore	4th Dept: 151 AD3d 1715 (Monroe)	denied 9/4/17 (Garcia, J.)
People v Iwanczyk	2d Dept: 151 AD3d 745 (Queens)	denied 9/28/17 (Rivera, J.)
People v Jackson (Michael)	3d Dept: 151 AD3d 1466 (Franklin)	denied 9/20/17 (Rivera, J.)
People v Jackson (Tyrone)	App Div, 1st Dept: 2017 NY Slip Op 78347(U) (NY)	dismissed 9/29/17 (Wilson, J.)
People v Jaquez	1st Dept: 150 AD3d 543 (NY)	denied 9/28/17 (Rivera, J.)
People v Jaramillo	4th Dept: 151 AD3d 1782 (Jefferson)	denied 9/28/17 (Rivera, J.)
People v Jefferson	2d Dept: 151 AD3d 1078 (Queens)	denied 9/19/17 (Stein, J.)

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People v Kelly	App Div, 1st Dept: 2015 NY Slip Op 70956(U) (Bronx)	denied reconsideration 9/7/17 (Rivera, J.)
People v King	4th Dept: 151 AD3d 1651 (Genesee)	denied 9/11/17 (Stein, J.)
People v Kollock	2d Dept: 152 AD3d 546 (Kings)	denied 9/19/17 (Fahey, J.)
People v Kupersmidt	2d Dept: 152 AD3d 797 (Kings)	denied 9/13/17 (Wilson, J.)
People v Kypri	2d Dept: 149 AD3d 980 (Queens)	denied 9/7/17 (Rivera, J.)
People v Lassiter	2d Dept: 151 AD3d 885 (Dutchess)	denied 9/20/17 (Rivera, J.)
People v Leader	4th Dept: 151 AD3d 1878 (Cayuga)	denied 9/7/17 (Rivera, J.)
People v Lewis (Richard)	App Term, 1st Dept: 56 Misc 3d 126(A) (NY)	denied 9/13/17 (Garcia, J.)
People v Lewis (Tomas)	4th Dept: 151 AD3d 1781 (Monroe)	denied 9/19/17 (Stein, J.)
People v Lewis (William)	2d Dept: 150 AD3d 1264 (Rockland)	denied 9/25/17 (Wilson, J.)
People v Little	1st Dept: 151 AD3d 531 (Bronx)	denied 9/8/17 (Stein, J.)
People v Lombardo	2d Dept: 151 AD3d 887 (Kings)	denied 9/28/17 (Rivera, J.)
People v Lopez (Antonio)	1st Dept: 151 AD3d 640 (NY)	denied 9/28/17 (Fahey, J.)
People v Lopez (Cecilio)	2d Dept: 150 AD3d 1266 (Kings)	denied 9/18/17 (Fahey, J.)
People v Magin	4th Dept: 152 AD3d 1184 (Monroe)	denied 9/13/17 (Rivera, J.)
People v Maisonet	1st Dept: 147 AD3d 565 (Bronx)	denied 9/8/17 (Stein, J.)
People v Manning	4th Dept: 151 AD3d 1936 (Erie)	denied 9/28/17 (Rivera, J.)
People v Marino	2d Dept: 152 AD3d 622 (Suffolk)	denied 9/28/17 (Fahey, J.)
People v Marling	4th Dept: 151 AD3d 1963 (Orleans)	denied 9/7/17 (Rivera, J.)
People v Martin	1st Dept: 147 AD3d 587 (NY)	granted 9/28/17 (Rivera, J.)
People v McBride	1st Dept: 151 AD3d 623 (NY)	denied 9/8/17 (Stein, J.)
People v McDonald	1st Dept: 151 AD3d 524 (NY)	denied 9/19/17 (Fahey, J.)
People v McIlwain	2d Dept: 153 AD3d 553 (Kings)	denied 9/18/17 (Stein, J.)
People v McMillan	1st Dept: 151 AD3d 591 (NY)	denied 9/11/17 (Garcia, J.)

People v McQuaid	2d Dept: 150 AD3d 1149 (Westchester)	denied 9/7/17 (Rivera, J.)
People v Mendoza	App Div, 2d Dept: 2017 NY Slip Op 77343(U) (Suffolk)	dismissed 9/19/17 (Fahey, J.)
People v Mickens	2d Dept: 151 AD3d 984 (Suffolk)	denied 9/18/17 (Fahey, J.)
People v Mosquero	2d Dept: 151 AD3d 888 (Queens)	denied 9/22/17 (Fahey, J.)
People v Murphy	2d Dept: 151 AD3d 888 (Kings)	denied 9/14/17 (Wilson, J.)
People v Ozbek	App Term, 1st Dept: 56 Misc 3d 126(A) (NY)	denied 9/18/17 (Stein, J.)
People v Paquiot	2d Dept: 151 AD3d 756 (Kings)	denied 9/11/17 (Garcia, J.)
People v Pastore	1st Dept: 150 AD3d 424 (NY)	denied 9/28/17 (Rivera, J.)
People v Patel	2d Dept: 142 AD3d 511 (Nassau)	denied reconsideration 9/14/17 (Wilson, J.)
People v Patterson	App Div, 2d Dept: 2017 NY Slip Op 78720(U) (Dutchess)	dismissed 9/19/17 (DiFiore, Ch. J.)
People v Pavone	App Div, 3d Dept: 2017 NY Slip Op 75561(U) (Clinton)	denied 9/20/17 (Rivera, J.)
People v Perez-Ramirez	2d Dept: 150 AD3d 1151 (Nassau)	denied 9/7/17 (Rivera, J.)
People v Peterkin	4th Dept: 149 AD3d 1625 (Monroe)	denied 9/5/17 (Stein, J.)
People v Pierce	4th Dept: 151 AD3d 1964 (Erie)	denied 9/28/17 (DiFiore, Ch. J.)
People v Pilgrim	App Div, 1st Dept: 2016 NY Slip Op 83339(U) (Bronx)	denied 9/19/17 (Fahey, J.)
People v Pixley	3d Dept: 150 AD3d 1555 (Warren)	denied 9/14/17 (Garcia, J.)
People v Porter	County Ct, 5/9/17 (Monroe)	denied reconsideration 9/21/17 (DiFiore, Ch. J.)
People v Powell	App Div, 1st Dept: 2017 NY Slip Op 76979(U) (NY)	denied 9/19/17 (Fahey, J.)
People v Price	2d Dept: 150 AD3d 1153 (Queens)	denied 9/25/17 (Wilson, J.)
People v Quedraogo	App Term, 1st Dept: 55 Misc 3d 143(A) (NY)	denied 9/14/17 (Wilson, J.)
People v Ramos	App Div, 2d Dept: 2017 NY Slip Op 77678(U) (Queens)	dismissed 9/28/17 (Fahey, J.)
People v Reed	4th Dept: 151 AD3d 1821 (Onondaga)	denied 9/11/17 (Stein, J.)
People v Ricchiuti	App Term, 2d Dept, 9th & 10th Jud Dists: 55 Misc 3d 148(A) (Suffolk)	denied 9/14/17 (Wilson, J.)
People v Riley	App Term, 1st Dept: 55 Misc 3d 144(A) (NY)	denied 9/14/17 (Stein, J.)

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People v Robinson (Andre)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 77 (Kings)	denied 9/11/17 (DiFiore, Ch. J.)
People v Robinson (Dylesha)	2d Dept: 151 AD3d 758 (Queens)	denied 9/18/17 (Fahey, J.)
People v Rock	3d Dept: 151 AD3d 1383 (Clinton)	denied 9/19/17 (Fahey, J.)
People v Rodriguez	App Div, 2d Dept: 2017 NY Slip Op 80070(U) (Suffolk)	dismissed 9/18/17 (Stein, J.)
People v Rouse	4th Dept: 149 AD3d 1597 (Monroe)	denied 9/19/17 (Stein, J.)
People v Rudenko	2d Dept: 151 AD3d 1084 (Kings)	denied 9/19/17 (Stein, J.)
People v Salinas	1st Dept: 151 AD3d 659 (NY)	denied 9/28/17 (DiFiore, Ch. J.)
People v Sanchez	2d Dept: 152 AD3d 548 (Suffolk)	denied 9/18/17 (Fahey, J.)
People v Sanders	2d Dept: 151 AD3d 1085 (Kings)	denied 9/4/17 (Garcia, J.)
People v Santana	App Term, 1st Dept: 56 Misc 3d 128(A) (NY)	denied 9/7/17 (Rivera, J.)
People v Santiago	2d Dept: 151 AD3d 1085 (Kings)	denied 9/25/17 (Wilson, J.)
People v Saunders	2d Dept: 150 AD3d 1031 (Westchester)	denied 9/20/17 (Rivera, J.)
People v Sears	App Div, 4th Dept, 6/27/17 (Onondaga)	dismissed 9/11/17 (DiFiore, Ch. J.)
People v Serrano	1st Dept: 150 AD3d 602 (Bronx)	denied 9/25/17 (Wilson, J.)
People v Shabazz	App Div, 3d Dept: 2016 NY Slip Op 91183(U) (Franklin)	denied reconsideration 9/20/17 (Rivera, J.)
People v Smith (Demario)	4th Dept: 150 AD3d 1664 (Erie)	denied 9/7/17 (Rivera, J.)
People v Smith (Julius)	App Div, 2d Dept: 2017 NY Slip Op 70897(U) (Queens)	dismissed 9/19/17 (Fahey, J.)
People v Smith (Kenneth)	4th Dept: 151 AD3d 1877 (Erie)	denied 9/7/17 (Rivera, J.)
People v Smith (Robin)	4th Dept: 151 AD3d 1962 (Ontario)	denied 9/13/17 (Garcia, J.)
People v Sow	App Div, 1st Dept, 7/13/17 (NY)	denied 9/11/17 (Garcia, J.)
People v Spahalski	4th Dept: 151 AD3d 1716 (Monroe)	denied 9/14/17 (Wilson, J.)
People v Spencer	App Div, 1st Dept: 2017 NY Slip Op 76979(U) (NY)	denied 9/19/17 (Fahey, J.)
People v Strauss	4th Dept: 147 AD3d 1426 (Oneida)	denied reconsideration 9/27/17 (Wilson, J.)
People v Streeter	4th Dept: 142 AD3d 1401 (Niagara)	dismissed 9/29/17 (DiFiore, Ch. J.)

People v Stricklin	2d Dept: 152 AD3d 549 (Kings)	denied 9/18/17 (Fahey, J.)
People v Tinsley	App Div, 2d Dept: 2017 NY Slip Op 78412(U) (Westchester)	dismissed 9/7/17 (Rivera, J.)
People v Torres	2d Dept: 151 AD3d 767 (Orange)	denied 9/28/17 (DiFiore, Ch. J.)
People v Urena	App Div, 1st Dept: 2017 NY Slip Op 78346(U) (Bronx)	dismissed 9/28/17 (Rivera, J.)
People v Vance (Wayne)	App Div, 4th Dept, 1/13/17 (Erie)	dismissed 9/19/17 (Wilson, J.)
People v Vance (Wayne)	App Div, 4th Dept: 2017 NY Slip Op 80392(U) (Erie)	dismissed 9/19/17 (Wilson, J.)
People v Vance (Wayne)	App Div, 4th Dept: 2017 NY Slip Op 74782(U) (Erie)	dismissed 9/19/17 (Wilson, J.)
People v VanHooser	4th Dept: 151 AD3d 1761 (Onondaga)	denied 9/20/17 (Rivera, J.) (Appeal No. 2)
People v Vernooy	4th Dept: 151 AD3d 1741 (Monroe)	denied 9/12/17 (DiFiore, Ch. J.)
People v Vickers	County Ct, 6/26/17 (Monroe)	denied 9/18/17 (Stein, J.)
People v Walker (Chase)	4th Dept: 151 AD3d 1765 (Erie)	denied 9/25/17 (Wilson, J.)
People v Walker (Kalil)	4th Dept: 149 AD3d 1537 (Monroe)	denied 9/8/17 (Stein, J.)
People v Watson	3d Dept: 152 AD3d 1059 (Rensselaer)	denied 9/14/17 (Garcia, J.)
People v Welles	4th Dept: 151 AD3d 1725 (Wayne)	denied 9/14/17 (Stein, J.)
People v Whidbee	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 130(A) (Kings)	denied 9/5/17 (Stein, J.)
People v Wiggins	4th Dept: 151 AD3d 1859 (Monroe)	denied 9/11/17 (Garcia, J.)
People v Williams (Demetrius)	1st Dept: 147 AD3d 596 (NY)	denied reconsideration 9/14/17 (DiFiore, Ch. J.)
People v Williams (Jason)	4th Dept: 150 AD3d 1684 (Erie)	denied reconsideration 9/28/17 (DiFiore, Ch. J.)
People v Williams (Kasiem)	4th Dept: 151 AD3d 1782 (Erie)	denied 9/6/17 (Stein, J.)
People v Williams (Ozan)	2d Dept: 151 AD3d 987 (Richmond)	denied 9/28/17 (Rivera, J.)
People v Wong	4th Dept: 151 AD3d 1853 (Monroe)	denied 9/20/17 (Rivera, J.)
People v Wright (Adam)	App Div, 2d Dept: 2017 NY Slip Op 79027(U) (Kings)	dismissed 9/27/17 (Wilson, J.)
People v Wright (Adam)	2d Dept: 152 AD3d 801 (Kings)	denied 9/27/17 (Wilson, J.)

People v Young	3d Dept: 152 AD3d 981 (Albany)	denied 9/28/17 (Fahey, J.)
People v Zellner	2d Dept: 147 AD3d 797 (Nassau)	denied 9/11/17 (Stein, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(September 1, 2017 through September 30, 2017)

People v Gates	4th Dept: 152 AD3d 1222 (Jefferson)	granted 9/29/17 (Winslow, J.)
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THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v THOMAS
BRINK and THOSE DEFENDANTS LISTED ON THE ATTACHED
SCHEDULE “A”, Respondents.

Decided September 11, 2017

Appellant having applied for leave to appeal to this Court pursuant to Criminal Procedure Law § 460.20 from an order of the Sullivan County Court, dated December 20, 2016, affirming a decision and order of the Village of Monticello Justice Court, dated May 29, 2014, in the above-captioned case; upon the papers filed and due deliberation, it is ordered that the application is denied, with leave to renew within 30 days after the Court renders a decision in *People v Baisley* (55 Misc 3d 148[A], 2017 NY Slip Op 50709[U] [2017], *lv granted* 30 NY3d 947 [2017]).

By: Associate Judge LESLIE E. STEIN

Schedule A

Barry Bowser, Thomas Brink, Hiram Casiano, Michael Casiano, Stacey Cruz, Angela Davis, Daniel Davis, Deivi Diaz, Jerome Duffy, Keri Eck, Aida Embrey, Nelson Encarnacion, Philip Featherbay, Clifford Gildersleeve, Arthur Harris, David Hoag, Lennon Ivory, Jay Jarrette, Edwardo Rodriguez, Samuel Jackson, Clifton Jacobs, Steven Jones, Jennifer Lilley, Dean MacGhee, Brock Maloney, Gregory Marsh, Charles McAdams, Michael Millheiser, Scott Olsen, Mark Partin, Joseph Pressano, Harold Richardson, Jamar Shaw, James Tomlinson, Travis Walter, Thomas Zajonc

* Includes only applications that were granted.

[86 NE3d 551, 64 NYS3d 659]

BARBARA BURNS, Individually and as Executrix of THOMAS J. BURNS, Deceased, Appellant, v SUDHIR GOYAL et al., Defendants, and RAKESH B. PATEL et al., Respondents.

Decided October 12, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 28, 2016. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, Suffolk County (Jeffrey Arlen Spinner, J.; op 2014 NY Slip Op 32341[U] [2014]), as had denied the separate motions of defendants Rakesh B. Patel and Suffolk Heart Group, LLP, and defendants Michael Torelli and South Shore Family Practice Associates, P.C., for summary judgment dismissing the complaint as against them; and (2) granted the motions.

In an action for medical malpractice and wrongful death arising from plaintiff's decedent's discontinuance of a certain heart medication prior to a scheduled kidney biopsy and his death four days later, the Appellate Division determined that defendant primary care physicians established, *prima facie*, that they had no duty to decedent regarding his prescription, and that, in opposition, plaintiff submitted no evidence to demonstrate that those defendants had assumed a duty of care for decedent's heart issues. The Appellate Division further determined that defendant cardiac specialists, who had placed stents in decedent's coronary arteries, prescribed the medication, and allegedly spoke to decedent's kidney specialist about discontinuing the medication prior to the scheduled biopsy, established, *prima facie*, that they adhered to accepted practices in their treatment of decedent. The Appellate Division found that the affirmation of plaintiff's expert cardiologist, submitted in opposition, was conclusory where the expert failed to articulate what it was about decedent's particular case that required him to remain on the medication three years after his stents were placed, and further failed to articulate why a four-day interruption in the prescription would have been a danger to decedent.

Burns v Goyal, 145 AD3d 952, modified.

HEADNOTE

Physicians and Surgeons — Malpractice — Death Following Discontinuance of Heart Medication — Summary Judgment

In an action for wrongful death and medical malpractice arising from plaintiff's decedent's discontinuance of a certain heart medication prior to a scheduled kidney biopsy and his death three days later, triable questions of fact precluded summary judgment in favor of the defendants who prescribed the medication to decedent.

APPEARANCES OF COUNSEL

Frank N. Ambrosino, Smithtown, for appellant.

Shaub, Ahmuty, Citrin & Spratt, LLP, Lake Success (*Christopher Simone* of counsel), for Rakesh B. Patel, M.D., and another, respondents.

Keller, O'Reilly & Watson, P.C., Woodbury (*Vincent J. Petrozzo, Angela A. Cutone* and *Kathleen V. Meara* of counsel), for Michael Torelli, M.D., and another, respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, with costs to plaintiff against defendants Rakesh B. Patel and Suffolk Heart Group, LLP and to defendants Michael Torelli and South Shore Family Practice Associates, P.C. against plaintiff, by denying the motion of defendants Rakesh B. Patel and Suffolk Heart Group, LLP for summary judgment and, as so modified, affirmed. On this record, triable questions of fact preclude summary judgment in favor of these defendants.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[86 NE3d 526, 64 NYS3d 634]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN R. SIMMONS, Appellant.

Decided October 17, 2017

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered April, 28, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Erie County (M. William Boller, J.), which had convicted defendant,

upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Simmons, 149 AD3d 1464, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Founded Suspicion of Criminality

The determination of the lower courts regarding a founded suspicion of criminality, justifying the arresting officer's demand that defendant "show his hands," involved a mixed question of law and fact. Inasmuch as there was record evidence to support a finding of founded suspicion, and the totality of the circumstances provided sufficient indicia of criminality to warrant a level-two inquiry under *People v De Bour* (40 NY2d 210 [1976]), the determinations made below were beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

David C. Schopp, *The Legal Aid Bureau of Buffalo, Inc.*, Buffalo (*Barbara J. Davies* of counsel), for appellant.

John J. Flynn, *District Attorney*, Buffalo (*Julie Bender Fiske* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The determination regarding a founded suspicion of criminality, justifying the arresting officer's demand that defendant "show his hands," involves a mixed question of law and fact (*see People v Mercado*, 25 NY3d 936, 937 [2015]; *People v Valerio*, 95 NY2d 924, 925 [2000]). Based on the police officer's experience handling gun cases, the high crime rate and gang violence in the patrol area, the recent reports of gunshots fired near the location where defendant was first observed, and defendant's clutching of his waistband, there is record evidence to support a finding of founded suspicion. The totality of these circumstances provides sufficient indicia of criminality to warrant a level-two inquiry under *People v De Bour* (40 NY2d 210, 223 [1976]). Therefore, the determinations made below are beyond our further review.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

Order affirmed, in a memorandum.

BOARD OF MANAGERS OF THE 125 NORTH 10TH CONDOMINIUM,
Appellant, v 125NORTH10, LLC, Doing Business as 125
NORTH 10, LLC, et al., Respondents, et al., Defendants.
(And Third-Party Actions.)

Submitted July 17, 2017; decided October 17, 2017

Reported below, 150 AD3d 1065.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S.
SULTAN, Appellant.

Submitted July 24, 2017; decided October 17, 2017

Reported below, 145 AD3d 458; 2017 NY Slip Op 65576(U).

Motion for reargument of motion for leave to appeal denied
[see 29 NY3d 1072 (2017)].

Judge FEINMAN taking no part.

CHARLES B. CUMMINGS, Respondent, v ROBERT W. MANVILLE,
Appellant.

Submitted September 11, 2017; decided October 17, 2017

Reported below, 153 AD3d 58.

Motion to dismiss appeal granted and appeal dismissed, with
\$400 costs and \$100 costs of motion, upon the ground that the
order appealed from does not finally determine the action
within the meaning of the Constitution.

DEUTSCHE BANK NATIONAL TRUST COMPANY, as Trustee for
AMERICAN HOME MORTGAGE ASSET TRUST 2006-6,
MORTGAGE-BACKED PASS-THROUGH CERTIFICATES SERIES
2006-6, Appellant, v ROYAL BLUE REALTY HOLDINGS, INC.,
Respondent, et al., Defendants.

Submitted July 10, 2017; decided October 17, 2017

Reported below, 148 AD3d 529.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for ancillary relief dismissed as academic.

Chief Judge DiFiore taking no part.

DEUTSCHE BANK NATIONAL TRUST COMPANY, as Trustee for AMERICAN HOME MORTGAGE ASSET TRUST 2007-1, MORTGAGE-BACKED PASS-THROUGH CERTIFICATES 2007-1, Appellant, v UNKNOWN HEIRS OF THE ESTATE OF SERGE SOUTO et al., Defendants, and ROYAL BLUE REALTY HOLDINGS, INC., Respondent.

Submitted July 10, 2017; decided October 17, 2017

Reported below, 148 AD3d 529.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for ancillary relief dismissed as academic.

Chief Judge DiFiore taking no part.

DEUTSCHE BANK NATIONAL TRUST COMPANY, as Trustee for AMERICAN HOME MORTGAGE ASSET TRUST 2006-6, MORTGAGE-BACKED PASS-THROUGH CERTIFICATES SERIES 2006-6, Appellant, v UNKNOWN HEIRS OF THE ESTATE OF SERGE SOUTO et al., Defendants, and ROYAL BLUE REALTY HOLDINGS, INC., Respondent.

Submitted July 10, 2017; decided October 17, 2017

Reported below, 148 AD3d 529.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for ancillary relief dismissed as academic.

Chief Judge DiFiore taking no part.

In the Matter of LORI D. HOLMES, Appellant, v OTIS L. SIMMONS, JR., Respondent.

Submitted July 31, 2017; decided October 17, 2017

Reported below, 151 AD3d 1780.

Motion for leave to appeal, insofar as it relates to D.S., dismissed upon the ground that the issues presented have become moot; motion for leave to appeal otherwise denied.

INDIGO SECURED HIGH INCOME NOTE, LTD., Respondent, v HCI SECURED MEDICAL RECEIVABLES SPECIAL PURPOSE CORPORATION et al., Defendants, and STEVEN NITSBERG, Appellant.

Submitted July 24, 2017; decided October 17, 2017

Reported below, 140 AD3d 589; 2016 NY Slip Op 92970(U).

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 1023 (2017)].

Judge FEINMAN taking no part.

In the Matter of MARGOT M., Appellant, v CHANTE T. et al., Respondents.

Submitted July 17, 2017; decided October 17, 2017

Reported below, 148 AD3d 647.

Motion for leave to appeal dismissed as untimely (see CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

Judge FEINMAN taking no part.

In the Matter of CATHERINA PARK et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-NEWAL et al., Respondents.

Submitted July 31, 2017; decided October 17, 2017

Reported below, 150 AD3d 105.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRIAN HAKES, Respondent.

Submitted September 5, 2017; decided October 17, 2017

Reported below, 143 AD3d 1054.

Motion to vacate this Court's August 14, 2017 dismissal order granted [*see* 29 NY3d 1122 (2017)].

In the Matter of STATE OF NEW YORK, Respondent, v WAYNE J., Appellant.

Submitted June 26, 2017; decided October 17, 2017

Reported below, 143 AD3d 834.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Chief Judge DiFIORE taking no part.

In the Matter of MARCUS SYKES, Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted July 31, 2017; decided October 17, 2017

Reported below, 139 AD3d 468.

Motion for reargument of motion for leave to appeal denied [*see* 29 NY3d 1027 (2017)].

Judge FEINMAN taking no part.

DEBORAH J. TAYLOR, Individually and as Trustee of the DEBORAH J. TAYLOR REVOCABLE INTERVIVOS TRUST U/A 3/31/06, et al., Respondents, v MARC C. CASOLO, Respondent, and WILDERNESS CAPITAL GROUP, LTD., et al., Appellants, et al., Defendants.

Submitted July 24, 2017; decided October 17, 2017

Reported below, 144 AD3d 1209.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of JOHN F. YOUNG, Appellant, v MERRY L. RIOS, Respondent.

Submitted July 31, 2017; decided October 17, 2017

Reported below, 151 AD3d 1862.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[87 NE3d 143, 65 NYS3d 111]

In the Matter of STATE OF NEW YORK, Respondent, v FLOYD Y.,
Appellant.

Argued September 13, 2017; decided October 24, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment (denominated order) of the Supreme Court, New York County (Daniel P. Conviser, J.), entered December 9, 2015. The Supreme Court determined that respondent suffered from a mental abnormality but was not a dangerous sex offender requiring confinement under Mental Hygiene Law article 10. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 10, 2015. The Appellate Division (1) reversed, on the law, orders of that Supreme Court (Daniel P. Conviser, J.; op 46 Misc 3d 1225[A], 2015 NY Slip Op 50302[U] [2015]), which had, upon a jury verdict finding that respondent suffered from a mental abnormality requiring civil management under Mental Hygiene Law article 10, granted respondent's motion to set aside the verdict and dismissed the petition for sex offender civil management; (2) in effect, denied respondent's motion to set aside the jury verdict; and (3) reinstated the jury verdict and petition.

Matter of State of New York v Floyd Y., 135 AD3d 70, affirmed.

HEADNOTE

Crimes — Sex Offenders — Civil Commitment or Supervision — Mental Abnormality — Serious Difficulty in Controlling Sexual Conduct

The evidence at respondent's retrial was legally sufficient to establish by clear and convincing evidence that he had "serious difficulty in controlling" his sexual conduct within the meaning of Mental Hygiene Law § 10.03 (i). The State's expert witness opined that respondent's combination of pedophilic disorder with antisocial personality disorder "create[d] a very toxic mixture in the sense that [respondent] [wa]s more likely to act on the urges towards children and not feel remorse," testimony that was supported by evidence

from the relevant scientific community. During sex offender treatment, respondent described his struggle with pedophilia by saying he had experienced sexual desires toward his preteen stepdaughter, which he had been “fighting for a significant period of time,” until “he gave in to them,” and he summarized the urgency of his sexual desires by saying, “I want what I want when I want it.” The State’s expert also opined that, because of respondent’s failure to cooperate with sex offender treatment, he had not developed the “cognitive skills” necessary to manage his pedophilia, and that respondent exhibited cognitive distortions about what constitutes consensual sex. Moreover, respondent over the years minimized or denied his offending behavior, exhibiting a lack of remorse for his actions, which impaired his ability to control his desires.

APPEARANCES OF COUNSEL

Marvin Bernstein, Mental Hygiene Legal Service, First Department, New York City (Alexandra H. Keeling, Maura M. Klugman and Sadie Zea Ishee of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (Matthew W. Grieco, Barbara D. Underwood and Steven C. Wu of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment appealed from and the order of the Appellate Division brought up for review should be affirmed, without costs.

Considering the evidence “in the light most favorable to the State” (*Matter of State of New York v John S.*, 23 NY3d 326, 348 [2014]), as we must, the evidence at respondent’s retrial (*see Matter of State of New York v Floyd Y.*, 22 NY3d 95, 111 [2013]) was legally sufficient to establish by clear and convincing evidence that he had “serious difficulty in controlling” his sexual conduct within the meaning of Mental Hygiene Law § 10.03 (i).

The State’s expert witness testified, among other things, that he diagnosed respondent with pedophilia and antisocial personality disorder (ASPD), as well as substance abuse disorders. In the expert’s opinion, respondent’s “combination of a pedophilic disorder with [ASPD] . . . create[d] a very toxic mixture in the sense that [respondent] [wa]s more likely to act on the urges towards children and not feel remorse.” The witness’s testimony was supported by evidence from the relevant scientific community. As respondent’s expert witness conceded, the American Psychiatric Association’s Manual of Mental Disorders states that there is “an interaction between pedophilia and [ASPD], such that males with both traits are more likely to act out sexually with children” (*see American*

Psychiatric Association, Diagnostic and Statistical Manual of Mental Disorders 699 [5th ed 2013]).

The jury also heard that during sex offender treatment, respondent described his struggle with pedophilia by saying he had experienced sexual desires toward his preteen stepdaughter, which he had been “fighting for a significant period of time,” until “he gave in to them.” There was also testimony from respondent’s expert witness that during an interview respondent had summarized the urgency of his sexual desires by saying, “I want what I want when I want it.”

Additionally, the State’s expert testified that respondent had made minimal progress in treatment for his pedophilic disorder, and had been removed from treatment “because his behavior was deviant and very difficult to manage. . . . [A]s recently as 2013 and 2014 . . . he wasn’t really involved [in treatment] or wasn’t attending or had a negative and hostile attitude.” The expert opined that, because of this failure to cooperate with sex offender treatment, respondent had not developed the “cognitive skills” necessary to manage his pedophilia. He had no “viable relapse prevention plan” (*compare Matter of State of New York v Michael M.*, 24 NY3d 649, 655 [2014] [describing “tools” by means of which a Mental Hygiene Law article 10 respondent subject to “strict and intensive supervision and treatment” was “learning to control” his sexual urges]). The expert further testified that respondent exhibited cognitive distortions about what constitutes consensual sex. Moreover, respondent over the years minimized or denied his offending behavior, exhibiting a lack of remorse for his actions, which impaired his ability to control his desires.

We conclude that a rational jury could have found—on the basis of respondent’s particular diagnoses and cognitive deficiencies, his own admissions, and his cavalier attitude toward sex offender treatment—that respondent had “serious difficulty in controlling” his sexual conduct.

Finally, we note that no expert at respondent’s trial testified that a diagnosis of pedophilia alone would demonstrate “serious difficulty in controlling” sexual conduct, and the State concedes that it has never “advocated for any such rule.” In the present case, by contrast, there was “detailed testimony” (*Matter of State of New York v Dennis K.*, 27 NY3d 718, 752 [2016]; see generally *Matter of State of New York v Donald DD.*, 24 NY3d 174, 188 [2014]) about the manner in which respondent’s multiple psychiatric disorders collectively resulted in his having “serious difficulty in controlling” his sexual conduct.

We have considered respondent's remaining contentions and they lack merit.

WILSON, J. (dissenting).

"Oh Thou, who didst with Pitfall and with Gin

"Beset the Road I was to wander in,

"Thou will not with Predestination round

"Enmesh me, and impute my Fall to Sin?" (Rubáiyát of Omar Khayyám.)

I respectfully dissent.

Floyd Y. has a tortuous history. In sum, sentenced to a term of 4 to 8 years, he was confined for 15 years, only four of which were his term of imprisonment, and is now released under a program of "Strict and Intensive Supervision and Treatment" (SIST). Make no mistake, he appears to be a person who has done many bad things, some of which were proved beyond a reasonable doubt, the others not. The issue here, though, is not whether Floyd Y. is good or bad, or whether he spent too little time in prison, or whether he will commit some future crime if released from SIST. To justify his continued civil management "on the fiction that he has some sort of mental condition other than a tendency to commit the crimes for which he was convicted (and has served his time) is and should be constitutionally unacceptable" (*Matter of State of New York v Shannon S.*, 20 NY3d 99, 112 [2012, Smith, J., dissenting]). We now have 10 years of experience with article 10 of the Mental Hygiene Law, and the truth that emerges from our decisions is that the question of whether human behavior is volitional or predetermined is no more tractable than it was thousands of years ago.

Between 1996 and 1998, Floyd Y. sexually molested his two young stepchildren. In 2001, he was sentenced to a term of 4 to 8 years in prison for those offenses. In 2005, he was released from prison, but his confinement was continued pursuant to article 9 of the Mental Hygiene Law. In 2006, this Court held that his confinement under article 9 was unlawful (*State of N.Y. ex rel. Harkavy v Consilvio*, 7 NY3d 607 [2006]).¹ In re-

1. We held that if the State wished to continue the civil confinement of an inmate who would otherwise be released, the State needed to proceed under

(n. cont'd)

sponse to *Harkavy*, the legislature adopted article 10 of the Mental Hygiene Law, which provides for the civil commitment of sex offenders who have a “mental abnormality,” which is defined as a “condition, disease or disorder . . . that [1] predisposes [a person] to the commission of conduct constituting a sex offense” and that “[2] results in that person having serious difficulty in controlling such conduct” (Mental Hygiene Law § 10.03 [i]).²

Upon enactment of article 10, the State brought a petition seeking to continue Floyd Y.’s commitment as a sex offender suffering from a mental abnormality. The jury found that he had a mental abnormality, and the trial court ordered that he remain confined. In *Matter of State of New York v Floyd Y.* (22 NY3d 95 [2013]), we reversed and ordered a new trial, holding that the State had used its expert as a conduit for inadmissible hearsay prejudicial to Floyd Y. He remained confined pending the new trial, which was held in 2015. The jury again found that Floyd Y. suffered from a mental abnormality, but the trial court held that the evidence was insufficient to show that Floyd Y. had “serious difficulty in controlling” his sex offending, relying principally on our decision in *Matter of State of New York v Donald DD.* (24 NY3d 174 [2014]), in which we rejected the opinion of the same psychologist who had testified as to Floyd Y.’s mental abnormality, Dr. Stuart Kirschner (46 Misc 3d 1225[A], 2015 NY Slip Op 50302[U] [Sup Ct, NY County 2015]). The Appellate Division reversed, concluding the record contained sufficient evidence to satisfy article 10 (135 AD3d 70 [1st Dept 2015]). Pursuant to a dispositional hearing conducted in Supreme Court before the Appellate Division’s reversal, Floyd Y. was determined not to be a “dangerous” sex offender, and therefore is presently released under SIST, instead of confined.

I

So, what is the clear and convincing evidence of Floyd Y.’s serious inability to control his sex offending? It appears to

Correction Law § 402, which, among other things, requires the prison superintendent to petition the court to appoint two independent psychiatrists to evaluate the inmate; article 9 of the Mental Hygiene Law lacks that and other procedural safeguards (*id.* at 613).

2. Article 10 parrots the words of Supreme Court precedent. A finding of a “mental abnormality” which causes a “lack of control” over offending behavior satisfies the substantive due process rights of a sex offender whom the state is seeking to civilly manage (*Kansas v Hendricks*, 521 US 346 [1997]; *Kansas v Crane*, 534 US 407 [2002]).

consist of the following: (1) Dr. Kirschner diagnosed Floyd Y. with pedophilia, antisocial personality disorder (ASPD) and substance abuse disorders, and then relied on a statement in the American Psychiatric Association's Manual of Mental Disorders noting "an interaction between pedophilia and [ASPD] such that males with both traits are more likely to act out sexually with children"; (2) during sex offender treatment, Floyd Y. said he had struggled with, and ultimately given in to, sexual urges directed at his stepdaughter; (3) Floyd Y. was removed from sex offender treatment because he was difficult; (4) Floyd Y. explained his conduct by saying "I want what I want when I want it"; and (5) he had no viable relapse prevention plan. In evaluating the sufficiency of this evidence, it is important to keep in mind that the proof must support scientifically valid criteria that can distinguish persons who are to be civilly confined or strictly supervised "from the dangerous but typical recidivist convicted in an ordinary criminal case" (*Kansas v Crane*, 534 US 407, 413 [2002]). These observations compiled by Dr. Kirschner do not constitute clear and convincing proof that Floyd Y.'s mental abnormality causes him to have serious difficulty in controlling his sexual offending.

First, Dr. Kirschner's diagnoses, even if accurate, go to the "mental abnormality" prong. His conclusion as to the "serious difficulty in controlling" prong rests on a generalization that may or may not be true as to Floyd Y. The proof required is that Floyd Y.'s mental abnormality causes him serious difficulty in controlling his sexual offending behavior, not that people with his diagnoses sometimes, generally, or more often than not, have such serious difficulty. Observed differences in behavior do not answer the question of whether such behavior is volitional or, instead, not volitional and caused by a mental abnormality. Moreover, the law does not allow proof of individual liability by evidence of the propensity of a group of which the individual is a member. As a further matter, the substance abuse and pedophilia diagnoses were based on stale information: there was no evidence that Floyd Y. had used drugs or alcohol in the past 20 years, and the pedophilia diagnosis was largely based on the crime of incarceration (nearly 20 years before his second article 10 trial) and statements he made "early on" during sex offender treatment.³ Nothing in those diagnoses allows us to say that Floyd Y. has a mental abnormal-

3. The only recent psychological interview was conducted by Dr. Singer; Dr. Kirschner reviewed his report and testified that Floyd Y. "feels remorse"

(n. cont'd)

ity that results in an inability to control his sexually offending behavior, and is not (or was not) instead a recidivist rapist with a substance abuse problem.

Second, Floyd Y.'s statements "early on" in sex offender treatment, to the effect that he had sexual urges towards his young stepdaughter "for a significant period of time," to which he ultimately gave in, may establish pedophilia (all his other documented sexual conduct involved females too old including, inter alia, his own stepmother, to fit within the definition of pedophilia), but, as the majority acknowledges, a diagnosis of pedophilia does not establish a present inability to control sexual offending, and coupling it with ASPD (which Dr. Kirschner estimates that 80% of the prison population has) and drug abuse (same) again does not prove that Floyd Y.'s mental abnormality causes him serious difficulty in controlling his sexually offending behavior.⁴ His admission that he did in fact have an urge before he committed the crime (a fact that was probably assumed) was interpreted to mean that since he did in fact commit the crime, he was unable to control his urges (which, during the admission, he said he had in fact controlled for a significant period of time). This reasoning is circular, and reverts back to relying almost exclusively on the underlying criminal history for which Floyd Y. has already been to prison. In *Kenneth T.* we noted that it is "rarely if ever possible to say, from the facts of a sex offense alone" whether the offender had difficulty controlling his behavior (24 NY3d at 188).

Third, the record evidence concerning Floyd Y.'s sex offender treatment shows the following. He completed the sex offender treatment program while serving his term of imprisonment, and because of "dose effects" associated with his age, he had "sufficient sex offender specific treatment." Following his (unlawful) transfer to a psychiatric hospital in 2005, Floyd Y.

for molesting his stepchildren, and recognizes "[i]t is something that he should not have done."

4. Contrary to the Appellate Division's statement that an element of impulse control difficulty is inherent to pedophilia, neither ASPD nor pedophilia contains such an element. Dr. Kirschner defined a pedophile as an "individual [who] has intense sexual urges, fantasies or behaviors involving prepubescent children and that the person has either acted on these urges or it causes the individual significant distress and problems in his functioning in his life, occupational, educational, vocational, social, etcetera. And that the problem exists for at least six months." As we stated in *Kenneth T.*, the existence of urges and acting upon those urges could indicate a lack of control or it could just as simply indicate a choice to gratify those urges (24 NY3d at 188).

“made moderate gains” but “more recently . . . made minimal gains.” After our decision reversing his first article 10 trial, “he wasn’t really involved or wasn’t attending or had a negative and hostile attitude.” The examples given were that he “might hang shirts [to] cover[] his window,” “fought with other residen[ts] or postured to fight with them,” and “says . . . he doesn’t need to get involved because he is gonna be released in the near future anyway.” It would be very hard indeed to conclude that these examples evidence anything other than expected behavior by someone who believes he has been unlawfully confined in a psychiatric facility for 11 years. Moreover, failure to participate in treatment is at least equally consistent with volitional behavior as it is with a mental abnormality causing serious control difficulties.

Fourth, his “I want what I want when I want it” statement was made more than a decade ago. Doubtless countless celebrities, investment bankers, sports stars, politicians and perhaps even lawyers and psychiatrists have felt the same way.⁵ Although not admirable, such sentiments are regrettably mainstream enough to fail as evidence of a mental abnormality causing a lack of control.

Fifth, a sex offender’s lack of a relapse prevention plan does not help us distinguish between those who are mere recidivists and those who cannot control their offending behavior because of a mental abnormality. Granted, a relapse prevention plan might help either, but its absence does not let us distinguish one from the other.

In *Kenneth T.*, we remarked on the difficulty of divining how impulse control fits into the commission of a sex crime:

“A rapist who killed his victims so that they could not identify him may have serious difficulty con-

5. “I want what I want when I want it” also happens to be the title of a song opening the second act of the operetta *Mademoiselle Modiste*, penned by Henry Blossom and Victor Herbert, debuting in 1905. Cf. e.g. John Lennon & Paul McCartney, *I Want You (She’s So Heavy)* (1969) (“I want you, I want you so bad it’s driving me mad, it’s driving me mad”); Mick Ralphs, *Can’t Get Enough of Your Love* (1974) (“Well I take whatever I want, and baby, I want you”); Isaac Hayes, David Porter & Mabon Hodges, *I Take What I Want* (1966) (“I take what I want, I’m a bad go-getter, yeah, yes, I am. I’m never a loser and I’m never a quitter yet, oh, no. ‘Cause I take what I want, baby, I want you, yeah, you”); Kit Yarrow, *Decoding the New Consumer Mind* (2014) (describing modern consumers as possessed by IWWIWWIWI); Leslie Briscusse, Anthony Newley & Walter Scharf, *I Want it Now!*, Willy Wonka and the Chocolate Factory (1971) (“I want the whole works! Presents and prizes and sweets and surprises in all shapes and sizes, And now! I don’t care how! I want it now!”).

trolling his sexual urges. Conversely, one who raped an acquaintance and permitted her to escape may not have serious difficulty controlling his sexual urges within the meaning of article 10. A person who committed a rape soon after serving a very short sentence for sexual abuse may have serious difficulty in controlling his sexual misconduct. Conversely, one who committed a rape soon after serving a very lengthy sentence may not have serious difficulty controlling his sexual urges. Rather, the rape may be a crime of opportunity, and the defendant willing to risk the prospect of a return to incarceration” (24 NY3d at 187-188).

The American Psychiatric Association, quoted by the Supreme Court in *Crane*, made the same point more succinctly: “The line between an irresistible impulse and an impulse not resisted is probably no sharper than that between twilight and dusk” (534 US at 412, quoting American Psychiatric Association, Statement on the Insanity Defense 11 [1982]).

Indeed, when creating the requirement that a sex offender must demonstrate a “lack of control” in order to be committed, the Supreme Court in *Crane* noted that

“we did not give to the phrase ‘lack of control’ a particularly narrow or technical meaning. And we recognize that in cases where lack of control is at issue, ‘inability to control behavior’ will not be demonstrable with mathematical precision. It is enough to say that there must be proof of serious difficulty in controlling behavior” (534 US at 413).

In an apparent acknowledgment of the fact that this legal requirement was not definable in psychiatric terms, the Court went on to say, “the science of psychiatry, which informs but does not control ultimate legal determinations, is an ever-advancing science, whose distinctions do not seek precisely to mirror those of the law” (*id.*).

In his dissent in *Crane*, Justice Scalia pointed out the glaring problems with the requirement, writing,

“I suspect that the reason the Court avoids any elaboration is that elaboration which passes the laugh test is impossible. How is one to frame for a jury the degree of ‘inability to control’ which, in the particular case, ‘the nature of the psychiatric diag-

nosis, and the severity of the mental abnormality' require? Will it be a percentage ('Ladies and gentlemen of the jury, you may commit Mr. Crane under the SVPA only if you find, beyond a reasonable doubt, that he is 42% unable to control his penchant for sexual violence')? Or a frequency ratio ('Ladies and gentlemen of the jury, you may commit Mr. Crane under the SVPA only if you find, beyond a reasonable doubt, that he is unable to control his penchant for sexual violence 3 times out of 10')? Or merely an adverb ('Ladies and gentlemen of the jury, you may commit Mr. Crane under the SVPA only if you find, beyond a reasonable doubt, that he is appreciably—or moderately, or substantially, or almost totally—unable to control his penchant for sexual violence')? None of these seems to me satisfactory" (*id.* at 423-424 [Scalia, J., dissenting] [emphasis omitted]).

As behavioral experts have opined,

"It would seem tautological, and certainly not scientific to argue that the offender has pedophilia because he/she commits sexual acts against children and he/she commits sexual acts against children due to that pedophilic condition. Translating this premise into the control paradigm: the offender lacks the ability to control his/her behavior because the person fails to control that behavior" (Holly A. Miller et al., *Sexually Violent Predator Evaluations: Empirical Evidence, Strategies for Professionals, and Research Directions*, 29 L & Hum Behav 29, 43 [Feb. 2005]).

When one looks more closely at the testimony of Dr. Kirschner, it becomes apparent that he rests his opinions here on a host of information that fails for the same reason his testimony failed in *Kenneth T.*: it does not allow him or us to distinguish volitional conduct from conduct caused by a mental abnormality.

II

The fundamental problem is this: we have no way to know whether the fault lies with ourselves or with our stars. Why we do what we do dates at least to the disagreement between the Stoics and Aristotle. Today, the debate continues, more often framed around brain chemistry and physics than philosophy or

religion. Article 10 asks us to prove the unprovable: a mental abnormality caused me to have serious difficulty controlling my actions, or as Flip Wilson put it, “The devil made me do it.”

The legislature enacted article 10 one year after *Harkavy*, because it determined that “many mentally abnormal sexual offenders may not have the kind of ‘mental illness’ that is a prerequisite for such a commitment” under the Correction Law (Governor’s Program Bill Mem, Bill Jacket, L 2007, ch 7 at 9-10). Thus, the legislature sought to expand civil commitment of one type of criminal—sex offenders—to persons who had previously not qualified as in need of commitment under the existing laws.

Days before the legislature passed article 10, the New York State Psychiatric Association sharply criticized the proposed legislation in a letter to Governor Spitzer, writing, “‘mental abnormality’ as defined is essentially a vague and circular determination that has no scientific or clinical basis” and that “usurps psychiatric terminology to achieve a social and political result” (Bill Jacket, L 2007, ch 7 at 67). It continued, “Because ‘mental abnormality’ has no medical foundation, mental health professionals, including psychiatrists, *have no special expertise in assessing individuals for the presence of ‘mental abnormality’ as defined in the bill*” and observed

“[i]t is precisely because many individuals who would be considered a ‘dangerous sex offender requiring confinement’ under the bill do not fit into the existing statutory scheme for civil commitment of persons (because they do not have a serious mental illness) that the non-psychiatric definition of mental abnormality was created in order to provide a legal basis for civil retention” (*id.* at 67-68 [emphasis added]).

Mental health organizations have criticized such laws as scientifically unsound. In 1999, the American Psychiatric Association opined that “sexual predator commitment laws represent a serious assault on the integrity of psychiatry . . . by bending civil commitment to serve essentially nonmedical purposes, sexual predator commitment statutes threaten to undermine the legitimacy of the medical model of commitment” (Dangerous Sex Offenders: A Task Force Report of the American Psychiatric Association 173 [1999]).

Professor Stephen Morse, an expert on individual agency and the intersection of criminal law and mental health has

observed the following about self-control and our ability to measure it:

“[W]e talk about impulses, the will, and self-control as if these are independent psychological entities that are well-understood and reliably identifiable. But theoretical disarray abounds in psychology; the studies often contradict each other; measures of supposedly the same variable correlate poorly; findings are often based on suspect self-reports; and, most importantly, the studies do not address, and folk psychology does not know, whether and to what degree people are unable to refrain from acting. Neither in psychology, philosophy, nor folk psychology is there a reasonably uncontroversial understanding of these matters. Finally, we do not know how mental disorder affects self-control in general, apart from its more clear role in affecting perception and belief, which are variables central to rationality” (Stephen J. Morse, *Culpability and Control*, 142 U Pa L Rev 1587, 1657-1658 [1994] [emphasis omitted]).

Other experts in the field have commented, “[t]here is no empirical proof that an individual diagnosed with a personality disorder or paraphilia actually has a neuropsychological abnormality, or, if present, the degree to which that abnormality may impair behavioral control,” and further, “[n]ot only is there no method developed by which to assess behavioral control, there is no clear definition of what is being measured. Any standard would appear to be more normative than scientific” (Miller et al. at 42).

III

The standard’s deficiencies have become patent when courts, including ours, have attempted to apply it in actual cases. Even a cursory review of the psychological/psychiatric testimony in our article 10 cases demonstrates the lack of any valid scientific method. Experts before our courts have testified that a sex offender has a mental abnormality causing a serious difficulty in control based on the following sorts of information: (i) commission of a crime in a manner in which it was likely that the offender would face legal consequences because the victims knew or could easily identify the defendant (*Kenneth T.*, 24 NY3d at 187); (ii) lack of conscience (*Floyd Y.*, 46 Misc 3d 1225[A], 2015 NY Slip Op 50302[U], *7); (iii) lack of remorse (46 Misc 3d 1225[A], 2015 NY Slip Op 50302[U], *7); (iv) the

combination of ASPD and paraphilia NOS (*Kenneth T.*, 24 NY3d at 179); (v) commission of a new sex offense shortly after release from a long prison stay (*id.* at 187); (vi) admissions from the perpetrators that they have difficulty ignoring their sexual impulses (*id.* at 178; *Floyd Y.*, 46 Misc 3d 1225[A], 2015 NY Slip Op 50302[U], *7); (vii) ASPD diagnosis (*Kenneth T.*, 24 NY3d at 179; *Donald DD.*, 24 NY3d at 183; *Matter of State of New York v Frank P.*, 126 AD3d 150, 154 [1st Dept 2015]; *Matter of State of New York v John S.*, 23 NY3d 326, 334 [2014]); (viii) a sense of entitlement “that [if] it’s there [the offender] can take it” (*Matter of State of New York v Dennis K.*, 27 NY3d 718, 731 [2016]); (ix) reoffending while in a consensual relationship (*id.* at 732); (x) a diagnosis of paraphilia NOS (*Frank P.*, 126 AD3d at 154); (xi) offense taking place in a public place (*John S.*, 23 NY3d at 337); (xii) a “historical pattern” of “reoffending after being sanctioned” (*John S.*, 23 NY3d at 338); (xiii) failure to participate in sex offender treatment (*Floyd Y.*, 135 AD3d at 76; *John S.*, 23 NY3d at 338); (xiv) a pattern of offending with vulnerable and easily accessible victims (*Floyd Y.*), among others. Although we have accepted some of these as sufficient evidence when in combination with others, none—apart or in combination—lets us know whose mental abnormality causes serious difficulty in avoiding reoffense, and who is a volitional recidivist. To be clear, I am not impugning the integrity of the psychiatrists and psychologists who have attempted to provide some testimony that might meet article 10’s legal standard; instead, I observe that we in the legislative and judicial branches have erred in uniting psychiatric principles and an impossible legal standard in an unhappy marriage, when the experts themselves have plainly objected.

The nature of this unworkable standard is also apparent in how various pieces of evidence have been interpreted to prove a mental abnormality causing a serious difficulty in control. There is no protection in article 10 against using statements made while participating in sex offender treatment against the offender in later civil commitment proceedings. Conversely, failing to participate fully in sex offender treatment, which undoubtedly requires confession of past offenses, will also be used against the offender.

In many cases, there is no recent evidence of an offender acting out sexually, to show that he currently suffers from a mental abnormality. The undisputed evidence is that the four behavioral violations *Floyd Y.* received during his incarceration were not for sexual or violent infractions, but for “package and

commissary ones . . . really kind of minor stuff.” Even though Floyd Y.’s last offense was nearly 20 years ago, and he has had no incidents since then, that evidence is neutralized with the argument that he was confined, either in prison or civilly in this case, and so his “triggers” were not present. However, in other cases time in prison has been used as evidence that the offender has been acting out sexually, seemingly indicating that the presence or absence of “triggers” should make little difference (*see e.g. Matter of Christopher PP. v State of New York*, 151 AD3d 1334, 1337 [3d Dept 2017]).

Experts also frequently testify in these cases without having ever interviewed the offender. Their opinions are based principally on criminal history (for which the offender has already been incarcerated), statements by the offender (often from sex offender treatment), diagnoses (which are based on criminal history and statements by the offender), and the degree of participation in sex offender treatment.

IV

Article 9 allows for the confinement of mentally ill persons truly in need of confinement. “If the present sentences for sex offenders are too short, the legislature should make them longer, but it should not, and constitutionally cannot, simply substitute civil for criminal proceedings as a means of keeping dangerous criminals off the streets” (*Shannon S.*, 20 NY3d at 109 [Smith, J., dissenting]). Here, the various prior offenses presented to the jury as support for Dr. Kirschner’s opinion and, eventually, a determination that Floyd Y. has a mental abnormality that causes him serious difficulty in controlling his sexually offending behavior are: (1) the 1984 attempted rape of J. (no charges); (2) 1992 rape of S. (69 weekend days in jail); (3) 1994 sexual assault of H. (\$250 fine; \$45 surcharge); (4) 1998 sexual harassment of M. (\$0 fine; \$45 surcharge); (5) 1999 sexual molestation of C. (no charges); (6) 1996-1998 molestation of his stepchildren (4 to 8 year sentence). If the State desired to incarcerate Floyd Y. beyond the 4 to 8 year sentence imposed for his last conviction, it did not have to abandon the prior charges or resolve them for small fines. His victims are hardly redressed by his belated civil confinement, and timely and full prosecution of those offenses, if justified, may have also prevented some of the subsequent ones. If unjustified (because the evidence was weak or conflicted), where is the fairness in asking a psychologist to assume their truth? It is

wholly inappropriate and unconstitutional to invent a meaning-less legal standard and seek to meet it by repackaging forgone offenses to justify indefinite confinement and strict supervision.

The prosecution and reduction of sex crimes is tremendously important. However, the stakes of potential indefinite confinement are as high as they come, and require a reformulation of the relevant standards to adhere to the scientific principles and medical methodologies that have governed our civil commitment processes under article 9 and the Correction Law. Article 10's standard cannot properly distinguish between the typical recidivist of dangerous sexual crimes, for whom we have the criminal justice system, and something more. In *Kansas v Hendricks*, Justice Kennedy observed: "if it were shown that mental abnormality is too imprecise a category to offer a solid basis for concluding that civil detention is justified, our precedents would not suffice to validate it" (521 US at 373). It is time to admit that the emperor has no clothes. (Whether he could not help himself remains unknowable.)

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and FEINMAN concur; Judge WILSON dissents in an opinion.

Judgment appealed from, and order of the Appellate Division brought up for review, affirmed, without costs, in a memorandum.

APPEALS WITHDRAWN AND DISCONTINUED

(October 1, 2017 through October 31, 2017)

Frantz, Matter of, v Venettozzi	3d Dept: 146 AD3d 1254	10/6/17
Sasson v TLG Acquisition LLC	1st Dept: 150 AD3d 459	10/19/17

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2017 through October 31, 2017)

People v Adams	1st Dept: 151 AD3d 612 (NY)	denied 10/17/17 (Fahey, J.)
People v Alexander	App Div, 4th Dept, 4/20/17 (Oneida)	denied reconsideration 10/26/17 (Wilson, J.)
People v Almeda	2d Dept: 152 AD3d 783 (Kings)	denied 10/17/17 (Feinman, J.)

People v Anthony	3d Dept: 152 AD3d 1048 (Broome)	denied 10/30/17 (DiFiore, Ch. J.)
People v Arcila	2d Dept: 152 AD3d 783 (Nassau)	denied 10/3/17 (Garcia, J.)
People v Austin	County Ct, 6/13/17 (Erie)	denied 10/4/17 (Wilson, J.)
People v Ball	3d Dept: 152 AD3d 973 (Washington)	denied 10/4/17 (DiFiore, Ch. J.)
People v Bartholomew	2d Dept: 150 AD3d 1138 (Kings)	denied 10/5/17 (Fahey, J.)
People v Bentley	App Div, 4th Dept: 2017 NY Slip Op 66686(U) (Livingston)	dismissed 10/5/17 (Stein, J.)
People v Berrezueta	App Term, 1st Dept: 55 Misc 3d 143(A) (NY)	granted 10/25/17 (DiFiore, Ch. J.)
People v Blakes	2d Dept: 153 AD3d 549 (Kings)	denied 10/11/17 (Wilson, J.)
People v Brown (Kenneth)	App Div, 2d Dept: 2017 NY Slip Op 82621(U) (Queens)	dismissed 10/6/17 (Stein, J.)
People v Brown (Virgil)	4th Dept: 152 AD3d 1209 (Erie)	denied 10/6/17 (Stein, J.)
People v Burgan	1st Dept: 152 AD3d 401 (Bronx)	denied 10/30/17 (DiFiore, Ch. J.)
People v Burkette	2d Dept: 153 AD3d 635 (Kings)	denied 10/3/17 (Garcia, J.)
People v Burno	App Div, 2d Dept: 2017 NY Slip Op 81313(U) (Nassau)	dismissed 10/17/17 (DiFiore, Ch. J.)
People v Burtes	4th Dept: 151 AD3d 1806 (Yates)	denied 10/27/17 (Wilson, J.)
People v Burton	2d Dept: 151 AD3d 1073 (Queens)	denied 10/18/17 (DiFiore, Ch. J.)
People v "C"	4th Dept: 151 AD3d 1782 (Erie)	denied 10/31/17 (DiFiore, Ch. J.)
People v Carter (James)	App Div, 2d Dept: 2017 NY Slip Op 75531(U) (Queens)	dismissed 10/2/17 (Garcia, J.)
People v Carter (James)	2d Dept: 152 AD3d 786 (Queens)	denied 10/2/17 (Garcia, J.)
People v Castillo	4th Dept: 151 AD3d 1802 (Monroe)	denied 10/19/17 (Wilson, J.)
People v Cherry	2d Dept: 153 AD3d 550 (Kings)	denied 10/19/17 (Garcia, J.)
People v Chin (Wayne)	2d Dept: 148 AD3d 925 (Kings)	denied reconsideration 10/30/17 (Fahey, J.)
People v Chin (Wayne)	2d Dept: 148 AD3d 926 (Kings)	denied reconsideration 10/30/17 (Fahey, J.)
People v Chisholm	2d Dept: 151 AD3d 738 (Queens)	denied 10/19/17 (Garcia, J.)

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People v Clark (Nicholas)	2d Dept: 152 AD3d 618 (Rockland)	denied 10/27/17 (Wilson, J.)
People v Clark (Quintril)	3d Dept: 153 AD3d 1093 (Rensselaer)	denied 10/25/17 (Feinman, J.)
People v Clarke	2d Dept: 150 AD3d 1257 (Westchester)	denied 10/23/17 (Stein, J.)
People v Colon	2d Dept: 153 AD3d 550 (Kings)	denied 10/3/17 (Garcia, J.)
People v Coney	1st Dept: 146 AD3d 429 (Bronx)	denied 10/18/17 (Wilson, J.)
People v Cooley	3d Dept: 149 AD3d 1268 (Albany)	denied 10/24/17 (Fahey, J.)
People v Corporan	1st Dept: 151 AD3d 627 (NY)	denied 10/4/17 (Fahey, J.)
People v Criss	3d Dept: 151 AD3d 1275 (Broome)	denied 10/20/17 (Rivera, J.)
People v Cross	App Div, 2d Dept: 2017 NY Slip Op 80706(U) (Kings)	dismissed 10/5/17 (Feinman, J.)
People v Cutting	2d Dept: 150 AD3d 873 (Kings)	denied 10/12/17 (Rivera, J.)
People v Dietz	2d Dept: 152 AD3d 717 (Suffolk)	denied 10/3/17 (Garcia, J.)
People v Dorcinvil	App Div, 2d Dept: 2017 NY Slip Op 83312(U) (Kings)	dismissed 10/27/17 (DiFiore, Ch. J.)
People v Duren	2d Dept: 152 AD3d 787 (Nassau)	denied 10/19/17 (DiFiore, Ch. J.)
People v Durham	3d Dept: 148 AD3d 1293 (Washington)	denied reconsideration 10/19/17 (Rivera, J.)
People v Elawar	2d Dept: 153 AD3d 552 (Kings)	denied 10/18/17 (Stein, J.)
People v Elder	2d Dept: 152 AD3d 787 (Queens)	denied 10/5/17 (Feinman, J.)
People v Farrow	3d Dept: 153 AD3d 969 (Tioga)	denied 10/19/17 (Garcia, J.)
People v Flowers	2d Dept: 152 AD3d 791 (Dutchess)	denied 10/20/17 (Rivera, J.)
People v Forde	1st Dept: 152 AD3d 442 (NY)	denied 10/2/17 (Garcia, J.)
People v Foster	2d Dept: 153 AD3d 853 (Suffolk)	denied 10/30/17 (DiFiore, Ch. J.)
People v Frankie	App Div, 4th Dept: 2017 NY Slip Op 69065(U) (Erie)	denied reconsideration 10/12/17 (Garcia, J.)
People v Gamble	App Div, 3d Dept: 2017 NY Slip Op 79889(U) (Schenectady)	denied 10/25/17 (DiFiore, Ch. J.)
People v Garcia (David)	2d Dept: 153 AD3d 552 (Kings)	denied 10/5/17 (Stein, J.)

People v Garcia (Frank)	App Div, 4th Dept, 3/24/17 (Monroe)	denied 10/26/17 (DiFiore, Ch. J.)
People v Gazoo	3d Dept: 146 AD3d 1175 (Ulster)	denied 10/19/17 (DiFiore, Ch. J.)
People v Gethers	3d Dept: 151 AD3d 1398 (Albany)	denied 10/24/17 (Fahey, J.)
People v G. Money	App Div, 3d Dept: 2017 NY Slip Op 80507(U) (Ulster)	denied 10/16/17 (Feinman, J.)
People v Gomez	App Term, 1st Dept: 55 Misc 3d 144(A) (NY)	denied 10/5/17 (Fahey, J.)
People v Gonzalez- Alvarez	App Div, 1st Dept, 7/25/17 (NY)	denied 10/26/17 (Wilson, J.)
People v Grant	2d Dept: 152 AD3d 792 (Kings)	denied 10/19/17 (Garcia, J.)
People v Grasing	2d Dept: 152 AD3d 794 (Suffolk)	denied 10/16/17 (Feinman, J.)
People v Graves	2d Dept: 152 AD3d 795 (Kings)	denied 10/19/17 (Feinman, J.)
People v Gray	3d Dept: 152 AD3d 1068 (Albany)	denied 10/20/17 (Rivera, J.)
People v Griffin	App Div, 3d Dept: 2017 NY Slip Op 80507(U) (Ulster)	denied 10/16/17 (Feinman, J.)
People v Gudin	1st Dept: 150 AD3d 414 (NY)	denied 10/27/17 (Rivera, J.)
People v Guez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 36 (Kings)	denied 10/13/17 (DiFiore, Ch. J.)
People v Guillaume	2d Dept: 152 AD3d 540 (Kings)	denied 10/11/17 (Stein, J.)
People v Handel	App Div, 2d Dept: 2017 NY Slip Op 82102(U) (Orange)	dismissed 10/30/17 (Wilson, J.)
People v Hao Lin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 140(A) (Kings)	denied 10/25/17 (DiFiore, Ch. J.)
People v Heavy	4th Dept: 151 AD3d 1682 (Monroe)	denied 10/18/17 (Wilson, J.)
People v Henderson	2d Dept: 148 AD3d 929 (Queens)	denied 10/2/17 (Stein, J.)
People v Humbach	2d Dept: 153 AD3d 637 (Westchester)	denied 10/25/17 (Feinman, J.)
People v Ildefonso	3d Dept: 150 AD3d 1388 (Delaware)	denied 10/5/17 (Feinman, J.)
People v Jamoona (Chan)	2d Dept: 151 AD3d 748 (Queens)	denied 10/27/17 (Rivera, J.)
People v Jamoona (Veda)	2d Dept: 151 AD3d 748 (Queens)	denied 10/27/17 (Rivera, J.)
People v Johnson (Jermaine)	3d Dept: 153 AD3d 1031 (Albany)	denied 10/17/17 (DiFiore, Ch. J.)
People v Johnson (Ronald)	2d Dept: 152 AD3d 620 (Kings)	denied 10/25/17 (DiFiore, Ch. J.)
People v Johnson (Timothy)	1st Dept: 148 AD3d 444 (Bronx)	denied 10/24/17 (Fahey, J.)

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People v Jordan	4th Dept: 153 AD3d 1130 (Ontario)	denied 10/24/17 (Feinman, J.)
People v Kelly	2d Dept: 151 AD3d 751 (Nassau)	denied 10/25/17 (Rivera, J.)
People v “King Almighty”	2d Dept: 153 AD3d 635 (Kings)	denied 10/3/17 (Garcia, J.)
People v King (Douglas)	4th Dept: 151 AD3d 1759 (Monroe)	denied 10/12/17 (Stein, J.)
People v King (Marcus)	1st Dept: 152 AD3d 412 (Bronx)	denied 10/18/17 (Wilson, J.)
People v Leta	4th Dept: 151 AD3d 1761 (Monroe)	denied 10/18/17 (DiFiore, Ch. J.)
People v Lewins	1st Dept: 151 AD3d 575 (NY)	denied 10/3/17 (Garcia, J.)
People v Louis	2d Dept: 153 AD3d 728 (Kings)	denied 10/19/17 (Wilson, J.)
People v Louis-Jaques	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 138(A) (Queens)	dismissed 10/25/17 (DiFiore, Ch. J.)
People v Love	App Div, 4th Dept, 6/13/17 (Erie)	dismissed 10/26/17 (Wilson, J.)
People v Lowe	3d Dept: 153 AD3d 1043 (Broome)	denied 10/30/17 (Fahey, J.)
People v Malloy	3d Dept: 152 AD3d 968 (Albany)	denied 10/2/17 (Garcia, J.)
People v Man	3d Dept: 149 AD3d 1268 (Albany)	denied 10/24/17 (Fahey, J.)
People v Manon	1st Dept: 151 AD3d 626 (NY)	denied 10/4/17 (Wilson, J.)
People v Massey	4th Dept: 151 AD3d 1969 (Onondaga)	denied 10/12/17 (Stein, J.)
People v McCray	1st Dept: 147 AD3d 444 (NY)	denied 10/2/17 (Fahey, J.)
People v McKenzie	2d Dept: 151 AD3d 1080 (Putnam)	denied 10/25/17 (Feinman, J.)
People v McLean	2d Dept: 153 AD3d 638 (Queens)	denied 10/16/17 (Feinman, J.)
People v McQueen	2d Dept: 152 AD3d 547 (Kings)	denied 10/3/17 (Garcia, J.)
People v Meacham (Stephanie)	4th Dept: 151 AD3d 1666 (Seneca)	denied 10/25/17 (DiFiore, Ch. J.) (Appeal No. 1)
People v Meacham (Stephanie)	4th Dept: 151 AD3d 1670 (Seneca)	denied 10/25/17 (DiFiore, Ch. J.) (Appeal No. 2)
People v Medina	1st Dept: 151 AD3d 657 (NY)	denied 10/27/17 (Wilson, J.)
People v Mitchell	2d Dept: 153 AD3d 939 (Kings)	denied 10/17/17 (Rivera, J.)
People v M.O.	3d Dept: 152 AD3d 1048 (Broome)	denied 10/30/17 (DiFiore, Ch. J.)

People v Montanez	1st Dept: 147 AD3d 444 (NY)	denied 10/2/17 (Fahey, J.)
People v Moore	App Div, 4th Dept: 2017 NY Slip Op 69065(U) (Erie)	denied reconsideration 10/12/17 (Garcia, J.)
People v Nash	County Ct, 7/21/17 (Erie)	denied 10/19/17 (Rivera, J.)
People v Newman (Dante)	2d Dept: 153 AD3d 639 (Kings)	denied 10/18/17 (Stein, J.)
People v Newman (Treyvon)	2d Dept: 153 AD3d 640 (Kings)	denied 10/18/17 (Stein, J.)
People v Oquendo	4th Dept: 152 AD3d 1220 (Monroe)	denied 10/2/17 (Garcia, J.)
People v Osman	1st Dept: 151 AD3d 494 (NY)	denied 10/5/17 (Stein, J.)
People v Owens	4th Dept: 149 AD3d 1561 (Seneca)	denied 10/6/17 (Stein, J.)
People v Parker	4th Dept: 151 AD3d 1876 (Erie)	denied 10/19/17 (Wilson, J.)
People v Pazmini	App Div, 2d Dept: 2017 NY Slip Op 82328(U) (Queens)	dismissed 10/20/17 (Rivera, J.)
People v Pearson	3d Dept: 151 AD3d 1455 (Albany)	denied 10/5/17 (Fahey, J.)
People v Pena	2d Dept: 153 AD3d 556 (Suffolk)	denied 10/24/17 (Stein, J.)
People v Reel	2d Dept: 150 AD3d 1028 (Queens)	denied 10/17/17 (Fahey, J.)
People v Rendell	4th Dept: 151 AD3d 1781 (Erie)	denied 10/25/17 (DiFiore, Ch. J.)
People v Renvill	1st Dept: 153 AD3d 420 (Bronx)	denied 10/18/17 (Wilson, J.)
People v Riberdy	County Ct, 7/28/17 (Warren)	denied 10/30/17 (DiFiore, Ch. J.)
People v Riley	2d Dept: 152 AD3d 719 (Queens)	denied 10/17/17 (Fahey, J.)
People v Rivas	2d Dept: 152 AD3d 547 (Queens)	denied 10/2/17 (Garcia, J.)
People v Robinson (Clarence)	2d Dept: 153 AD3d 859 (Orange)	denied 10/10/17 (Stein, J.)
People v Robinson (James)	App Div, 2d Dept: 2017 NY Slip Op 79591(U) (Kings)	dismissed 10/3/17 (Garcia, J.)
People v Rodriguez	2d Dept: 152 AD3d 800 (Suffolk)	denied 10/5/17 (Feinman, J.)
People v Rollins	App Div, 3d Dept, 6/22/17 (Schenectady)	dismissed 10/3/17 (Garcia, J.)
People v Roperto	2d Dept: 153 AD3d 556 (Westchester)	denied 10/19/17 (Garcia, J.)

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People v Roseboro	1st Dept: 151 AD3d 526 (NY)	denied 10/27/17 (Wilson, J.)
People v Ross	4th Dept: 151 AD3d 1782 (Erie)	denied 10/19/17 (Wilson, J.)
People v Rucano	2d Dept: 149 AD3d 876 (Richmond)	denied 10/19/17 (DiFiore, Ch. J.)
People v Ruffin	County Ct, 7/27/17 (Erie)	denied 10/19/17 (Stein, J.)
People v Ruiz	3d Dept: 148 AD3d 1212 (Rensselaer)	denied 10/20/17 (Rivera, J.)
People v Rush	App Div, 2d Dept: 2017 NY Slip Op 72222(U) (Kings)	denied reconsideration 10/5/17 (Stein, J.)
People v Samuel	4th Dept: 152 AD3d 1202 (Monroe)	denied 10/18/17 (Stein, J.)
People v Santiago	1st Dept: 151 AD3d 627 (NY)	denied 10/4/17 (Fahey, J.)
People v Scarver	4th Dept: 151 AD3d 1782 (Erie)	denied 10/31/17 (DiFiore, Ch. J.)
People v Schlackman	2d Dept: 153 AD3d 641 (Queens)	denied 10/12/17 (Garcia, J.)
People v Shimburski	4th Dept: 153 AD3d 1581 (Cattaraugus)	denied 10/19/17 (Wilson, J.)
People v Simpson	3d Dept: 146 AD3d 1175 (Ulster)	denied 10/19/17 (DiFiore, Ch. J.)
People v Singh	App Div, 2d Dept: 2017 NY Slip Op 84686(U) (Queens)	withdrawn 10/20/17 (Rivera, J.)
People v Smith (Damien)	2d Dept: 153 AD3d 643 (Nassau)	denied 10/5/17 (Stein, J.)
People v Smith (Jenise)	4th Dept: 151 AD3d 1955 (Oneida)	denied 10/20/17 (Rivera, J.)
People v Smith (Joseph)	3d Dept: 151 AD3d 1476 (Ulster)	denied 10/19/17 (DiFiore, Ch. J.)
People v Smith (Wesley)	4th Dept: 152 AD3d 1159 (Monroe)	denied 10/27/17 (Wilson, J.)
People v Smith (William)	4th Dept: 153 AD3d 1129 (Monroe)	denied 10/18/17 (DiFiore, Ch. J.)
People v Spencer (Herman)	App Div, 2d Dept: 2017 NY Slip Op 80717(U) (Kings)	dismissed 10/5/17 (Fahey, J.)
People v Spencer (Joshua)	3d Dept: 152 AD3d 863 (Columbia)	denied 10/17/17 (Rivera, J.)
People v Steigler	3d Dept: 152 AD3d 1083 (Tioga)	denied 10/19/17 (Feinman, J.)
People v Streeter	4th Dept: 141 AD3d 1124 (Niagara)	denied 10/25/17 (DiFiore, Ch. J.)
People v Terrell	1st Dept: 147 AD3d 444 (NY)	denied 10/2/17 (Fahey, J.)

People v Tetreault	3d Dept: 152 AD3d 1081 (Cortland)	denied 10/30/17 (DiFiore, Ch. J.)
People v Thompson	1st Dept: 153 AD3d 433 (NY)	denied 10/24/17 (Fahey, J.)
People v Timmons	4th Dept: 151 AD3d 1682 (Monroe)	denied 10/18/17 (Wilson, J.)
People v Van Praag	2d Dept: 153 AD3d 559 (Kings)	denied 10/24/17 (Fahey, J.)
People v Vaughan	2d Dept: 151 AD3d 985 (Suffolk)	denied 10/18/17 (Rivera, J.)
People v Walker	4th Dept: 151 AD3d 1730 (Erie)	denied reconsideration 10/25/17 (DiFiore, Ch. J.)
People v Watkins (Lauren)	County Ct, 8/3/17 (Monroe)	denied 10/19/17 (Stein, J.)
People v Watkins (Samuel)	4th Dept: 151 AD3d 1913 (Monroe)	denied 10/19/17 (DiFiore, Ch. J.)
People v Watts	1st Dept: 148 AD3d 578 (NY)	granted 10/6/17 (Wilson, J.)
People v Weakfall	App Div, 4th Dept, 6/28/17 (Onondaga)	dismissed 10/12/17 (Garcia, J.)
People v Williams (Kevin)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 55 Misc 3d 151(A) (Richmond)	denied 10/24/17 (Fahey, J.)
People v Williams (Michael)	3d Dept: 150 AD3d 1315 (Albany)	denied 10/5/17 (Fahey, J.)
People v Williams (Rashawn)	3d Dept: 153 AD3d 969 (Broome)	denied 10/30/17 (Fahey, J.)
People v Williams (Tyshell)	1st Dept: 148 AD3d 620 (Bronx)	denied 10/13/17 (Stein, J.)
People v Wilson (Harry)	App Div, 2d Dept: 2017 NY Slip Op 80256(U) (Kings)	dismissed 10/19/17 (Feinman, J.)
People v Wilson (Jeffrey)	App Div, 1st Dept: 2017 NY Slip Op 74211(U) (Bronx)	denied 10/11/17 (DiFiore, Ch. J.)
People v Wilson (Jeffrey)	App Div, 1st Dept: 2017 NY Slip Op 81351(U) (Bronx)	denied 10/11/17 (DiFiore, Ch. J.)
People v Woods	App Div, 3d Dept: 2017 NY Slip Op 73678(U) (Albany)	denied reconsideration 10/26/17 (Wilson, J.)
People v Wright	2d Dept: 150 AD3d 1032 (Suffolk)	denied 10/24/17 (Fahey, J.)
People v Young	4th Dept: 151 AD3d 1967 (Monroe)	denied 10/30/17 (DiFiore, Ch. J.) (Appeal Nos. 1 and 2)
People v Zayas-Torres	3d Dept: 143 AD3d 1176 (Albany)	denied 10/26/17 (DiFiore, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(October 1, 2017 through October 31, 2017)

People v Ricart	1st Dept: 153 AD3d 421 (NY)	granted 10/3/17 (Webber, J.)
People v Xochimitl	2d Dept: 147 AD3d 793 (Kings)	granted 10/12/17 (Barros, J.)

[87 NE3d 154, 65 NYS3d 122]

In the Matter of RUTH JOANNA O.O., a Child Alleged to be Neglected. MELISSA O., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Decided November 16, 2017

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 28, 2017. The Appellate Division affirmed an order of fact-finding of the Family Court of Bronx County (Joan L. Piccirillo, J.), which had, after a hearing, determined that respondent neglected the child. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Family Court, properly made?"

Matter of Ruth Joanna O.O. (Melissa O.), 149 AD3d 32, affirmed.

HEADNOTE**Parent, Child and Family — Abused or Neglected Child**

Record support existed for the affirmed findings that respondent mother committed acts constituting child neglect and that the child was a neglected child as defined in Family Court Act § 1012.

APPEARANCES OF COUNSEL

The Feinman Law Firm, White Plains (*Steven N. Feinman* of counsel), for appellant.

Zachary W. Carter, Corporation Counsel, New York City (*Emma Grunberg, Richard Dearing and Fay Ng* of counsel), for respondent.

Seymour W. James, Jr., Legal Aid Society, New York City (*Susan Clement* of counsel), Attorney for the Child.

* Includes only applications that were granted.

Katherine Moore, Seton Hall University School of Law, Newark, New Jersey, for Brooklyn Law School Disability and Civil Rights Clinic and others, amici curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, and certified question answered in the affirmative. Record support exists for the affirmed findings that Melissa O. committed acts constituting child neglect and the child is a neglected child as defined in Family Court Act § 1012.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

JON M. BABINSKI, Appellant, v JEANNE M. BABINSKI, Respondent.

Submitted August 14, 2017; decided October 24, 2017

Reported below, 152 AD3d 477.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BOARD OF DIRECTORS OF WINDSOR OWNERS CORP., Respondent,
v ELAINE PLATT, Appellant.

Submitted August 21, 2017; decided October 24, 2017

Reported below, 148 AD3d 645.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CITIGROUP GLOBAL MARKETS, INC., et al.,
Respondents, v JOHN LEOPOLDO FIORILLA, Appellant.

Submitted August 14, 2017; decided October 24, 2017

Reported below, 151 AD3d 665.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MICHAEL COLON, Appellant, v ANTHONY J. ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted August 21, 2017; decided October 24, 2017

Reported below, 151 AD3d 1061.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the Supreme Court order denying the motion for leave to renew, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

UNIQUE HUDSON, Appellant, v CHHAYA N. PATEL et al., Respondents, et al., Defendant.

Submitted July 24, 2017; decided October 24, 2017

Reported below, 146 AD3d 758.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOHNATHAN JOHNSON, Appellant, v JEFF MCKAY et al., Respondents.

Submitted August 14, 2017; decided October 24, 2017

Reported below, 151 AD3d 1415.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DAVID KIRTON, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted August 28, 2017; decided October 24, 2017

Reported below, 149 AD3d 1370.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

ANDREW M. KLAPPER, M.D., Appellant, v RENEE GRAZIANO et al., Defendants, and WEINSTEIN COMPANY et al., Respondents.

Submitted March 20, 2017; decided October 24, 2017

Reported below, 129 AD3d 674.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

Concur: Chief Judge DiFiore and Judges RIVERA, STEIN, GARCIA and TOM, by designation.*

Taking no part: Judges FAHEY, WILSON and FEINMAN.

In the Matter of 128 HESTER LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING & COMMUNITY RENEWAL et al., Respondents.

Submitted June 5, 2017; decided October 24, 2017

Reported below, 146 AD3d 706.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as pertains to respondents Hun Siu Chu, Kok Hong The, and Chai Oi Hoy, dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see Matter of Einstoss*, 26 NY2d 181, 191 [1970]); motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the portion of the April 2015 Supreme Court order and judgment granting the motion for leave to file a surreply, dismissed upon the ground that such portion of the order does not finally determine the

* Designated pursuant to NY Constitution, article VI, § 2.

proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN ROCKTASCHEL, Appellant.

Submitted July 31, 2017; decided October 24, 2017

Reported below, 151 AD3d 1650.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

TROY J. RODMAN, Respondent, v FRANK J. DEANGELES, Appellant.

Submitted August 7, 2017; decided October 24, 2017

Reported below, 148 AD3d 119.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of EQUARN WHITE, Appellant, v ANTHONY J. ANNUCCI, Respondent.

Submitted June 26, 2017; decided October 24, 2017

Reported below, 2017 NY Slip Op 61370(U); 2017 NY Slip Op 69721(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of EQUARN WHITE, Appellant, v ANTHONY J. ANNUCCI, Respondent.

Submitted August 28, 2017; decided October 24, 2017

Reported below, 2017 NY Slip Op 79017(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[88 NE3d 375, 66 NYS3d 216]

In the Matter of the Claim of LIDIA BURGOS, Appellant, v
CITYWIDE CENTRAL INSURANCE PROGRAM et al., Respon-
dents. WORKERS' COMPENSATION BOARD, Respondent.

Decided November 16, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 30, 2017. The Appellate Division, with two Justices dissenting, affirmed a decision of the Workers' Compensation Board which had, among other things, ruled that claimant sustained a permanent partial disability and an 85% loss of wage-earning capacity.

Matter of Burgos v Citywide Cent. Ins. Program, 148 AD3d 1493, affirmed.

HEADNOTE

Workers' Compensation — Extent of Disability — Permanent Partial Disability

The Appellate Division properly concluded that substantial evidence supported the Workers' Compensation Board's determinations as to claimant's degree of impairment and loss of wage-earning capacity.

APPEARANCES OF COUNSEL

Law Offices of Michael D. Uysal, PLLC, New York City (*Michael D. Uysal* of counsel), for appellant.

Weiss, Wexler & Wornow, P.C., New York City (*J. Evan Perigo* of counsel), for Citywide Central Insurance Program and another, respondents.

Eric T. Schneiderman, Attorney General, New York City (*Laura Etlinger*, *Barbara D. Underwood* and *Andrew D. Bing* of counsel), for Workers' Compensation Board, respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division properly concluded

that substantial evidence supports the Workers' Compensation Board's determinations as to the claimant's degree of impairment and loss of wage-earning capacity (*see generally Matter of Zamora v New York Neurologic Assoc.*, 19 NY3d 186, 192-193 [2012]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahreny, Garcia, Wilson and Feinman.

[88 NE3d 354, 66 NYS3d 196]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY HARDEE, Appellant.

Argued March 29, 2017; reargued October 11, 2017; decided November 16, 2017

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 26, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Charles H. Solomon, J., at suppression hearing; Michael J. Obus, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Hardee, 126 AD3d 626, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact

In defendant's prosecution for criminally possessing a weapon, the issue whether the likelihood of a weapon in defendant's car was substantial and the danger to the safety of the officers who stopped the vehicle was actual and specific presented a mixed question of law and fact. There was record support for the determination that those circumstances existed and justified the limited search of the interior of the vehicle. Consequently, defendant's challenge to the denial of his suppression motion was beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Rachel T. Goldberg* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Jessica Olive* and *Dana Poole* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The issue whether “the likelihood of a weapon in [defendant’s] car [was] substantial and the danger to the . . . safety [of the officers who stopped that vehicle was] ‘actual and specific’” (*People v Carvey*, 89 NY2d 707, 711 [1997], quoting *People v Torres*, 74 NY2d 224, 231 n 4 [1989]) presents a mixed question of law and fact (see *People v Omowale*, 18 NY3d 825, 827 [2011]). Here, there is record support for the determination that those circumstances existed and justified the limited search of the interior of that vehicle (see *People v Mundo*, 99 NY2d 55, 57-59 [2002]; see also *Omowale*, 18 NY3d at 827, *affg* 83 AD3d 614, 616-617 [1st Dept 2011]). Consequently, defendant’s challenge to the denial of his suppression motion is beyond this Court’s further review (see generally *People v McBride*, 14 NY3d 440, 448 [2010], *cert denied* 562 US 931 [2010]). Defendant’s remaining contention is not preserved for appellate review (see CPL 470.05 [2]; *People v Hawkins*, 11 NY3d 484, 491-493 [2008]).

STEIN, J. (dissenting). “[W]here the facts are disputed, where credibility is at issue or where reasonable minds may differ as to the inference to be drawn from the established facts, this [C]ourt, absent an error of law, will not disturb the findings of the Appellate Division and the suppression court” (*People v McRay*, 51 NY2d 594, 601 [1980]). Conversely, where the issue presented is whether the People have demonstrated “the minimum showing necessary” to establish the legality of police conduct, “a question of law is presented for [our] review” (*id.*; see e.g. *People v Gonzalez*, 25 NY3d 1100, 1101 [2015]).

Accepting the facts as found by the Appellate Division and the suppression court, which are not disputed here, the People failed to adduce the minimum showing required to justify a protective search of defendant’s vehicle—namely, a substantial likelihood of the presence of a weapon and an actual and specific threat to officer safety. I, therefore, disagree with the majority’s conclusion that the question of whether the protective search was lawful is a mixed question of law and fact reviewable only for record support, and I would hold that the search of defendant’s vehicle was unlawful.

I.

Defendant was convicted, upon his guilty plea, of criminal possession of a weapon in the second degree (see Penal Law § 265.03 [3]). Prior to his plea, defendant sought suppression of the firearm found in his vehicle, following a traffic stop, on the basis that it had been discovered during an illegal search.

The following facts were elicited from two police officers at the suppression hearing. Three police officers patrolling Lexington Avenue, in Manhattan, observed a grey sedan traveling approximately 20 miles per hour over the speed limit and changing lanes without signaling. The officers pursued the sedan and, when they pulled behind it and activated the lights and sirens on their vehicle, the sedan immediately pulled over. Two officers approached the driver's side of the sedan, while the third officer approached the front passenger door.

Defendant was driving the vehicle and his fiancée was seated in the front passenger seat. Defendant appeared nervous and he admitted to the officers that there was alcohol in two cups in the center console. During his interaction with the officers, defendant appeared "hyper," but there was no other evidence of drug use or intoxication. In addition to looking around the vehicle at the officers and at his fiancée, defendant looked over his shoulder toward the back seat of the vehicle a few times. The officers requested that defendant exit the vehicle; although he initially shook his head and refused, he peacefully exited the vehicle the second or third time he was asked.

Once defendant was outside the vehicle, one of the officers inquired if defendant had any weapons in his possession and frisked his person. Although he still appeared nervous, defendant was cooperative during the frisk, which did not reveal any weapons. One of the officers then directed defendant to place his hands in his pockets and walk to the rear bumper of the vehicle. Defendant complied, with the two officers on his side of the vehicle accompanying him. While he was standing at the bumper, defendant looked over his shoulder a couple of times toward the car, against the officers' directions. The officers decided to handcuff defendant, and placed one handcuff on him before defendant allegedly "started resisting" by "tens[ing] up."

Meanwhile, as the two officers escorted defendant to the rear of the vehicle, the third officer at the passenger door requested that defendant's fiancée—who had thus far remained calm and courteous in the vehicle—step out of the car, and he directed her to the rear bumper of the vehicle, as well. After she complied, the officer returned to the front passenger door, entered the vehicle with his flashlight, and leaned over into the back seat compartment to look in a maroon shopping bag located on the floor. According to the officer, he believed that defendant had been looking at the bag when defendant had glanced over his shoulder while still in the car. The officer

picked up the bag, tugged on the handles to open it, and saw that it contained a firearm secreted inside a smaller black bag. When he turned to signal his discovery to his fellow officers, he saw, for the first time, that the other officers were attempting to handcuff defendant. The officer left the gun in the car, and helped to secure defendant.

Defendant argued that, based on the foregoing facts, suppression was required because the gun was found during a warrantless search conducted without probable cause, and there was no basis for a protective search of the vehicle. In response, the People asserted that a limited protective search of the vehicle was justified based on defendant's behavior. Supreme Court denied suppression of the gun on the ground that the officers had a reasonable belief that there was a weapon in the vehicle that presented an actual and specific danger to their safety. Defendant's subsequent motion for reargument was denied. Thereafter, defendant pleaded guilty to criminal possession of a weapon in the second degree.

Upon defendant's appeal, the Appellate Division affirmed the judgment of conviction, with one Justice dissenting (126 AD3d 626 [1st Dept 2015]). The majority held, as relevant here, that "defendant's actions both inside and outside of the vehicle created a 'perceptible risk' and supported a reasonable conclusion that a weapon that posed an actual and specific danger to their safety was secreted" in the vehicle (*id.* at 628, quoting *People v Mundo*, 99 NY2d 55, 59 [2002]). The dissenting Justice disagreed, and would have held that defendant was entitled to suppression of the weapon because the evidence of his nervousness, glances into the back seat, and momentary failure to comply with the officers' directives to exit the vehicle was "not sufficient to lead to a reasonable conclusion that a weapon located within the car presented an actual and specific danger to the officers' safety so as to justify a limited search of the car after defendant had been removed from the car and frisked without incident" (*id.*). The dissenting Justice granted defendant leave to appeal to this Court (2015 NY Slip Op 76561[U] [1st Dept 2015]).

II.

"[T]he use of a vehicle upon a public way does not effect a complete surrender of any objectively reasonable, socially acceptable privacy expectation" (*People v Weaver*, 12 NY3d 433, 444 [2009]). "A police officer's entry into a citizen's automobile

and his [or her] inspection of personal effects located within are significant encroachments upon that citizen's privacy interests" (*People v Torres*, 74 NY2d 224, 229-230 [1989]). Thus, "such intrusions must be both justified in their inception and reasonably related in scope and intensity to the circumstances which rendered their initiation permissible" (*id.* at 230; see *People v Moore*, 6 NY3d 496, 498 [2006]).

It is settled that, "absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the officers' safety has consequently been eliminated" (*Mundo*, 99 NY2d at 58). An exception to this rule provides for a limited protective search of the vehicle for weapons where "facts revealed during a proper inquiry or other information gathered during the course of the encounter lead to the conclusion that a weapon located within the vehicle presents an actual and specific danger to the officers' safety" (*Torres*, 74 NY2d at 231 n 4). "[I]n order for there to be an 'actual and specific' danger, there must be a 'substantial' 'likelihood of a weapon in the car'" (*Mundo*, 99 NY2d at 61, quoting *People v Carvey*, 89 NY2d 707, 711 [1997]).

We have reviewed the parameters of this exception in several cases. In *People v Torres*, the police received a telephone tip from an anonymous caller indicating that the defendant, who was wanted on homicide charges, could be found at a specific location and that he was carrying a weapon in a bag (74 NY2d at 226). Police officers observed the defendant enter his car at the location provided by the tip, carrying a nylon shoulder bag. Officers approached the vehicle, ordered the defendant and passenger out of the car, frisked them, then reached into the car to retrieve the shoulder bag; a search of the bag revealed a firearm and ammunition. We held that the officer's entry into the vehicle to retrieve the bag was unlawful because, at the time of the search, "the suspects had already been removed from the car" and "patted down without incident" (*id.* at 230). In so holding, we rejected the People's reliance on the theoretical possibility that the suspects may have re-entered the vehicle after completion of the stop and threatened the departing police officers' safety (see generally *Michigan v Long*, 463 US 1032, 1051-1052 [1983]). Further, while we acknowledged that the officers "may have had a reasonable basis for *suspecting* the presence of a gun," we observed that, in light of the suspect's isolation from the interior of the vehi-

cle during the questioning by the police, “[a]ny residual fear that the detectives might have had about the suspects’ ability to break away and retrieve the [firearm] could have been eliminated by taking the far less intrusive step of asking the suspects to move away from the vicinity of the car” (*Torres*, 74 NY2d at 230).

Subsequently, in *People v Carvey*, we upheld as lawful a limited protective search following a traffic stop where, after the defendant had been removed from the vehicle and patted down, it was determined that he was wearing a bulletproof vest (see 89 NY2d at 709). We distinguished *Torres* by observing that the bulletproof vest was “uniquely indicative of [the defendant’s] present readiness to use an available firearm,” and held that the vest, “when coupled with the police observation of defendant furtively placing something beneath his seat, warranted the conclusion that a weapon located in the vehicle presented an actual and specific threat to the officers’ safety” (*id.* at 709). Although the search in *Carvey* was determined to be justified under those circumstances, we explained that the exception articulated in *Torres* is a “narrow” one to be applied only where “the likelihood of a weapon in the car [is] substantial and the danger to the officer’s safety ‘actual and specific’” (*id.* at 710-711). We also strongly emphasized that a reasonable suspicion of the presence of a weapon, alone, “will not suffice,” underscoring that such suspicion must be coupled with specific facts indicating an actual threat to officer safety (*id.* at 711), and that, otherwise, the general rule that probable cause is required for such an intrusion applies.

In *People v Mundo*, we again reaffirmed the rule in *Torres* that probable cause is required for even a limited search of a vehicle absent an actual and specific threat to officer safety (see 99 NY2d at 58-59). In that case, when two police officers attempted to pull over a vehicle in which the defendant was a passenger, it was necessary for them to give chase three times before the vehicle fully complied with the directive to stop (see *id.* at 57). During the third pursuit, the vehicle almost struck a pedestrian, and the officers saw the defendant turn around, face them, and then make furtive movements indicating that he was secreting something (see *id.*). After the vehicle was finally stopped, the occupants were removed and patted down; one officer pulled down the trunk divider in the back seat, where the defendant had been seen hiding something, and discovered a stash of drugs (see *id.*). We affirmed the denial of

the defendant's suppression motion only in light of "[t]he blatant disregard of the officers' directions, [and] the obvious lack of concern for the safety of others . . . [which,] in addition to defendant's suspicious acts, created a perceptible risk to the officers that a weapon located within the vehicle would be a specific danger to their safety" (*Mundo*, 99 NY2d at 59). Likewise, we found record support for a protective search in *People v Omowale* based on the defendant driver's failure to immediately stop the vehicle, the police officers' observations of the passenger secreting something in the center console after he saw them and, significantly, movements by the passenger toward that same center console (where a handgun was found) as the police officers approached (*see* 83 AD3d 614, 617 [1st Dept 2011], *aff'd* 18 NY3d 825 [2011]).

III.

Undoubtedly, when faced with nervousness and furtive movements or glances, it may be difficult for police officers to determine whether suspicious behavior is merely ordinary nervousness related to police encounters, indicates the presence of a weapon, or suggests the existence of some other contraband of which defendant fears detection. Given "the reality of the day, including the risks faced by police officers in street encounters in the course of discharging their official duties" (*Torres*, 74 NY2d at 231), I do not suggest that the rule governing protective searches requires that a suspect actually retrieve or attempt to retrieve a weapon before an officer's fear of an actual and specific threat will be deemed justified. Nevertheless, to justify a protective search, our precedent requires a demonstration of some objective facts that support a belief that the defendant or other occupants of the vehicle present a danger to officer safety because they may access a weapon in the vehicle. Indeed, this critical element is the very basis for allowing a warrantless protective search without probable cause, and its absence here is clearly illustrated by a comparison of the facts of this case with those presented in *Carvey*, *Mundo*, and *Omowale*.

In *Carvey*, the bulletproof vest, combined with the defendant's act of furtively placing something under his seat—which implied that the gun was previously held at ready—was sufficient to justify the protective search because it suggested "more than the presence of a deadly weapon—it demonstrate[d] [the defendant's] *readiness and willingness to use a deadly*

weapon” (89 NY2d at 712). In *Mundo*, the failure of the driver to stop the vehicle and the repeated attempts to evade the police, which resulted in a near collision with a pedestrian, demonstrated a willingness to endanger the safety of others (see 99 NY2d at 57). Taken together with the defendant’s furtive movements of secreting an object in the back seat—which again indicated that the hidden item had been held at the ready—we upheld the denial of the defendant’s suppression motion, based on the officers’ objectively reasonable concern that any weapon in the vehicle presented an actual and specific safety threat to them (see *id.* at 59). Finally, in *Omowale*, the defendant’s failure to stop the vehicle, coupled with the passenger’s movements of secreting an object in the center console upon seeing the police and act of moving towards that same spot as the officers approached—a movement that would make little sense had some other type of contraband been hidden away—provided a reasonable basis for the protective search (18 NY3d at 825).

Here, by contrast, no facts elicited at the hearing established that, at the time of the search, defendant had displayed any behavior that would give rise to a belief that a weapon located in the vehicle presented an actual and specific danger to the safety of the officers. Thus, this case is indistinguishable from *Torres*, where the officers may reasonably have suspected the presence of a weapon, but there were no facts indicating an actual and specific threat to their safety once defendant was outside the vehicle, frisked, and moved away from the interior of the car (74 NY2d at 227). That is, even assuming that there was a reasonable basis to believe that there was a weapon in the car—a factor which I do not concede is satisfied here—there is no record support for a finding that a protective search was justified.

Defendant did not evade the police vehicle and immediately complied with the officers’ signals to pull over (*compare Omowale*, 18 NY3d at 825; *Mundo*, 99 NY2d at 59). We have previously cautioned, in the context of the narrow exception allowing for warrantless protective searches, that “[a] motorist who exceeds the speed limit does not thereby indicate any propensity for violence or iniquity, and the officer who stops the speeder has not even the slightest cause for thinking that he is in danger of being assaulted” (*People v Marsh*, 20 NY2d 98, 101 [1967]). Here, there was no testimony that defendant’s manner of driving was unusual for a major four-lane avenue in

Manhattan, or that any specific pedestrians or motorists were endangered thereby (*compare Mundo*, 99 NY2d at 59). In any event, to the extent that defendant's driving exhibited a disregard for the safety of others in the abstract and was sufficient to justify a traffic stop, such conduct did not justify a belief that the *presence of a weapon* posed an *actual and specific threat* to officer safety. It, therefore, did not provide a lawful predicate for a protective search.

Nor was defendant's nervousness sufficient to justify a protective search (*cf. People v Garcia*, 20 NY3d 317, 320 [2012]; *People v Banks*, 85 NY2d 558, 562 [1995], *cert denied* 516 US 868 [1995]). Significantly, defendant did not move towards the back seat to secrete an object, or move towards the bag or any other area of the vehicle to retrieve anything, either before or after the officers approached (*compare Omowale*, 18 NY3d at 825; *Mundo*, 99 NY2d at 57; *Carvey*, 89 NY2d at 709-710). In fact, the officers conceded that defendant was honest about having alcohol in the vehicle and made no attempt to hide it. Although he briefly refused to exit the vehicle, he apparently did so without hostility and he then peacefully complied with that directive, as well as with the subsequent frisk and the officers' request that he move to the rear bumper of the vehicle. It cannot reasonably be disputed that, up to that point, none of defendant's behavior provided an objective basis for a reasonable belief that a weapon located in the vehicle from which defendant had been isolated presented an "actual and specific danger to the officers' safety" (*Torres*, 74 NY2d at 231 n 4) and, therefore, no search was justified.

Finally, defendant's subsequent resistance to being handcuffed at the rear bumper of the vehicle cannot be used to justify the protective search because the officer who conducted the search was admittedly unaware of any such resistance when he began the search. It is beyond cavil that a search must be justified at the time it is commenced (*see Torres*, 74 NY2d at 230), and "[d]efendant's later conduct cannot validate an encounter that was not justified at its inception" (*Moore*, 6 NY3d at 498). Accordingly, as in *Torres*, the appropriate action to address any residual fear experienced by the officers would have been "the far less intrusive step of asking [defendant] to move [further] away from the vicinity of the car," not a search of the vehicle after both of its occupants had already been removed, and defendant had been patted down, without incident (74 NY2d at 230).

IV.

In short, the majority ignores the distinction we have always drawn between *Torres* and those cases in which we have upheld protective searches—namely, the requirement of an actual and specific threat to officer safety from a weapon located in the vehicle. Furthermore, the majority’s ruling disregards the narrowness of the warrant exception as articulated in, and demonstrated by, our prior case law, and it unduly broadens the exception for a protective search beyond its purpose and rationale. In the absence of any record facts supporting the majority’s conclusion that there was a substantial likelihood of a weapon in the vehicle that presented an actual and specific threat to the officers, *Torres* controls and the firearm should have been suppressed (*see* 74 NY2d at 230). I, therefore, dissent.

Chief Judge DiFIORE and Judges FAHEY, GARCIA and FEINMAN concur; Judge STEIN dissents in an opinion, in which Judges RIVERA and WILSON concur.

Order affirmed, in a memorandum.

In the Matter of TALIB W. ABDUR-RASHID, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

In the Matter of SAMIR HASHMI, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 140 AD3d 419.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of EVERLY D. BROWN, Appellant, v BRENT G. WEITZBERG et al., Respondents.

Submitted October 30, 2017; decided November 16, 2017

Reported below, 2017 NY Slip Op 86818(U).

Motion for leave to appeal etc. dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3).

In the Matter of WAQAR A. CHAUNDHRY, Respondent, v SITARA SALEEM, Appellant.

Submitted September 25, 2017; decided November 16, 2017

Reported below, 153 AD3d 518.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ROBERT J. CONGEL et al., as Members of the Executive Committee of, and on Behalf of, POUGHKEEPSIE GALLERIA COMPANY, Respondents, v MARC A. MALFITANO, Appellant.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 141 AD3d 64.

Motion by American College of Real Estate Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

ROBERT GERRISH, Respondent, v 56 LEONARD LLC et al., Appellants, et al., Defendant.

Submitted October 30, 2017; decided November 16, 2017

Reported below, 147 AD3d 511.

Motion by Real Estate Board of New York for leave to file a letter brief amicus curiae on the appeal herein granted and the proposed letter brief is accepted as filed.

Judge FEINMAN taking no part.

In the Matter of GRAZYNA S.-G., Appellant, v EVELINA G., Respondent.

Submitted September 5, 2017; decided November 16, 2017

Reported below, 2017 NY Slip Op 79716(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LEROY JOHNSON, Appellant, v JOHN B. LEMPKE,
Superintendent, Wende Correctional Facility, Respondent.

Submitted June 12, 2017; decided November 16, 2017

Reported below, 147 AD3d 1463; 144 AD3d 1677.

Motion to vacate this Court's April 27, 2017 dismissal order granted [*see* 29 NY3d 995 (2017)]. On the Court's own motion, appeal, insofar as taken from the November 2016 Appellate Division order, dismissed, without costs, as untimely (CPLR 5513 [a]); appeal, insofar as taken from the February 2017 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

FRANK MAKI, Appellant, v BASSETT HEALTHCARE et al., Respondents.

Decided November 16, 2017

Reported below, 2017 NY Slip Op 69011(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie, appellant having previously taken an appeal to this Court (29 NY3d 1041 [2017]) from the same Appellate Division order from which his appeal is currently taken.

SANDRA MORRISON-ALLEN, Appellant, v STATE OF NEW YORK, Respondent.

Decided November 16, 2017

Reported below, 152 AD3d 509.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN BAISLEY, Appellant.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 55 Misc 3d 148(A), 2017 NY Slip Op 50709(U).

Motion for assignment of counsel granted and Richard L. Herzfeld, Esq., 112 Madison Avenue, 8th Floor, New York, NY 10016 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROHAN MANRAGH, JR., Appellant.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 150 AD3d 762.

Motion to compel production of grand jury minutes denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY MARTIN, Appellant.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 147 AD3d 587.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DOMINGO RICART, Respondent.

Submitted October 30, 2017; decided November 16, 2017

Reported below, 153 AD3d 421.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL SANABRIA, Appellant.

Submitted October 30, 2017; decided November 16, 2017

Reported below, 151 AD3d 401.

Motion for assignment of counsel granted and Christina A. Swarns, Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS TAPIA, Appellant.

Submitted October 23, 2017; decided November 16, 2017

Reported below, 151 AD3d 437.

Motion for assignment of counsel granted and Christina A. Swarns, Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RODNEY WATTS, Appellant.

Submitted November 6, 2017; decided November 16, 2017

Reported below, 148 AD3d 578.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR XOCHIMITL, Appellant.

Submitted November 6, 2017; decided November 16, 2017

Reported below, 147 AD3d 793.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMEL CLARK, Appellant, v JEFFREY TEDFORD, as Superintendent of Adirondack Correctional Facility, Respondent.

Decided November 16, 2017

Reported below, 2017 NY Slip Op 81080(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THERESA S. ROMAIN, Appellant, v KIMBERLY O'CONNOR et al.,
Respondents.

Decided November 16, 2017

Reported below, 2017 NY Slip Op 77161(U); 2017 NY Slip Op 72772(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of TCR SPORTS BROADCASTING HOLDING, LLP,
Appellant, v WN PARTNER, LLC, et al. Respondents, and
THE BALTIMORE ORIOLES BASEBALL CLUB et al., Appellants.

Decided November 16, 2017

Reported below, 153 AD3d 140.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of TAURUS L. WHITEHEAD, Appellant, v ST. LAWRENCE COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of KATHLEEN BARRETT, Respondent.

Submitted September 5, 2017; decided November 16, 2017

Reported below, 2017 NY Slip Op 81075(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH W. KISLOWSKI, Appellant.

Decided November 21, 2017

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered December 8, 2016. The Appellate Division affirmed a judgment of the Warren County Court (John S. Hall, Jr., J.), which had, among other things, revoked defendant's probation and sentenced him to time served.

People v Kislowski, 145 AD3d 1197, reversed.

HEADNOTE

Crimes — Sentence — Probation — Revocation — Facial Sufficiency of Amended Violation Petition

The amended violation of probation petition, which listed four dates on which defendant allegedly “had contact with” a convicted criminal in violation of the terms of his probation, but did not include any additional information, was facially insufficient. It did not comport with the statutory requirement of providing probationer with the time, place, and manner of the alleged violation (CPL 410.70). The defect was not cured by defendant's questions posed to the court at the prior arraignment, the substance of which indicated that he did not have notice of the manner in which he allegedly violated a condition of his probation.

APPEARANCES OF COUNSEL

William E. Montgomery, III, Glens Falls, for appellant.

Jason M. Carusone, Acting District Attorney, Lake George (*Benjamin R. Smith* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the amended violation of probation petition dismissed.

Defendant Joseph Kislowski appeals from an order of the Appellate Division, which affirmed County Court's judgment, among other things, revoking defendant's probation (*People v Kislowski*, 145 AD3d 1197 [3d Dept 2016]). County Court determined that defendant violated the terms of his probation, which prohibited him from associating with any convicted criminals, when on four occasions he picked up and walked the dog he once shared with his former intimate partner, who had a DWI misdemeanor conviction. The amended violation of proba-

tion petition, which listed four dates on which defendant allegedly “had contact with” a convicted criminal, but did not include any additional information, was facially insufficient as it did not comport with the statutory requirement of providing probationer with the time, place, and manner of the alleged violation (CPL 410.70). Here, the defect in the amended petition was not cured by defendant’s questions posed to the court at the prior arraignment, the substance of which indicated that he did not have notice of the manner in which he allegedly violated a condition of his probation.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court Appeals (22 NYCRR 500.11), order reversed and amended violation of probation petition dismissed, in a memorandum.

In the Matter of JAMES ADAMS, Appellant, v NEW YORK STATE
DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVI-
SION, Respondent.

Decided November 21, 2017

Reported below, 151 AD3d 1770.

On the Court’s own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

In the Matter of FERNANDO A. BATISTA, Appellant, v RASHINA
MOCKTAR, Respondent.

Submitted September 11, 2017; decided November 21, 2017

Reported below, 149 AD3d 1068; 2017 NY Slip Op 81531(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, et al., Appellants, v STATE FARM INSURANCE COMPANY et al., Respondents.

Submitted September 25, 2017; decided November 21, 2017

Reported below, 2017 NY Slip Op 81969(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DANIELLE BITTON, Also Known as DANIELLE BITON, Appellant, v H.S.B.C. et al., Respondents.

Submitted September 25, 2017; decided November 21, 2017

Reported below, 2017 NY Slip Op 79497(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in an action commenced in Civil Court of the City of New York (NY Const, art VI, § 3 [b] [7]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of the Claim of MARGARET CAMPISE, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted September 18, 2017; decided November 21, 2017

Reported below, 150 AD3d 1523.

Motion for leave to appeal dismissed as untimely (CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief dismissed as academic.

TROY DANCY, Appellant, v JOHN J. SEYMOUR et al., Respondents.

Submitted September 25, 2017; decided November 21, 2017

Reported below, 2017 NY Slip Op 83895(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT C. LAITY, Appellant, v STATE OF NEW YORK et al., Respondents, et al., Respondents.

Decided November 21, 2017

Reported below, 153 AD3d 1079.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

SARA MYERS et al., Plaintiffs, ERIC A. SEIFF, et al., Appellants, v ERIC SCHNEIDERMAN, etc., Respondent, et al., Defendants.

Submitted October 16, 2017; decided November 21, 2017

Reported below, 140 AD3d 51.

Motion for reargument denied [*see* 30 NY3d 1 (2017)].

Chief Judge DiFIORE and Judge FEINMAN taking no part.

ALAN S. PEARCE et al., as Successor Trustees under the SHARI LYNN GOLDSTEIN TRUST, Respondents, v LINDA LIPETZ, Appellant.

Decided November 21, 2017

Reported below, 150 AD3d 562.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

STS PARTNERS FUND, LP, et al., Appellants, v DEUTSCHE BANK SECURITIES, INC., et al., Respondents.

Submitted September 11, 2017; decided November 21, 2017

Reported below, 149 AD3d 667.

Motion, insofar as it seeks leave to appeal as against Wells Fargo Bank, N.A., dismissed upon the ground that as to that defendant the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of DARREN E. THOMAS, Appellant, v TOWN OF OYSTER BAY et al., Respondents, et al., Respondent.

Decided November 21, 2017

Reported below, 152 AD3d 777.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NINA TOKHTAMAN, Respondent, v HUMAN CARE, LLC, Appellant, et al., Defendants.

Submitted October 10, 2017; decided November 21, 2017

Reported below, 149 AD3d 476.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NINA TOKHTAMAN, Respondent, v HUMAN CARE, LLC, Appellant, et al., Defendants.

Submitted October 23, 2017; decided November 21, 2017

Reported below, 149 AD3d 476.

Motion by the New York State Association of Health Care Providers et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

ROBERT WEICHERT et al., Appellants, v KENNETH PLUMADORE et al., Respondents.

Submitted September 11, 2017; decided November 21, 2017

Reported below, 152 AD3d 1190.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[88 NE3d 382, 66 NYS3d 222]

In the Matter of RYSZARD GRAJKO, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided November 16, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 25, 2017. The Appellate Division, with two Justices dissenting, (1) reversed, on the law and the facts, an order of the Supreme Court, Bronx County (Mitchell J. Danziger, J.), which had, among other things, granted petitioner's motion for leave to serve a late notice of claim pursuant to General Municipal Law § 50-e (5); (2) denied the motion; and (3) dismissed the petition.

Matter of Grajko v City of New York, 150 AD3d 595, appeal dismissed.

HEADNOTE

Appeal — Court of Appeals — Dismissal

An appeal from an Appellate Division order, which reversed a Supreme Court order granting petitioner's motion for leave to serve a late notice of claim pursuant to General Municipal Law § 50-e, was dismissed by the Court of Appeals upon the ground that the two-Justice dissent at the Appellate Division was not on a question of law (*see* CPLR 5601 [a]). A disagreement as to whether Supreme Court improvidently exercised its discretion is not a matter of law.

APPEARANCES OF COUNSEL

Gregory J. Cannata & Associates, LLP, New York City (*Gregory J. Cannata* of counsel), for appellant.

Cornell Grace, P.C., New York City (*Porsha Requel Johnson* and *Keith D. Grace* of counsel), for respondents.

Matthew A. Funk, *New York State Trial Lawyers Association* and *Sullivan Papain Block McGrath & Cannavo, P.C.*, New York City (*Brian J. Shoot* of counsel), for New York State Trial Lawyers Association, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, with costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]). A disagreement as to whether Supreme Court improvidently exercised its discretion is not a matter of law (*see Matter of Von Bulow*, 63 NY2d 221, 225 n [1984]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

BROOKE BIONDI, Appellant, v DAVID BEHRMAN, D.M.D., et al.,
Respondents, et al., Defendants.

Submitted July 24, 2017; decided November 20, 2017

Reported below, 149 AD3d 562.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied plaintiff's cross motion to amend the bill of particulars, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Chief Judge DiFiore taking no part.

PATRICK J. CARNEY, Respondent, v JUN W. CARNEY, Respondent.
PAUL B. WATKINS, ESQ., Attorney for the Children,
Appellant.

Submitted August 21, 2017; decided November 20, 2017

Reported below, 151 AD3d 1912.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PATRICK J. CARNEY, Appellant, v JUN W. CARNEY, Respondent.

Submitted August 28, 2017; decided November 20, 2017

Reported below, 151 AD3d 1912.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of STEPHEN DICK JR. et al., Appellants, v STATE OF NEW YORK TAX APPEALS TRIBUNAL et al., Respondents.

Submitted August 14, 2017; decided November 20, 2017

Reported below, 2017 NY Slip Op 78811(U); 2017 NY Slip Op 72775(U).

Motion, insofar as it seeks leave to appeal from the June 2017 Appellate Division order denying appellants' motion for reargument or leave to appeal, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SIAN GREEN, Appellant, v FASYAL KABIR MOHAMMAD HIMON et al., Defendants, and A+ COURIERS, Respondent.

Submitted July 17, 2017; decided November 20, 2017

Reported below, 151 AD3d 516.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

JULIO ENRIQUE HERNANDEZ, Appellant, v SILAS NWAISHIENYI et al., Defendants, and CHUNG HUEI WU et al., Respondents.

Submitted September 18, 2017; decided November 20, 2017

Reported below, 148 AD3d 684.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the May 2015 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JAMIE J. WAYNE COUNTY DEPARTMENT OF
SOCIAL SERVICES, Respondent; MICHELLE E.C., Appellant.

Submitted September 18, 2017; decided November 20, 2017

Reported below, 145 AD3d 127.

Motion to dismiss appeal denied. Motion to expand the record, insofar as it seeks to submit decisions and orders of Family Court, denied as unnecessary upon the ground that the material sought to be submitted is subject to judicial notice; motion to expand the record otherwise denied. Motion for other relief denied.

In the Matter of LORI A. JANCZEWSKI, Appellant, v ADAM A.
JANCZEWSKI, Respondent.

Submitted August 28, 2017; decided November 20, 2017

Reported below, 152 AD3d 595.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of KIRCHHOFF-CONSIGLI CONSTRUCTION MANAGEMENT, LLC, Respondent, v MECHTRONICS CORPORATION, Appellant.

Submitted October 16, 2017; decided November 20, 2017

Reported below, 144 AD3d 682.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 29 NY3d 1108 (2017)]. Motion for a stay dismissed as academic.

RHONDA LEWIS et al., Appellants, v ROBERT JUTKOWITZ et al.,
Defendants, and WILLIAM GAEL et al., Respondents.

Submitted August 28, 2017; decided November 20, 2017

Reported below, 136 AD3d 875.

Motion for leave to appeal dismissed upon the ground that it does not lie, appellants having previously moved for leave to appeal to this Court from the Appellate Division order from which leave to appeal is currently sought (28 NY3d 1051 [2016]).

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided November 20, 2017

Reported below, 2017 NY Slip Op 83903(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted July 10, 2017; decided November 20, 2017

Reported below, 2015 NY Slip Op 88044(U); 2015 NY Slip Op 88045(U); 2015 NY Slip Op 88046(U); 2015 NY Slip Op 78404(U); 2015 NY Slip Op 78405(U); 2015 NY Slip Op 78406(U); 118 AD3d 676; 118 AD3d 677; 118 AD3d 678.

Motion, insofar as it seeks leave to appeal from the July 2015 and October 2015 Appellate Division orders, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (27 NY3d 1146 [2016]) from the same Appellate Division orders from which she currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]). Motion for poor person relief dismissed as academic. Motion for other relief denied.

Judge FEINMAN taking no part.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted August 14, 2017; decided November 20, 2017

Reported below, 2016 NY Slip Op 92784(U); 2016 NY Slip Op 83727(U).

Motion for reargument denied [*see* 29 NY3d 975 (2017)]. Motion for poor person relief dismissed as academic.

Judge FEINMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GERMAINE GARCIA, Appellant.

Submitted September 18, 2017; decided November 20, 2017

Reported below, 2017 NY Slip Op 70886(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602; CPL 450.90). Motion for a stay dismissed as academic.

RACHEL TANTARO, Appellant, v COMMON GROUND COMMUNITY HOUSING DEVELOPMENT FUND, INC., et al., Respondents.

Submitted July 24, 2017; decided November 20, 2017

Reported below, 147 AD3d 684.

Motion, insofar as it seeks leave to appeal as against defendant Common Ground Community Housing Development Fund, Inc., dismissed upon the ground that as to it the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of 215 W 88TH STREET HOLDINGS LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

In the Matter of LENNART PEHRSON et al., Respondents, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, and 215 W 88TH STREET HOLDINGS LLC, Appellant.

Submitted August 14, 2017; decided November 20, 2017

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Motion for leave to appeal from the order of the New York State Division of Housing and Community Renewal, dated June 13, 2017, dismissed upon the ground that the final order of the Appellate Division, dated October 27, 2016, is the appealable paper (*see* CPLR 5611).

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(November 1, 2017 through November 30, 2017)

Contant, Matter of, v Kelly 2d Dept: 153 AD3d 520 11/29/17

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2017 through November 30, 2017)

Guidance Enhanced Green 1st Dept: 146 AD3d 431 11/21/17
Terrain, LLC v Bank of Am.
Merrill Lynch

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2017 through November 30, 2017)

People v Abner	1st Dept: 153 AD3d 1211 (NY)	denied 11/27/17 (Rivera, J.)
People v Aguilar	App Term, 1st Dept: 57 Misc 3d 128(A) (NY)	denied 11/21/17 (DiFiore, Ch. J.)
People v Alvarez	2d Dept: 153 AD3d 1359 (Queens)	denied 11/30/17 (DiFiore, Ch. J.)
People v Aponte	1st Dept: 154 AD3d 419 (NY)	denied 11/30/17 (DiFiore, Ch. J.)
People v Baker	2d Dept: 154 AD3d 693 (Kings)	denied 11/20/17 (Stein, J.)
People v Bethea	1st Dept: 152 AD3d 454 (NY)	denied 11/21/17 (DiFiore, Ch. J.)
People v Blacks (Theodore)	2d Dept: 153 AD3d 720 (Kings)	denied 11/8/17 (Garcia, J.)
People v Blacks (Theodore)	2d Dept: 153 AD3d 720 (Kings)	denied 11/8/17 (Garcia, J.)
People v Blount	2d Dept: 153 AD3d 1360 (Kings)	denied 11/16/17 (Wilson, J.)
People v Bonilla	1st Dept: 154 AD3d 160 (Bronx)	denied 11/1/17 (Rivera, J.)
People v Bouck	3d Dept: 153 AD3d 1522 (Schenectady)	denied 11/15/17 (Garcia, J.)

People v Boyer	App Div, 3d Dept: 2017 NY Slip Op 86707(U) (Albany)	denied 11/30/17 (DiFiore, Ch. J.)
People v Branham	App Div, 1st Dept: 2017 NY Slip Op 80141(U) (Bronx)	denied 11/15/17 (Rivera, J.)
People v Bridgewater	App Div, 1st Dept: 2017 NY Slip Op 81344(U) (Bronx)	denied 11/6/17 (Stein, J.)
People v Burns	App Div, 1st Dept: 2017 NY Slip Op 86360(U) (NY)	dismissed 11/30/17 (DiFiore, Ch. J.)
People v Calabrese	2d Dept: 153 AD3d 1268 (Queens)	denied 11/1/17 (Rivera, J.)
People v Caputo	2d Dept: 155 AD3d 648 (Nassau)	denied 11/16/17 (Stein, J.)
People v Cartagena	4th Dept: 149 AD3d 1518 (Erie)	denied reconsideration 11/8/17 (Garcia, J.)
People v Carter (Christopher)	4th Dept: 151 AD3d 1745 (Monroe)	denied 11/8/17 (DiFiore, Ch. J.)
People v Carter (Christopher)	4th Dept: 153 AD3d 1130 (Monroe)	denied 11/8/17 (DiFiore, Ch. J.)
People v Cavalluzzi	2d Dept: 151 AD3d 1074 (Queens)	denied 11/21/17 (DiFiore, Ch. J.)
People v Char	2d Dept: 153 AD3d 724 (Suffolk)	denied 11/8/17 (Garcia, J.)
People v Cherry	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 30 (Kings)	denied 11/15/17 (Garcia, J.)
People v Chinloy	2d Dept: 153 AD3d 1269 (Queens)	denied 11/30/17 (Fahey, J.)
People v Colin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 141(A) (Richmond)	denied 11/20/17 (Stein, J.)
People v Collier	3d Dept: 146 AD3d 1146 (Rensselaer)	denied reconsideration 11/15/17 (Garcia, J.)
People v Cordoba	App Div, 1st Dept: 2017 NY Slip Op 75169(U) (NY)	denied 11/21/17 (Stein, J.)
People v Criollo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 138(A) (Kings)	denied 11/22/17 (Fahey, J.)
People v Cruz	3d Dept: 152 AD3d 822 (Albany)	denied 11/1/17 (Rivera, J.)
People v Daigler	4th Dept: 148 AD3d 1685 (Genesee)	denied 11/27/17 (Rivera, J.)
People v Davidson	2d Dept: 150 AD3d 1142 (Kings)	denied 11/1/17 (Rivera, J.)
People v Davis	3d Dept: 150 AD3d 1396 (Fulton)	denied 11/29/17 (Wilson, J.)
People v Dean	4th Dept: 151 AD3d 1967 (Ontario)	denied reconsideration 11/8/17 (Garcia, J.)

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People v Decena	1st Dept: 153 AD3d 1205 (NY)	denied 11/29/17 (Wilson, J.)
People v Detig	County Ct, 8/15/17 (Erie)	denied 11/27/17 (Rivera, J.)
People v Diaz	1st Dept: 152 AD3d 471 (NY)	denied 11/1/17 (Wilson, J.)
People v Dorsey	1st Dept: 154 AD3d 416 (NY)	denied 11/28/17 (DiFiore, Ch. J.)
People v Drayton	1st Dept: 154 AD3d 473 (Bronx)	denied 11/30/17 (Fahey, J.)
People v Estela	2d Dept: 151 AD3d 1075 (Kings)	denied 11/22/17 (Wilson, J.)
People v Feliciano	App Term, 1st Dept: 57 Misc 3d 129(A) (NY)	denied 11/15/17 (Garcia, J.)
People v Fernandez	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 11/28/17 (DiFiore, Ch. J.)
People v Fields	2d Dept: 153 AD3d 1272 (Westchester)	denied 11/27/17 (Rivera, J.)
People v Firenshteyn	2d Dept: 153 AD3d 852 (Kings)	denied 11/6/17 (Stein, J.)
People v Garcia	1st Dept: 153 AD3d 1180 (NY)	denied 11/27/17 (Rivera, J.)
People v Gentile	App Div, 2d Dept: 2017 NY Slip Op 83314(U) (Queens)	dismissed 11/8/17 (Fahey, J.)
People v Gibson	2d Dept: 153 AD3d 637 (Kings)	denied 11/27/17 (Rivera, J.)
People v Gibson-Parish	2d Dept: 153 AD3d 1273 (Kings)	denied 11/30/17 (Fahey, J.)
People v Grafton	2d Dept: 153 AD3d 933 (Nassau)	denied 11/1/17 (Rivera, J.)
People v Gray	App Div, 2d Dept: 2017 NY Slip Op 77445(U) (Kings)	denied 11/15/17 (DiFiore, Ch. J.)
People v Guldi (George)	2d Dept: 152 AD3d 540 (Suffolk)	denied 11/3/17 (Fahey, J.)
People v Guldi (George)	2d Dept: 152 AD3d 540 (Suffolk)	denied 11/3/17 (Fahey, J.)
People v Harden	App Div, 3d Dept: 2017 NY Slip Op 84425(U) (Albany)	denied 11/10/17 (Feinman, J.)
People v Harris	2d Dept: 153 AD3d 552 (Westchester)	denied 11/29/17 (Wilson, J.)
People v Hilario	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 139(A) (Queens)	denied 11/21/17 (DiFiore, Ch. J.)
People v Hillard	2d Dept: 151 AD3d 743 (Kings)	denied 11/28/17 (DiFiore, Ch. J.)
People v Hunter	2d Dept: 151 AD3d 1077 (Kings)	denied 11/29/17 (Wilson, J.)
People v Jackson	2d Dept: 153 AD3d 1363 (Queens)	denied 11/15/17 (Stein, J.)

People v Javier	App Div, 1st Dept: 2017 NY Slip Op 74212(U) (NY)	denied reconsideration 11/8/17 (Fahey, J.)
People v Jenkins	2d Dept: 153 AD3d 727 (Queens)	denied 11/8/17 (Garcia, J.)
People v Jeudy	1st Dept: 153 AD3d 1203 (NY)	denied 11/30/17 (Rivera, J.)
People v Johnson (Brandon)	4th Dept: 153 AD3d 1606 (Monroe)	denied 11/22/17 (Wilson, J.)
People v Johnson (George)	App Div, 2d Dept, 8/23/17 (Genesee)	denied 11/28/17 (Stein, J.)
People v Johnson (Taimon)	2d Dept: 153 AD3d 933 (Kings)	denied 11/6/17 (Stein, J.)
People v Jones	2d Dept: 153 AD3d 935 (Suffolk)	denied 11/27/17 (Rivera, J.)
People v Keith	2d Dept: 154 AD3d 877 (Kings)	denied 11/30/17 (Fahey, J.)
People v King	1st Dept: 151 AD3d 633 (NY)	denied 11/21/17 (DiFiore, Ch. J.)
People v King Massive	2d Dept: 153 AD3d 643 (Kings)	denied 11/7/17 (Garcia, J.)
People v Labossiere	2d Dept: 148 AD3d 1183 (Nassau)	denied reconsideration 11/22/17 (Fahey, J.)
People v Laboy	2d Dept: 153 AD3d 1363 (Queens)	denied 11/10/17 (Feinman, J.)
People v Lema	1st Dept: 152 AD3d 440 (NY)	denied 11/10/17 (Fahey, J.)
People v Lewis (Matthew)	App Term, 1st Dept: 57 Misc 3d 128(A) (NY)	denied 11/16/17 (Wilson, J.)
People v Lewis (Norman)	App Div, 3d Dept: 2017 NY Slip Op 85260(U) (Albany)	dismissed 11/30/17 (Fahey, J.)
People v Lippe	2d Dept: 145 AD3d 1035 (Westchester)	denied upon reconsideration 11/08/17 (Fahey, J.)
People v Lisi	2d Dept: 152 AD3d 718 (Suffolk)	denied 11/3/17 (Fahey, J.)
People v Luciano	3d Dept: 152 AD3d 989 (Rensselaer)	denied 11/1/17 (Rivera, J.)
People v Mack	1st Dept: 153 AD3d 1208 (NY)	denied 11/21/17 (DiFiore, Ch. J.)
People v Marcelle	App Div, 2d Dept: 2017 NY Slip Op 85595(U) (Kings)	dismissed 11/13/17 (Stein, J.)
People v Marrero	2d Dept: 153 AD3d 1364 (Richmond)	denied 11/13/17 (Garcia, J.)
People v Marshall	App Div, 1st Dept: 2017 NY Slip Op 81350(U) (NY)	denied 11/21/17 (Stein, J.)

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People v Martinez (Juan)	1st Dept: 153 AD3d 1169 (NY)	denied 11/30/17 (Fahey, J.)
People v Martinez (Matthew)	2d Dept: 153 AD3d 1279 (Kings)	denied 11/6/17 (Stein, J.)
People v McCaw	App Term, 2d Dept, 9th & 10th Jud Dists: 2017 NY Slip Op 84994(U) (Suffolk)	dismissed 11/10/17 (Feinman, J.)
People v McCormack	4th Dept: 151 AD3d 1703 (Monroe)	denied 11/21/17 (DiFiore, Ch. J.)
People v McGee	2d Dept: 153 AD3d 1279 (Suffolk)	denied 11/2/17 (Rivera, J.)
People v McMahon	2d Dept: 153 AD3d 728 (Suffolk)	denied 11/1/17 (Wilson, J.)
People v Merritt	4th Dept: 115 AD3d 1250 (Erie)	denied 11/1/17 (Rivera, J.)
People v Millazzo	2d Dept: 153 AD3d 1279 (Queens)	denied 11/8/17 (Fahey, J.)
People v Mitchell	3d Dept: 152 AD3d 1089 (Chemung)	denied 11/1/17 (Wilson, J.)
People v Mojica	2d Dept: 153 AD3d 1366 (Kings)	denied 11/8/17 (DiFiore, Ch. J.)
People v Morales	App Term, 1st Dept: 55 Misc 3d 59 (NY)	denied* 11/20/17 (Stein, J.)
People v Morgan	2d Dept: 153 AD3d 554 (Queens)	denied 11/22/17 (Fahey, J.)
People v Morris	App Div, 2d Dept: 2017 NY Slip Op 82407(U) (Queens)	dismissed 11/10/17 (Feinman, J.)
People v Mosquero	2d Dept: 151 AD3d 888 (Queens)	denied reconsideration 11/22/17 (Fahey, J.)
People v Munford	1st Dept: 152 AD3d 415 (NY)	denied 11/30/17 (Fahey, J.)
People v Nanku	2d Dept: 153 AD3d 856 (Queens)	denied 11/20/17 (Stein, J.)
People v Nunez	App Div, 1st Dept: 2017 NY Slip Op 81344(U) (Bronx)	denied 11/6/17 (Stein, J.)
People v Onyeukwu	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 140(A) (Queens)	denied 11/6/17 (Stein, J.)
People v Pagan	1st Dept: 154 AD3d 424 (Bronx)	denied 11/30/17 (Fahey, J.)
People v Palmer	2d Dept: 153 AD3d 939 (Suffolk)	denied 11/22/17 (Fahey, J.)
People v Perales	2d Dept: 153 AD3d 1366 (Queens)	denied 11/22/17 (Wilson, J.)
People v Petri	3d Dept: 152 AD3d 1089 (Tompkins)	denied 11/27/17 (Rivera, J.)

* The order dated June 6, 2017 denying an application for leave to appeal to the Court of Appeals pursuant to CPL 460.20 in the above-captioned case is hereby vacated and should be disregarded.

People v Pickett	2d Dept: 153 AD3d 940 (Nassau)	denied 11/10/17 (Feinman, J.)
People v Pleasant	3d Dept: 149 AD3d 1257 (Albany)	denied 11/1/17 (Rivera, J.)
People v Porter (Curtis)	2d Dept: 153 AD3d 857 (Queens)	denied 11/21/17 (Stein, J.)
People v Porter (Desmond)	2d Dept: 153 AD3d 732 (Kings)	denied 11/1/17 (Wilson, J.)
People v Prince	2d Dept: 153 AD3d 940 (Kings)	denied 11/10/17 (Feinman, J.)
People v Ribner	2d Dept: 153 AD3d 1435 (Queens)	denied 11/16/17 (Wilson, J.)
People v Richards	1st Dept: 153 AD3d 1170 (NY)	denied 11/27/17 (Stein, J.)
People v Rivera	2d Dept: 153 AD3d 641 (Kings)	denied 11/22/17 (Fahey, J.)
People v Rocchino	2d Dept: 153 AD3d 1284 (Richmond)	denied 11/27/17 (Stein, J.)
People v Rodriguez	1st Dept: 151 AD3d 553 (Bronx)	denied 11/2/17 (Rivera, J.)
People v Sadler	2d Dept: 153 AD3d 1285 (Nassau)	denied 11/30/17 (DiFiore, Ch. J.)
People v Sanchez	2d Dept: 153 AD3d 944 (Suffolk)	denied 11/10/17 (Feinman, J.)
People v Sandy (Kester)	App Div, 2d Dept: 2007 NY Slip Op 75966(U) (Queens)	denied 11/27/17 (Garcia, J.)
People v Sandy (Kester)	App Div, 2d Dept: 2009 NY Slip Op 71191(U) (Queens)	denied 11/27/17 (Garcia, J.)
People v Santeramo	2d Dept: 153 AD3d 1286 (Queens)	denied 11/8/17 (Fahey, J.)
People v Santos	2d Dept: 150 AD3d 1270 (Kings)	denied 11/20/17 (Rivera, J.)
People v Saveljevs	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 56 Misc 3d 130(A) (Kings)	denied 11/1/17 (Rivera, J.)
People v Schafer	4th Dept: 152 AD3d 1228 (Wayne)	denied 11/21/17 (Wilson, J.)
People v Shepard	2d Dept: 133 AD3d 620 (Kings)	denied 11/27/17 (Rivera, J.)
People v Shepherd	2d Dept: 133 AD3d 620 (Kings)	denied 11/27/17 (Rivera, J.)
People v Simon	2d Dept: 153 AD3d 1435 (Kings)	denied 11/21/17 (DiFiore, Ch. J.)
People v Simpson	App Div, 1st Dept: 2017 NY Slip Op 81416(U) (Bronx)	dismissed 11/21/17 (Wilson, J.)
People v Small	2d Dept: 153 AD3d 557 (Orange)	denied 11/30/17 (Rivera, J.)
People v Smith (Jeremiah)	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 11/27/17 (DiFiore, Ch. J.)
People v Smith (Tyrell)	2d Dept: 153 AD3d 1436 (Suffolk)	denied 11/27/17 (Rivera, J.)

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People v Spasoff	App Div, 2d Dept: 2017 NY Slip Op 82843(U) (Westchester)	denied 11/8/17 (Fahey, J.)
People v Spells	App Div, 3d Dept: 2017 NY Slip Op 85228(U) (Schenectady)	denied 11/8/17 (Garcia, J.)
People v Sprague	4th Dept: 151 AD3d 1921 (Genesee)	denied 11/21/17 (Wilson, J.)
People v Terborg	App Div, 4th Dept: 2017 NY Slip Op 85326(U) (Monroe)	dismissed 11/28/17 (Rivera, J.)
People v Thames	1st Dept: 153 AD3d 1181 (NY)	denied 11/21/17 (Wilson, J.)
People v Thomas	App Term, 1st Dept: 57 Misc 3d 137(A) (Bronx)	denied 11/21/17 (DiFiore, Ch. J.)
People v Thompson	2d Dept: 150 AD3d 1156 (Kings)	denied 11/1/17 (Wilson, J.)
People v Tirado	App Div, 4th Dept, 5/29/17 (Erie)	denied reconsideration 11/20/17 (Rivera, J.)
People v Toland	3d Dept: 153 AD3d 966 (Schenectady)	denied 11/22/17 (Fahey, J.)
People v Toliver	App Div, 4th Dept, 8/24/17 (Erie)	dismissed 11/8/17 (Garcia, J.)
People v Torres	2d Dept: 153 AD3d 1368 (Kings)	denied 11/17/17 (Garcia, J.)
People v Torricella	2d Dept: 153 AD3d 1290 (Kings)	denied 11/10/17 (Feinman, J.)
People v Tunstall	3d Dept: 149 AD3d 1249 (Rensselaer)	denied 11/1/17 (Rivera, J.)
People v Valenzuela	1st Dept: 146 AD3d 675 (Bronx)	denied reconsideration 11/22/17 (Fahey, J.)
People v Vazquez	2d Dept: 153 AD3d 643 (Kings)	denied 11/7/17 (Garcia, J.)
People v Walker	2d Dept: 153 AD3d 861 (Suffolk)	denied 11/21/17 (DiFiore, Ch. J.)
People v Wallace	2d Dept: 149 AD3d 878 (Westchester)	denied 11/1/17 (Rivera, J.)
People v Washington	4th Dept: 153 AD3d 1663 (Onondaga)	denied 11/20/17 (Stein, J.)
People v Webb	County Ct, 8/29/17 (Erie)	denied 11/8/17 (Garcia, J.)
People v Weber	2d Dept: 153 AD3d 946 (Suffolk)	denied 11/22/17 (Wilson, J.)
People v White	3d Dept: 153 AD3d 1044 (Warren)	denied 11/22/17 (Fahey, J.)
People v Williams	2d Dept: 150 AD3d 1273 (Nassau)	denied reconsideration 11/8/17 (DiFiore, Ch. J.)

People v Worth	1st Dept: 154 AD3d 432 (NY)	denied 11/30/17 (Rivera, J.)
People v Wyatt	2d Dept: 153 AD3d 1371 (Queens)	denied 11/17/17 (Stein, J.)
People v Yodice	2d Dept: 153 AD3d 1373 (Queens)	denied 11/22/17 (Fahey, J.)

[88 NE3d 899, 66 NYS3d 454]

JESSICA TORRES, Respondent, v IRENE G. CERGNUL, M.D., et al.,
Appellants, et al., Defendants.

Decided December 12, 2017

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 12, 2017. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (Douglas E. McKeon, J.; op 2015 NY Slip Op 32769[U] [2015]), which had, insofar as appealed from, granted the motion of defendants Irene G. Cernul, M.D., and Bronx-Lebanon Hospital Center for summary judgment dismissing the complaint as against them; and (2) denied the motion. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Torres v Cernul, 146 AD3d 509, affirmed.

HEADNOTE

Physicians and Surgeons — Malpractice — Summary Judgment Precluded

In a medical malpractice action, defendants doctor and hospital did not preserve for review by the Court of Appeals their argument concerning the admissibility of the expert affidavit submitted by plaintiff in opposition to their motion for summary judgment, and defendant hospital abandoned any other argument. On the record, triable questions of fact precluded summary judgment in favor of defendants.

APPEARANCES OF COUNSEL

Aaronson Rappaport Feinstein & Deutsch, LLP, New York City (*Steven C. Mandell* of counsel), for appellants.

Sanocki Newman & Turret, LLP, New York City (*Carl B. Tegtmeier* and *David B. Turret* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order af-

firmed, with costs, and certified question answered in the affirmative. Defendants Irene G. Cernul, M.D., and Bronx-Lebanon Hospital Center did not preserve for our review their argument concerning the admissibility of the expert affidavit submitted by plaintiff in opposition to their motion for summary judgment. Moreover, defendant Bronx-Lebanon Hospital Center has abandoned any other argument. On this record, triable questions of fact preclude summary judgment in favor of defendants.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Wilson and Feinman concur; Judge Garcia dissents and votes to reverse and answer the certified question in the negative, for reasons stated in the dissenting opinion by Justice Andrias at the Appellate Division (146 AD3d 509, 512-522 [2017]).

[90 NE3d 1276, 68 NYS3d 405]

HENRY T. LAU, Appellant, v MARGARET E. PESCATORE PARKING, INC. et al., Respondents.

Decided November 21, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 15, 2016. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (George J. Silver, J.; op 2014 NY Slip Op 33638[U] [2014]), which had granted the motion by defendant Margaret E. Pescatore Parking, Inc. for summary judgment dismissing the complaint as against defendant Margaret E. Pescatore Parking, Inc.

Lau v Margaret E. Pescatore Parking, Inc., 145 AD3d 567, reversed.

HEADNOTE

Negligence — Maintenance of Premises

In an action alleging that plaintiff was injured when he tripped over a cord that was tied to a barrel, triable issues of fact precluded summary judgment in favor of one of the defendants.

APPEARANCES OF COUNSEL

Kenneth J. Gorman, Esq., P.C., New York City (*Kenneth J. Gorman* of counsel), for appellant.

Law Office of James J. Toomey, New York City (*James J. Toomey, Jr.* of counsel), for Margaret E. Pescatore Parking, Inc., respondent.

Debra J. Millman, P.C., New York City (*Debra J. Millman* of counsel), for Tai Ming Development Corp., respondent.

OPINION OF THE COURT**MEMORANDUM.**

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, as limited by plaintiff's letter submission on the appeal (*see* 22 NYCRR 500.11 [f]), reversed, with costs to plaintiff against defendant Margaret E. Pescatore Parking, Inc., and motion for summary judgment of defendant Margaret E. Pescatore Parking, Inc. denied. On this record, triable issues of fact preclude summary judgment in favor of defendant Margaret E. Pescatore Parking, Inc.

GARCIA, J. (dissenting). Plaintiff in this action tripped over a cord tied to a barrel in a parking lot and fell, injuring his leg. Supreme Court, upon review of the voluminous record, including numerous depositions, granted summary judgment in defendants' favor and dismissed the complaint. Supreme Court concluded that defendants had made a prima facie case for summary judgment and that plaintiff had failed to raise an issue of fact as to liability. As relevant here, Supreme Court found that while plaintiff had raised an issue of fact as to ownership of the barrel, plaintiff failed to present any evidence that defendant Pescatore created or had notice of the defect. Supreme Court determined that the only evidence that Pescatore had created or had notice of the defect was circumstantial and that such evidence was insufficient to defeat Pescatore's summary judgment motion (*see Lau v Margaret E. Pescatore Parking, Inc.*, 2014 NY Slip Op 33638[U], *4 [Dec. 26, 2014] ["Regardless of whether Defendant Pescatore owns the barrels in question, there is no evidence or issue of fact as to who created the defective condition outside of pure speculation"]).

The Appellate Division affirmed, holding that defendants had "established their entitlement to judgment as a matter of law" and that plaintiff "failed to raise a triable issue of fact" (145 AD3d 567, 567 [2016]). We granted leave to appeal.

In reviewing a summary judgment motion, the court must consider the facts “in the light most favorable to” the nonmoving party (*Fundamental Portfolio Advisors, Inc. v Tocqueville Asset Mgt., L.P.*, 7 NY3d 96, 105 [2006]), and examine whether the proponent has made “a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to eliminate any material issues of fact from the case” (*Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851, 853 [1985]). Once the moving party has done so, the nonmoving party must “show facts sufficient to require a trial of any issue of fact” (CPLR 3212 [b]). “[M]ere conclusions, expressions of hope or unsubstantiated allegations or assertions are insufficient” (*Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]).

Both courts applied the proper legal standard in parsing the facts and circumstances of this case. Supreme Court found that while plaintiff provided evidence sufficient to demonstrate a triable issue with respect to ownership of the barrel, “the issue of ownership is not, in itself, enough to raise an issue of fact as to Defendant Pescatore’s liability, where Plaintiff failed to raise issues of fact as to whether [defendant] created the defect or whether [defendant] had notice of the defect” (2014 NY Slip Op 33638[U], *4). I agree with that conclusion and accordingly would affirm.

Judges RIVERA, STEIN, FAHEY and WILSON concur; Judge GARCIA dissents and votes to affirm, insofar as appealed from, in a memorandum, in which Chief Judge DiFIORE and Judge FEINMAN concur.

In the Matter of JONAS APONTE, Respondent, v SHOLA OLATOYE et al., Appellants.

Submitted December 4, 2017; decided December 12, 2017

Reported below, 138 AD3d 440.

Motion by AARP et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of MICHAEL BROWN, Appellant, v ROBERTO VELEZ,
as Acting Commissioner of State of New York Office of Chil-
dren and Family Services, et al., Respondents.

Decided December 12, 2017

Reported below, 153 AD3d 517.

Appeal dismissed without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFT-
WARE, INC., et al., Respondents.

LINDSAY LOHAN, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE,
INC., et al., Respondents.

Submitted November 27, 2017; decided December 12, 2017

Reported below, 142 AD3d 776.

Motion by Jarryd Huntley for leave to file a brief amicus cu-
riae on the appeals herein granted and the proposed brief is
accepted as filed. Three copies of the brief must be served, an
original and nine copies filed, and the brief submitted in digital
format within seven days.

INTERNATIONAL UNION OF PAINTERS & ALLIED TRADES, DISTRICT
COUNCIL No. 4, by its Secretary-Treasurer, Mark Stevens,
et al., Respondents, v NEW YORK STATE DEPARTMENT OF
LABOR et al., Appellants.

Submitted November 20, 2017; decided December 12, 2017

Reported below, 147 AD3d 1542.

Motion by New York State Building & Construction Trades
Council, AFL-CIO for leave to appear amicus curiae on the ap-
peal herein granted only to the extent that the proposed brief
is accepted as filed. The brief must be submitted in digital
format within seven days.

In the Matter of KEVIN MCK., Appellant, v ELIZABETH A.E., Re-
spondent.

Decided December 12, 2017

Reported below, 151 AD3d 600.

Appeal, insofar as taken from that portion of the Appellate Division order that affirmed the dismissal of so much of the petition that sought enforcement of a visitation order, dismissed by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MIDFIRST BANK, Respondent, v JOSEPH AJALA, Appellant, et al.,
Defendants.

Submitted October 23, 2017; decided December 12, 2017

Reported below, 146 AD3d 875.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 1102 (2017)]. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN
BERREZUETA, Appellant.

Submitted November 27, 2017; decided December 12, 2017

Reported below, 55 Misc 3d 143(A), 2017 NY Slip Op 50633(U).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUDE
FRANCIS, Appellant.

Submitted December 4, 2017; decided December 12, 2017

Reported below, 137 AD3d 91.

Motion by Youth Represent et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KEVIN REEVES, Respondent.

Decided December 12, 2017

Reported below, 152 AD3d 1173.

Appeal dismissed, by the Court of Appeals, sua sponte, as moot.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM RODRIGUEZ, Appellant.

Submitted November 27, 2017; decided December 12, 2017

Reported below, 153 AD3d 235.

Motion for assignment of counsel granted and Michael J. Hutter, Esq., c/o Powers & Santola, LLP, 39 North Pearl Street, Albany NY 12207-2844 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REGINALD WIGGINS, Appellant.

Submitted December 4, 2017; decided December 12, 2017

Reported below, 143 AD3d 451.

Motion by JustLeadershipUSA for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v REGINALD WIGGINS, Appellant.

Submitted December 4, 2017; decided December 12, 2017

Reported below, 143 AD3d 451.

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CEDRIC GOLSTON, Appellant, v MICHAEL KIRKPATRICK, as Superintendent of Clinton Correctional Facility, Respondent.

Decided December 12, 2017

Reported below, 153 AD3d 1498.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE, Appellant, v SUPERINTENDENT OF COXSACKIE CORRECTIONAL FACILITY, Respondent.

Decided December 12, 2017

Reported below, 153 AD3d 1545.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. AMINIE WOOLWORTH, on Behalf of GREGORY DAWSON, Appellant, v DEPARTMENT OF CORRECTIONS, Respondent.

Submitted September 25, 2017; decided December 12, 2017

Reported below, 153 AD3d 645.

Motion for leave to appeal dismissed upon the ground that relator has been released from custody and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DIANE WORD, Appellant, v STATE OF NEW YORK et al., Respondents.

Decided December 12, 2017

Reported below, 2017 NY Slip Op 83887(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ROBERT S. III, Respondent, v LINDA S., Appellant, and RICHARD B. ALDERMAN, et al., Respondents. (And Two Other Related Matters.)

Submitted October 2, 2017; decided December 12, 2017

Reported below, 152 AD3d 1094; 151 AD3d 1405; 151 AD3d 1413; 148 AD3d 1337; 145 AD3d 1367; 119 AD3d 1006.

Motion, insofar as it seeks leave to appeal from the July 2014 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (24 NY3d 906 [2014]) from the same Appellate Division order from which she currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the July 2017 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the remaining orders, otherwise dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (*see* 22 NYCRR 500.22 [b] [2]).

Judge STEIN taking no part.

In the Matter of STATE OF NEW YORK, Respondent, v KEITH F., Appellant.

Decided December 12, 2017

Reported below, 149 AD3d 671.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ST. LAWRENCE COUNTY SUPPORT COLLECTION UNIT, on Behalf of CINDY L. BOWMAN, Now Known as CINDY L. KING, Respondent, v ROBERT G. BOWMAN, Appellant. (And Another Related Proceeding.)

Decided December 12, 2017

Reported below, 152 AD3d 899.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution.

DAWN STEFANIAK, Plaintiff, v NFN ZULKHARNAIN, Appellant,
and ROBERTA L. REEDY, as Administrator of the Estate of
KEVIN M. REEDY, Deceased, Respondent.

Decided December 12, 2017

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that simultaneous appeals do not lie to the Appellate Division and the Court of Appeals, unless within 20 days appellant, if he be so advised, serves upon all parties and files in this Court a notice that he has abandoned his appeal to the Appellate Division and stipulates for the withdrawal of that appeal (*see Parker v Rogerson*, 35 NY2d 751, 753-754 [1974]).

Judge FAHEY taking no part.

U.S. BANK NATIONAL ASSOCIATION, Respondent, v DLJ MORTGAGE CAPITAL, INC., Appellant.

Submitted October 30, 2017; decided December 12, 2017

Reported below, 141 AD3d 431.

Motion by Ameriquest Mortgage Company for leave to intervene denied.

Judges WILSON and FEINMAN taking no part.

In the Matter of LURLYN A. WINCHESTER, a Justice of the
Monroe Town Court, Orange County.

Submitted November 13, 2017; decided December 12, 2017

Motion for reconsideration denied [*see* 29 NY3d 1121 (2017)].

[91 NE3d 1185, 69 NYS3d 206]

ANTONIO GARCIA, Appellant, v GOVERNMENT EMPLOYEES INSURANCE COMPANY, Respondent.

Decided December 14, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered

June 28, 2017. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Nassau County (Jerome C. Murphy, J.; op 2015 NY Slip Op 32772[U] [2015]), which had denied defendant's motion for summary judgment dismissing the complaint; and (2) granted the motion.

Plaintiff, who was injured when he was struck by a vehicle owned by defendant's insured, obtained a judgment against the insured and, after obtaining partial satisfaction of that judgment, sought to recover the unsatisfied portion from defendant in an action pursuant to Insurance Law § 3420 (a) (2). Defendant moved for summary judgment dismissing the complaint on the ground that its insured's policy, which contained a liability limit of \$2 million, was not in effect at the time of the accident because it had been cancelled for nonpayment of premium. Plaintiff opposed defendant's motion, contending that there was an issue of fact as to whether the insured's payment of the amount of the previous year's premium before the commencement of the policy period secured a fully paid policy period providing a full year of coverage for \$1 million. The Appellate Division determined that there was no ambiguity in the policy as to either coverage or divisibility. Because the insured only paid part of the premium, her coverage was cancelled, upon notice, when the prorated premium for the coverage she contracted for was exhausted.

Garcia v Government Empls. Ins. Co., 151 AD3d 1020, affirmed.

HEADNOTE

Insurance — Action against Insurer

In an action pursuant to Insurance Law § 3420 (a) (2) to recover the unsatisfied portion of a judgment against defendant's insured, an order granting defendant insurance company's motion for summary judgment was affirmed, where the insured's policy was not in effect at the time of the accident as it was cancelled for nonpayment of premium. There was no ambiguity in the policy as to coverage or divisibility.

APPEARANCES OF COUNSEL

Shayne, Dachs, Sauer & Dachs, LLP, Mineola (*Jonathan A. Dachs* of counsel), for appellant.

Law Offices of Richard A. Fogel, P.C., Islip (*Richard A. Fogel* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order af-

firmed, with costs. There is no ambiguity in the policy as to coverage or divisibility. The parties contracted for \$2 million of coverage. Plaintiff's remaining contention lacks merit.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

In the Matter of the Claim of SHARON K. BLAND, Appellant, v
GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORK-
ERS' COMPENSATION BOARD, Respondent. (Claim No. 1.)

In the Matter of the Claim of SHARON K. BLAND, Appellant, v
RONCO COMMUNICATIONS et al., Respondents. WORKERS'
COMPENSATION BOARD, Respondent. (Claim No. 2.)

Submitted September 11, 2017; decided December 14, 2017

Reported below, 151 AD3d 1484.

Motion, insofar as it seeks leave to appeal from those portions of the Appellate Division order that affirmed the February 2, 2015 and February 25, 2015 Workers' Compensation Board decisions, and that part of the January 20, 2015 Workers' Compensation Board amended decision denying the application for reconsideration and/or full Board review, dismissed upon the ground that such portions of the order do not finally determine the proceedings within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the January 27, 2015 Workers' Compensation Board amended decision, dismissed upon the ground that as to that portion of the order, appellant is not a party aggrieved; motion for leave to appeal otherwise denied.

Judge STEIN taking no part.

JOHN BRUZZESE, Appellant, v SYLVIA BRUZZESE, Respondent.
PETER D. BARLET et al., Nonparty Respondents.

Submitted September 11, 2017; decided December 14, 2017

Reported below, 152 AD3d 563.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DONATO REALTY, LLC, et al., Respondents, v UTICA FIRST INSURANCE COMPANY, Appellant.

Submitted August 21, 2017; decided December 14, 2017

Reported below, 146 AD3d 481.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOHNATHAN JOHNSON, Appellant, v EVELYN L. BRAUN et al., Respondents.

Submitted October 16, 2017; decided December 14, 2017

Reported below, 2017 NY Slip Op 84276(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KAMCO SUPPLY CORP., Respondent, v ON THE RIGHT TRACK, LLC, Appellant. SOUTHEASTERN METAL, INC., Third-Party Appellant; KAMCO SUPPLY CORP. OF BOSTON et al., Third-Party Respondents, et al., Third-Party Defendant.

Submitted October 10, 2017; decided December 14, 2017

Reported below, 149 AD3d 275.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HISHAM KHALEEL, Appellant, v LIDGETTE VANDERREIL et al., Respondents.

Submitted October 23, 2017; decided December 14, 2017

Motion for reconsideration of this Court's September 7, 2017 dismissal order denied [*see* 29 NY3d 1101 (2017)]. Motion for reargument of motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for affirmative relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

SETH MITCHELL, Appellant, v STATE OF NEW YORK, Respondent.

Submitted October 16, 2017; decided December 14, 2017

Reported below, 2017 NY Slip Op 83485(U).

Motion, insofar as it seeks leave to appeal from the May 18, 2017 letter, dismissed upon the ground that the letter is neither a judgment nor an order from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; CPLR 5602 [a]); motion, insofar as it seeks leave to appeal from the Appellate Division order, dismissed upon the ground that the order does not finally determine the action within the meaning of the Constitution.

STEVEN ROSEN, Appellant, v KATHERINE MOSBY, Respondent.

Submitted September 25, 2017; decided December 14, 2017

Reported below, 148 AD3d 1228.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

TONYIA B. WATSON, Appellant, v STATE OF NEW YORK, Respondent. (And Another Action.)

Submitted October 23, 2017; decided December 14, 2017

Reported below, 147 AD3d 708.

Motion for reconsideration of this Court's September 5, 2017 dismissal order denied [*see* 29 NY3d 1114 (2017)]. Motion for reargument of motion for leave to appeal denied.

Judge FEINMAN taking no part.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted November 13, 2017; decided December 19, 2017

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of ALVIN BROWN, Appellant, v NYS DEPT. OF PAROLE et al., Respondents.

Submitted November 6, 2017; decided December 19, 2017

Reported below, 2017 NY Slip Op 86127(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

BARBARA BURNS, Individually and as Executrix of THOMAS J. BURNS, Deceased, Appellant, v SUDHIR GOYAL et al., Defendants, and RAKESH B. PATEL et al., Respondents.

Submitted November 13, 2017; decided December 19, 2017

Reported below, 145 AD3d 952.

Motion by respondents Rakesh B. Patel and Suffolk Heart Group, LLP for reargument denied [*see* 30 NY3d 956 (2017)].

In the Matter of the Claim of CAROL D. COMMISSIONER, Respondent. JACARANDA CLUB LLC, Doing Business as SAPPHIRE NY, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted October 30, 2017; decided December 19, 2017

Reported below, 151 AD3d 1144.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of COMMUNITY RELATED SERVICES, INC. (CRS), Respondent, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Appellants.

Submitted October 30, 2017; decided December 19, 2017

Reported below, 151 AD3d 429.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from is not the final paper from which leave to appeal may be sought (*see* CPLR 5611).

In the Matter of JAY'S DISTRIBUTORS, INC., Appellant, v JARRY BOONE, as Commissioner of Taxation and Finance, et al., Respondents.

Submitted October 23, 2017; decided December 19, 2017

Reported below, 148 AD3d 1237.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 918 (2017)].

In the Matter of KJ, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted October 23, 2017; decided December 19, 2017

Reported below, 146 AD3d 694.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 916 (2017)].

In the Matter of SCOTT MAIONE, Appellant, v NEW YORK STATE OFFICE OF TEMPORARY AND DISABILITY ASSISTANCE et al., Respondents.

Submitted November 6, 2017; decided December 19, 2017

Reported below, 144 AD3d 916.

Motion for reargument of motion for leave to appeal denied [see 29 NY3d 918 (2017)].

PAUL MARINACCIO, SR., Respondent, v TOWN OF CLARENCE, Appellant.

Submitted November 6, 2017; decided December 19, 2017

Reported below, 151 AD3d 1784.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

In the Matter of the Claim of JEAN G. PIERRE, Appellant. FJC
SECURITY SERVICES, INC., Respondent. COMMISSIONER OF
LABOR, Respondent.

Submitted October 30, 2017; decided December 19, 2017

Reported below, 141 AD3d 1069.

Motion for reargument of motion for leave to appeal denied
[see 29 NY3d 1143 (2017)].

SUSAN REINHARD, Appellant, v CONNAUGHT TOWER CORPORA-
TION, Respondent, et al., Defendant.

Submitted November 6, 2017; decided December 19, 2017

Reported below, 150 AD3d 431.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

R.F. SCHIFFMANN ASSOCIATES, INC., et al., Appellants, v BAKER
& DANIELS LLP, Respondent, and WEAVER POPCORN COM-
PANY, INC., Defendant.

Submitted October 30, 2017; decided December 19, 2017

Reported below, 147 AD3d 482; 2017 NY Slip Op 76744(U).

Motion for leave to appeal denied. Cross motion for the
imposition of sanctions denied.

Judge FEINMAN taking no part.

RIVER PARK RESIDENCES, LP, Respondent, v RICHMAN PLAZA
GARAGE CORP., Appellant, et al., Respondents.

Submitted October 23, 2017; decided December 19, 2017

Reported below, 55 Misc 3d 140(A), 2017 NY Slip Op 50569(U).

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals does not have jurisdiction to entertain
this motion for leave to appeal from an order entered in this
proceeding commenced in Civil Court of the City of New York
(see NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of KEVIN P. SMITH, Appellant, v GREGORY LASAK
et al., Respondents.

Submitted November 6, 2017; decided December 19, 2017

Reported below, 149 AD3d 845.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

SCOTT WINTERMUTE, Appellant, v VANDEMARK CHEMICAL, INC.,
Respondent.

Submitted October 30, 2017; decided December 19, 2017

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals has jurisdiction to entertain a motion for
leave to appeal pursuant to CPLR 5602 (a) (1) (ii) from a final
judgment of Supreme Court only where a prior nonfinal Appel-
late Division order necessarily affects that judgment, and the
prior nonfinal Appellate Division order here granting a new
trial is not such an order.

[89 NE3d 1254, 67 NYS3d 574]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP
A. DODSON, Appellant.

Decided November 21, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of
Appeals, from an order of the Appellate Division of the
Supreme Court in the Fourth Judicial Department, entered
February 3, 2017. The Appellate Division affirmed a judgment
of the Monroe County Court (Alex R. Renzi, J.), which had
convicted defendant, upon his plea of guilty, of assault in the
first degree.

People v Dodson, 147 AD3d 1343, reversed.

HEADNOTE**Crimes — Right to Counsel — Substitution of Counsel**

Upon defendant's request at a sentencing hearing for a new attorney to advise him on whether to move to withdraw his plea before sentence was imposed, which was supported by specific allegations regarding counsel's performance, the trial court had a duty to inquire into defendant's request for new counsel before it proceeded to sentence defendant. Accordingly, defendant must be afforded the opportunity to decide whether to make a motion to withdraw his guilty plea upon the advice of counsel.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (Nancy Gilligan of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed and the case remitted to County Court for further proceedings in accordance with this memorandum.

At a sentencing hearing following his guilty plea, defendant asked for a new attorney to advise him on whether to move to withdraw his plea before sentence was imposed. Defendant's request was supported by specific allegations regarding counsel's performance (*see People v Porto*, 16 NY3d 93 [2010]). Under these circumstances, the court had a duty to inquire into defendant's request for new counsel before it proceeded to sentence defendant (*see People v Sides*, 75 NY2d 822 [1990]). Accordingly, defendant must be afforded the opportunity to decide whether to make a motion to withdraw his guilty plea upon the advice of counsel. Defendant's remaining contentions lack merit.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to County Court, Monroe County, for further proceedings in accordance with the memorandum herein.

[89 NE3d 1255, 67 NYS3d 575]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEROY SAVAGE SMITH, Appellant.

Argued October 12, 2017; decided November 21, 2017

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 10, 2016. The Appellate Division affirmed a judgment of the Onondaga County Court (Anthony F. Aloï, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree and criminal possession of a weapon in the fourth degree.

People v Smith, 140 AD3d 1699, reversed.

HEADNOTE

Crimes — Right to Counsel — Substitution of Counsel

Upon receiving defendant's request to substitute counsel, which was supported by specific factual allegations of serious complaints about counsel, the trial court abused its discretion by failing to conduct a minimal inquiry into the nature of the disagreement or its potential for resolution.

APPEARANCES OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Philip Rothschild* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* of counsel), for respondent.

New York Civil Liberties Union Foundation, New York City (*Kevin Jason*, *Mariko Hirose* and *Christopher Dunn* of counsel), for New York Civil Liberties Union, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Following a jury trial, defendant was convicted of assault in the first degree and criminal possession of a weapon in the fourth degree and sentenced. The Appellate Division unanimously affirmed the judgment (*see People v Smith*, 140 AD3d 1699 [4th Dept 2016]).

We agree with defendant that the trial court failed to adequately inquire into his “seemingly serious request[]” to

substitute counsel (*see People v Sides*, 75 NY2d 822, 824 [1990]). Defendant's request was supported by "specific factual allegations of 'serious complaints about counsel' " (*People v Porto*, 16 NY3d 93, 100 [2010], quoting *People v Medina*, 44 NY2d 199, 207 [1978]), and a "minimal inquiry" into "the nature of the disagreement or its potential for resolution" was warranted (*Sides*, 75 NY2d at 825). Accordingly, the trial court abused its discretion by failing to conduct such an inquiry.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur.

Order reversed and a new trial ordered, in a memorandum.

[91 NE3d 697, 68 NYS3d 780]

JAMES E. FRELIGH II, Appellant, v GOVERNMENT EMPLOYEES INSURANCE COMPANY, Respondent.

Decided December 14, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 27, 2017. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Ulster County (James P. Gilpatrick, J.), which had denied defendant's motion for summary judgment dismissing the complaint; (2) granted the motion; and (3) dismissed the complaint.

Plaintiff brought an action against defendant insurance company seeking to recover no-fault benefits for the lost wages plaintiff allegedly sustained as the result of a motor vehicle accident. At the time of the accident, plaintiff, who had worked in the automotive parts and repair industry for a number of years, had been unemployed for approximately seven months, but claimed to have been offered a job with a parts business before the accident that he was scheduled to begin after the accident. Defendant's motion for summary judgment dismissing the complaint on the grounds that plaintiff failed to provide proper verification of his claim and that the claim for lost wages was speculative was denied by Supreme Court. The Appellate Division reversed, finding that certain material evidence established as a matter of law that the projection that plaintiff would have received \$2,000 a week from the parts business was unreasonable. The Appellate Division stated that its deter-

mination rendered academic defendant's alternative argument for dismissal.

Freligh v Government Empls. Ins. Co., 152 AD3d 1145, reversed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Claim for Lost Wages

An order granting defendant summary judgment dismissing the complaint was reversed because triable issues of fact existed as to plaintiff's claim for lost wages.

APPEARANCES OF COUNSEL

Basch & Keegan, LLP, Kingston (*Derek J. Spada* of counsel), for appellant.

Thuillez, Ford, Gold, Butler & Monroe, LLP, Albany (*Daisy F. Paglia* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and case remitted to the Appellate Division, Third Department, for consideration of issues raised but not determined on the appeal to that Court (152 AD3d 1145 [3d Dept 2017]). Triable issues of fact exist as to plaintiff's claim for lost wages.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

VLADIMIR AZBEL et al., Appellants, v COUNTY OF NASSAU et al., Respondents.

Submitted June 26, 2017; decided January 9, 2018

Reported below, 149 AD3d 1020.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HUGH CHRISTIE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Decided January 9, 2018

Reported below, 153 AD3d 991.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ROBERT J. CONGEL et al., as Members of the Executive Committee of, and on Behalf of, POUGHKEEPSIE GALLERIA COMPANY, Respondents, v MARC A. MALFITANO, Appellant.

Submitted January 2, 2018; decided January 9, 2018

Reported below, 141 AD3d 64.

Motion by Daniel Kleinberger et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed and the brief submitted in digital format within seven days.

In the Matter of GEORGETTE FLEISCHER, Appellant, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted November 20, 2017; decided January 9, 2018

Reported below, 2017 NY Slip Op 86710(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GALAXY BAR & GRILL CORP., Respondent, v NEW YORK STATE LIQUOR AUTHORITY, Appellant.

Decided January 9, 2018

Reported below, 154 AD3d 476.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

HSBC BANK USA, N.A., Respondent, v CHRISTOPHER N. CROSSLAND, Appellant, et al., Defendants.

Submitted November 6, 2017; decided January 9, 2018

Reported below, 2017 NY Slip Op 86445(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of FRED HUTZENLAUB, Appellant, v DONALD VENETTOZZI, as Acting Director of Special Housing and Inmate Disciplinary Programs, et al., Respondents.

Decided January 9, 2018

Reported below, 153 AD3d 1069.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

CYNTHIA R. INMAN et al., Respondents, v SCARSDALE SHOPPING CENTER ASSOCIATES, LLC, Doing Business as GOLDEN HORSESHOE SHOPPING CENTER, et al., Appellants.

Submitted November 6, 2017; decided January 9, 2018

Reported below, 149 AD3d 1049; 149 AD3d 1051.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming so much of the 2016 Supreme Court order as denied that branch of defendants' motion which was to vacate the 2014 judgment pursuant to CPLR 5015 (a) (2), dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CECILIA LIFSCHITZ, Respondent, v HAIM YOSEF SHARABI et al.,
Appellants, et al., Defendant.

Submitted November 6, 2017; decided January 9, 2018

Reported below, 153 AD3d 1338.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MAZELTOV B., Appellant, v JOSEPH M. et al.,
Respondents.

Submitted November 13, 2017; decided January 9, 2018

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ABDUL
FLYNN, Appellant.

Submitted November 20, 2017; decided January 9, 2018

Reported below, 2017 NY Slip Op 90179(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Criminal Court of the City of New York, New York County (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUDE
FRANCIS, Appellant.

Submitted December 18, 2017; decided January 9, 2018

Reported below, 137 AD3d 91.

Motion by New York State Board of Examiners of Sex Offenders for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ARSHAD
KHAN, Appellant.

Submitted December 11, 2017; decided January 9, 2018

Reported below, 153 AD3d 935.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OTMAN
SIAD, Appellant.

Submitted January 2, 2018; decided January 9, 2018

Reported below, 147 AD3d 465.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

RICHARD RONKESE, Respondent-Appellant, v TILCON NEW YORK,
INC., Appellant-Respondent, et al., Defendants.

Submitted September 18, 2017; decided January 9, 2018

Reported below, 153 AD3d 259; 129 AD3d 1273.

Motion by Tilcon New York, Inc. for leave to appeal dismissed upon the ground that it does not lie, appellant-respondent having previously moved for leave to appeal to this Court from the Appellate Division order from which leave to appeal is currently sought (28 NY3d 1045 [2016]). Motion by Richard Ronkese for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RASHAAD T. RUSSELL, Appellant, v ALAVDDIN DEWAN et al.,
Respondents.

Submitted November 13, 2017; decided January 9, 2018

Reported below, 153 AD3d 1206.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT SHELMEERDINE et al., Respondents, v NANCY MYERS, Appellant.

Submitted December 4, 2017; decided January 9, 2018

Reported below, 143 AD3d 1200.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 29 NY3d 920 (2017)].

In the Matter of SHOREFRONT APARTMENTS, LLC, Respondent, v NELLA MANKO, Appellant, et al., Respondent.

Submitted November 13, 2017; decided January 9, 2018

Reported below, 2017 NY Slip Op 87806(U); 55 Misc 3d 131(A), 2017 NY Slip Op 50420(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

SKANSKA USA BUILDING INC., Appellant, v ATLANTIC YARDS B2 OWNER, LLC, et al., Respondents, et al., Defendants.

Submitted December 18, 2017; decided January 9, 2018

Reported below, 146 AD3d 1.

Motion by New York State Urban Development Corporation etc. et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed and the brief submitted in digital format within seven days.

In the Matter of THOMAS CC., Alleged to be an Incapacitated Person. NEW YORK STATE VETERANS' HOME AT OXFORD, Respondent; THOMAS CC., Respondent; MARK CC., Appellant.

Decided January 9, 2018

Reported below, 2017 NY Slip Op 84428(U).

Appeal, insofar as taken from the portion of the Appellate Division order dismissing the appeal from the January 2016 Supreme Court order, dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the remaining portion of the Appellate Division order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of TALIB W. ABDUR-RASHID, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

In the Matter of SAMIR HASHMI, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 140 AD3d 419.

Motion by New York City Council's Black, Latino and Asian Caucus for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

JENNIFER CANGRO, Appellant, v PARK SOUTH TOWERS ASSOCIATES et al., Respondents.

Decided January 11, 2018

Reported below, 154 AD3d 489.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge FEINMAN taking no part.

EXPRESSIONS HAIR DESIGN et al., Respondents, v ERIC T. SCHNEIDERMAN, in his Official Capacity as Attorney General of the State of New York, et al., Appellants.

Decided January 11, 2018

See 877 F3d 99.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahreny, Garcia, Wilson and Feinman.

GILBANE BUILDING CO./TDX CONSTRUCTION CORP. et al., Appellants, v St. Paul Fire and Marine Insurance Company et al., Defendants, and Liberty Insurance Underwriters, Respondent.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 143 AD3d 146.

Motion by Turner Construction Company for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 142 AD3d 776.

Motion by Motion Picture Association of America, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

LINDSAY LOHAN, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 142 AD3d 776.

Motion by Entertainment Software Association for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

LINDSAY LOHAN, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 142 AD3d 776.

Motion by American Booksellers Association et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

KAREN GRAVANO, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

LINDSAY LOHAN, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 142 AD3d 776.

Motion by Eric M. Freedman et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

KEYSPAN GAS EAST CORPORATION, Appellant, v MUNICH RE-INSURANCE AMERICA, INC., et al., Defendants, and CENTURY INDEMNITY COMPANY, Respondent.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 143 AD3d 86.

Motion by WRG Asbestos PI Trust for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA taking no part.

KEYSPAN GAS EAST CORPORATION, Appellant, v MUNICH RE-INSURANCE AMERICA, INC., et al., Defendants, and CENTURY INDEMNITY COMPANY, Respondent.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 143 AD3d 86.

Motion by United Policyholders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA taking no part.

KEYSPAN GAS EAST CORPORATION, Appellant, v MUNICH RE-INSURANCE AMERICA, INC., et al., Defendants, and CENTURY INDEMNITY COMPANY, Respondent.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 143 AD3d 86.

Motion by New York State Electric & Gas Corporation for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA taking no part.

KEYSPAN GAS EAST CORPORATION, Appellant, v MUNICH RE-INSURANCE AMERICA, INC., et al., Defendants, and CENTURY INDEMNITY COMPANY, Respondent.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 143 AD3d 86.

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFiore and Judge Garcia taking no part.

In the Matter of HERBERT LEVY, Appellant, v BARBARA JAFFEE et al., Respondents.

Decided January 11, 2018

Reported below, 153 AD3d 1173.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFiore taking no part.

LINDSAY LOHAN, Appellant, v TAKE-TWO INTERACTIVE SOFTWARE, INC., et al., Respondents.

Submitted January 8, 2018; decided January 11, 2018

Reported below, 142 AD3d 776.

Motion by Motion Picture Association of America, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

THERESA WARREN, Respondent, v AMCHEM PRODUCTS, INC., et al., Defendants, and J-M MANUFACTURING COMPANY, INC., Appellant.

Submitted November 6, 2017; decided January 11, 2018

Reported below, 151 AD3d 550.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of JOSE PALACIOS, Appellant, v MADELINE SINGAS
et al., Respondents.

Decided January 11, 2018

Reported below, 153 AD3d 1416.

Appeal dismissed without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROSS
CAMPBELL, Appellant.

Submitted December 11, 2017; decided January 11, 2018

Reported below, 131 AD3d 882.

Motion for reargument denied [*see* 30 NY3d 941 (2017)]. Mo-
tion for poor person relief dismissed as academic.

RELIABLE ABSTRACT Co., LLC, Respondent, v 45 JOHN LOFTS,
LLC, et al., Defendants, and CHAIM MILLER, Also Known
as HARRY MILLER, Appellant.

Submitted November 13, 2017; decided January 11, 2018

Reported below, 152 AD3d 429.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

RISK CONTROL ASSOCIATES INSURANCE GROUP, Appellant, v MA-
LOOF, LEBOWITZ, CONNAHAN & OLESKE, P.C., et al., Respon-
dents.

Submitted November 6, 2017; decided January 11, 2018

Reported below, 151 AD3d 527.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

JOSEPH A.F. SADOWSKI, Appellant, v DAVID W. HARMON, Respondent. WENDY K. CARDALI, Nonparty Respondent.

Submitted October 23, 2017; decided January 11, 2018

Reported below, 2017 NY Slip Op 86180(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of THEODORE SIMPSON, Appellant, v A. RODRIGUEZ, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted December 4, 2017; decided January 11, 2018

Reported below, 149 AD3d 1448.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of PHILIP WILLIAMS, Appellant, v APPEALS BOARD OF ADMINISTRATIVE ADJUDICATION BUREAU, STATE DEPARTMENT OF MOTOR VEHICLES, et al., Respondents.

Decided January 11, 2018

Reported below, 153 AD3d 1419.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2017 through December 31, 2017)

People v Adams	1st Dept: 154 AD3d 519 (NY)	denied 12/27/17 (Rivera, J.)
People v Agyepong	2d Dept: 153 AD3d 1268 (Queens)	denied 12/1/17 (Stein, J.)
People v Ahmemulic	1st Dept: 154 AD3d 406 (NY)	denied 12/4/17 (Rivera, J.)
People v Aikey	4th Dept: 153 AD3d 1603 (Ontario)	denied 12/13/17 (Garcia, J.)
People v Anonymous	1st Dept: 154 AD3d 586 (NY)	denied 12/21/17 (Fahey, J.)
People v Bacquie	2d Dept: 154 AD3d 648 (Queens)	withdrawn 12/1/17 (Feinman, J.)
People v Barrett	4th Dept: 153 AD3d 1600 (Allegany)	denied 12/28/17 (Feinman, J.)
People v Baugh	App Div, 2d Dept: 2017 NY Slip Op 86495(U) (Queens)	dismissed 12/21/17 (Garcia, J.)
People v Bedgood	County Ct, 9/19/17 (Erie)	denied 12/21/17 (Garcia, J.)
People v Belizair	App Term, 1st Dept: 57 Misc 3d 135(A) (NY)	denied 12/20/17 (DiFiore, Ch. J.)
People v Belizaire	App Term, 1st Dept: 57 Misc 3d 135(A) (NY)	denied 12/20/17 (DiFiore, Ch. J.)
People v Black	App Div, 3d Dept: 2017 NY Slip Op 86057(U) (Albany)	denied 12/21/17 (Fahey, J.)
People v Bowman	App Div, 4th Dept, 10/3/17 (Jefferson)	dismissed 12/27/17 (Rivera, J.)
People v Brigandi	App Term, 2d Dept, 9th & 10th Jud Dists: 57 Misc 3d 5 (Suffolk)	denied 12/13/17 (Fahey, J.)
People v Brown (David)	1st Dept: 154 AD3d 435 (Bronx)	denied 12/4/17 (Stein, J.)
People v Brown (Maurice)	2d Dept: 153 AD3d 1360 (Queens)	denied 12/13/17 (Garcia, J.)
People v Brunner	1st Dept: 151 AD3d 651 (NY)	denied 12/13/17 (Garcia, J.)
People v Burgan	1st Dept: 152 AD3d 401 (Bronx)	denied reconsideration 12/30/17 (DiFiore, Ch. J.)
People v Burno	App Div, 2d Dept: 2017 NY Slip Op 81313(U) (Nassau)	denied reconsideration 12/11/17 (DiFiore, Ch. J.)
People v Cabral	1st Dept: 154 AD3d 545 (Bronx)	denied 12/27/17 (Rivera, J.)
People v Cahill	4th Dept: 153 AD3d 1674 (Onondaga)	denied 12/11/17 (DiFiore, Ch. J.)

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People v Carter (James)	App Div, 2d Dept: 2017 NY Slip Op 75531(U) (Queens)	denied reconsideration 12/21/17 (Garcia, J.)
People v Carter (Richard)	2d Dept: 153 AD3d 1269 (Queens)	denied 12/20/17 (Fahey, J.)
People v Castro	2d Dept: 149 AD3d 862 (Kings)	denied 12/29/17 (Fahey, J.)
People v Cehfus	4th Dept: 140 AD3d 1644 (Onondaga)	denied 12/30/17 (DiFiore, Ch. J.)
People v Cintron	1st Dept: 155 AD3d 459 (Bronx)	denied 12/20/17 (Wilson, J.)
People v Clapper	3d Dept: 153 AD3d 1452 (Schenectady)	denied 12/13/17 (Garcia, J.)
People v Cole	App Div, 4th Dept, 9/25/17 (Erie)	dismissed 12/27/17 (Rivera, J.)
People v Cooper	2d Dept: 155 AD3d 766 (Kings)	denied 12/30/17 (DiFiore, Ch. J.)
People v Cornelius	1st Dept: 154 AD3d 543 (NY)	denied 12/13/17 (Fahey, J.)
People v Cosey	App Div, 1st Dept: 2017 NY Slip Op 86362(U) (NY)	dismissed 12/4/17 (Rivera, J.)
People v Cotton	4th Dept: 153 AD3d 1580 (Monroe)	denied 12/28/17 (Feinman, J.)
People v Crooks	App Term, 1st Dept: 57 Misc 3d 140(A) (NY)	denied 12/21/17 (Garcia, J.)
People v Cruz (Alex)	2d Dept: 153 AD3d 1271 (Westchester)	denied 12/1/17 (Feinman, J.)
People v Cruz (James)	1st Dept: 154 AD3d 429 (Bronx)	denied* 12/11/17 (Rivera, J.)
People v D'Attore	App Div, 1st Dept: 2017 NY Slip Op 66018(U) (Bronx)	denied reconsideration 12/15/17 (Wilson, J.)
People v Davis (Robert)	4th Dept: 153 AD3d 1673 (Onondaga)	denied 12/21/17 (Garcia, J.)
People v Davis (Scott)	4th Dept: 153 AD3d 1617 (Herkimer)	denied 12/21/17 (Garcia, J.)
People v Deverow	2d Dept: 153 AD3d 550 (Queens)	denied 12/21/17 (DiFiore, Ch. J.)
People v Dibel	App Term, 1st Dept: 2017 NY Slip Op 81782(U) (NY)	denied 12/11/17 (Fahey, J.)
People v Domena	1st Dept: 154 AD3d 528 (Bronx)	denied 12/11/17 (Stein, J.)
People v Dominguez	2d Dept: 154 AD3d 873 (Queens)	denied 12/11/17 (Stein, J.)
People v Dotsenko	2d Dept: 150 AD3d 1146 (Kings)	denied 12/20/17 (DiFiore, Ch. J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Cisse* (149 AD3d 435 [2017]), *lv granted* 29 NY3d 1124 [2017]).

People v Dudley	2d Dept: 151 AD3d 878 (Queens)	denied 12/19/17 (Rivera, J.)
People v Evangelista	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 12/18/17 (Wilson, J.)
People v Fairclough	App Term, 1st Dept: 57 Misc 3d 141(A) (NY)	denied 12/1/17 (Stein, J.)
People v Fantauzzi	1st Dept: 154 AD3d 588 (NY)	denied 12/21/17 (Fahey, J.)
People v Fermin	2d Dept: 150 AD3d 876 (Queens)	denied 12/29/17 (Fahey, J.)
People v Forbes	App Term, 1st Dept: 57 Misc 3d 141(A) (Bronx)	denied 12/19/17 (Wilson, J.)
People v Foster (Kevin)	2d Dept: 153 AD3d 1429 (Dutchess)	denied 12/11/17 (Fahey, J.)
People v Foster (Shanice)	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 12/13/17 (Fahey, J.)
People v Furman	3d Dept: 152 AD3d 870 (Montgomery)	denied 12/30/17 (DiFiore, Ch. J.)
People v Gabriel	App Div, 3d Dept: 2017 NY Slip Op 83790(U) (Rensselaer)	dismissed 12/12/17 (Wilson, J.)
People v Gadson	1st Dept: 154 AD3d 411 (NY)	denied 12/13/17 (Garcia, J.)
People v Gega	2d Dept: 153 AD3d 1362 (Westchester)	denied 12/18/17 (Wilson, J.)
People v Goddard	App Term, 1st Dept: 57 Misc 3d 139(A) (NY)	denied 12/13/17 (Garcia, J.)
People v Gomez	2d Dept: 153 AD3d 724 (Queens)	denied 12/28/17 (Feinman, J.)
People v Goodman	2d Dept: 153 AD3d 1362 (Kings)	denied 12/18/17 (Fahey, J.)
People v Gowdy	App Term, 1st Dept: 2017 NY Slip Op 82346(U) (NY)	denied 12/12/17 (Wilson, J.)
People v Graham	4th Dept: 153 AD3d 1634 (Monroe)	denied 12/1/17 (Feinman, J.)
People v Green	2d Dept: 153 AD3d 1363 (Dutchess)	denied 12/20/17 (Fahey, J.)
People v Griffin	4th Dept: 153 AD3d 1674 (Monroe)	denied 12/13/17 (Garcia, J.)
People v Gurdon	2d Dept: 153 AD3d 1430 (Queens)	denied 12/13/17 (Fahey, J.)
People v Habersham	1st Dept: 154 AD3d 409 (NY)	denied 12/13/17 (Garcia, J.)
People v Hailey	4th Dept: 153 AD3d 1639 (Erie)	denied 12/1/17 (Feinman, J.)
People v Harbison	2d Dept: 154 AD3d 715 (Suffolk)	denied 12/15/17 (Wilson, J.)
People v Harris	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 129(A) (Queens)	denied 12/13/17 (Garcia, J.)
People v Harrison	2d Dept: 153 AD3d 1277 (Queens)	denied 12/12/17 (Wilson, J.)

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People v Herrera	1st Dept: 153 AD3d 1173 (NY)	denied 12/21/17 (Garcia, J.)
People v Herring	App Div, 4th Dept, 10/2/17 (Monroe)	dismissed 12/27/17 (Stein, J.)
People v Hicks	1st Dept: 154 AD3d 547 (NY)	denied 12/13/17 (Garcia, J.)
People v Hollenbeck	3d Dept: 152 AD3d 974 (Madison)	denied 12/15/17 (Fahey, J.)
People v Hook	App Div, 3d Dept: 2017 NY Slip Op 88223(U) (Warren)	dismissed 12/11/17 (Fahey, J.)
People v Hoover	County Ct, 8/4/17 (Albany)	denied 12/12/17 (Wilson, J.)
People v Hopper	3d Dept: 153 AD3d 1045 (St. Lawrence)	denied 12/11/17 (Fahey, J.)
People v Hutter	2d Dept: 154 AD3d 776 (Suffolk)	denied 12/19/17 (Wilson, J.)
People v Illescas	2d Dept: 150 AD3d 1263 (Westchester)	denied 12/4/17 (Wilson, J.)
People v James	1st Dept: 154 AD3d 589 (NY)	denied 12/29/17 (Fahey, J.)
People v Johnson (Marvin)	1st Dept: 154 AD3d 590 (NY)	denied 12/18/17 (DiFiore, Ch. J.)
People v Johnson (Trevis)	3d Dept: 153 AD3d 1047 (Broome)	denied 12/8/17 (DiFiore, Ch. J.)
People v Jones (Dameon)	1st Dept: 154 AD3d 511 (NY)	denied 12/21/17 (Garcia, J.)
People v Jones (Michael)	2d Dept: 153 AD3d 727 (Kings)	denied 12/1/17 (Feinman, J.)
People v Jordan (Jamel)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 139(A) (Richmond)	denied 12/28/17 (Feinman, J.)
People v Jordan (Shareff)	2d Dept: 153 AD3d 1433 (Kings)	denied 12/1/17 (Feinman, J.)
People v Kai	App Div, 3d Dept: 2017 NY Slip Op 86057(U) (Albany)	denied 12/21/17 (Fahey, J.)
People v Kaval	2d Dept: 154 AD3d 875 (Queens)	denied 12/11/17 (Fahey, J.)
People v Larkins	4th Dept: 153 AD3d 1584 (Cayuga)	denied 12/20/17 (DiFiore, Ch. J.)
People v Little	2d Dept: 154 AD3d 780 (Kings)	denied 12/20/17 (DiFiore, Ch. J.)
People v Lopez-Miralles	2d Dept: 153 AD3d 936 (Nassau)	denied 12/7/17 (Wilson, J.)
People v Lowery	2d Dept: 150 AD3d 890 (Queens)	denied 12/29/17 (Fahey, J.)
People v Lozada	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 12/13/17 (Garcia, J.)
People v Lugo	1st Dept: 154 AD3d 515 (Bronx)	denied 12/13/17 (Fahey, J.)

People v Mackson	2d Dept: 154 AD3d 780 (Dutchess)	denied 12/27/17 (Stein, J.)
People v Maloy	App Div, 3d Dept: 2017 NY Slip Op 73662(U) (Sullivan)	denied 12/12/17 (Wilson, J.)
People v Martinez	App Div, 1st Dept: 2017 NY Slip Op 67174(U) (NY)	dismissed 12/12/17 (Wilson, J.)
People v Masi	3d Dept: 151 AD3d 1389 (Chemung)	denied 12/11/17 (Fahey, J.)
People v Matthan	1st Dept: 154 AD3d 486 (NY)	denied 12/8/17 (DiFiore, Ch. J.)
People v Mattis	App Term, 1st Dept: 57 Misc 3d 141(A) (NY)	denied 12/8/17 (DiFiore, Ch. J.)
People v Maxwell	2d Dept: 152 AD3d 622 (Kings)	denied 12/4/17 (Wilson, J.)
People v McClain	1st Dept: 154 AD3d 531 (Bronx)	denied 12/27/17 (Rivera, J.)
People v McCullough	4th Dept: 153 AD3d 1674 (Monroe)	denied 12/21/17 (Garcia, J.)
People v McDermott	2d Dept: 154 AD3d 881 (Kings)	denied 12/27/17 (Rivera, J.)
People v McMillan	1st Dept: 153 AD3d 1207 (NY)	denied 12/27/17 (Rivera, J.)
People v McNeil	1st Dept: 154 AD3d 554 (NY)	denied 12/19/17 (Wilson, J.)
People v Mejia	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 12/11/17 (Stein, J.)
People v Miller	4th Dept: 153 AD3d 1652 (Orleans)	denied 12/21/17 (Garcia, J.)
People v Mills	App Div, 2d Dept: 2017 NY Slip Op 85672(U) (Queens)	dismissed 12/28/17 (Feinman, J.)
People v Moya	1st Dept: 154 AD3d 546 (NY)	denied 12/30/17 (DiFiore, Ch. J.)
People v Narine	2d Dept: 153 AD3d 1280 (Queens)	denied 12/21/17 (DiFiore, Ch. J.)
People v Negron	2d Dept: 150 AD3d 764 (Kings)	denied 12/4/17 (Stein, J.)
People v Newkirk	1st Dept: 154 AD3d 450 (NY)	denied 12/18/17 (Wilson, J.)
People v Ortega	App Div, 2d Dept: 2017 NY Slip Op 85365(U) (Queens)	dismissed 12/1/17 (Feinman, J.)
People v Ortiz (Antonio)	4th Dept: 153 AD3d 1618 (Monroe)	denied 12/28/17 (Feinman, J.)
People v Ortiz (James)	2d Dept: 153 AD3d 1434 (Kings)	denied 12/1/17 (Feinman, J.)
People v Pagan	1st Dept: 154 AD3d 449 (NY)	denied 12/21/17 (Garcia, J.)
People v Paulino	1st Dept: 154 AD3d 508 (NY)	denied 12/27/17 (Stein, J.)

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People v Perez	1st Dept: 154 AD3d 428 (Bronx)	denied 12/11/17 (Fahey, J.)
People v Place	3d Dept: 152 AD3d 976 (Saratoga)	denied 12/1/17 (Wilson, J.)
People v Pottorff	3d Dept: 145 AD3d 1095 (Cortland)	denied 12/15/17 (Wilson, J.)
People v Ragbirsingh	2d Dept: 153 AD3d 858 (Kings)	denied 12/13/17 (Garcia, J.)
People v Ramirez	App Term, 1st Dept: 57 Misc 3d 135(A) (Bronx)	denied 12/18/17 (Fahey, J.)
People v Ramsaran	3d Dept: 154 AD3d 1051 (Chenango)	denied 12/29/17 (Fahey, J.)
People v Reed	2d Dept: 153 AD3d 1434 (Nassau)	denied 12/1/17 (Feinman, J.)
People v Reyes	1st Dept: 154 AD3d 545 (Bronx)	denied 12/11/17 (Stein, J.)
People v Rivera	2d Dept: 152 AD3d 625 (Westchester)	denied 12/1/17 (Stein, J.)
People v Rivers	3d Dept: 152 AD3d 1054 (Essex)	denied 12/13/17 (Garcia, J.)
People v Roberts	2d Dept: 153 AD3d 944 (Kings)	denied 12/5/17 (Feinman, J.)
People v Rodriguez	2d Dept: 154 AD3d 885 (Queens)	denied 12/30/17 (DiFiore, Ch. J.)
People v Romero	2d Dept: 153 AD3d 1285 (Queens)	denied 12/18/17 (Wilson, J.)
People v Santos	1st Dept: 154 AD3d 610 (Bronx)	denied 12/27/17 (Stein, J.)
People v Schrock	4th Dept: 153 AD3d 1674 (Cattaraugus)	denied 12/1/17 (Feinman, J.)
People v Scott	App Div, 3d Dept: 2017 NY Slip Op 86057(U) (Albany)	denied 12/21/17 (Fahey, J.)
People v Simmon	4th Dept: 153 AD3d 1601 (Genesee)	denied 12/19/17 (Wilson, J.)
People v Simmons	4th Dept: 153 AD3d 1601 (Genesee)	denied 12/19/17 (Wilson, J.)
People v Simpson	2d Dept: 151 AD3d 762 (Queens)	denied 12/21/17 (DiFiore, Ch. J.)
People v Smith (Bernard)	2d Dept: 154 AD3d 714 (Rockland)	denied 12/1/17 (Feinman, J.)
People v Smith (Kenneth)	2d Dept: 153 AD3d 1436 (Kings)	denied 12/13/17 (Fahey, J.)
People v Sosa	App Term, 1st Dept: 57 Misc 3d 129(A) (NY)	denied 12/8/17 (Wilson, J.)
People v Sparagano	2d Dept: 153 AD3d 1367 (Suffolk)	denied 12/27/17 (Stein, J.)
People v Spigner	2d Dept: 153 AD3d 1289 (Queens)	denied 12/13/17 (Garcia, J.)

People v Streeter (Parish)	4th Dept: 142 AD3d 1401 (Niagara)	denied reconsideration 12/20/17 (DiFiore, Ch. J.)
People v Streeter (Parish)	4th Dept: 141 AD3d 1124 (Niagara)	denied reconsideration 12/20/17 (DiFiore, Ch. J.)
People v Stuart (Dane)	2d Dept: 154 AD3d 787 (Kings)	denied 12/28/17 (Feinman, J.)
People v Stuart (Duane)	2d Dept: 154 AD3d 787 (Kings)	denied 12/28/17 (Feinman, J.)
People v Suarez	App Term, 1st Dept: 57 Misc 3d 141(A) (NY)	denied 12/20/17 (DiFiore, Ch. J.)
People v Sullivan	3d Dept: 153 AD3d 1519 (Albany)	denied 12/1/17 (Feinman, J.)
People v Taylor	3d Dept: 153 AD3d 1524 (Broome)	denied 12/1/17 (Feinman, J.)
People v Thomas (Brian)	1st Dept: 154 AD3d 623 (NY)	denied 12/27/17 (Rivera, J.)
People v Thomas (Harvey)	3d Dept: 153 AD3d 1445 (Columbia)	denied 12/15/17 (Wilson, J.)
People v Thomas (Michael)	2d Dept: 153 AD3d 860 (Kings)	granted 12/18/17 (Rivera, J.)
People v Toney	4th Dept: 153 AD3d 1583 (Orleans)	denied 12/21/17 (Garcia, J.)
People v Torres	2d Dept: 151 AD3d 767 (Orange)	denied reconsideration 12/11/17 (DiFiore, Ch. J.)
People v Tortorice	4th Dept: 153 AD3d 1675 (Monroe)	denied 12/4/17 (Wilson, J.)
People v Trotman	1st Dept: 154 AD3d 581 (Bronx)	denied 12/20/17 (Wilson, J.)
People v Valerio	2d Dept: 154 AD3d 887 (Queens)	denied 12/28/17 (Feinman, J.)
People v Vargas	1st Dept: 154 AD3d 603 (Bronx)	denied 12/11/17 (Stein, J.)
People v Vazquez	2d Dept: 153 AD3d 1369 (Kings)	denied 12/18/17 (DiFiore, Ch. J.)
People v Ventura	1st Dept: 154 AD3d 443 (NY)	denied 12/11/17 (Stein, J.)
People v Vullo	4th Dept: 153 AD3d 1630 (Ontario)	denied 12/13/17 (Garcia, J.)
People v Walters (Vincent)	4th Dept: 153 AD3d 1629 (Monroe)	denied 12/18/17 (DiFiore, Ch. J.) (Appeal No. 1)
People v Walters (Vincent)	4th Dept: 153 AD3d 1630 (Monroe)	denied 12/18/17 (DiFiore, Ch. J.) (Appeal No. 2)

MEMORANDA

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People v White (Giovanni)	1st Dept: 154 AD3d 495 (NY)	denied 12/27/17 (Stein, J.)
People v White (Joseph)	3d Dept: 154 AD3d 1012 (Schenectady)	denied 12/19/17 (Wilson, J.)
People v White (Oscar)	2d Dept: 153 AD3d 1369 (Queens)	denied 12/1/17 (Stein, J.)
People v White (Quinntarius)	4th Dept: 153 AD3d 1565 (Monroe)	denied 12/4/17 (Rivera, J.)
People v Whitfield	1st Dept: 153 AD3d 1198 (NY)	denied 12/28/17 (Feinman, J.)
People v Williams (Michael)	1st Dept: 154 AD3d 497 (NY)	denied 12/13/17 (Fahey, J.)
People v Williams (Reginald)	1st Dept: 154 AD3d 552 (NY)	denied 12/11/17 (Stein, J.)
People v Wilson (Harry)	App Div, 2d Dept: 2017 NY Slip Op 80256(U) (Kings)	denied reconsideration 12/15/17 (Feinman, J.)
People v Wilson (Michael)	App Div, 1st Dept: 2017 NY Slip Op 86359(U) (Bronx)	dismissed 12/27/17 (Stein, J.)
People v Wright	3d Dept: 154 AD3d 1015 (Warren)	denied 12/29/17 (Fahey, J.)
People v Yates	1st Dept: 154 AD3d 416 (NY)	denied 12/1/17 (Stein, J.)
People v Young	4th Dept: 153 AD3d 1618 (Onondaga)	denied 12/13/17 (Garcia, J.)
People v Zalevsky	2d Dept: 154 AD3d 977 (Kings)	denied 12/27/17 (Stein, J.)
People v Zayas Torres	App Div, 3d Dept: 2017 NY Slip Op 88930(U) (Albany)	dismissed 12/11/17 (DiFiore, Ch. J.)

[91 NE3d 1234, 69 NYS3d 255]

In the Matter of ERICKA BOLT, Respondent, v NEW YORK CITY
DEPARTMENT OF EDUCATION, Appellant.

In the Matter of AMIRA BEATTY, Respondent, v CITY OF NEW
YORK et al., Appellants.

In the Matter of TERRELL WILLIAMS, Respondent, v CITY OF
NEW YORK et al., Appellants.

Decided January 9, 2018

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission
of the Appellate Division of the Supreme Court in the First

Judicial Department, from an order of that Court, entered December 6, 2016. The Appellate Division modified, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Joan M. Kenney, J.; op 2015 NY Slip Op 30683[U] [2015]), entered in a proceeding pursuant to CPLR article 75, which had (1) granted the petition to vacate an arbitrator's opinion and award terminating petitioner's employment with respondent based on her misconduct with respect to specifications 2 and 3 (a), (b), (c) and (d); (2) confirmed the arbitrator's opinion and award with respect to specification 1, which the arbitrator dismissed; and (3) denied respondent's cross motion to dismiss the petition. The modification consisted of confirming the arbitrator's determination that petitioner was guilty as charged in specifications 2 and 3 (a), (b), (c) and (d), and remanding the matter to respondent for imposition of a lesser penalty. The Appellate Division affirmed the order and judgment as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order and judgment (one paper) of the Supreme Court, properly made?"

APPEAL, in the second above-entitled proceeding, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 2, 2017. The Appellate Division (1) reversed, on the facts, an order and judgment (one paper) of the Supreme Court, New York County (Margaret A. Pui Yee Chan, J.; op 2015 NY Slip Op 31254[U] [2015]), entered in a proceeding pursuant to CPLR article 75, which had (a) granted respondents' cross motion to deny the petition seeking to vacate a penalty imposed in an arbitration award; (b) denied the petition; and (c) dismissed the proceeding; (2) granted the petition; and (3) remanded the matter to respondent New York City Department of Education for imposition of a lesser penalty. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order and judgment (one paper) of the Supreme Court, properly made?"

APPEAL, in the third above-entitled proceeding, by permission of the Court of Appeals, from an arbitration award dated February 10, 2017, as corrected February 16, 2017. The hearing officer, appointed to hear and decide on the appropriate penalty for disciplinary action against petitioner on remand from the Appellate Division, First Department, suspended petitioner's employment for three years and six months. The

appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 27, 2016. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Frank P. Nervo, J.), entered in a proceeding pursuant to CPLR article 75, which had (a) denied the petition to vacate the part of the arbitration award dated October 29, 2013, terminating petitioner's employment as a tenured school teacher; (b) granted the cross motion to dismiss the proceeding; and (c) dismissed the proceeding; (2) granted the petition; and (3) remanded the matter to respondents for imposition of a lesser penalty.

Matter of Bolt v New York City Dept. of Educ., 145 AD3d 450, reversed.

Matter of Beatty v City of New York, 148 AD3d 413, reversed.

Matter of Williams v City of New York, 142 AD3d 901, reversed.

HEADNOTE

Schools — Teachers — Termination of Employment — Judicial Review

In proceedings pursuant to CPLR article 75 seeking to vacate arbitration awards terminating petitioner teachers' employment, the Appellate Division exceeded its authority by reweighing the evidence and substituting its judgment for that of the hearing officer. That reasonable minds might disagree over what the proper penalty should have been did not provide a basis for vacating the arbitral award or refashioning the penalty. The penalties imposed were not irrational and did not shock the conscience.

APPEARANCES OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Melanie T. West, Richard Dearing* and *Deborah A. Brenner* of counsel), for appellant in the first above-entitled proceeding.

The Law Offices of Richard J. Washington, P.C., New York City (*Richard J. Washington* of counsel), for respondent in the first above-entitled proceeding.

Zachary W. Carter, Corporation Counsel, New York City (*Kathy Chang Park* and *Richard Dearing* of counsel), for appellants in the second and third above-entitled proceedings.

Glass Krakower LLP, New York City (*Bryan D. Glass* of counsel), for respondent in the second and third above-entitled proceedings.

OPINION OF THE COURT

MEMORANDUM.

In *Matter of Bolt v New York City Dept. of Educ.* and *Matter of Beatty v City of New York*, the order of the Appellate Division should be reversed, with costs, respondents' cross motion to dismiss the petition granted, and the certified question answered in the negative; in *Matter of Williams v City of New York*, the arbitral award appealed from and the Appellate Division order brought up for review should be reversed, with costs, and the judgment of Supreme Court, New York County, dismissing the proceeding reinstated.

"That reasonable minds might disagree over what the proper penalty should have been does not provide a basis for vacating the arbitral award or refashioning the penalty" (*City School Dist. of the City of N.Y. v McGraham*, 17 NY3d 917, 920 [2011]). Here, the penalties imposed are not irrational and do not shock the conscience (see *Matter of Russo v New York City Dept. of Educ.*, 25 NY3d 946, 948 [2015], *cert denied* 577 US —, 136 S Ct 416 [2015]; *Matter of Kelly v Safir*, 96 NY2d 32, 38 [2001]; *Matter of Featherstone v Franco*, 95 NY2d 550, 554 [2000]; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233 [1974]). The Appellate Division exceeded its authority by reweighing the evidence and substituting its judgment for that of the hearing officer.

RIVERA, J. (concurring). I agree with my colleagues that the Appellate Division orders should be reversed because in all three appeals the Court exceeded its authority and substituted its own judgment for that of the hearing officer (majority op at 1068). There is no dispute that these appeals require the application of settled law to the facts of each case. There is no doctrinal complexity or novel issue presented in these appeals that cannot be resolved by reference to existing precedent. The Court is unanimous in its conclusion that under our well-established standards, the administrative sanctions are not irrational and do not "shock the conscience," and therefore the court may not disturb the penalties imposed (see *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 240 [1974]).

Under other circumstances I would have no cause to write separately. Certainly, there is an argument to be made that brevity of analysis coupled with a solid reversal is sufficient

comment on an obvious misapplication of the law. Nevertheless, because the Appellate Division analyses in these appeals are so clearly at odds with uncontroversial, established legal standards, and because respondent Department of Education compellingly argues this Court should clarify the scope of review to avoid judicial overreach in school disciplinary cases, it appears that full articulation of applicable standards is in order. Rearticulating our jurisprudence should eliminate any possible misunderstanding as to the Appellate Division's review of administrative sanctions, and reaffirm the high degree of impropriety and affront to our sense of fairness required to "shock the conscience."

I. Judicial Review of Administrative Sanctions

Judicial review of an administrative disciplinary determination is statutorily and constitutionally defined (*see* CPLR 7803, 7511; NY Const, art VI, § 3). We have repeatedly explained in CPLR article 78 proceedings that contrary to the Appellate Division's general broad jurisdiction, its review of administrative sanctions is circumscribed and no greater than our own. Thus, "the Appellate Division lacks any discretionary authority or interest of justice jurisdiction in reviewing the penalty imposed" by an administrative entity (*Matter of Featherstone v Franco*, 95 NY2d 550, 554 [2000]). Instead, like this Court, the Appellate Division's "review of an administrative penalty is limited to whether the measure or mode of penalty or discipline imposed constitutes an abuse of discretion as a matter of law" (*Matter of Kelly v Safir*, 96 NY2d 32, 38 [2001]; *Featherstone*, 95 NY2d at 554; CPLR 7803 [3]). Further, "Education Law § 3020-a (5) limits judicial review of a hearing officer's determination to the grounds set forth in CPLR 7511," and "[w]here, as here, parties are subject to compulsory arbitration, the award . . . 'must have evidentiary support and cannot be arbitrary and capricious'" (*City School Dist. of the City of N.Y. v McGraham*, 17 NY3d 917, 919 [2011] [citation omitted]). Significantly, an award is not arbitrary and capricious or irrational simply because there are differing views as to the appropriate sanction. "That reasonable minds might disagree over what the proper penalty should have been does not provide a basis for vacating the arbitral award or refashioning the penalty" (*id.* at 920).

Against this backdrop, the Court and the Appellate Division have uniformly reviewed administrative penalties under the standard set forth in *Pell*, which provides that "[u]nless an ir-

rationality appears or the punishment shocks one's conscience, sanctions imposed by an administrative agency should be upheld" (*Pell*, 34 NY2d at 240). The Court has characterized the standard as "rigorous" (*Featherstone*, 95 NY2d at 554). "[T]he test is whether such punishment is so disproportionate to the offense, in the light of all the circumstances, as to be shocking to one's sense of fairness" (*Pell* at 233 [internal quotation marks omitted]). This "calculus involves consideration of whether the impact of the penalty on the individual is so severe that it is disproportionate to the misconduct, or to the harm to the agency or the public in general" (*Kelly*, 96 NY2d at 38).

The phrase "shocking to one's sense of fairness," must by its nature "reflect[] a purely subjective response to the situation presented" (*Pell*, 34 NY2d at 234). While "such language reflects difficulty in articulating an objective standard . . . , by the impact of sufficient instances, a more analytical and articulated standard evolves" (*id.*). In light of this developing standard, the Court has adopted normative measures to guide judicial review in determining whether a sanction is an affront to our sense of fairness. At a minimum:

"a result is shocking to one's sense of fairness if the sanction imposed is so grave in its impact on the individual subjected to it that it is disproportionate to the misconduct, incompetence, failure or turpitude of the individual, or to the harm or risk of harm to the agency or institution, or to the public generally visited or threatened by the derelictions of the individuals. Additional factors would be the prospect of deterrence of the individual or of others in like situations, and therefore a reasonable prospect of recurrence of derelictions by the individual or persons similarly employed. There is also the element that the sanctions reflect the standards of society to be applied to the offense involved. Thus, for a single illustrative contrast, habitual lateness or carelessness, resulting in substantial monetary loss, by a lesser employee, will not be as seriously treated as an offense as morally grave as larceny, bribery, sabotage, and the like, although only small sums of money may be involved" (*id.* at 234-235).

This Court's recognition of societal standards as a factor in determining whether a sanction exceeds the bounds of acceptable punishment for misconduct in the administrative context

should not be misread. It was never meant as an invitation to a reviewing court to supplant the hearing officer's determination as to the sanction appropriate to the misconduct based on the factual record and considered in light of the duties charged to the agency and its administrative goals (*id.* at 232, citing *Matter of Diocese of Rochester v Planning Bd. of Town of Brighton*, 1 NY2d 508, 520 [1956]).

Thus, under *Pell*, the mere fact that a penalty is harsh, and imposes severe consequences on an individual, does not so affront our sense of fairness that it shocks the conscience, unless it is obviously disproportionate to the misconduct and in contravention of the public interest and policy reflected by the agency's mission. For example, in *Matter of Ward v City of New York* (23 NY3d 1046 [2014]), this Court held that the revocation of petitioner's master plumbing license, upon a finding that she violated the New York City Building Code in supervising a worker outside of her employ or direct supervision for a portion of a project, did not shock the conscience, despite the license being her sole means of livelihood, her unblemished record for a decade, a lack of harm to the public or any agency, and her acknowledgment of the potential for harm when she notified the owner that the worker's performance was inadequate and proposed her team fix the violation. Similarly, in *Matter of Lozinak v Board of Educ. of the Williamsville Cent. Sch. Dist.* (24 NY3d 1048, 1049 [2014]), this Court reversed the Appellate Division, and held that the termination of a school administrative officer who used interoffice mail to send prescription pills left over from her knee surgery to another school employee with shoulder pain did not shock the conscience, despite the officer's 26 years of unblemished service and positive performance evaluations. In contrast, this Court concluded in *Matter of Principe v New York City Dept. of Educ.* (20 NY3d 963 [2012]) that dismissal was an excessive penalty that shocked the conscience where the hearing officer had an apparent bias against the teacher and failed to consider the teacher's testimony and unblemished record, and the teacher was responding to threatening situations without premeditation in order to protect other students and faculty members while acting within his role as dean of discipline, a role to which he had recently been promoted. As these cases illustrate, the court's review is limited to considering the proportionality of the sanction to the individual's misconduct, including the potential impact on the agency and its interest in deterrence, and

whether the sanction appears to minimize or trivialize the individual's conduct.

"Moreover, in every case there must be sensitive distinction among agencies based upon their responsibilities to the public" (*Pell*, 34 NY2d at 241). That directive is of particular relevance to these appeals, because the Department of Education (DOE) operates the nation's largest public school system and is entrusted with the education of over one million children. DOE's professional teaching staff is primarily responsible for preparing their students for "meaningful civic participation in contemporary society" (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893, 905 [2003]), and these educators serve as role models and mentors. Certainly, public education is a matter of significant public interest, and those charged with preparing future generations are accorded appropriate deference to their expertise and assessment of how best to address misconduct affecting DOE's educational mission and core principles (*Matter of Harris v Mechanicville Cent. School Dist.*, 45 NY2d 279, 285 [1978]). In fact, the Court has been reticent to opine on the precise sanction appropriate for misconduct in "matter[s] involving both internal discipline and an understandable concern for the reactions of parents in the school district, areas in which the board [of education] possesses special sensitivity" (*id.*). Indeed, as the Court has acknowledged with respect to administrative sanctions, "it is the agency and not the courts which, before the public, must justify the integrity and efficiency of their operations" (*Pell*, 34 NY2d at 235).

Applying these legal principles to the three appeals at issue here, and with a full appreciation of the narrow confines of judicial review of administrative penalties, it is abundantly clear that the sanctions awarded in each case are not irrational and do not shock the conscience. To the contrary, the penalties further DOE's mission, discourage similarly egregious behavior in the future, and are well suited to mitigate the impact of petitioners' respective misconduct on their students' personal development, as well as on the integrity of the public education system.

II.

In these three appeals, petitioners were afforded hearings before an arbitrator, in accordance with Education Law § 3020-a. In each case, the arbitrator determined that the evidence sufficiently established misconduct that warranted

termination of the petitioner's employment. Each petitioner commenced a CPLR article 75 proceeding challenging the award with varying levels of success in Supreme Court. On appeal to the Appellate Division, a divided court in each case determined that the administrative sanction "shocked the conscience" and remanded to DOE for imposition of a lesser penalty.

As is plain from the majority analyses of the record, the Appellate Division exceeded the bounds of its review power, ignored the arbitrators' credibility findings and substituted its judgment for that of DOE. The Courts improperly concluded that the penalties were disproportionate to the misconduct and petitioners' employment histories tipped in favor of a penalty short of termination.

A. *Matter of Bolt v New York City Dept. of Educ.*

Petitioner Ericka Bolt was a fifth-grade teacher alleged to have improperly directed students to cheat while proctoring statewide examinations. The arbitrator found sufficient evidence, which included testimony from several of petitioner's students and the principal, that petitioner improperly assisted students during the administration of the statewide English Language Arts examination, violated the school's protocol for statewide testing, was insubordinate for failing to comply with testing protocol, and caused an inaccurate measurement of student performance. The arbitrator deemed dismissal warranted based on this gross misconduct and neglect of duty, as well as petitioner's failure to serve as a positive role model for students.

Petitioner challenged the determination, arguing that the arbitrator had exceeded his power, his decision was irrational, and the penalty was excessive. Supreme Court vacated the award in its entirety, finding the decision irrational and termination of petitioner's employment "disproportionate and excessive" (*Matter of Bolt v New York City Dept. of Educ.*, 2015 NY Slip Op 30683[U], *9 [Sup Ct, NY County 2015]).

The Appellate Division, with one Justice dissenting, modified the judgment on the law to confirm the arbitrator's finding of guilt and remanded the matter to DOE to impose a lesser penalty (*Matter of Bolt v New York City Dept. of Educ.*, 145 AD3d 450 [1st Dept 2016]). The Court held that termination of employment as a penalty in petitioner's case shocked one's sense of fairness because she was a tenured teacher with an unblemished 11-year record, whose behavior, while wrong, dem-

onstrated a one-time lapse in judgment, and no evidence suggested she could not remedy her behavior (*see id.* at 450-451).

Contrary to the Appellate Division's conclusion, which failed to properly consider the severity of the misconduct, there is nothing shocking to the conscience about imposing termination as a penalty on a teacher who encourages her students to cheat on statewide examinations. To the extent the Court suggests, as petitioner maintains on this appeal, that termination of an employee with an unblemished history is *per se* shocking to the judicial conscience, the Court misapplies the "rigorous *Pell* standard" (*Featherstone*, 95 NY2d at 554). As *Pell* and its progeny make clear, whether an administrative penalty is so excessive as to affront one's sense of fairness depends on "all of the circumstances" of the individual case (*id.* at 555).

Here, petitioner helped children cheat on a statewide examination. She set a terrible example for her impressionable students, for whom she served as both a role model and authority figure. Her behavior undermined and skewed the results of the examination for her students and other students in her school and throughout the state. Her students clearly did not realize that being told by a teacher to fix their answers on an examination was wrong, as demonstrated by their request for similar help from their subsequent teacher. The revelation of such misconduct serves to cast aspersions on the ethics of the teaching profession and on the accuracy of statewide examinations and grading in general. Given the seriousness of petitioner's conduct, its adverse impact on the children's education and development, and the potential of a lesser penalty to encourage similar future misconduct by teaching staff, undermining the integrity of statewide measures of student progress and the public education system, the Appellate Division erroneously concluded that petitioner's dismissal shocked the conscience.

B. *Matter of Beatty v City of New York*

Petitioner Amira Beatty worked as a special education teacher in DOE's Home Instruction Program for 13 years. The program provides both short- and long-term teachers for students who are unable to receive instruction in a traditional classroom setting due to medical or psychiatric reasons. Teachers in the program work "in the field," are largely unsupervised and work on the honor system, as they create schedules with each individual student and then apprise their supervisors of their schedules and any changes. The teachers are responsible for maintaining accurate employment records and submit daily

logs reflecting instructional activities as well as monthly time sheets accounting for their work.

One of petitioner's students had cerebral palsy and entered the Home Instruction Program following major surgery. Petitioner began providing the student instruction at the student's home, but following Hurricane Sandy, which greatly affected the Rockaways where the student lived, petitioner failed to meet with the student for two months without informing her supervisor—all the while submitting daily logs and time sheets in which she certified they were continuing to meet. The Special Commissioner of Investigation found that petitioner had not met with the student on 24 occasions despite petitioner's contrary certifications. Petitioner admitted that she did not provide services to the student after the hurricane and that she submitted false daily logs and time sheets.

Based on the evidence adduced at the hearing, the arbitrator found petitioner's dismissal was warranted. Significantly, the arbitrator credited the student's mother's testimony over petitioner's contradictory assertion that the mother asked her not to transfer the child to a different program when the family temporarily relocated following the hurricane. Further, the arbitrator found that petitioner's other justifications did not excuse her behavior, particularly considering the student's family was back in their home during a month when petitioner continued to falsify her time sheets. The arbitrator noted that petitioner offered no explanation as to why she did not discuss the situation with her supervisor, and the arbitrator did not believe the allegations could be dismissed as "inadvertent error or even sloppy paperwork." The arbitrator acknowledged that petitioner had a clean record over her 17 years working for DOE and was herself impacted by the hurricane. Nevertheless, dismissal was justified because petitioner's behavior undermined the trust on which the Home Instruction Program is based and petitioner failed to take responsibility for her conduct and recognize how it harmed her student.

Petitioner challenged the penalty and DOE successfully cross-moved to dismiss the petition before Supreme Court (*Matter of Beatty v City of New York*, 2015 NY Slip Op 31254[U] [Sup Ct, NY County 2015]). The Appellate Division, over two dissenting Justices, reversed on the facts and remanded the matter to DOE for imposition of a lesser penalty as the majority determined the dismissal shocked their sense of fairness (*Matter of Beatty v City of New York*, 148 AD3d 413, 413 [1st

Dept 2017])). The majority found the misconduct to be better classified as “lax bookkeeping than implementation of any venal scheme,” since petitioner instructed other students on the dates in question and would have received the same salary regardless, demonstrating that she derived no financial benefit from her actions (*id.* at 414). The majority also noted petitioner’s unblemished 17-year record, positive testimony from her colleagues, and the mother’s testimony that petitioner worked well with the child and served his needs more successfully than other teachers (*id.* at 414-415).

The majority exceeded its authority and did not limit its review to the proportionality of the sanction, but rather supplanted the hearing officer’s judgment with the Court’s own assessment of the individual’s misconduct and its impact on DOE’s educational mission. The majority characterized the petitioner as an experienced teacher who made one mistake, which did not even result in monetary gain. In doing so, the majority improperly reweighed the evidence and ignored the arbitrator’s credibility findings, in violation of our limited standard of review, which is confined to the factual record before the agency and requires deference to a hearing officer’s credibility determinations (*Pell*, 34 NY2d at 230; CPLR 7511; *Matter of Nuchman v Klein*, 95 AD3d 645, 646 [1st Dept 2012], *lv denied* 20 NY3d 855 [2013] [in proceeding pursuant to Education Law § 3020-a (5) and CPLR 7511, hearing officer’s credibility findings are entitled to deference]; *see also Matter of Berenhaus v Ward*, 70 NY2d 436, 443 [1987] [administrative hearing officer’s credibility and factual findings entitled to deference]).

Termination of employment, even for this long-term teacher, does not shock the conscience: over the course of two months, petitioner falsified daily logs and time sheets and failed to provide her student with necessary special education instruction. Both are serious violations and breaches of the public trust. Moreover, the conduct had a direct effect on petitioner’s student, who relied on the Home Instruction Program and was dependent on petitioner traveling to him for special education services—or at least providing instruction over email or the telephone as other Home Instruction teachers did during this period. By falsifying documents and failing to inform her supervisor that she was not visiting the student, petitioner denied this child the opportunity of a replacement teacher and some modicum of stability after the displacement caused by

the hurricane. There is no excuse for this dereliction of duty and abandonment of her special needs student. Although petitioner was working under difficult conditions after the hurricane, she had every opportunity to report the situation to her supervisor and seek assistance, but never did.

C. *Matter of Williams v City of New York*

According to the evidence at the hearing, petitioner Terrell Williams was a tenured physical education and health teacher at a middle school who initiated conversations with several of his female students in the eighth grade during two school terms, inquiring if they had eligible older sisters, and if so, asked for physical descriptions and their telephone numbers. He accepted the telephone number of one student's older sister and contacted her for a date. Petitioner stated that he did not view himself as a role model for the students.

One student testified that petitioner's behavior made her feel "[k]ind of uncomfortable" and another stated she was "kind of aggravated." The arbitrator determined the female students' testimony was consistent and that petitioner's was not credible. The arbitrator also rejected petitioner's claims that his statements were made jokingly. The arbitrator concluded dismissal was warranted because petitioner showed an inability to provide a safe and appropriate learning environment for his students by engaging in behavior that was "miles beyond any appropriate boundary between teacher and student," and that he abused his position of power "for his own benefit, without regard to the lessons he was passing on to impressionable young girls." The arbitrator noted that contrary to petitioner's "misguided" view, he was indeed a role model for his students. The arbitrator also considered petitioner's 13 years of teaching, but found them outweighed by the misconduct and his apparent lack of remorse.

Supreme Court denied the petition to vacate the part of the award that terminated employment and dismissed the proceeding. The Appellate Division, with one Justice dissenting, reversed on the law and remanded the matter to DOE for imposition of a lesser penalty (*Matter of Williams v City of New York*, 142 AD3d 901, 901 [1st Dept 2016]). The majority found that the penalty was so disproportionate to the offenses as to shock the conscience, primarily because while petitioner may have asked inappropriately about his students' siblings, the majority disagreed that the inquiries could be characterized as "romantic/sexual in nature" or for the purpose of "solicit[ing]

female companions for his sexual gratification,” in part because there was no evidence he met with any of the students’ sisters or made any sexual comments to the students (*id.* at 902).

The Appellate Division majority improperly reweighed the evidence, and, as in *Beatty*, ignored the credibility determinations of the arbitrator, who did not credit petitioner’s testimony and found it contradicted by the student’s consistent description of the events. As the record reveals, petitioner admitted the conversations occurred, although he minimized their significance or impropriety. Despite his years as a teacher, he maintained that he was not a role model for students, evincing an utter failure to appreciate his impact on his students’ educational and personal development. Under these circumstances, there was substantial evidence that petitioner’s actions crossed the line of a proper student-teacher relationship and demonstrated a lack of professional understanding of the potential harm inflicted on his students by seeking to date their female relatives. Significantly, petitioner’s actions directly conflicted with and undermined DOE’s mission by sending the message that women are measured by their physical appearance rather than their character and the strength of their ideas.* The impact of that message on females in early adolescence—delivered by a health and physical education teacher—cannot be underestimated (*see* Patrick Akos & Dana Heller Levitt, *Promoting Healthy Body Image in Middle School*, 6 Prof Sch Counseling 138 [2002] [middle school teachers play important role in students developing healthy body image and negative body image linked with eating disorders, low self-esteem, and depression]; *see also* Tanya E. Davison & Marita P. McCabe, *Adolescent Body Image and Psychosocial Functioning*, 146 J Soc Psychol 15 [2006] [poor body image may hamper development of interpersonal skills, lead to low self-esteem, and other psychosocial difficulties]).

Although the majority acknowledged that petitioner’s behavior was inexcusable, it nevertheless supplanted its own assessment of the precise penalty to be imposed for that of the

* In fact, in 2013, New York City launched the “NYC Girls Project,” a multi-faceted public educational initiative supported by DOE and other agencies, and including programming at city schools and after-school programs, promoting the message that girls should be valued for their skills, beliefs, and character instead of their physical appearance (*see e.g.* Anemona Hartocollis, *City Unveils Campaign to Improve Girls’ Self-Esteem*, NY Times, Sept. 30, 2013, <http://www.nytimes.com/2013/10/01/nyregion/city-unveils-a-campaign-to-improve-girls-self-esteem.html> [accessed Jan. 2, 2018]).

hearing officer. The majority opined that if the behavior “continue[s], termination may well be in order in the future” (*Williams*, 142 AD3d at 904). However, the hearing officer’s conclusion that termination without delay—given petitioner’s conduct, which spanned two school years and involved several students—was necessary to impress upon him the seriousness of his misconduct is not irrational and does not shock the conscience or one’s sense of fairness.

III. Conclusion

Termination of employment for the misconduct evinced in these three appeals is neither irrational nor such an affront to one’s sense of fairness as to shock the conscience. This Court has repeatedly explained that under this “rigorous” standard, an administrative sanction may not be disturbed unless it is “disproportionate to the misconduct . . . of the individual, or to the harm or risk of harm to the agency or . . . the public” (*Pell*, 34 NY2d at 234). Whether a punishment may deter future misconduct and reflects societal standards given the nature of the offense are appropriate factors for judicial consideration. A difference of opinion as to the appropriate penalty, however, “does not provide a basis for vacating the arbitral award or refashioning the penalty” (*McGraham*, 17 NY3d at 920). As in these appeals, dismissal is not a shocking response to cases in which a teacher encourages cheating, falsifies documents leaving a student without educational services, or crosses the line of proper student-teacher interactions by making sexually suggestive inquiries about a student’s relatives.

In *Matter of Bolt v New York City Dept. of Educ.*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, cross motion by respondent New York City Department of Education to dismiss the petition granted, and certified question answered in the negative, in a memorandum.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur, Judge RIVERA in a concurring opinion.

In *Matter of Beatty v City of New York*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, cross motion by respondents City of New York et al. to dismiss the petition granted, and certified question answered in the negative, in a memorandum.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur, Judge RIVERA in a concurring opinion.

In *Matter of Williams v City of New York*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), the arbitral award appealed from and the Appellate Division order brought up for review reversed, with costs, and judgment of Supreme Court, New York County, dismissing the proceeding reinstated, in a memorandum.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur, Judge RIVERA in a concurring opinion.

In the Matter of the Estate of MOHAMED K. BADRUDDIN, Deceased. YASMIN KOOLSAM BADRUDDIN, Respondent; YASMIN NURANI KADERALI BADRUDDIN et al., Appellants. (And Another Related Proceeding.)

Submitted November 27, 2017; decided January 16, 2018

Reported below, 152 AD3d 1010.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

GEORGE BERAKA, M.D., Respondent, v DANIELLE BITON et al., Appellants.

Submitted October 30, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 83474(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3).

DANIELLE BITON et al., Appellants, v ALOFT CORPORATE TRAVEL, INC., et al., Respondents.

Submitted October 30, 2017; decided January 16, 2018

Reported below, 2008 NY Slip Op 79906(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3).

CRYSTAL BITON, Appellant, v BAXTER HEALTHCARE CORPORATION et al., Respondents.

Submitted October 16, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 73157(U); 2017 NY Slip Op 66958(U); 99 AD3d 425.

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

CRYSTAL BITON, Appellant, v COMMISSION ON JUDICIAL CONDUCT OF THE STATE OF NEW YORK et al., Respondents.

Submitted November 27, 2017; decided January 16, 2018

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3).

Judge FEINMAN taking no part.

DANIELLE BITON et al., Appellants, v AMEENA MEER et al., Respondents.

Submitted October 16, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 77379(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

CRYSTAL BITON, Also Known as SAPHYRE REDFORD, Appellant, v JOE TURCO et al., Respondents.

Submitted November 20, 2017; decided January 16, 2018

Reported below, 88 AD3d 519.

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

Judge FEINMAN taking no part.

In the Matter of AMY R. CANOUGH, Respondent, v TODD R. TRAINHAM, Appellant.

Submitted November 20, 2017; decided January 16, 2018

Reported below, 144 AD3d 1615.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of FENG LI, a Suspended Attorney, Appellant; GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted September 11, 2017; decided January 16, 2018

Reported below, 149 AD3d 238; 2017 NY Slip Op 80314(U).

On the Court's own motion, appeal, insofar as taken from the March 2017 Appellate Division order, dismissed, without costs, upon the ground that it is untimely (*see* CPLR 5513 [a]; *Eaton v State of New York*, 76 NY2d 824 [1990]); appeal, insofar as taken from the July 2017 Appellate Division order, dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the March 2017 Appellate Division order, dismissed upon the ground that it is untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the July 2017 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANGELA C. GASPIRINI, Respondent, v MICHAEL J. ROTONDO, Appellant.

Submitted November 27, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 92274(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

GETTY PROPERTIES CORP. et al., Respondents, v GETTY PETROLEUM MARKETING INC., Defendant, and 1314 SEDGWICK AVE. LLC et al., Appellants.

Submitted October 30, 2017; decided January 16, 2018

Reported below, 150 AD3d 541.

Motion for leave to appeal dismissed upon the ground that the May 2017 Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of JONATHAN S., an Attorney and Counselor-at-Law, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted October 23, 2017; decided January 16, 2018

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

Judge FEINMAN taking no part.

DAWN MOSBY, Appellant, v MATTHEW G. PARILLA, Respondent.

Submitted October 30, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 86121(U); 2016 NY Slip Op 94801(U).

Motion, insofar as it seeks leave to appeal from the December 2016 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the September 2017 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

ONE PLEASANTVILLE ROAD LLC, Appellant, v GETTY PROPERTIES CORP., Respondent.

1224 ROUTE 22 LLC et al., Appellants, v GETTY PROPERTIES CORP., Respondent.

857 RT 6 MAHOPAC LLC et al., Appellants, v GETTY PROPERTIES CORP., Respondent.

Submitted October 30, 2017; decided January 16, 2018

Reported below, 150 AD3d 541.

Motion for leave to appeal dismissed upon the ground that the May 2017 Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FEINMAN taking no part.

In the Matter of MICHAEL J. ROTONDO, Appellant, v ANGELA C. GASPARINI, Respondent.

In the Matter of ANGELA C. GASPARINI, Respondent, v MICHAEL J. ROTONDO, Appellant.

Submitted December 18, 2017; decided January 16, 2018

Reported below, 2017 NY Slip Op 93917(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of 322 WEST 47TH STREET HDFC, Respondent, v MARGIE LOO, Appellant, et al., Respondent.

Submitted December 18, 2017; decided January 16, 2018

Reported below, 153 AD3d 1143.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from an order entered in this proceeding commenced in Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

Judge FEINMAN taking no part.

UNIFIED WINDOW SYSTEMS, INC., et al., Respondents, v ENDURANCE AMERICAN SPECIALTY INSURANCE COMPANY, Appellant, et al., Defendant.

Submitted November 13, 2017; decided January 16, 2018

Reported below, 149 AD3d 1009.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BEATRICE R.H., Respondent; DEAN E.H., Appellant. PENNY F.H., Nonparty Respondent.

Decided February 8, 2018

Reported below, 2017 NY Slip Op 89959(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of BEATRICE R.H., Respondent; DEAN E.H., Appellant. PENNY F.H., Nonparty Respondent.

Decided February 8, 2018

Reported below, 2017 NY Slip Op 89958(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of BEATRICE R.H., Respondent; DEAN E.H., Appellant. PENNY F.H., Nonparty Respondent.

Decided February 8, 2018

Reported below, 2017 NY Slip Op 89960(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

BOARD OF MANAGERS OF THE 125 NORTH 10TH CONDOMINIUM,
Appellant, v 125NORTH10, LLC, Doing Business as 125
NORTH 10, LLC, et al., Respondents, et al., Defendants.
(And Third-Party Actions.)

Submitted December 11, 2017; decided February 8, 2018

Reported below, 150 AD3d 1065.

Motion for reargument of motion for leave to appeal denied
[see 30 NY3d 959 (2017)].

CONTACT CHIROPRACTIC, P.C., as Assignee of Girtha Butler, Re-
spondent, v NEW YORK CITY TRANSIT AUTHORITY, Appel-
lant.

Submitted January 22, 2018; decided February 8, 2018

Reported below, 135 AD3d 804.

Motion by Gary Tsirelman, P.C. for leave to file a brief ami-
cus curiae on the appeal herein granted and the proposed brief
is accepted as filed. Three copies of the brief must be served,
an original and nine copies filed, and the brief submitted in
digital format within seven days.

ECHO WESTLEY DIXON, Appellant, v GOVERNOR ANDREW M.
CUOMO et al., Respondents.

Submitted December 26, 2017; decided February 8, 2018

On the Court's own motion, appeal transferred, without
costs, to the Appellate Division, Fourth Department, upon the
ground that a direct appeal does not lie when questions other
than the constitutional validity of a statutory provision are
involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601
[b] [2]). Motion for leave to appeal dismissed upon the ground
that the Court of Appeals does not have jurisdiction to
entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion
for poor person relief dismissed as academic.

ECHO WESTLEY DIXON, Appellant, v STATE OF NEW YORK, Respondent.

Decided February 8, 2018

Reported below, 153 AD3d 1529.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of TIMOTHY ELLIS, Appellant, v JOSEPH F. CAWLEY, as Judge of the County Court of Broome County, et al., Respondents.

Decided February 8, 2018

Reported below, 154 AD3d 1225.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

L & L ASSOCIATES HOLDING CORP., Respondent, v ALICIA GITLITZ et al., Defendants. JERRY CASTELLE, Nonparty Appellant.

Decided February 8, 2018

Reported below, 2017 NY Slip Op 91028(U).

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HASHIM MATTHEWS, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted November 27, 2017; decided February 8, 2018

Reported below, 2017 NY Slip Op 84589(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

MARY JUNI, Individually and as Administratrix of the Estate of
ARTHUR H. JUNI, Deceased, Appellant, v A.O. SMITH WATER
PRODUCTS Co. et al., Defendants, and FORD MOTOR COM-
PANY, Respondent.

Submitted January 2, 2018; decided February 8, 2018

Reported below, 148 AD3d 233.

Motion by Dr. Philip J. Landrigan et al. for leave to file a
brief amici curiae on the appeal herein granted and the
proposed brief dated January 2, 2018 is accepted as filed. Three
copies of the brief must be served, an original and nine copies
filed, and the brief submitted in digital format within seven
days.

Judge FEINMAN taking no part.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

MARY JUNI, Individually and as Administratrix of the Estate of
ARTHUR H. JUNI, Deceased, Appellant, v A.O. SMITH WATER
PRODUCTS Co. et al., Defendants, and FORD MOTOR COM-
PANY, Respondent.

Submitted February 5, 2018; decided February 8, 2018

Reported below, 148 AD3d 233.

Motion by Coalition for Litigation Justice, Inc., et al. for
leave to file a brief amici curiae on the appeal herein granted
and the proposed brief is accepted as filed. Three copies of the
brief must be served, an original and nine copies filed, and the
brief submitted in digital format within seven days.

Judge FEINMAN taking no part.

In the Matter of ANTHONY PAPPAS, Appellant, v NASSAU COUNTY
SUPREME COURT et al., Respondents.

Decided February 8, 2018

Reported below, 155 AD3d 628.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DORAN ALLEN, Respondent.

Submitted January 29, 2018; decided February 8, 2018

Reported below, 152 AD3d 401.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH A. BATEMAN, Appellant.

Submitted February 5, 2018; decided February 8, 2018

Reported below, 151 AD3d 1482.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GARY THIBODEAU, Appellant.

Submitted January 16, 2018; decided February 8, 2018

Reported below, 151 AD3d 1548.

Motion for poor person relief denied as unnecessary.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MICHAEL THOMAS, Respondent.

Submitted January 29, 2018; decided February 8, 2018

Reported below, 153 AD3d 860.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GERALD SMITH,
Appellant, v MICHELLE ARTUS, Superintendent, Livingston
Correctional Facility, Respondent.

Submitted November 27, 2017; decided February 8, 2018

Reported below, 153 AD3d 1557.

Motion for leave to appeal dismissed upon the ground that relator has been released from respondent's custody and, therefore, he is not entitled to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]; *see also People ex rel. Bourlaye T. v Connolly*, 25 NY3d 1054 [2015]).

In the Matter of GLASCO WRIGHT, Appellant, v NEW YORK STATE
DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION
et al., Respondents.

Decided February 8, 2018

Reported below, 155 AD3d 1137.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ABAX LOTUS LTD. et al., Respondents, v CHINA MOBILE MEDIA
TECHNOLOGY INC. et al., Defendants, and ZHANG ZHENGYU,
Appellant.

Submitted December 4, 2017; decided February 13, 2018

Reported below, 149 AD3d 535.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by the Rules of the Court of Appeals (22 NYCRR 500.22 [b] [2]).

In the Matter of the Claim of MARGARET CAMPISE, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted January 2, 2018; decided February 13, 2018

Reported below, 150 AD3d 1523.

Motion for reargument of motion for leave to appeal denied
[*see* 30 NY3d 1008 (2017)].

In the Matter of STEPHEN DICK JR. et al., Appellants, v STATE
OF NEW YORK TAX APPEALS TRIBUNAL et al., Respondents.

Submitted December 11, 2017; decided February 13, 2018

Reported below, 2017 NY Slip Op 72775(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of ALVIN FULTON, Appellant, v V. TRIMARCHI et
al., Respondents.

Submitted December 18, 2017; decided February 13, 2018

Motion, insofar as it seeks leave to appeal from the May
2017 Appellate Division order granting appellant's motion to
withdraw and discontinue his appeal to that Court, dismissed
upon the ground that appellant is not a party aggrieved by
that order (*see* CPLR 5611); motion, insofar as it seeks leave to
appeal from letters of the Clerk's Office of the Appellate Divi-
sion, Third Department, dismissed upon the ground that let-
ters are not appealable papers (*see* CPLR 5512 [a]; 5602 [a]).
Motion for poor person relief dismissed as academic.

JOHN QUEALY IRREVOCABLE LIFE INSURANCE TRUST, Respon-
dent, v AXA EQUITABLE LIFE INSURANCE COMPANY, Appel-
lant.

Submitted December 18, 2017; decided February 13, 2018

Reported below, 151 AD3d 592.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LEROY JOHNSON, Appellant, v JOHN B. LEMPKE, Superintendent, Wende Correctional Facility, Respondent.

Submitted December 26, 2017; decided February 13, 2018

Reported below, 147 AD3d 1463.

Motion for reconsideration of so much of this Court's November 16, 2017 order as dismissed appellant's appeal denied [*see* 30 NY3d 1002 (2017)].

In the Matter of JULIUS C. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; EBONY W., Appellant; JULIUS C., SR., et al., Nonparty Respondents. (Proceeding No. 1.)

In the Matter of ZAHIR W. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; EBONY W., Appellant; JULIUS C., SR., et al., Nonparty Respondents. (Proceeding No. 2.)

Submitted December 18, 2017; decided February 13, 2018

Reported below, 155 AD3d 623.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of KHALIYQ SELLERS, Appellant, v TINA STANFORD, Chairwoman of the New York State Board of Parole, Respondent.

Submitted December 18, 2017; decided February 13, 2018

Reported below, 144 AD3d 691.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of EON SHEPHERD, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted December 18, 2017; decided February 13, 2018

Reported below, 153 AD3d 1495.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

CHARLES J. THOMAS, as Guardian of the Property of MAGOMED ABDUSALAMOV, an Incapacitated Person, et al. Appellants, v MATTHEW D. FARRAGO et al., Defendants, and ANTHONY G. CURRERI et al., Respondents.

Submitted December 11, 2017; decided February 13, 2018

Reported below, 154 AD3d 896.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WELLS FARGO BANK, N.A., as Trustee for the MLMI TRUST SERIES-2005-HE3, Respondent, v EMANUEL ARCHIBALD, Appellant, et al., Defendants.

Submitted December 11, 2017; decided February 13, 2018

Reported below, 150 AD3d 937.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD ALTMAN, Respondent, v 285 WEST FOURTH LLC, Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 143 AD3d 415.

Motion by Urban Justice Center et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

RICHARD ALTMAN, Respondent, v 285 WEST FOURTH LLC, Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 143 AD3d 415.

Motion by Rent Stabilization Association of New York City, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

RICHARD ALTMAN, Respondent, v 285 WEST FOURTH LLC, Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 143 AD3d 415.

Motion by Make the Road New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of MANUEL P. ASENSIO, Appellant, v NANCY M. BANNON, Respondent.

In the Matter of MANUEL P. ASENSIO, Appellant, v NANCY M. BANNON, Respondent.

Submitted January 2, 2018; decided February 15, 2018

Reported below, 155 AD3d 565; 155 AD3d 566.

On the Court's own motion, appeals dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

Chief Judge DiFiore taking no part.

In the Matter of MANUEL P. ASENSIO, Appellant, v ADETOKUNBO FASANYA, Respondent.

Submitted January 29, 2018; decided February 15, 2018

Reported below, 2017 NY Slip Op 96223(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge DiFiore taking no part.

In the Matter of MANUEL ASENSIO, Appellant, v LAWRENCE J. MARKS, Respondent.

Submitted January 29, 2018; decided February 15, 2018

Reported below, 2018 NY Slip Op 00086.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

Chief Judge DiFiore taking no part.

CONTACT CHIROPRACTIC, P.C., as Assignee of Girtha Butler, Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 135 AD3d 804.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of the Accounting by DONALD K. CZEIZINGER, as Administrator of the Estate of FREDERICK D. CZEIZINGER, Deceased, Respondent. TINA CHAMBLISS-PARTEE, Appellant; ROBERT F. BALDWIN, JR., Guardian Ad Litem of FREDERICK DONALD CZEIZINGER, Deceased, Respondent.

Decided February 15, 2018

Reported below, 155 AD3d 1580.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

FRANK MAKI, Appellant, v BASSETT HEALTHCARE et al., Respondents.

Submitted January 2, 2018; decided February 15, 2018

Reported below, 2017 NY Slip Op 69011(U).

Motion for reconsideration of this Court's November 16, 2017 dismissal order denied [*see* 30 NY3d 1002 (2017)].

In the Matter of MANUEL P.A., Appellant, v EMILIE B., Respondent.

Submitted January 29, 2018; decided February 15, 2018

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

In the Matter of MARIA-IRENE D., an Infant. CARLOS A. et al.,
Appellants. HAN MING T., Respondent.

Submitted November 6, 2017; decided February 15, 2018

Reported below, 153 AD3d 1203.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

In the Matter of MARINE HOLDINGS, LLC, Doing Business as
MARINE TERRACE ASSOCIATES, LLC, et al., Respondents, v
NEW YORK CITY COMMISSION ON HUMAN RIGHTS, Appellant,
et al., Respondent.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 137 AD3d 1284.

Motion by Mobilization for Justice, Inc., et al. for leave to ap-
pear amici curiae on the appeal herein granted only to the
extent that the proposed brief is accepted as filed. Two copies
of the brief must be served, an original and nine copies filed,
and the brief submitted in digital format within seven days.

Judge RIVERA taking no part.

In the Matter of MARINE HOLDINGS, LLC, Doing Business as
MARINE TERRACE ASSOCIATES, LLC, et al., Respondents, v
NEW YORK CITY COMMISSION ON HUMAN RIGHTS, Appellant,
et al., Respondent.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 137 AD3d 1284.

Motion by Disability Rights New York for leave to appear
amicus curiae on the appeal herein granted only to the extent
that the proposed brief is accepted as filed. Two copies of the
brief must be served, an original and nine copies filed, and the
brief submitted in digital format within seven days.

Judge RIVERA taking no part.

In the Matter of MARINE HOLDINGS, LLC, Doing Business as
MARINE TERRACE ASSOCIATES, LLC, et al., Respondents, v
NEW YORK CITY COMMISSION ON HUMAN RIGHTS, Appellant,
et al., Respondent.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 137 AD3d 1284.

Motion by Cuti Hecker Wang LLP, et al. for leave to file a
brief amici curiae on the appeal herein granted and the
proposed brief is accepted as filed. Two copies of the brief must
be served, an original and nine copies filed, and the brief
submitted in digital format within seven days.

Judge RIVERA taking no part.

In the Matter of MASON H., Alleged to be an Abandoned Child.
BROOME COUNTY DEPARTMENT OF SOCIAL SERVICES, Respon-
dent; JOSEPH H., Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 154 AD3d 1129.

Motion for assignment of an attorney for the child granted
and the following is assigned as attorney for the child on this
appeal: John A. Cirando, Esq., c/o D.J. & J.A. Cirando, Esqs.,
101 South Salina Street, Syracuse, NY 13202-1350.

In the Matter of FRANK MESTECKY, Appellant, v CITY OF NEW
YORK et al., Respondents.

Submitted January 8, 2018; decided February 15, 2018

Reported below, 133 AD3d 431.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [*see* 30 NY3d 239 (2017)].

In the Matter of CORY MORENO, Respondent, v JAN ELLIOTT,
Appellant.

Submitted December 11, 2017; decided February 15, 2018

Reported below, 155 AD3d 1561.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed that part of the Family Court order adjudging appellant in contempt, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EM-MANUEL DIAZ, Appellant.

Submitted January 29, 2018; decided February 15, 2018

Reported below, 149 AD3d 974.

Motion by The Legal Aid Society for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EM-MANUEL DIAZ, Appellant.

Submitted January 29, 2018; decided February 15, 2018

Reported below, 149 AD3d 974.

Motion by JustLeadershipUSA et al. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EM-MANUEL DIAZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALI CISSE, Appellant.

Submitted January 22, 2018; decided February 15, 2018

Reported below, 149 AD3d 974; 149 AD3d 435.

Motion by Brooklyn Defender Services, et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY D. GIBSON, Appellant.

Submitted January 8, 2018; decided February 15, 2018

Reported below, 74 AD3d 1700.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 17 NY3d 757 (2011)].

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN P. WOLCOTT, Appellant.

Submitted February 13, 2018; decided February 15, 2018

Reported below, 154 AD3d 1001.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

YUKON SHOULARS, Appellant, v ST. BARNABAS HOSPITAL, Respondent.

MICHAEL ANCRUM, Appellant, v ST. BARNABUS HOSPITAL, Respondent.

JOSEPH KENNEDY, Appellant, v ST. BARNABAS HOSPITAL, Respondent.

JACQUES STERLIN, Appellant, v ST. BARNABAS HOSPITAL, Respondent.

ALLISON SPARKS, JR., Appellant, v ST. BARNABAS HOSPITAL, Respondent.

DANIEL RICE, Appellant, v ST. BARNABAS HOSPITAL, Respondent.

Submitted November 27, 2017; decided February 15, 2018

Reported below, 149 AD3d 577.

Motion, insofar as made by appellant Allison Sparks, Jr., for leave to appeal, dismissed upon the ground that as to that appellant the order sought to be appealed from does not finally determine that action within the meaning of the Constitution; motion by the remaining appellants for leave to appeal otherwise denied.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted January 8, 2018; decided February 20, 2018

Motion for reargument of motion for leave to appeal denied [see 30 NY3d 1037 (2017)].

FREDERICK DIAZ, Appellant, v STATE OF NEW YORK, Respondent.

Submitted January 2, 2018; decided February 20, 2018

Reported below, 155 AD3d 1279.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the Court of Claims order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

HSBC MORTGAGE CORPORATION (USA), Respondent, v JUDY G. DICKERSON, Appellant, et al., Defendants.

Submitted December 18, 2017; decided February 20, 2018

Reported below, 150 AD3d 968.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RICHARD KALLOP et al., Respondents, v BOARD OF DIRECTORS FOR EDGEWATER PARK OWNERS' COOPERATIVE INC. et al., Appellants, et al., Defendant.

Submitted January 2, 2018; decided February 20, 2018

Reported below, 155 AD3d 491.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted January 16, 2018; decided February 20, 2018

Reported below, 2017 NY Slip Op 83903(U).

Motion for reconsideration of this Court's November 20, 2017 dismissal order denied [*see* 30 NY3d 1015 (2017)]. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KEVIN MARTIN, Appellant, et al., Plaintiff, v PAUL A. COSTA et al., Respondents.

Submitted December 11, 2017; decided February 20, 2018

Reported below, 2017 NY Slip Op 89949(U).

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies from the Appellate Division order dismissing the appeal to that court from a purported order of Supreme Court (*see* CPLR 5602 [a]; *see also* CPLR 2219, 5512 [a]). Motion for poor person relief dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(January 1, 2018 through January 31, 2018)

Mery v Eginger	2d Dept: 149 AD3d 827	1/8/18
Word, Matter of, v Odorisi	App Div, 4th Dept: 2017 NY Slip Op 89558(U)	1/8/18

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APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2018 through January 31, 2018)

Lobello v New York Cent. Mut. 4th Dept: 152 AD3d 1206 1/30/18
 Fire Ins. Co.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2018 through January 31, 2018)

People v Alfaro	2d Dept: 155 AD3d 887 (Kings)	denied 1/8/18 (Stein, J.)
People v Alonso	App Term, 2d Dept, 9th & 10th Jud Dists: 57 Misc 3d 155(A) (Orange)	denied 1/29/18 (Fahey, J.)
People v Anaka	2d Dept: 154 AD3d 870 (Westchester)	denied 1/2/18 (Stein, J.)
People v Aquero	1st Dept: 155 AD3d 454 (Bronx)	denied 1/10/18 (Rivera, J.)
People v Arpi	App Div, 2d Dept: 2017 NY Slip Op 90851(U) (Westchester)	dismissed 1/31/18 (Wilson, J.)
People v Beachum	1st Dept: 154 AD3d 559 (Bronx)	denied 1/9/18 (Garcia, J.)
People v Berrian	1st Dept: 154 AD3d 486 (NY)	denied 1/15/18 (Rivera, J.)
People v Best	1st Dept: 154 AD3d 598 (NY)	denied 1/8/18 (DiFiore, Ch. J.)
People v Boyd	4th Dept: 153 AD3d 1608 (Monroe)	denied 1/15/18 (Rivera, J.)
People v Braithwaite	2d Dept: 153 AD3d 929 (Kings)	denied 1/30/18 (Wilson, J.)
People v Brown	4th Dept: 153 AD3d 1664 (Onondaga)	denied 1/2/18 (Garcia, J.)
People v Burnett	1st Dept: 155 AD3d 586 (NY)	denied 1/17/18 (DiFiore, Ch. J.)
People v Butera	4th Dept: 155 AD3d 1607 (Monroe)	denied 1/9/18 (Garcia, J.)
People v Butler	4th Dept: 153 AD3d 1675 (Monroe)	denied 1/11/18 (Wilson, J.)
People v C	4th Dept: 151 AD3d 1782 (Erie)	denied reconsideration 1/17/18 (DiFiore, Ch. J.)
People v Camacho	App Term, 1st Dept: 57 Misc 3d 151(A) (NY)	denied 1/10/18 (Stein, J.)
People v Chazbani	2d Dept: 153 AD3d 930 (Queens)	denied 1/9/18 (Stein, J.)
People v Coachman	2d Dept: 154 AD3d 957 (Westchester)	denied 1/9/18 (Garcia, J.)
People v Colon	App Term, 1st Dept: 57 Misc 3d 135(A) (NY)	denied 1/15/18 (Rivera, J.)

People v Contreras	4th Dept: 154 AD3d 1320 (Oneida)	denied 1/30/18 (Wilson, J.)
People v Cooper (Rondale)	4th Dept: 155 AD3d 1603 (Onondaga)	denied 1/9/18 (Garcia, J.) (Appeal No. 1)
People v Cooper (Rondale)	4th Dept: 155 AD3d 1604 (Onondaga)	denied 1/9/18 (Garcia, J.) (Appeal No. 2)
People v Cordero	4th Dept: 153 AD3d 1674 (Erie)	denied 1/10/18 (Feinman, J.)
People v Courteau	4th Dept: 154 AD3d 1317 (Cattaraugus)	denied 1/30/18 (DiFiore, Ch. J.)
People v Cunningham	2d Dept: 154 AD3d 958 (Kings)	denied 1/2/18 (Garcia, J.)
People v Curtis	1st Dept: 154 AD3d 575 (NY)	denied 1/17/18 (DiFiore, Ch. J.)
People v Cyganik	4th Dept: 154 AD3d 1336 (Monroe)	denied 1/3/18 (Stein, J.)
People v D'Attore	1st Dept: 151 AD3d 548 (Bronx)	denied reconsideration 1/11/18 (Wilson, J.)
People v Day	App Div, 2d Dept: 2017 NY Slip Op 89396(U) (Kings)	dismissed 1/10/18 (DiFiore, Ch. J.)
People v DeJesus	4th Dept: 153 AD3d 1663 (Monroe)	denied 1/15/18 (Rivera, J.)
People v Diabate	1st Dept: 155 AD3d 416 (NY)	denied 1/18/18 (Fahey, J.)
People v Diaz (Luis)	2d Dept: 155 AD3d 766 (Queens)	denied 1/31/18 (Garcia, J.)
People v Diaz (Ruben)	1st Dept: 154 AD3d 440 (NY)	denied 1/2/18 (Stein, J.)
People v DiValentino	2d Dept: 154 AD3d 872 (Orange)	denied 1/4/18 (Stein, J.)
People v Faulks	4th Dept: 153 AD3d 1675 (Monroe)	denied 1/11/18 (Wilson, J.)
People v Fawzi	1st Dept: 155 AD3d 548 (NY)	denied 1/31/18 (Fahey, J.)
People v Ferrer	1st Dept: 154 AD3d 519 (NY)	denied 1/31/18 (Wilson, J.)
People v Finster	App Div, 4th Dept, 10/4/17 (Oneida)	dismissed 1/8/18 (Stein, J.)
People v Fioretti	4th Dept: 155 AD3d 1662 (Erie)	denied 1/29/18 (Wilson, J.)
People v Fleming	4th Dept: 153 AD3d 1648 (Livingston)	denied 1/8/18 (Stein, J.)
People v Flowers	4th Dept: 151 AD3d 1843 (Monroe)	denied 1/30/18 (Wilson, J.)
People v Forde	2d Dept: 153 AD3d 852 (Kings)	denied 1/2/18 (Stein, J.)
People v Franco	1st Dept: 155 AD3d 484 (NY)	denied 1/31/18 (Garcia, J.)

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People v Franzese	2d Dept: 154 AD3d 706 (Queens)	denied 1/11/18 (Feinman, J.)
People v Garcia	1st Dept: 154 AD3d 626 (Bronx)	denied 1/18/18 (Fahey, J.)
People v Garnes	1st Dept: 154 AD3d 615 (NY)	denied 1/18/18 (Fahey, J.)
People v Garris	App Term, 1st Dept: 57 Misc 3d 152(A) (NY)	denied 1/31/18 (Garcia, J.)
People v Gentle	2d Dept: 155 AD3d 651 (Kings)	denied 1/2/18 (Rivera, J.)
People v German	2d Dept: 155 AD3d 767 (Queens)	denied 1/29/18 (Fahey, J.)
People v Giacchi	1st Dept: 154 AD3d 544 (NY)	denied 1/11/18 (Wilson, J.)
People v Goldman	1st Dept: 155 AD3d 506 (Bronx)	denied 1/29/18 (Fahey, J.)
People v Gonzalez-Florian	App Term, 1st Dept: 57 Misc 3d 151(A) (NY)	denied 1/29/18 (Wilson, J.)
People v Grant	2d Dept: 154 AD3d 775 (Kings)	denied 1/2/18 (Garcia, J.)
People v Hankins	App Div, 1st Dept: 2017 NY Slip Op 87247(U) (Bronx)	denied 1/31/18 (Fahey, J.)
People v Hansen	2d Dept: 153 AD3d 1431 (Suffolk)	denied 1/18/18 (Fahey, J.)
People v Harris	1st Dept: 155 AD3d 541 (NY)	denied 1/31/18 (Wilson, J.)
People v Hawkins (Jamile)	App Div, 1st Dept: 2017 NY Slip Op 87247(U) (Bronx)	denied 1/31/18 (Fahey, J.)
People v Hawkins (Master)	App Term, 1st Dept: 57 Misc 3d 142(A) (NY)	denied 1/29/18 (Fahey, J.)
People v Haynesworth	2d Dept: 153 AD3d 1278 (Kings)	denied 1/30/18 (Wilson, J.)
People v Henderson	4th Dept: 155 AD3d 1577 (Onondaga)	denied 1/31/18 (Wilson, J.)
People v Hernandez (Jose)	1st Dept: 154 AD3d 438 (NY)	denied 1/15/18 (Rivera, J.)
People v Hernandez (Romel)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 139(A) (Richmond)	denied 1/11/18 (Feinman, J.)
People v Herrera	2d Dept: 155 AD3d 890 (Kings)	denied 1/18/18 (Fahey, J.)
People v Heyliger	App Div, 3d Dept: 2017 NY Slip Op 90661(U) (Broome)	dismissed 1/18/18 (Fahey, J.)
People v Hodge	2d Dept: 154 AD3d 963 (Westchester)	denied 1/18/18 (Fahey, J.)
People v Hodges	2d Dept: 155 AD3d 767 (Queens)	denied 1/24/18 (DiFiore, Ch. J.)
People v Holloway	2d Dept: 154 AD3d 966 (Suffolk)	denied 1/18/18 (Fahey, J.)
People v Howard	App Term, 1st Dept: 57 Misc 3d 128(A) (NY)	denied 1/15/18 (Rivera, J.)

People v Hughes	1st Dept: 154 AD3d 468 (NY)	denied 1/2/18 (Stein, J.)
People v Jackson	4th Dept: 153 AD3d 1605 (Oneida)	denied 1/29/18 (Wilson, J.)
People v Jaramillo	4th Dept: 151 AD3d 1782 (Jefferson)	denied reconsideration 1/15/18 (Rivera, J.)
People v Javier	1st Dept: 154 AD3d 445 (NY)	denied 1/31/18 (DiFiore, Ch. J.)
People v Jimenez	App Div, 1st Dept: 2017 NY Slip Op 88642(U) (Bronx)	denied 1/18/18 (Fahey, J.)
People v John-Connor	App Term, 1st Dept: 57 Misc 3d 142(A) (NY)	denied 1/15/18 (Rivera, J.)
People v Johnson (Glen)	1st Dept: 155 AD3d 513 (NY)	denied 1/24/18 (Fahey, J.)
People v Johnson (Tyrone)	3d Dept: 151 AD3d 1462 (Clinton)	denied 1/26/18 (DiFiore, Ch. J.)
People v Jones (Antonio)	1st Dept: 156 AD3d 434 (Bronx)	denied 1/23/18 (DiFiore, Ch. J.)
People v Jones (Christine)	3d Dept: 155 AD3d 1103 (Broome)	denied 1/24/18 (Fahey, J.)
People v Jones (Eric)	1st Dept: 154 AD3d 487 (NY)	denied 1/15/18 (Rivera, J.)
People v Jose R.	1st Dept: 155 AD3d 423 (NY)	denied 1/9/18 (Garcia, J.)
People v Keita	App Term, 1st Dept: 57 Misc 3d 141(A) (Bronx)	denied 1/10/18 (Rivera, J.)
People v Kerley	3d Dept: 154 AD3d 1074 (Saratoga)	denied 1/30/18 (Wilson, J.)
People v King	4th Dept: 155 AD3d 1574 (Monroe)	denied 1/23/18 (Rivera, J.)
People v Larmore	3d Dept: 154 AD3d 1189 (Essex)	denied 1/10/18 (Rivera, J.)
People v Lawhorn	1st Dept: 156 AD3d 462 (NY)	denied 1/29/18 (DiFiore, Ch. J.)
People v Leflore	3d Dept: 154 AD3d 1164 (Albany)	denied 1/11/18 (Wilson, J.)
People v Lewis (Arthur)	4th Dept: 154 AD3d 1329 (Onondaga)	denied 1/15/18 (Rivera, J.)
People v Lewis (Tyler)	4th Dept: 153 AD3d 1615 (Jefferson)	denied 1/16/18 (Garcia, J.)
People v Leye	App Term, 1st Dept: 57 Misc 3d 129(A) (NY)	denied 1/2/18 (Stein, J.)
People v Lippe	2d Dept: 145 AD3d 1035 (Westchester)	denied reconsideration 1/18/18 (Fahey, J.)
People v Lovely	1st Dept: 154 AD3d 635 (NY)	denied 1/9/18 (Garcia, J.)
People v Mairena	2d Dept: 150 AD3d 1267 (Kings)	denied 1/5/18 (Fahey, J.)

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People v Manuel	App Term, 1st Dept: 57 Misc 3d 142(A) (NY)	denied 1/2/18 (Stein, J.)
People v Marcelle	App Div, 2d Dept: 2017 NY Slip Op 85595(U) (Kings)	denied reconsideration 1/11/18 (Stein, J.)
People v Marte-Tejada	1st Dept: 153 AD3d 1210 (NY)	denied 1/8/18 (Stein, J.)
People v Mathayo	3d Dept: 155 AD3d 1090 (Albany)	denied 1/29/18 (Wilson, J.)
People v Mathis	1st Dept: 154 AD3d 543 (NY)	denied 1/3/18 (Stein, J.)
People v McCalmon	2d Dept: 150 AD3d 893 (Queens)	denied 1/30/18 (Wilson, J.)
People v McCray	App Div, 3d Dept: 2017 NY Slip Op 89863(U) (Franklin)	denied 1/31/18 (Wilson, J.)
People v McQueen	App Term, 1st Dept: 57 Misc 3d 141(A) (NY)	denied 1/15/18 (Rivera, J.)
People v Mighty	1st Dept: 154 AD3d 577 (Bronx)	denied 1/2/18 (Stein, J.)
People v Moses	1st Dept: 155 AD3d 476 (NY)	denied 1/10/18 (DiFiore, Ch. J.)
People v Mulcahy	4th Dept: 155 AD3d 1594 (Niagara)	denied 1/26/18 (DiFiore, Ch. J.)
People v Navarro-Martinez	2d Dept: 154 AD3d 781 (Suffolk)	denied 1/30/18 (Wilson, J.)
People v Nelson	1st Dept: 155 AD3d 451 (NY)	denied 1/8/18 (Stein, J.)
People v Newkirk	App Div, 3d Dept: 2017 NY Slip Op 88931(U) (Albany)	dismissed 1/11/18 (Wilson, J.)
People v New York	4th Dept: 154 AD3d 1320 (Oneida)	denied 1/30/18 (Wilson, J.)
People v Noviri (Mohammad)	App Term, 1st Dept: 57 Misc 3d 140(A) (NY)	denied 1/9/18 (Stein, J.)
People v Noviri (MRB)	App Term, 1st Dept: 57 Misc 3d 140(A) (NY)	denied 1/9/18 (Stein, J.)
People v Olmeda	1st Dept: 155 AD3d 421 (NY)	denied 1/18/18 (Fahey, J.)
People v Omana	App Term, 1st Dept: 57 Misc 3d 136(A) (NY)	denied 1/11/18 (Wilson, J.)
People v Oshinowo	1st Dept: 155 AD3d 556 (NY)	denied 1/23/18 (Rivera, J.)
People v Paige	1st Dept: 154 AD3d 415 (NY)	denied 1/2/18 (Garcia, J.)
People v Patel	App Term, 2d Dept, 9th & 10th Jud Dists: 2017 NY Slip Op 89931(U) (Suffolk)	dismissed 1/18/18 (Fahey, J.)
People v Pendergrass	App Div, 1st Dept: 2017 NY Slip Op 86367(U) (NY)	dismissed 1/26/18 (Feinman, J.)
People v Penn	1st Dept: 153 AD3d 1171 (NY)	denied 1/31/18 (Wilson, J.)
People v Perdomo	2d Dept: 154 AD3d 886 (Suffolk)	denied 1/18/18 (Fahey, J.)

People v Perez (David)	App Term, 1st Dept: 57 Misc 3d 144(A) (NY)	denied 1/18/18 (Fahey, J.)
People v Perez (Julio)	1st Dept: 154 AD3d 531 (Bronx)	denied 1/2/18 (Garcia, J.)
People v Pierce	County Ct, 10/25/17 (Erie)	denied 1/9/18 (Feinman, J.)
People v Purdy	4th Dept: 154 AD3d 1306 (Wayne)	denied 1/11/18 (Feinman, J.)
People v Quinones	App Term, 1st Dept: 57 Misc 3d 142(A) (NY)	denied 1/8/18 (Stein, J.)
People v Rabine	3d Dept: 153 AD3d 1447 (Warren)	denied 1/10/18 (Feinman, J.)
People v Roberites	4th Dept: 153 AD3d 1650 (Livingston)	denied 1/9/18 (Garcia, J.)
People v Robinson (Icylin)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 138(A) (Kings)	denied 1/11/18 (Feinman, J.)
People v Robinson (John)	1st Dept: 154 AD3d 490 (NY)	denied 1/4/18 (Stein, J.)
People v Rodgers	4th Dept: 155 AD3d 1604 (Niagara)	denied 1/10/18 (Rivera, J.)
People v Rodriguez (Kevin)	2d Dept: 154 AD3d 968 (Suffolk)	denied 1/31/18 (Garcia, J.)
People v Rodriguez (Rafael)	1st Dept: 153 AD3d 1178 (Bronx)	denied 1/11/18 (Wilson, J.)
People v Rodriguez (Thomas)	1st Dept: 156 AD3d 533 (NY)	denied 1/29/18 (DiFiore, Ch. J.)
People v Rogers	2d Dept: 154 AD3d 885 (Kings)	denied 1/30/18 (Wilson, J.)
People v Rong He	App Div, 2d Dept: 2017 NY Slip Op 86272(U) (Kings)	dismissed 1/11/18 (Wilson, J.)
People v Rutledge	1st Dept: 155 AD3d 462 (NY)	denied 1/5/18 (DiFiore, Ch. J.)
People v Saddler	4th Dept: 155 AD3d 1679 (Genesee)	denied 1/23/18 (DiFiore, Ch. J.)
People v Salempedomo	2d Dept: 154 AD3d 886 (Suffolk)	denied 1/18/18 (Fahey, J.)
People v Sanchez	1st Dept: 155 AD3d 436 (Bronx)	denied 1/8/18 (Stein, J.)
People v Saulters	4th Dept: 153 AD3d 1679 (Erie)	denied 1/30/18 (Wilson, J.)
People v Savino	County Ct, 11/9/15 (Steuben)	denied 1/31/18 (Wilson, J.)
People v Scarver	4th Dept: 151 AD3d 1782 (Erie)	denied reconsideration 1/17/18 (DiFiore, Ch. J.)
People v Serpas	2d Dept: 155 AD3d 896 (Suffolk)	denied 1/16/18 (Stein, J.)
People v Shannon	App Term, 1st Dept: 57 Misc 3d 140(A) (NY)	denied 1/18/18 (Fahey, J.)

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People v Simmons	2d Dept: 147 AD3d 1085 (Queens)	denied 1/2/18 (Stein, J.)
People v Smith (Jatiek)	2d Dept: 155 AD3d 897 (Richmond)	denied 1/11/18 (Rivera, J.)
People v Smith (Reginald)	1st Dept: 155 AD3d 515 (Bronx)	denied 1/31/18 (Fahey, J.)
People v Soto	2d Dept: 155 AD3d 979 (Queens)	denied 1/16/18 (Rivera, J.)
People v Spears	2d Dept: 154 AD3d 783 (Westchester)	denied 1/15/18 (Rivera, J.)
People v Sutton	2d Dept: 151 AD3d 763 (Queens)	denied 1/17/18 (Stein, J.)
People v Swaby	App Term, 1st Dept: 57 Misc 3d 137(A) (NY)	denied 1/3/18 (Stein, J.)
People v Tadd	3d Dept: 154 AD3d 1014 (Washington)	denied 1/15/18 (Rivera, J.)
People v Tammaro	1st Dept: 155 AD3d 473 (NY)	denied 1/30/18 (DiFiore, Ch. J.)
People v Tarver	1st Dept: 155 AD3d 450 (NY)	denied 1/10/18 (Rivera, J.)
People v Tetreault	3d Dept: 152 AD3d 1081 (Cortland)	denied reconsideration 1/10/18 (DiFiore, Ch. J.)
People v Thomas	App Div, 4th Dept, 10/25/17 (Erie)	dismissed 1/31/18 (Wilson, J.)
People v Thomas-Diaz	App Term, 1st Dept: 57 Misc 3d 142(A) (Bronx)	denied 1/15/18 (Rivera, J.)
People v Toland	3d Dept: 153 AD3d 966 (Schenectady)	denied reconsideration 1/24/18 (Fahey, J.)
People v Tompkins	1st Dept: 154 AD3d 510 (NY)	denied 1/15/18 (Rivera, J.)
People v Torres	1st Dept: 155 AD3d 563 (NY)	denied 1/23/18 (DiFiore, Ch. J.)
People v Trent	1st Dept: 155 AD3d 441 (Bronx)	denied 1/3/18 (Stein, J.)
People v Trotman	4th Dept: 154 AD3d 1332 (Onondaga)	denied 1/2/18 (Stein, J.)
People v Turner	1st Dept: 155 AD3d 550 (NY)	denied 1/31/18 (Fahey, J.)
People v Vaughan	2d Dept: 151 AD3d 985 (Suffolk)	denied reconsideration 1/15/18 (Rivera, J.)
People v Velez	1st Dept: 154 AD3d 527 (NY)	denied 1/2/18 (Stein, J.)
People v Vidro	1st Dept: 155 AD3d 501 (Bronx)	denied 1/16/18 (Stein, J.)
People v Walker (Bryan)	4th Dept: 155 AD3d 1685 (Monroe)	denied 1/29/18 (Wilson, J.)

People v Walker (Sherman)	1st Dept: 154 AD3d 559 (NY)	denied 1/17/18 (Rivera, J.)
People v Wells (Carl)	App Div, 1st Dept: 2017 NY Slip Op 78344(U) (NY)	dismissed 1/10/18 (DiFiore, Ch. J.)
People v Wells (Carl)	App Div, 1st Dept: 2017 NY Slip Op 86361(U) (NY)	dismissed 1/10/18 (DiFiore, Ch. J.)
People v Whitefield	1st Dept: 153 AD3d 1177 (Bronx)	denied 1/2/18 (Stein, J.)
People v Williams	4th Dept: 154 AD3d 1290 (Monroe)	denied 1/15/18 (Rivera, J.)
People v Yebaoh	1st Dept: 155 AD3d 506 (NY)	denied 1/29/18 (Wilson, J.)
People v Yong Chen	2d Dept: 155 AD3d 889 (Kings)	denied 1/9/18 (Garcia, J.)
People v Young	4th Dept: 151 AD3d 1967 (Monroe)	denied reconsideration 1/8/18 (DiFiore, Ch. J.) (Appeal Nos. 1 and 2)

[93 NE3d 881, 70 NYS3d 156]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
SPOSITO, Appellant.

Argued January 10, 2018; decided February 8, 2018

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 9, 2016. The Appellate Division order, insofar as appealed from, affirmed (1) a judgment of the Albany County Court (Stephen W. Herrick, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree and criminal sexual act in the first degree; and (2) an order of that County Court, which had denied, without a hearing, defendant's motion pursuant to CPL 440.30 (1-a) for an order directing the performance of DNA testing.

People v Sposito, 140 AD3d 1308, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation

1. Defendant failed to meet the burden of establishing his claim that counsel's performance was constitutionally deficient by demonstrating the absence of strategic or other legitimate explanations for counsel's alleged failures, and counsel's alleged out of court statements were outside the record and beyond review by the Court of Appeals on direct appeal.

Crimes — Vacatur of Judgment of Conviction — Motion for DNA Testing

2. Defendant's post-verdict motion for DNA testing was properly denied since he failed to show that there existed a reasonable probability that the verdict would have been more favorable to him if the requested testing had been carried out and the results admitted at trial (CPL 440.30 [1-a] [a] [1]).

APPEARANCES OF COUNSEL

Barket Marion Epstein & Kearon, LLP, Garden City (*Donna Aldea* of counsel), for appellant.

P. David Soares, District Attorney, Albany (*Michael C. Wetmore* and *Vincent Stark* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed.

[1] Defendant “bears the burden of establishing his claim that counsel’s performance is constitutionally deficient” (*People v Nicholson*, 26 NY3d 813, 831 [2016]; accord *People v Baldi*, 54 NY2d 137 [1981]) by “demonstrat[ing] the absence of strategic or other legitimate explanations for counsel’s alleged failure[s]” (*People v Wragg*, 26 NY3d 403, 409 [2015]; accord *People v Barboni*, 21 NY3d 393 [2013]). On this record, defendant fails to meet that burden and his counsel’s alleged out of court statements are “dehors the record and beyond review by this Court on direct appeal” (*People v Jackson*, 29 NY3d 18, 24 [2017]). As we have stated, “in the typical case it would be better, and in some cases essential, that an appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10” (*People v Brown*, 45 NY2d 852, 853-854 [1978]; accord *People v Campbell*, 30 NY3d 941, 942-943 [2017]). Consequently, his challenge on this direct appeal fails to establish that counsel’s performance was constitutionally deficient (see *People v Rivera*, 71 NY2d 705, 709 [1988]).

[2] Defendant’s post-verdict motion for DNA testing was also properly denied. He failed to show that “there exists a reasonable probability that the verdict would have been more favorable to the defendant” if the requested testing had been carried out and the results admitted at trial (CPL 440.30 [1-a] [a] [1]).

Chief Judge DiFiore and Judges Rivera, Fahey, Garcia, Wilson and Feinman concur; Judge Stein taking no part.

Order, insofar as appealed from, affirmed, in a memorandum.

[93 NE3d 901, 70 NYS3d 176]

In the Matter of RICHARD J. SHERWOOD, a Justice of the Guilderland Town Court, Albany County.

Decided February 27, 2018

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, of whether the Honorable Richard J. Sherwood should be suspended from the office of Justice of the Guilderland Town Court, Albany County.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, suspended a Town Court Justice from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Richard J. Sherwood is suspended, with pay, effective immediately, from the office of Justice of the Guilderland Town Court, Albany County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44.

Concur: Chief Judge DiFiore and Judges Rivera, Fahey, Garcia, Wilson and Feinman. Taking no part: Judge Stein.

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(February 1, 2018 through February 28, 2018)

Earvin, Matter of (Commissioner of Labor)	3d Dept: 155 AD3d 1238	2/8/18
Frantz, Matter of, v Venettozzi	3d Dept: 155 AD3d 1195	2/8/18

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APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2018 through February 28, 2018)

Farrugia v 1440 Broadway
Assoc.App Div, 1st Dept: 2016
NY Slip Op 31722(U)

2/21/18

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2018 through February 28, 2018)

People v Abdrabelnaby	App Term, 1st Dept: 58 Misc 3d 16 (NY)	denied 2/23/18 (Fahey, J.)
People v Alexander	1st Dept: 156 AD3d 422 (NY)	denied 2/23/18 (Fahey, J.)
People v Alsaidi	2d Dept: 156 AD3d 648 (Westchester)	denied 2/23/18 (Stein, J.)
People v Alvarez	App Div, 1st Dept: 2017 NY Slip Op 87246(U) (NY)	granted 2/8/18 (Wilson, J.)
People v Anonymous	1st Dept: 156 AD3d 414 (Bronx)	denied 2/27/18 (Fahey, J.)
People v Aponte	2d Dept: 149 AD3d 1096 (Kings)	denied 2/13/18 (DiFiore, Ch. J.)
People v Arce-Santiago	3d Dept: 154 AD3d 1172 (Montgomery)	denied 2/23/18 (Feinman, J.)
People v Armond	1st Dept: 156 AD3d 575 (NY)	denied 2/26/18 (DiFiore, Ch. J.)
People v Bacquie	2d Dept: 154 AD3d 648 (Queens)	denied 2/15/18 (Feinman, J.)
People v Baker	4th Dept: 156 AD3d 1482 (Onondaga)	denied 2/23/18 (Feinman, J.)
People v Batista	2d Dept: 155 AD3d 1064 (Westchester)	denied 2/22/18 (Stein, J.)
People v Billups	2d Dept: 156 AD3d 897 (Queens)	denied 2/26/18 (Feinman, J.)
People v Black	1st Dept: 156 AD3d 413 (NY)	denied 2/1/18 (Rivera, J.)
People v Blair	2d Dept: 154 AD3d 872 (Kings)	denied 2/8/18 (Feinman, J.)
People v Bonilla	1st Dept: 156 AD3d 461 (NY)	denied 2/8/18 (DiFiore, Ch. J.)
People v Bowman	4th Dept: 155 AD3d 1610 (Jefferson)	denied 2/1/18 (Rivera, J.)
People v Brian D.	1st Dept: 156 AD3d 524 (NY)	denied 2/21/18 (Stein, J.)
People v Brown (Andrew)	3d Dept: 154 AD3d 1004 (Broome)	denied 2/9/18 (Feinman, J.)
People v Brown (Devon)	1st Dept: 155 AD3d 449 (Bronx)	denied 2/1/18 (Rivera, J.)
People v Brown (Jamal)	App Term, 1st Dept: 57 Misc 3d 155(A) (NY)	denied 2/14/18 (Wilson, J.)

People v Budnack	4th Dept: 155 AD3d 1658 (Erie)	denied 2/23/18 (Feinman, J.)
People v Bursey	4th Dept: 155 AD3d 1513 (Monroe)	denied 2/23/18 (Feinman, J.)
People v Butler	4th Dept: 153 AD3d 1588 (Orleans)	denied 2/8/18 (Feinman, J.)
People v Caceres	2d Dept: 155 AD3d 972 (Suffolk)	denied 2/23/18 (Feinman, J.)
People v Caceres- Hernandez	2d Dept: 155 AD3d 972 (Suffolk)	denied 2/23/18 (Feinman, J.)
People v Campbell (Devaughn)	1st Dept: 155 AD3d 412 (NY)	denied 2/8/18 (DiFiore, Ch. J.)
People v Campbell (Everett)	3d Dept: 155 AD3d 1250 (Schenectady)	denied 2/1/18 (Rivera, J.)
People v Carlucci	App Div, 2d Dept: 2017 NY Slip Op 79577(U) (Queens)	dismissed 2/22/18 (Feinman, J.)
People v Carrington	2d Dept: 155 AD3d 888 (Queens)	denied 2/15/18 (Feinman, J.)
People v Carter	1st Dept: 156 AD3d 447 (NY)	denied 2/7/18 (Rivera, J.)
People v Cataldo	App Term, 2d Dept, 9th & 10th Jud Dists: 57 Misc 3d 153(A) (Suffolk)	denied 2/28/18 (Feinman, J.)
People v Clarke	3d Dept: 155 AD3d 1242 (Broome)	denied 2/23/18 (Feinman, J.)
People v Clayfield	4th Dept: 155 AD3d 1682 (Oneida)	denied 2/26/18 (Feinman, J.)
People v Clemente	1st Dept: 156 AD3d 552 (Bronx)	denied 2/26/18 (Wilson, J.)
People v Cochran	4th Dept: 156 AD3d 1474 (Monroe)	denied 2/8/18 (Garcia, J.)
People v Coleman	3d Dept: 155 AD3d 1097 (Clinton)	denied 2/15/18 (Feinman, J.)
People v Concepcion	1st Dept: 155 AD3d 519 (Bronx)	denied 2/23/18 (Fahey, J.)
People v Cordero	1st Dept: 156 AD3d 409 (NY)	denied 2/26/18 (Stein, J.)
People v Cortes	1st Dept: 155 AD3d 579 (NY)	denied 2/1/18 (Garcia, J.)
People v Cruz	2d Dept: 153 AD3d 1271 (Westchester)	denied reconsideration 2/26/18 (Feinman, J.)
People v Cruzado	2d Dept: 156 AD3d 899 (Kings)	denied 2/27/18 (Fahey, J.)
People v Dallas	1st Dept: 155 AD3d 563 (NY)	denied 2/26/18 (DiFiore, Ch. J.)
People v Dancy	2d Dept: 156 AD3d 717 (Dutchess)	denied 2/26/18 (Feinman, J.)
People v Davis	3d Dept: 155 AD3d 1311 (Broome)	denied 2/1/18 (Rivera, J.)

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People v DeFreitas	2d Dept: 156 AD3d 718 (Nassau)	denied 2/26/18 (Feinman, J.)
People v DeJesus	2d Dept: 156 AD3d 899 (Kings)	denied 2/23/18 (Rivera, J.)
People v Dogan	4th Dept: 154 AD3d 1314 (Erie)	denied 2/9/18 (Feinman, J.)
People v Dorsey	2d Dept: 155 AD3d 890 (Kings)	denied 2/23/18 (Rivera, J.)
People v Ellsworth	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 157(A) (Queens)	denied 2/15/18 (Feinman, J.)
People v Evans	App Term, 1st Dept: 57 Misc 3d 159(A) (NY)	denied 2/8/18 (Garcia, J.)
People v Farrell	3d Dept: 156 AD3d 1062 (Franklin)	denied 2/9/18 (Wilson, J.)
People v Fay	3d Dept: 154 AD3d 1178 (Broome)	denied 2/15/18 (Feinman, J.)
People v Fletcher	4th Dept: 156 AD3d 1469 (Onondaga)	denied 2/27/18 (Wilson, J.)
People v Floyd	4th Dept: 155 AD3d 1558 (Livingston)	denied 2/15/18 (Feinman, J.)
People v Gaines	1st Dept: 156 AD3d 553 (Bronx)	denied 2/26/18 (DiFiore, Ch. J.)
People v Garcia	2d Dept: 156 AD3d 813 (Queens)	denied 2/26/18 (Wilson, J.)
People v Garcia-Toro	3d Dept: 155 AD3d 1086 (Montgomery)	denied 2/5/18 (DiFiore, Ch. J.)
People v Genao	1st Dept: 154 AD3d 492 (NY)	denied 2/23/18 (Fahey, J.)
People v Glass	3d Dept: 150 AD3d 1408 (Albany)	denied 2/20/18 (Garcia, J.)
People v Gliwski	4th Dept: 156 AD3d 1393 (Genesee)	denied 2/26/18 (Feinman, J.)
People v Gonzalez (Alfredo)	1st Dept: 156 AD3d 510 (NY)	denied 2/27/18 (Fahey, J.)
People v Gonzalez (Octavio)	1st Dept: 155 AD3d 507 (NY)	denied 2/26/18 (Wilson, J.)
People v Gordon	County Ct, 11/8/17 (Monroe)	denied 2/22/18 (Stein, J.)
People v Gulifield	2d Dept: 138 AD3d 1139 (Rockland)	denied 2/23/18 (Feinman, J.)
People v Guzman	2d Dept: 154 AD3d 775 (Queens)	denied 2/9/18 (Feinman, J.)
People v Hardy	1st Dept: 156 AD3d 582 (NY)	denied 2/26/18 (DiFiore, Ch. J.)
People v Harvey	App Term, 1st Dept: 57 Misc 3d 156(A) (Bronx)	denied 2/23/18 (Rivera, J.)
People v Herrera	1st Dept: 151 AD3d 601 (NY)	denied 2/23/18 (Rivera, J.)
People v Hickerson	App Term, 1st Dept: 57 Misc 3d 152(A) (NY)	denied 2/1/18 (Garcia, J.)

People v Hill	1st Dept: 155 AD3d 557 (NY)	denied 2/13/18 (Stein, J.)
People v Holloway	1st Dept: 156 AD3d 466 (NY)	denied 2/12/18 (DiFiore, Ch. J.)
People v Hook	App Div, 3d Dept: 2017 NY Slip Op 88223(U) (Warren)	denied reconsideration 2/23/18 (Fahey, J.)
People v Howard	2d Dept: 156 AD3d 724 (Kings)	denied 2/23/18 (Feinman, J.)
People v Hydara	1st Dept: 154 AD3d 584 (Bronx)	denied 2/1/18 (Stein, J.)
People v Izzo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 57 Misc 3d 149(A) (Kings)	denied 2/13/18 (Stein, J.)
People v Jabbar	1st Dept: 155 AD3d 586 (NY)	denied 2/8/18 (Garcia, J.)
People v Jabot	3d Dept: 156 AD3d 954 (Warren)	denied 2/28/18 (Wilson, J.)
People v Jackson	App Term, 1st Dept: 58 Misc 3d 130(A) (NY)	denied 2/13/18 (Stein, J.)
People v James	3d Dept: 155 AD3d 1094 (Albany)	denied 2/1/18 (Garcia, J.)
People v Jimenez	1st Dept: 155 AD3d 591 (NY)	denied 2/15/18 (Garcia, J.)
People v Jones (Antonio)	4th Dept: 155 AD3d 1609 (Erie)	denied 2/14/18 (Wilson, J.)
People v Jones (Ivan)	1st Dept: 156 AD3d 440 (Bronx)	denied 2/22/18 (Stein, J.)
People v Jones (Rahiem)	3d Dept: 156 AD3d 960 (Albany)	denied 2/5/18 (Garcia, J.)
People v Joubert	3d Dept: 155 AD3d 1255 (Clinton)	denied 2/23/18 (Feinman, J.)
People v Kamara	App Term, 1st Dept: 57 Misc 3d 152(A) (NY)	denied 2/20/18 (Stein, J.)
People v Kende	App Term, 1st Dept: 58 Misc 3d 133(A) (NY)	denied 2/27/18 (Wilson, J.)
People v King	County Ct, 10/24/17 (Greene)	dismissed 2/1/18 (Garcia, J.)
People v Laboriel	App Div, 1st Dept: 2017 NY Slip Op 64001(U) (NY)	denied reconsideration 2/1/18 (Garcia, J.)
People v Lebron	1st Dept: 156 AD3d 428 (Bronx)	denied 2/28/18 (DiFiore, Ch. J.)
People v Lee	2d Dept: 151 AD3d 982 (Queens)	denied 2/26/18 (DiFiore, Ch. J.)
People v Lopez (Andrew)	2d Dept: 155 AD3d 892 (Kings)	denied 2/5/18 (Garcia, J.)
People v Lopez (Brian)	1st Dept: 156 AD3d 443 (NY)	denied 2/5/18 (Garcia, J.)
People v Lopez (Steven)	2d Dept: 156 AD3d 903 (Queens)	denied 2/26/18 (Feinman, J.)

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People v Lott	2d Dept: 156 AD3d 817 (Kings)	denied 2/8/18 (DiFiore, Ch. J.)
People v Lumpkin	2d Dept: 154 AD3d 966 (Kings)	denied 2/9/18 (Wilson, J.)
People v Maillet	2d Dept: 156 AD3d 726 (Orange)	denied 2/27/18 (DiFiore, Ch. J.)
People v Maloy	App Div, 3d Dept: 2017 NY Slip Op 73662(U) (Sullivan)	denied reconsideration 2/26/18 (Wilson, J.)
People v Mandel	App Term, 1st Dept: 57 Misc 3d 153(A) (NY)	denied 2/8/18 (Garcia, J.)
People v Marshall	1st Dept: 156 AD3d 431 (NY)	denied 2/13/18 (Stein, J.)
People v Martin	1st Dept: 155 AD3d 589 (NY)	denied 2/1/18 (Rivera, J.)
People v Martinez (Angel)	2d Dept: 155 AD3d 1063 (Westchester)	denied 2/1/18 (Rivera, J.)
People v Martinez (Jordan)	1st Dept: 156 AD3d 545 (NY)	denied 2/23/18 (Fahey, J.)
People v Mastowski	4th Dept: 155 AD3d 1624 (Monroe)	denied 2/27/18 (Wilson, J.)
People v McAllister	App Term, 1st Dept: 57 Misc 3d 159(A) (Bronx)	denied 2/23/18 (Rivera, J.)
People v McAuley	2d Dept: 154 AD3d 720 (Queens)	denied 2/27/18 (Wilson, J.)
People v McCabe	4th Dept: 155 AD3d 1572 (Erie)	denied 2/23/18 (Feinman, J.)
People v McClellan	4th Dept: 155 AD3d 1559 (Niagara)	denied 2/8/18 (Feinman, J.)
People v McClenic	2d Dept: 155 AD3d 1064 (Nassau)	denied 2/26/18 (Feinman, J.)
People v McLeggan	2d Dept: 156 AD3d 903 (Queens)	denied 2/27/18 (Fahey, J.)
People v McRae	App Div, 2d Dept: 2017 NY Slip Op 95614(U) (Kings)	dismissed 2/12/18 (DiFiore, Ch. J.)
People v Medero	1st Dept: 155 AD3d 469 (NY)	denied 2/1/18 (Garcia, J.)
People v Mellerson	4th Dept: 156 AD3d 1488 (Erie)	denied 2/26/18 (DiFiore, Ch. J.)
People v Mercado	1st Dept: 156 AD3d 456 (NY)	denied 2/23/18 (Rivera, J.)
People v Milton (Jasmine)	4th Dept: 155 AD3d 1607 (Erie)	denied 2/1/18 (Garcia, J.)
People v Milton (Rasheed)	4th Dept: 155 AD3d 1583 (Erie)	denied 2/1/18 (Rivera, J.)
People v Moore	1st Dept: 155 AD3d 513 (Bronx)	denied 2/1/18 (Garcia, J.)
People v Morales (Esmerilda)	2d Dept: 155 AD3d 974 (Kings)	denied 2/23/18 (Feinman, J.)

People v Morales (Jason)	1st Dept: 154 AD3d 608 (Bronx)	denied 2/1/18 (Stein, J.)
People v Morrison	3d Dept: 156 AD3d 126 (Albany)	denied 2/8/18 (Garcia, J.)
People v Muller	3d Dept: 155 AD3d 1091 (Albany)	denied 2/27/18 (Fahey, J.)
People v Munoz	2d Dept: 154 AD3d 881 (Kings)	denied 2/9/18 (Feinman, J.)
People v Murray	2d Dept: 154 AD3d 881 (Queens)	denied 2/9/18 (Feinman, J.)
People v Norstrand	4th Dept: 154 AD3d 1322 (Monroe)	denied 2/9/18 (Feinman, J.)
People v Nunez	1st Dept: 155 AD3d 444 (Bronx)	denied 2/13/18 (Stein, J.)
People v Pagan	2d Dept: 155 AD3d 779 (Kings)	denied 2/1/18 (Garcia, J.)
People v Pena	1st Dept: 155 AD3d 439 (NY)	denied 2/1/18 (Rivera, J.)
People v Perez	1st Dept: 156 AD3d 507 (NY)	denied 2/5/18 (Garcia, J.)
People v Perry	2d Dept: 156 AD3d 654 (Kings)	denied 2/23/18 (Fahey, J.)
People v Person	4th Dept: 153 AD3d 1561 (Erie)	denied 2/1/18 (Garcia, J.)
People v Peters	1st Dept: 157 AD3d 79 (NY)	denied 2/27/18 (Fahey, J.)
People v Pine	App Div, 3d Dept: 2017 NY Slip Op 93356(U) (Greene)	dismissed 2/2/18 (Rivera, J.)
People v Planty	3d Dept: 155 AD3d 1130 (St. Lawrence)	denied 2/23/18 (Rivera, J.)
People v Polancobatista	2d Dept: 155 AD3d 1064 (Westchester)	denied 2/22/18 (Stein, J.)
People v Powell	2d Dept: 151 AD3d 889 (Kings)	denied 2/5/18 (DiFiore, Ch. J.)
People v Powell- Dickerson	2d Dept: 151 AD3d 889 (Kings)	denied 2/5/18 (DiFiore, Ch. J.)
People v Prokop	2d Dept: 155 AD3d 975 (Queens)	denied 2/27/18 (Wilson, J.)
People v Quick	2d Dept: 155 AD3d 654 (Kings)	denied 2/8/18 (Feinman, J.)
People v Raybon C.	1st Dept: 156 AD3d 416 (Bronx)	denied 2/8/18 (DiFiore, Ch. J.)
People v Reader	2d Dept: 155 AD3d 976 (Kings)	denied 2/8/18 (Garcia, J.)
People v Reed	4th Dept: 155 AD3d 1610 (Monroe)	denied 2/1/18 (Garcia, J.)
People v Reyes	1st Dept: 156 AD3d 467 (NY)	denied 2/1/18 (Stein, J.)
People v Richardson (Derrick)	1st Dept: 156 AD3d 504 (NY)	denied 2/23/18 (Rivera, J.)

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People v Richardson (Shanon)	4th Dept: 155 AD3d 1595 (Erie)	denied 2/27/18 (Wilson, J.)
People v Rivera	1st Dept: 156 AD3d 420 (Bronx)	denied 2/8/18 (Stein, J.)
People v Rkein	1st Dept: 152 AD3d 434 (NY)	granted 2/22/18 (Rivera, J.)
People v Robinson (Herman)	3d Dept: 156 AD3d 1123 (Schenectady)	denied 2/23/18 (Fahey, J.)
People v Robinson (Sidney)	1st Dept: 154 AD3d 500 (NY)	denied 2/15/18 (Wilson, J.)
People v Robinson (Tammy)	3d Dept: 155 AD3d 1252 (Schenectady)	denied 2/8/18 (Feinman, J.)
People v Rodriguez	4th Dept: 156 AD3d 1433 (Ontario)	denied 2/8/18 (Stein, J.)
People v Rogers	3d Dept: 157 AD3d 1001 (Rensselaer)	denied 2/26/18 (Wilson, J.)
People v Roman	2d Dept: 154 AD3d 969 (Westchester)	denied 2/8/18 (Feinman, J.)
People v Rouse	1st Dept: 155 AD3d 555 (NY)	denied 2/5/18 (Garcia, J.)
People v Ruan	App Term, 1st Dept: 57 Misc 3d 159(A) (NY)	denied 2/7/18 (Rivera, J.)
People v Russell	3d Dept: 155 AD3d 1432 (Sullivan)	denied 2/23/18 (Fahey, J.)
People v Sampson	1st Dept: 154 AD3d 541 (Bronx)	denied 2/15/18 (Wilson, J.)
People v Sanchez	1st Dept: 155 AD3d 511 (NY)	denied 2/23/18 (Rivera, J.)
People v Santiago	1st Dept: 155 AD3d 506 (Bronx)	dismissed 2/28/18 (Fahey, J.)
People v Saraceni	4th Dept: 153 AD3d 1559 (Genesee)	denied 2/28/18 (Feinman, J.) (Appeal No. 1)
People v Sawhney	2d Dept: 155 AD3d 654 (Orange)	denied 2/15/18 (Stein, J.)
People v Schlackman	2d Dept: 153 AD3d 641 (Queens)	denied reconsideration 2/15/18 (Garcia, J.)
People v Schrock	4th Dept: 153 AD3d 1674 (Cattaraugus)	denied reconsideration 2/23/18 (Feinman, J.)
People v Scott	App Div, 2d Dept: 2017 NY Slip Op 92761(U) (Kings)	dismissed 2/27/18 (Fahey, J.)
People v Shau Chan	2d Dept: 155 AD3d 1066 (Queens)	denied 2/15/18 (Garcia, J.)
People v Shaw	3d Dept: 155 AD3d 1097 (Clinton)	denied 2/15/18 (Feinman, J.)
People v Simmons	2d Dept: 155 AD3d 782 (Westchester)	denied 2/8/18 (Stein, J.)

People v Small	2d Dept: 156 AD3d 820 (Nassau)	denied 2/23/18 (Feinman, J.)
People v Smith (Brian)	4th Dept: 155 AD3d 1609 (Monroe)	denied 2/13/18 (Stein, J.)
People v Smith (Paul)	1st Dept: 155 AD3d 542 (NY)	denied 2/1/18 (Rivera, J.)
People v Smith (Stanley)	4th Dept: 155 AD3d 1674 (Erie)	denied 2/23/18 (Feinman, J.)
People v Smith (Winston)	App Term, 1st Dept: 57 Misc 3d 156(A) (NY)	denied 2/15/18 (Garcia, J.)
People v Snyder	4th Dept: 156 AD3d 1415 (Erie)	denied 2/26/18 (DiFiore, Ch. J.)
People v Soto	2d Dept: 155 AD3d 1066 (Putnam)	denied 2/5/18 (Garcia, J.)
People v Southall	1st Dept: 156 AD3d 111 (NY)	denied 2/27/18 (Wilson, J.)
People v Stanley	4th Dept: 155 AD3d 1684 (Cayuga)	denied 2/26/18 (DiFiore, Ch. J.)
People v Steele	4th Dept: 155 AD3d 1609 (Erie)	denied 2/14/18 (Wilson, J.)
People v Stumbo	4th Dept: 155 AD3d 1604 (Ontario)	denied 2/13/18 (Stein, J.)
People v Tardif	App Term, 1st Dept: 58 Misc 3d 31 (NY)	denied 2/26/18 (Wilson, J.)
People v Taylor	3d Dept: 156 AD3d 86 (Saratoga)	denied 2/1/18 (Garcia, J.)
People v Tejada	App Term, 1st Dept: 57 Misc 3d 129(A) (NY)	denied 2/13/18 (DiFiore, Ch. J.)
People v Torres	1st Dept: 156 AD3d 518 (Bronx)	denied 2/27/18 (Fahey, J.)
People v Tout-Puissant (Jean)	2d Dept: 155 AD3d 654 (Queens)	denied 2/8/18 (Wilson, J.)
People v Toutpuissant (Jean)	2d Dept: 155 AD3d 654 (Queens)	denied 2/8/18 (Wilson, J.)
People v Towns	4th Dept: 151 AD3d 1638 (Monroe)	granted 2/28/18 (DiFiore, Ch. J.)
People v Travis (Brian)	4th Dept: 156 AD3d 1399 (Monroe)	denied 2/28/18 (Feinman, J.) (Appeal No. 1)
People v Travis (Brian)	4th Dept: 156 AD3d 1401 (Monroe)	denied 2/28/18 (Feinman, J.) (Appeal No. 2)
People v Tsintzelis	2d Dept: 153 AD3d 558 (Queens)	denied 2/9/18 (Feinman, J.)
People v Turner	2d Dept: 155 AD3d 787 (Queens)	denied 2/9/18 (Feinman, J.)
People v Twillie	4th Dept: 155 AD3d 1686 (Monroe)	denied 2/1/18 (Garcia, J.)
People v Tzep	4th Dept: 155 AD3d 1578 (Ontario)	denied 2/23/18 (Feinman, J.)

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People v Varela	2d Dept: 155 AD3d 655 (Queens)	denied 2/9/18 (Feinman, J.)
People v Vargas (Bladimir)	1st Dept: 155 AD3d 497 (Bronx)	denied 2/1/18 (Rivera, J.)
People v Vargas (Braolio)	4th Dept: 155 AD3d 1530 (Ontario)	denied 2/15/18 (Stein, J.)
People v Vargas (Vladimir)	1st Dept: 155 AD3d 497 (Bronx)	denied 2/1/18 (Rivera, J.)
People v Vieweg	3d Dept: 155 AD3d 1305 (Tompkins)	denied 2/23/18 (Rivera, J.)
People v Walton-Carter	County Ct, 10/10/17 (Monroe)	denied 2/15/18 (Wilson, J.)
People v Watson	1st Dept: 155 AD3d 553 (NY)	denied 2/9/18 (Wilson, J.)
People v White	1st Dept: 157 AD3d 424 (NY)	denied 2/26/18 (DiFiore, Ch. J.)
People v Williams (Kenneth)	App Div, 3d Dept: 2017 NY Slip Op 92621(U) (Albany)	denied 2/8/18 (DiFiore, Ch. J.)
People v Williams (Nyguel)	3d Dept: 155 AD3d 1260 (Albany)	denied 2/26/18 (Wilson, J.)
People v Williams (Ronnie)	App Div, 2d Dept: 2017 NY Slip Op 85074(U) (Suffolk)	dismissed 2/1/18 (Garcia, J.)
People v Williams (Sean)	2d Dept: 154 AD3d 888 (Kings)	denied 2/9/18 (Feinman, J.)
People v Wilson	App Div, 1st Dept: 2017 NY Slip Op 64001(U) (NY)	denied reconsideration 2/1/18 (Garcia, J.)
People v Woods	3d Dept: 153 AD3d 1525 (Albany)	denied 2/5/18 (Garcia, J.)
People v Wright	3d Dept: 155 AD3d 1452 (St. Lawrence)	denied 2/15/18 (Feinman, J.)
People v Youngblood	4th Dept: 153 AD3d 1673 (Monroe)	dismissed 2/26/18 (Wilson, J.)

[94 NE3d 443, 70 NYS3d 880]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOUGLAS MCCAIN, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERT EDWARD, Appellant.

Argued January 4, 2018; decided February 13, 2018

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second

Judicial Department, Second, Eleventh and Thirteenth Judicial Districts, entered December 31, 2015. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, Queens County (Stephanie L. Zaro, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the fourth degree.

APPEAL, in the second above-entitled action, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered March 22, 2016. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Abraham L. Clott, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the fourth degree.

People v McCain, 50 Misc 3d 132(A), 2015 NY Slip Op 51939(U), affirmed.

People v Edward, 51 Misc 3d 36, affirmed.

HEADNOTE

Crimes — Possession of Weapon — Sufficiency of Accusatory Instrument

The accusatory instruments charging defendants with criminal possession of a weapon in the fourth degree were sufficient to support that charge, where the factual allegations of each misdemeanor complaint established reasonable cause (*see* CPL 100.40 [4] [b]; 70.10 [2]) to believe that each defendant possessed a “dangerous knife” (Penal Law § 265.01 [2]), triggering the statutory presumption of unlawful intent arising from such possession (Penal Law § 265.15 [4]).

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Amy Donner* of counsel), for appellant in the first above-entitled action.

Richard A. Brown, District Attorney, Kew Gardens (*Kayonia L. Whetstone, John M. Castellano* and *Joseph N. Ferdenzi* of counsel), for respondent in the first above-entitled action.

Seymour W. James, Jr., The Legal Aid Society, New York City (*Lawrence T. Hausman* and *Whitney A. Robinson* of counsel), for appellant in the second above-entitled action.

Cyrus R. Vance, Jr., District Attorney, New York City (*Sheryl Feldman* and *Alan Gadlin* of counsel), for respondent in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

On each appeal, the order of the Appellate Term should be affirmed.

The factual allegations of a misdemeanor complaint must establish “reasonable cause” to believe that a defendant committed the charged offense (*see* CPL 100.40 [4] [b]; *People v Kalin*, 12 NY3d 225, 228 [2009]). Reasonable cause “exists when evidence or information which appears reliable discloses facts or circumstances which are collectively of such weight and persuasiveness as to convince a person of ordinary intelligence, judgment and experience that it is reasonably likely that such offense was committed and that such person committed it” (CPL 70.10 [2]).

Here, the factual allegations of each misdemeanor complaint establish reasonable cause to believe that each defendant possessed a “dangerous knife” (Penal Law § 265.01 [2]), triggering the statutory presumption of unlawful intent arising from such possession (Penal Law § 265.15 [4]). Accordingly, each accusatory instrument was sufficient to support a charge of criminal possession of a weapon in the fourth degree. Therefore, we need not address the People’s alternative jurisdictional argument in *People v Edward*.

STEIN, J. (concurring). I concur on constraint of our prior precedent.

WILSON, J. (concurring in *People v McCain*, dissenting in *People v Edward*). I concur in the result in *People v McCain* because the officer’s sworn statement attached to the complaint specifies that the “knife was activated by deponent to an open and locked position through the force of gravity,” which meets the statutory definition of “gravity knife” in Penal Law § 265.00 (5), and therefore a fortiori is a “dangerous knife” under Penal Law § 265.01, when subdivisions (1) and (2) thereof are read together.

I dissent from the result in *People v Edward* for the reasons set out in Judge Simons’ dissent in *Matter of Jamie D.* (59 NY2d 589 [1983]).

In *People v McCain*: Order affirmed, in a memorandum.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and FEINMAN concur, Judge STEIN in a concurring opinion. Judge WILSON concurs in result in a separate concurring opinion.

In *People v Edward*: Order affirmed, in a memorandum.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Feinman concur, Judge Stein in a concurring opinion. Judge Wilson dissents in an opinion.

[94 NE3d 442, 70 NYS3d 879]

In the Matter of ROBERT W. KOWAL, Appellant, v THOMAS P. DiNAPOLI, as State Comptroller, et al., Respondents.

Decided February 13, 2018

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 1, 2016, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division confirmed a determination of respondent State Comptroller, which had denied petitioner's application for accidental disability retirement benefits, and dismissed the petition.

Matter of Kowal v DiNapoli, 145 AD3d 1152, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement

In a CPLR article 78 proceeding, the Appellate Division properly confirmed respondent State Comptroller's determination denying petitioner's application for accidental disability retirement benefits. Substantial evidence supported the determination, and respondent rationally determined that petitioner failed to establish that his injuries were caused by a sudden, unexpected event that was not a risk inherent in the work performed.

APPEARANCES OF COUNSEL

Edelstein & Grossman, New York City (*Jonathan I. Edelstein* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (*Kate H. Nepveu*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, with costs. Substantial evidence supports the determination

denying petitioner's application for accidental disability retirement benefits. Respondent rationally determined that petitioner failed to establish that his injuries were caused by a sudden, unexpected event that was not a risk inherent in the work performed (*see Matter of Kelly v DiNapoli*, 30 NY3d 674, 678 [2018] [decided today]; *Matter of McCambridge v McGuire*, 62 NY2d 563, 568 [1984]; *Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, with costs, in a memorandum.

[94 NE3d 899, 71 NYS3d 411]

ROBERT GERRISH, Respondent, v 56 LEONARD LLC et al., Appellants, et al., Defendant.

Decided February 20, 2018

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 16, 2017. The Appellate Division order (1) reversed, on the law and the facts, an order of the Supreme Court, New York County (Barbara Jaffe, J.; op 2015 NY Slip Op 32808[U] [2015]), which had, insofar as appealed from as limited by the briefs, granted the motion of defendants 56 Leonard LLC and Lend Lease (US) Construction LMB Inc. to dismiss plaintiff's Labor Law § 241 (6) claim as against them; and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Gerrish v 56 Leonard LLC, 147 AD3d 511, affirmed.

HEADNOTE

Labor — Safe Place to Work — What Constitutes Construction Area

The Appellate Division properly denied defendants' motion to dismiss plaintiff's Labor Law § 241 (6) claim, where the complaint stated a cause of

action and defendants' documentary evidence did not establish, as a matter of law, that the work site where plaintiff's injury occurred was not a construction area in accordance with the statute.

APPEARANCES OF COUNSEL

Ropers, Majeski, Kohn & Bentley, New York City (*Jason L. Beckerman* and *Douglas H. Miller* of counsel), for appellants.

Sacks and Sacks, LLP, New York City (*Scott N. Singer* of counsel), for respondent.

Shaub, Ahmuty, Citrin & Spratt, LLP, Lake Success (*Christopher Simone* and *Gerard S. Rath* of counsel), for Real Estate Board of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative. Liberally construing the complaint, presuming the facts alleged to be true and affording plaintiff the benefit of all favorable inferences, the complaint states a cause of action and defendants' documentary evidence does not establish, as a matter of law, that the work site where plaintiff's injury occurred was not a construction area in accordance with Labor Law § 241 (6).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur. Judge Feinman taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

CLASS ACTIONS.

1. Notice of Dismissal, Discontinuance or Compromise — Notice to Putative Class Members.—CPLR 908, which provides that “[a] class action shall not be dismissed, discontinued, or compromised without the approval of the court,” and that “[n]otice of the proposed dismissal, discontinuance, or compromise shall be given to all members of the class in such manner as the court directs,” applies to class actions that are settled or dismissed before the class has been certified. The text of CPLR 908 is ambiguous with respect to this issue, as the statute refers to a “class action” instead of “certified class action” or “maintained as a class action,” and to “all members of the class” instead of “all members of the certified class” or “all members of the class who would be bound” by the proposed termination. CPLR 908 has not been amended since it was originally enacted in 1975, and the only previous appellate-level decision to address the issue as it pertains to CPLR 908 concluded that CPLR 908 applied to settlements reached before certification (*Avena v Ford Motor Co.*, 85 AD2d 149 [1st Dept 1982]). For 35 years *Avena* has been New York’s sole appellate judicial interpretation of whether notice to putative class members before certification is required by CPLR 908. Under those circumstances, and in light of the legislative history, the legislature’s refusal to amend CPLR 908 in the decades since *Avena* was decided indicates that the *Avena* decision correctly ascertained the legislature’s intent. Any practical difficulties and policy concerns that may arise from *Avena*’s interpretation of CPLR 908 are best addressed by the legislature, especially considering that there are also policy reasons in favor of applying CPLR 908 in the pre-certification context, such as ensuring that the settlement between the named plaintiff and the defendant is free from collusion and that absent putative class members will not be prejudiced. *Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

APPEAL—Cont'd**ACADEMIC AND MOOT QUESTIONS.**

1. Subsequent Family Court Proceedings.—Respondent mother's appeal from a second permanency hearing order which denied her motion to dismiss the proceeding, made on the ground that Family Court did not have subject matter jurisdiction because the underlying neglect petition had been dismissed for failure to prove neglect, and continued her child's placement in foster care was not rendered moot by subsequent occurrences involving the parties. During the pendency of the appeal, the second permanency hearing order was superseded by a third, a fourth permanency hearing was scheduled, a proceeding to terminate respondent's parental rights was commenced and stayed pending the result of the appeal here, and a second neglect petition was filed. None of those occurrences resolved the conflict between the parties, and each permanency hearing—docketed under the first neglect petition—remained subject to the same jurisdictional objection as its predecessor. Moreover, even if the appeal were moot, the exception to that doctrine would apply. *Matter of Jamie J. (Michelle E.C.)*, 30 NY3d 275.

COURT OF APPEALS.

2. Dismissal.—An appeal from an Appellate Division order, which reversed a Supreme Court order granting petitioner's motion for leave to serve a late notice of claim pursuant to General Municipal Law § 50-e, was dismissed by the Court of Appeals upon the ground that the two-Justice dissent at the Appellate Division was not on a question of law (see CPLR 5601 [a]). A disagreement as to whether Supreme Court improvidently exercised its discretion is not a matter of law. *Matter of Grajko v City of New York*, 30 NY3d 1011.

PRESERVATION OF ISSUE FOR REVIEW.

3. Respondent mother's appeal from a second permanency hearing order which denied her motion to dismiss the proceeding, made on the ground that Family Court did not have subject matter jurisdiction because the underlying neglect petition had been dismissed for failure to prove neglect, and continued her child's placement in foster care was preserved for review by the Court of Appeals. The jurisdictional objection, which may be raised at any time and may not be waived, was preserved in respondent's letter to Family Court, through her proposed order to show cause, and at the second permanency hearing. Her eventual consent to the second permanency order was expressly understood by all parties and by the court as a means of expediting appellate review, not a waiver of the alleged defect. Finally, her due process argument was not a stand-alone challenge requiring notice to the Attorney General, but an invocation, in service of her jurisdictional challenge, of the canon of constitutional avoidance—that the statute should be construed, if possible, to avoid the due process infirmity to which she pointed. *Matter of Jamie J. (Michelle E.C.)*, 30 NY3d 275.

ARBITRATION.

See, also, INSURANCE.

MATTERS ARBITRABLE.

1. Successive Agreements.—In an action alleging, among other things, breach of financial consulting agreements, defendants' motions to compel arbitration were granted. Under the circumstances, including the terms of the parties' final agreements, which incorporated the rules of the London Court of International Arbitration, the issue of whether the parties' dispute was arbitrable was an issue to be resolved by the arbitrator. *Garthon Bus. Inc. v Stein*, 30 NY3d 943.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS.

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL RIGHTS.

NEW YORK CITY HUMAN RIGHTS LAW.

1. Employment Discrimination Based on Disability — Perceived Untreated Alcoholism.—Administrative Code of the City of New York §§ 8-102 (16) (c) and 8-107 (1) (a) preclude a disability discrimination claim based solely on a perception of untreated alcoholism. Administrative Code § 8-107 (1) (a) (3) prohibits discrimination in employment “because of the actual or perceived . . . disability . . . of any person.” Pursuant to Administrative Code § 8-102 (16) (c), the term “disability,” in the context of “alcoholism, drug addiction or other substance abuse,” only applies “to a person who (1) is recovering or has recovered and (2) currently is free of such abuse.” Therefore, the Administrative Code does not consider a mistaken perception of alcoholism to be a disability covered by the New York City Human Rights Law (Administrative Code § 8-101 *et seq.* [NYCHRL]). By its plain language, the NYCHRL does not regulate employer actions motivated by concern with respect to the abuse of alcohol. Rather, the NYCHRL covers circumstances in which employers unfairly typecast alcoholics who have sought treatment and who are not presently abusing alcohol, so as to ensure that such persons are afforded a fair opportunity at recovery. Although the Local Civil Rights Restoration Act of 2005 mandates that the NYCHRL be read broadly and refers to the New York State Human Rights Law (NYSHRL) and the Americans with Disabilities Act (ADA), which cover alcoholics presently abusing alcohol as well as recovering and recovered alcoholics, as floors below which the NYCHRL should not fall, the City Council has, through its express language, mandated narrower coverage than the NYSHRL or the ADA. The Restoration Act’s requirement that the statute be construed broadly cannot apply when the NYCHRL expressly requires otherwise. *Makinen v City of New York*, 30 NY3d 81.

2. Punitive Damages Standard.—The standard for determining punitive damages under the New York City Human Rights Law (NYCHRL) is whether the wrongdoer has engaged in discrimination with willful or wanton negligence, or recklessness, or a conscious disregard of the rights of others or conduct so reckless as to amount to such disregard. The NYCHRL makes punitive damages available, but there is no provision in the NYCHRL setting a standard for imposing them. “Punitive damages”—as used in Administrative Code of the City of NY § 8-502—is a legal term of art that has meaning under the New York common law. The common-law standard for punitive damages as articulated in *Home Ins. Co. v American Home Prods. Corp.* (75 NY2d 196, 203-204 [1990]) requires neither a showing of malice nor awareness of the violation of a protected right, representing the lowest threshold, and the least stringent form, for the state of mind required to impose punitive damages. By implementing a lower degree of culpability and eschewing the knowledge requirement, applying this standard adheres to the City Council’s liberal construction mandate while remaining consistent with the language of the statute (*see* Administrative Code § 8-502 [a]). It is also properly reflective of the serious and destructive nature of the underlying discriminatory conduct and the goal of deterring future reprehensible conduct. Furthermore, subjecting NYCHRL defendants to punitive damages under this standard encourages nondiscriminatory behavior and the development and application of appropriate employment criteria. *Chauca v Abraham*, 30 NY3d 325.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

PUBLIC EMPLOYEES' FAIR EMPLOYMENT ACT.

1. Collective Bargaining — Police Discipline.—Civil Service Law article 14 (Taylor Law), which requires public employers “to negotiate collectively . . . in the determination of, and administration of grievances arising under, the terms and conditions of employment of the public employees” (Civil Service Law § 204 [2]), does not supersede the Second Class Cities Law, which governs police discipline within cities designated as second class based on population. Accordingly, Supreme Court erred in confirming respondent New York State Public Employment Relations Board’s determination that petitioner City of Schenectady, a second class city, committed an improper employer practice by adopting new police disciplinary procedures different from those contained in the parties’ expired collective bargaining agreement. The Second Class Cities Law specifically commits police discipline to the police commissioner and details the relevant procedures. The Taylor Law’s general command regarding collective bargaining is not sufficient to displace the more specific authority granted by the Second Class Cities Law, and police discipline was thus a prohibited subject of bargaining within the City. Moreover, the Second Class Cities Law’s supersession clause does nothing more than affirm that the Second Class Cities Law was intended to remain in force unless it is changed or repealed pursuant to law. The Second Class Cities Law has not been expressly repealed or superseded by the legislature, nor was it implicitly repealed by the enactment of the Taylor Law. There is no express statutory conflict between the two laws; the only conflict is in the policies that they represent, and the Court of Appeals has already resolved that policy conflict in favor of local control over police discipline. *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109.

RETIREMENT AND PENSION BENEFITS.

2. Accidental Disability Retirement — What Constitutes Accident.—Substantial evidence supported respondent’s determination that petitioner police officer, who had applied for accidental disability retirement benefits after being injured by a falling rafter as he attempted to rescue people who were trapped when a tree fell on their home during a hurricane, was not injured as the result of an “accident” because there was no precipitating accidental event which was not a risk of the work performed. Respondent could rationally have concluded based on the record that, when injured, petitioner was acting within the scope of his ordinary employment duties, considered in view of the particular employment in question, and that there was no sudden, unexpected event that was not an inherent risk of petitioner’s regular duties. The claimed accidental event was the rafter falling toward petitioner’s colleague that petitioner reached up to brace as he attempted to extricate the trapped family members. Respondent concluded that, as a police officer, petitioner was expected to assist injured persons, and that responding to emergencies is among the ordinary duties of police officers. Respondent found that, on the night in question, petitioner was instructed to respond to life-threatening emergencies, including the directive to assist injured persons at “a house that had been caved in by a falling tree.” While a different result would not have been unreasonable, there was substantial evidence in the record to support the determination that petitioner’s actions in assisting the injured residents of the house during life-threatening conditions fell within his job duties, and that his injuries did not result from a sudden, unexpected event that was not a risk inherent in his duties as a police officer. *Matter of Kelly v DiNapoli*, 30 NY3d 674.

3. Accidental Disability Retirement.—Substantial evidence supported respondent’s determination that petitioner firefighter, who had applied for accidental disability retirement benefits after he was injured when he was exposed to toxic fumes in a supermarket while responding to a 911 call indicating that an individual was having difficulty breathing, was not injured as the result of an “accident” because there was no precipitating accidental event which was not a risk of the work performed. Respondent could rationally have concluded based on the record

CIVIL SERVICE—Cont'd

that, when injured, petitioner was acting within the scope of his ordinary employment duties, considered in view of the particular employment in question, and that there was no sudden, unexpected event that was not an inherent risk of petitioner's regular duties. Respondent noted that, as a participant in an emergency medical response team, petitioner was fulfilling his regular duties as a firefighter in responding to the 911 call. Respondent further found that exposure to toxic chemicals was a risk for which petitioner had been trained, that he had responded to a gas leak in the past, and that his job duties specifically required "working with exposure to . . . fumes, explosives, toxic materials, chemicals and corrosives," the particular risk that caused his injury. Inasmuch as it is not unexpected that a firefighter whose job duties required him or her to respond to emergency medical calls would be exposed to toxic fumes in responding to a call for difficulty breathing, respondent rationally concluded that petitioner's injuries were the result of a risk inherent in his ordinary duties as a firefighter. *Matter of Kelly v DiNapoli*, 30 NY3d 674.

4. Accidental Disability Retirement.—In a CPLR article 78 proceeding, the Appellate Division properly confirmed respondent State Comptroller's determination denying petitioner's application for accidental disability retirement benefits. Substantial evidence supported the determination, and respondent rationally determined that petitioner failed to establish that his injuries were caused by a sudden, unexpected event that was not a risk inherent in the work performed. *Matter of Kowal v DiNapoli*, 30 NY3d 1124.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONFLICT OF LAWS.

WHAT LAW GOVERNS.

1. Derivative Claims against Cayman Islands Company — Procedural Nature of Cayman Islands Grand Court Rule.—Cayman Islands Grand Court Rules 1995 (Revised), order 15, rule 12A, which requires a plaintiff bringing a contested derivative action in the Cayman Islands to apply to the Cayman Islands Grand Court for leave to continue the action, is a procedural rule not applicable to derivative actions litigated in New York. Accordingly, plaintiff shareholder's failure to comply with rule 12A did not bar his derivative claims brought in New York against defendant Cayman Islands company. The plain language of rule 12A refers to procedures specific to Cayman Islands litigation. By its terms, the rule does not specifically apply to actions involving Cayman-incorporated companies. Rather, any derivative action commenced in the Cayman Islands, brought by writ on behalf of any corporation, no matter where incorporated, is subject to rule 12A. Thus, it serves a gatekeeping function, but only as to derivative actions brought in the Cayman Islands, not for derivative actions, wherever brought, concerning Cayman companies specifically. In addition, rule 12A has no provision that would suggest that it applies in derivative actions brought on behalf of Cayman Islands companies commenced outside the Cayman Islands. Rule 12A does not function similarly to substantive repose statutes; rather, it allows any plaintiff the right to commence a derivative action, and sets forth a procedural mechanism for a threshold determination of merits and standing. Moreover, holding that rule 12A is procedural does not impose a burden on New York courts, or the courts of the Cayman Islands. *Davis v Scottish Re Group Ltd.*, 30 NY3d 247.

CONSTITUTIONAL LAW.

STATE CONSTITUTIONAL LAW.

1. Due Process — Aid-in-Dying.—New York's prohibition on physician assisted suicide (aid-in-dying) (*see* Penal Law §§ 120.30, 125.15 [3]) does not violate the

CONSTITUTIONAL LAW—Cont'd

Due Process Clause of the New York Constitution. The asserted right to assistance in committing suicide—the right of a mentally competent and terminally ill person to obtain a prescription for a lethal dosage of drugs from a physician—is not a fundamental liberty interest protected by the Federal Due Process Clause, and the State Due Process Clause does not provide any broader protection. Accordingly, the assisted suicide statutes need only be rationally related to a legitimate government interest. Rational basis involves a strong presumption that the challenged legislation is valid, and a party contending otherwise bears the heavy burden of showing that a statute is so unrelated to the achievement of any combination of legitimate purposes as to be irrational. Defendant State of New York may rationally seek to prevent the distribution of prescriptions for lethal dosages of drugs that could, upon fulfillment, be deliberately or accidentally misused. Defendant also has a significant interest in preserving life and preventing suicide, a serious public health problem. At present, the state legislature has permissibly concluded that an absolute ban on assisted suicide is the most reliable, effective and administrable means of protecting against its dangers. *Myers v Schneiderman*, 30 NY3d 1.

2. Equal Protection — Aid-in-Dying.—New York's prohibition on physician assisted suicide (aid-in-dying) (see Penal Law §§ 120.30, 125.15 [3]) does not violate the Equal Protection Clause of the New York Constitution. New York's laws banning assisted suicide do not unconstitutionally distinguish between individuals because everyone, regardless of physical condition, is entitled, if competent, to refuse unwanted lifesaving medical treatment, whereas no one is permitted to assist a suicide. *Myers v Schneiderman*, 30 NY3d 1.

VALIDITY OF STATUTE.

3. Workers' Compensation Law § 25-a — Contract Clause.—Plaintiffs, insurance companies that write workers' compensation insurance policies, failed to establish that any potential retroactive impact of the 2013 amendment to Workers' Compensation Law § 25-a closing the Special Fund for Reopened Cases to new applications after January 1, 2014 and imposing liability for such claims on carriers violates the Contract Clause of the US Constitution, as the amendment did not impair any term of plaintiffs' contracts with their insureds. The Contract Clause prohibits states from enacting "[l]aw[s] impairing the Obligation of Contracts" (US Const, art I, § 10 [1]). The threshold inquiry is whether the state law has operated as a substantial impairment of a contractual relationship. Plaintiff insurers' contracts with their insureds obligated them to pay all benefits required of their insureds by the Workers' Compensation Law, including amendments to that law which were in effect during the policy period, and thus required plaintiffs to pay all necessary benefits on reopened cases. The amendment merely altered the allocation of costs of benefit liability by removing an avenue for carriers to transfer reopened cases to the Fund, and then to pass assessments for the costs of those cases onto their insureds. Inasmuch as plaintiffs did not contract with their insureds for the right to transfer reopened cases to the Fund, or condition their liability to pay benefits on reopened cases on the Fund's continuing acceptance of those cases, plaintiffs' contracts with their insureds had not been impaired by the amendment. There was no provision of plaintiffs' contracts with their insureds relieving them of the obligation to pay an injured worker's benefits in the event that the Fund did not accept a reopened case. *American Economy Ins. Co. v State of New York*, 30 NY3d 136.

4. Workers' Compensation Law § 25-a — Substantive Due Process.—The 2013 amendment to Workers' Compensation Law § 25-a closing the Special Fund for Reopened Cases to new applications after January 1, 2014 and imposing liability for such claims on carriers does not violate the Due Process Clauses of the US and New York Constitutions, as any retroactive impact of the legislation is justified by a rational legislative purpose. In the context of a substantive due process challenge to retroactive legislation, rational basis scrutiny is applied, which requires a legitimate legislative purpose furthered by rational means. The closure of the Fund was intended to save New York businesses hundreds of millions of dollars in assessments per year. In addition, claims on reopened cases could be administered

CONSTITUTIONAL LAW—Cont'd

more efficiently by insurance carriers. Delaying the Fund's closure so that it could pay benefits on every qualifying reopened case arising from an injury occurring before the amendment's 2013 effective date would have delayed that intended legislative benefit to New York businesses and employers for years, if not decades. *American Economy Ins. Co. v State of New York*, 30 NY3d 136.

5. Workers' Compensation Law § 25-a — Takings Clause.—Plaintiffs, insurance companies that write workers' compensation insurance policies, failed to establish that any potential retroactive impact of the 2013 amendment to Workers' Compensation Law § 25-a closing the Special Fund for Reopened Cases to new applications after January 1, 2014 and imposing liability for such claims on carriers violates the Takings Clauses of the US and New York State Constitutions, where plaintiffs failed to identify any vested property interest impaired by the amendment. The mere obligation to pay money, without identification of a vested property interest, cannot constitute a taking. Moreover, as a general matter, the government does not "take" contract rights pertaining to a contract between two private parties simply by engaging in lawful action that affects the value of one of the parties' contract rights. The statutory language providing that the Fund would accept the costs of liability on reopened cases under certain specific circumstances did not provide plaintiffs with any vested right in the Fund's continued acceptance of reopened cases. One cannot claim a vested property interest in continuing to receive a statutory benefit unless statutory language clearly granting a vested right is present. Thus, plaintiffs could not identify a vested property interest and then demonstrate how the legislative amendment adversely impacted that property interest because any right that might be recognized was inchoate and subject to contingencies. *American Economy Ins. Co. v State of New York*, 30 NY3d 136.

CONSUMER PROTECTION.**DECEPTIVE ACTS AND PRACTICES.**

1. Private Contract Dispute over Insurance Policy Coverage — No Affect on Consuming Public at Large.—In plaintiff's action to collect on insurance policies following the death of his wife in a collision with a package delivery truck hired by defendant insured, plaintiff's claims against defendant insurers alleging violations of General Business Law § 349 were properly dismissed. General Business Law § 349 (a) provides that "[d]eceptive acts or practices in the conduct of any business, trade[,] or commerce or the furnishing of any service in [New York] are . . . unlawful." Section 349 does not grant a private remedy for every improper or illegal business practice, but only for conduct that tends to deceive consumers. In order to satisfy General Business Law § 349, plaintiffs' claims must be predicated on a deceptive act or practice that is consumer oriented. Plaintiff's allegations demonstrated that his action was a private contract dispute over insurance policy coverage, which did not affect the consuming public at large, and therefore fell outside the purview of General Business Law § 349. *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

BREACH OR PERFORMANCE OF CONTRACT.

1. Residential Mortgage-Backed Securities — Claim for General Contract Damages Based on Breach of Representations and Warranties.—Defendant sponsor of residential mortgage-backed securities transactions was entitled to dismissal of plaintiffs' claims for general contract damages based on defendant's alleged breach of its representation that the loan purchase and service agreements contained no untrue statements, where plaintiffs' claims were grounded in alleged breaches of mortgage loan-specific representations and warranties for which the sole remedy fashioned by the parties was cure or repurchase. Contract terms providing for a

CONTRACTS—Cont'd

“sole remedy” are sufficiently clear to establish that no other remedy was contemplated by the parties at the time the contract was formed, for purposes of that portion of the transaction, especially when entered into at arm’s length by sophisticated contracting parties. The complaints affirmatively pleaded that the claims based on alleged breaches of the no untrue statement provision were grounded in misrepresentations and omissions with respect to the mortgage loans. Plaintiffs could not subvert the exclusive remedies limitation of liability by simply re-characterizing their claims. Reading each contract as a harmonious and integrated whole and honoring the exclusive remedy that the sophisticated parties fashioned, the sole remedy provision applied to preclude plaintiffs from seeking general contract damages. *Nomura Home Equity Loan, Inc., Series 2006-FM2 v Nomura Credit & Capital, Inc.*, 30 NY3d 572.

2. Intended Third-Party Beneficiary.—Defendant architectural firm was entitled to summary judgment dismissing plaintiff City of New York’s breach of contract and negligence claims based on the contract between defendant and plaintiff Dormitory Authority of the State of New York for construction of a forensic biology laboratory for use by plaintiff City’s Office of the Chief Medical Examiner (OCME), where plaintiff City failed to raise an issue of fact concerning its status as a third-party beneficiary to the contract. A third party may sue as a beneficiary on a contract made for its benefit. However, an intent to benefit the third party must be shown, and, absent such intent, the third party is merely an incidental beneficiary with no right to enforce the particular contracts. A third party’s right to enforce a contract has been sanctioned when the third party is the only one who could recover for the breach of contract or when it was otherwise clear from the language of the contract that there was an intent to permit enforcement by the third party. With respect to construction contracts, express contractual language stating that the contracting parties intended to benefit a third party by permitting that third party to enforce a promisee’s contract with another is generally required. Although the parties were aware that the laboratory was being built for OCME’s use, plaintiff City was not the only entity that could recover under the contract, nor did the contract expressly name plaintiff City as an intended third-party beneficiary or authorize it to enforce any obligations thereunder. *Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

COURTS.**FAMILY COURT.**

1. Subject Matter Jurisdiction — Permanency Hearing Following Dismissal of Neglect Petition.—Family Court does not retain subject matter jurisdiction to conduct a permanency hearing pursuant to Family Court Act article 10-A for a child removed from parental custody once the underlying neglect petition brought under Family Court Act article 10 has been dismissed for failure to prove neglect. The dismissal of a neglect petition operates to discharge a child from placement, terminate all orders regarding supervision, protection or services docketed thereunder, and extinguish the court’s jurisdiction over the matter. Accordingly, respondent’s child, who had been temporarily removed from respondent’s custody pursuant to an ex parte pre-petition order under Family Court Act § 1022, should have been returned to respondent once the neglect petition was dismissed. Nothing in the legislative history of article 10-A, which establishes a system of “permanency hearings” for children who have been removed from parental custody, suggests that its drafters intended to overturn the long-established rule that the dismissal of a neglect petition divests Family Court of jurisdiction to issue further orders or impose additional conditions on a child’s release. Nor does Family Court Act § 1088,

COURTS—Cont'd

which provides that once a child has been placed in foster care pursuant to certain sections of the Social Services Law or of Family Court Act articles 10 and 10-C, “the case shall remain on the court’s calendar and the court shall maintain jurisdiction over the case until the child is discharged from placement and all orders regarding supervision, protection or services have expired,” trigger a continuing grant of jurisdiction that survives the eventual dismissal of the neglect petition. *Matter of Jamie J. (Michelle E.C.)*, 30 NY3d 275.

STARE DECISIS.

2. Compelling Justification for Overruling Precedent.—In a criminal prosecution in which defendant was arrested without a warrant in the doorway of his apartment after he voluntarily opened the door in response to knocking by police who were there for the sole purpose of arresting him, the Court of Appeals declined, based on the principle of stare decisis, to overrule precedent holding that preplanned, warrantless arrests do not violate *Payton v New York* (445 US 573 [1980]) where the defendant exited his or her residence or stood on the threshold either due to a police request or to a ruse employed by the police. Even under the most flexible version of the doctrine applicable to constitutional jurisprudence, prior decisions should not be overruled unless a compelling justification exists for such a drastic step. The current rule, that a person enjoys enhanced constitutional protection from a warrantless arrest in the interior of the home, but not on the threshold itself or the exterior, is clear and easily understood. Moreover, overruling such precedent would result in adoption of a rule that looks to the subjective intent of the police and is, therefore, fundamentally inconsistent with Fourth Amendment jurisprudence. Overturning prior cases addressing the issue would both undermine the purposes of stare decisis, which are to promote efficiency and provide guidance and consistency in future cases, and unsettle the belief that bedrock principles are founded in the law rather than in the proclivities of individuals. *People v Garvin*, 30 NY3d 174.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Recusal.—The failure of the judge who had presided over defendant’s pretrial motion to dismiss and bench trial in City Court to recuse himself from adjudicating defendant’s single-judge appeal to County Court, to which the judge had been elevated while defendant’s appeal was pending, was a violation of due process. Because defendants have a right to challenge a judgment on direct appeal, a defendant is entitled to the minimum safeguards of due process under the Federal and State Constitutions. The right to an impartial jurist is a basic requirement of due process. Not only must judges actually be neutral, they must appear so as well. Accordingly, under principles of due process (*see* US Const, Amend XIV, § 1; NY Const, art I, § 6), a judge may not act as appellate decision-maker in a case over which the judge previously presided at trial. Although there currently exists no explicit statutory or constitutional provision in New York prohibiting judges from reviewing their own judgments on appeal, our laws and court rules have long sought to purge actual bias and the possibility of bias from our courtrooms. *People v Novak*, 30 NY3d 222.

2. Appeal to County Court or Appellate Term from Local Criminal Court — Affidavit of Errors.—Defendant’s failure to file an affidavit of errors in addition to her notice of appeal as required by CPL 460.10 (3) (a) rendered County Court without jurisdiction to hear her appeal from a local criminal court judgment of conviction entered after a jury trial during which no court stenographer was present, and consequently barred the Court of Appeals from reviewing the merits of the appeal. CPL 460.10 (3) makes the filing of an affidavit of errors a jurisdictional requirement for the taking of an appeal from a local criminal court in which the underly-

CRIMES—Cont'd

ing proceedings were not recorded by a court stenographer. The statute requires that the appellant must file, within 30 days, “either (i) an affidavit of errors . . . or (ii) a notice of appeal” (CPL 460.10 [3] [a]). If the appellant chooses to file a notice of appeal, he or she must then file an affidavit of errors. The statute plainly states that, even when a notice of appeal is filed, an appellant must also file an affidavit of errors with the court. Only after an appellant files the affidavit of errors, as prescribed in CPL 460.10 (3), is the appeal “deemed to have been taken” (CPL 460.10 [3] [c]). As defendant did not take an appeal as dictated by the statute, the intermediate appellate court lacked jurisdiction to review the issues raised. *People v Flores*, 30 NY3d 229.

3. Remittitur — Consideration of Application for Leave to File Late Affidavit of Errors.—Defendant’s appeal from a local criminal court judgment of conviction, which was improperly entertained by County Court because defendant failed to file an affidavit of errors in addition to her notice of appeal as required by CPL 460.10 (3) (a), was remitted to County Court to permit that court’s exercise of discretion in connection with defendant’s motion to file a late affidavit of errors. CPL 460.30 (1) permits an intermediate appellate court to extend a defendant’s time to file a late affidavit of errors under certain circumstances, if a motion was made within a year of the expiration of the time for the taking of the appeal. Defendant filed a timely notice of appeal and moved, well within the statutory one-year time period allotted for the relief of an extension of time, for leave to file a late affidavit of errors. County Court granted defendant an extension of time to obtain transcripts, but did not address defendant’s alternative motion to file a late affidavit of errors. *People v Flores*, 30 NY3d 229.

4. Application to Reinstate Appeal — Writ of Error Coram Nobis.—Defendant’s application for a writ of error coram nobis seeking to reinstate his appeal, which was dismissed for failure to timely perfect it, on the ground that his trial counsel was ineffective for failing to assist him in obtaining poor person relief or to take any action when served with the motion to dismiss four years after the notice of appeal was timely filed by trial counsel, was properly denied. Defendant bore the burden of demonstrating that he was denied meaningful assistance—that counsel’s actions in allegedly failing to assist defendant in obtaining poor person relief were not consistent with those of a reasonably competent attorney. He failed to meet that burden, both in terms of his specific claim that counsel did not advise him of his right to seek poor person relief in connection with his appeal and the more general claim that counsel did not consult with him regarding an appeal. With respect to the claim that counsel failed to respond to the dismissal motion, there is no rule that trial counsel has a constitutional responsibility in connection with an appeal for an indefinite period of time extending for years after the notice of appeal is filed. The holding in *People v Syville* (15 NY3d 391 [2010]) that coram nobis may be used to assert a claim that appellate rights were extinguished by ineffective legal assistance is a narrow one, and in order to obtain exceptional relief beyond the time permitted under CPL 460.30, a defendant must show that he or she exercised due diligence. Apart from defendant’s affidavit stating that he did not recall receiving anything in writing about taking an appeal or discussing an appeal with counsel, defendant submitted no nonhearsay proof regarding whether he was made aware of his right to appeal or whether his attorney discussed the taking of an appeal with him prior to filing the notice of appeal. Nor did defendant attempt to demonstrate what steps he took to discover the omission and explain why he waited years to obtain coram nobis relief, apart from his unsupported claim that he was not aware of his right to appeal. *People v Arjune*, 30 NY3d 347.

5. Matters Reviewable — Mixed Question of Law and Fact — Founded Suspicion of Criminality.—The determination of the lower courts regarding a founded suspicion of criminality, justifying the arresting officer’s demand that defendant “show his hands,” involved a mixed question of law and fact. Inasmuch as there was record evidence to support a finding of founded suspicion, and the totality of the circumstances provided sufficient indicia of criminality to warrant a level-two inquiry under *People v De Bour* (40 NY2d 210 [1976]), the determinations made below were beyond further review by the Court of Appeals. *People v Simmons*, 30 NY3d 957.

CRIMES—Cont'd

6. Matters Reviewable — Mixed Question of Law and Fact.—In defendant's prosecution for criminally possessing a weapon, the issue whether the likelihood of a weapon in defendant's car was substantial and the danger to the safety of the officers who stopped the vehicle was actual and specific presented a mixed question of law and fact. There was record support for the determination that those circumstances existed and justified the limited search of the interior of the vehicle. Consequently, defendant's challenge to the denial of his suppression motion was beyond further review by the Court of Appeals. *People v Hardee*, 30 NY3d 991.

ARGUMENT AND CONDUCT OF COUNSEL.

7. Summation Remarks.—Defendant was not deprived of a fair trial by the prosecutor's remarks in summation, as they reflected arguments that were fairly inferable from the evidence adduced at trial. *People v Bautista*, 30 NY3d 935.

ARREST.

8. Warrantless Arrest of Defendant in Apartment Doorway.—Defendant's motion to suppress statements and physical evidence obtained after his warrantless arrest in the doorway of his apartment was properly denied because defendant voluntarily answered the door and the arresting officer did not enter defendant's apartment. The Fourth Amendment prohibits the police from making a warrantless and nonconsensual entry into a suspect's home in order to make a routine felony arrest despite ample time to obtain a warrant, and has drawn a firm line at the entrance of the house. Absent exigent circumstances, that threshold may not reasonably be crossed without a warrant. It is irrelevant whether the defendant was actually standing outside his home or was standing in the doorway; if the police never enter the defendant's home, a prohibited intrusion does not occur. *People v Garvin*, 30 NY3d 174.

DISCLOSURE.

9. Failure to Disclose Exculpatory Material — Notes from Interview with Unindicted Alleged Coconspirator.—The lower courts properly determined that the notes taken during the interviews of an unindicted alleged coconspirator were not subject to disclosure under *Brady v Maryland* (373 US 83 [1963]) because the notes were not exculpatory as to defendant's convictions. *People v Bautista*, 30 NY3d 935.

IDENTIFICATION OF DEFENDANT.

10. Cross-Racial Identification — Jury Instruction on Cross-Race Effect.—In a case in which a witness's identification of the defendant is at issue, and the identifying witness and defendant appear to be of different races, a trial court is required to give, upon request, during final instructions, a jury charge on the cross-race effect. Accordingly, in a robbery prosecution in which defendant, a black man, was identified in lineups by the victims, who were both white men, the trial court erred in denying defendant's request that the jury be instructed on cross-racial identification. The likelihood of misidentification is higher when an identification is cross-racial, as people generally have significantly greater difficulty accurately identifying members of other races than members of their own race. Expert testimony on the cross-race effect is not a precondition of a jury charge on the subject. A juror may have a tentative belief, based on his or her ordinary experiences, that cross-racial identifications are often inaccurate, but most jurors will have no knowledge of the research demonstrating the cross-race effect. Expert testimony explaining the studies to the jury is therefore admissible, because it would help to clarify an issue calling for professional or technical knowledge possessed by the expert and beyond the ken of the typical juror, but does not render a charge regarding the cross-race effect superfluous. Moreover, a cross-racial identification charge should not be predicated on whether defense counsel cross-examined the People's witnesses about their identification, since some mistaken eyewitnesses, at least by the time they testify at trial, exude supreme confidence in their identifications. *People v Boone*, 30 NY3d 521.

JURORS.

11. Selection of Jury — Denial of For-Cause Challenge to Prospective Juror.—In a criminal prosecution, the trial court erred in denying defendant's for-cause chal-

CRIMES—Cont'd

lenge to a prospective juror, where the prospective juror's statements raised serious doubt regarding her ability to be unbiased and the court did not inquire further to obtain unequivocal assurance that she could be fair and impartial. Pursuant to CPL 270.20 (1) (b), a prospective juror may be challenged for cause if the juror evinces "a state of mind that is likely to preclude [the juror] from rendering an impartial verdict based upon the evidence adduced at the trial." Under the circumstances, where it was error to deny defendant's challenge for cause and he eventually exhausted his peremptory challenges, defendant's conviction was reversed and a new trial ordered. *People v Wright*, 30 NY3d 933.

POSSESSION OF WEAPON.

12. Sufficiency of Accusatory Instrument.—The accusatory instruments charging defendants with criminal possession of a weapon in the fourth degree were sufficient to support that charge, where the factual allegations of each misdemeanor complaint established reasonable cause (*see* CPL 100.40 [4] [b]; 70.10 [2]) to believe that each defendant possessed a "dangerous knife" (Penal Law § 265.01 [2]), triggering the statutory presumption of unlawful intent arising from such possession (Penal Law § 265.15 [4]). *People v McCain*, 30 NY3d 1121.

RIGHT OF CONFRONTATION.

13. Testimonial DNA Evidence.—In defendant's burglary prosecution stemming from two separate incidents, the DNA profile generated from defendant's post-accusatory buccal swab was testimonial in nature, as it was created for the primary purpose of identifying defendant as the perpetrator of the burglaries. Accordingly, the introduction of testimony from a criminalist comparing that profile, which he had not performed, witnessed or supervised, to the DNA profiles generated from the burglaries violated defendant's Sixth Amendment right to confrontation. The People relied solely on the evidence of the DNA profile generated from defendant's buccal swab, which was developed during the course of a pending criminal action and was created in order to prove his guilt at trial. Thus, in order to satisfy the Confrontation Clause, defendant was entitled to cross-examine the analyst who either performed, witnessed or supervised the generation of the critical numerical DNA profile or who used his or her independent analysis on the raw data to arrive at his or her own conclusions. Although the criminalist may have had some level of involvement in the handling of some of the crime scene swabs, he had no role in the testing of defendant's post-accusatory buccal swab, and his testimony was therefore merely a conduit for the conclusions of others. Moreover, the error was not harmless, as the evidence of defendant's guilt without the DNA evidence was not overwhelming, and there was a reasonable possibility that the error might have contributed to the verdict. *People v Austin*, 30 NY3d 98.

RIGHT TO COUNSEL.

14. Violation of Right to Counsel on Motion to Compel DNA Test.—The trial court denied defendant's right to counsel on the People's motion to compel defendant to submit to a buccal swab when the trial court—in defendant's absence—granted both the retained defense counsel's motion to be relieved from representing defendant for failure to pay his fee and the People's DNA discovery motion, which it granted based on the "putative consent" it inferred from retained counsel's silence. Later the same day that counsel was relieved, defendant appeared in court and the trial court proceeded to act in place of counsel throughout an extensive colloquy, telling defendant that there were no bases on which to challenge the DNA sample order. Defendant stated that he had not spoken with his attorney about the prosecution's motion and did not wish to consent to giving a sample, and his repeated requests for an attorney to advise him regarding the motion were denied. There was no express consent to the People's request for the DNA sample, either by defendant or by retained counsel. Nor was there any affirmative conduct or errant statement by defendant or counsel from which implied consent could be inferred. Instead, the court issued its order based only on retained counsel's failure to reply to the People's motion to compel the buccal swab, and under the circumstances that was not a proper basis for finding defendant's consent. *People v Smith*, 30 NY3d 626.

CRIMES—Cont'd

15. Violation of Right to Counsel on Motion to Compel DNA Test — Remedy.—Upon finding that the trial court denied defendant's right to counsel on the People's motion to compel defendant to submit to a buccal swab when the trial court—in defendant's absence—granted both the retained defense counsel's motion to be relieved from representing defendant for failure to pay his fee and the People's DNA discovery motion, which it granted based on the "putative consent" it inferred from retained counsel's silence, the Appellate Division should not have dismissed the indictment in addition to vacating the pleas. Based on the nature and timing of the constitutional deprivation at issue, the dismissal of the indictment was not an appropriate corrective action. Under CPL 470.20, the Appellate Division may take "such corrective action as is necessary and appropriate both to rectify any injustice to the appellant resulting from the error or defect which is the subject of the reversal or modification and to protect the rights of the respondent." The violation of defendant's right to counsel, although serious, occurred post-indictment and did not retroactively infect the grand jury proceedings. Nevertheless, the violation resulted in defendant being denied the opportunity to confer with counsel regarding a potential challenge to the taking of inculpatory DNA evidence. That warranted the Appellate Division vacating defendant's pleas. Dismissal of the indictment, however, was not "necessary and appropriate" to rectify the injustice to the defendant. *People v Smith*, 30 NY3d 626.

16. Effective Representation — Consent to Verdict Sheet Annotations.—In defendant's prosecution for engaging in harassing conduct against his landlord consisting of more than 300 different acts committed over 12 distinct time periods, trial counsel's consent to verdict sheet annotations beyond those automatically permitted by CPL 310.20 to assist the jury in distinguishing between the many similar allegations did not deprive defendant of meaningful representation. To establish ineffective assistance of counsel, a defendant must demonstrate the absence of strategic or other legitimate explanations for counsel's allegedly deficient conduct. Both common sense and defense counsel's summation demonstrated that trial counsel had a sound strategic reason for consenting to the annotations, which consisted of the addition of a date or date range and a short description of the alleged criminal conduct to each count on the verdict sheet: they encouraged the jury to think about each count and the relevant evidence independently, instead of concluding that defendant's egregious behavior warranted a conviction on every seemingly identical count. Counsel easily could have concluded that the additional annotations furthered the exact purpose behind CPL 310.20 (2) and that such benefit outweighed any risk that the annotations—which were drawn from the accusatory instrument already read to the jury, soberly described conduct her client did not dispute, and were accompanied by the trial court's clear instructions as to their limited purpose—would prejudice the jury. *People v O'Kane*, 30 NY3d 669.

17. Effective Representation.—Defendant failed to meet his burden of establishing that his trial counsel's performance was constitutionally deficient by demonstrating the absence of strategic or other legitimate explanations for counsel's alleged failures. Defendant's ineffective assistance of counsel claims were of the type where it is essential that an appellate attack on the effectiveness of counsel be bottomed on an evidentiary exploration by collateral or post-conviction proceeding brought under CPL 440.10. *People v Campbell*, 30 NY3d 941.

18. Substitution of Counsel.—Upon defendant's request at a sentencing hearing for a new attorney to advise him on whether to move to withdraw his plea before sentence was imposed, which was supported by specific allegations regarding counsel's performance, the trial court had a duty to inquire into defendant's request for new counsel before it proceeded to sentence defendant. Accordingly, defendant must be afforded the opportunity to decide whether to make a motion to withdraw his guilty plea upon the advice of counsel. *People v Dodson*, 30 NY3d 1041.

19. Substitution of Counsel.—Upon receiving defendant's request to substitute counsel, which was supported by specific factual allegations of serious complaints about counsel, the trial court abused its discretion by failing to conduct a minimal inquiry into the nature of the disagreement or its potential for resolution. *People v Smith*, 30 NY3d 1043.

CRIMES—Cont'd

20. Effective Representation.—Defendant failed to meet the burden of establishing his claim that counsel's performance was constitutionally deficient by demonstrating the absence of strategic or other legitimate explanations for counsel's alleged failures, and counsel's alleged out of court statements were outside the record and beyond review by the Court of Appeals on direct appeal. *People v Sposito*, 30 NY3d 1110.

SENTENCE.

21. Predicate Felony Conviction — Prior Foreign Conviction — Strict Equivalency Test.—The strict equivalency test, by which a reviewing court determines whether a prior conviction in another jurisdiction may serve as a predicate felony conviction for sentencing purposes in this jurisdiction, allows a reviewing court to examine a foreign statute that a defendant has been convicted of violating, as well as any foreign statute or case law that informs the interpretation of a foreign code breached by the defendant. As a general rule, the test limits the inquiry of a reviewing court to a comparison of the crimes' elements as they are respectively defined in the foreign and New York penal statutes, and the court may not consider the allegations contained in the accusatory instrument underlying the foreign conviction. The test protects from the imposition of a predicate felony offender sentence based on the mere accusations underlying the foreign conviction. That standard does not mean that a reviewing court may look to only the foreign statute a defendant has been convicted of violating in determining whether such defendant may be sentenced as a predicate felony offender. *People v Helms*, 30 NY3d 259.

22. Second Violent Felony Offender — Prior Foreign Conviction.—Defendant's Georgia conviction for burglary (Ga Code Ann former § 16-7-1 [a]) was equivalent to the New York violent felony of burglary (Penal Law § 140.25 [2]), and defendant was therefore properly sentenced as a second violent felony offender based upon that previous conviction. On its face, the Georgia burglary statute appears to contain no requirement that a defendant must have knowledge that his or her entry is unauthorized. However, the unauthorized entry element of the Georgia burglary statute contains a culpable mental state at least commensurate with that of its New York counterpart. In Georgia, criminal trespass is, and was at the time defendant violated the Georgia statute, a lesser included offense of burglary. Inasmuch as the "lesser" Georgia crime of criminal trespass contains a "knowingly" mens rea (Ga Code Ann § 16-7-21 [b] [1]), the "entry" component of the "greater" Georgia burglary statute (Ga Code Ann former § 16-7-1 [a]) necessarily must have a culpable mental state of at least "knowingly." Additionally, New York law provides that a person enters or remains "unlawfully" in a "premises when he [or she] is not licensed or privileged to do so" (Penal Law § 140.00 [5]). Similarly, Georgia law defines "without authority" as entering or remaining "without legal right or privilege or without permission of a person legally entitled to withhold the right" (Ga Code Ann § 16-1-3 [18]). Both of those elements of illegality speak to presence in the absence of permission, and the illegality element of the Georgia statute is therefore equivalent to that of the relevant New York statute. *People v Helms*, 30 NY3d 259.

23. Right to be Present at Reimposition of Original Sentence.—CPL 380.40 entitles a defendant to be present personally at a proceeding to reimpose the defendant's original prison sentence under Penal Law § 70.85 unless he or she validly forfeits or waives the right to be present. Such a proceeding, whether technically a "resentencing" proceeding as opposed to a proceeding to "reimpose" a prior sentence, is one at which "sentence is pronounced" as contemplated in CPL 380.40. Moreover, Penal Law § 70.85, which applies only to determinate sentences imposed during a certain time period and only if a statutorily-required term of postrelease supervision (PRS) was not pronounced orally at sentencing, works in tandem with Correction Law § 601-d, which contemplates defendant's presence at proceedings held to correct *Catu* errors (*People v Catu*, 4 NY3d 242 [2005]). Accordingly, defendant, who had sought to vacate his plea and sentence because he had not been informed of the term of PRS to follow his prison sentence, had the right to be pres-

CRIMES—Cont'd

ent when the trial court denied his motion and reimposed his original sentence without a term of PRS. Even though the result—avoiding a term of PRS—was in defendant's favor, defendant had not voluntarily waived his right to be present and his absence from the sentencing proceeding was in itself an error as it constituted a violation of his right under CPL 380.40. *People v Estremera*, 30 NY3d 268.

24. Probation — Revocation — Facial Sufficiency of Amended Violation Petition.—The amended violation of probation petition, which listed four dates on which defendant allegedly “had contact with” a convicted criminal in violation of the terms of his probation, but did not include any additional information, was facially insufficient. It did not comport with the statutory requirement of providing probationer with the time, place, and manner of the alleged violation (CPL 410.70). The defect was not cured by defendant's questions posed to the court at the prior arraignment, the substance of which indicated that he did not have notice of the manner in which he allegedly violated a condition of his probation. *People v Kislowksi*, 30 NY3d 1006.

SEX OFFENDERS.

25. Sex Offender Registration Act — Consideration of Youthful Offender Adjudication in Determining Risk Level.—The Board of Examiners of Sex Offenders' interpretation of the Sex Offender Registration Act (Correction Law art 6-C [SORA]) as permitting it access to youthful offender (YO) records for the limited purpose of determining an offender's risk of reoffense and recommending a risk level designation to the SORA court does not conflict with the youthful offender provisions of Criminal Procedure Law article 720. Accordingly, the Board properly considered defendant's prior YO adjudication in determining his risk level designation under SORA. SORA's directives both provide the statutory requirement or permission to release the YO records under one provision of the YO statute, and describe the duties specifically authorized by law to allow for their release under another. In providing a non-exhaustive list of factors and conditions—and not solely “offenses”—that shall serve as a basis for the Board's risk level assessment, the legislature demonstrated intent to allow the Board to consider the full spectrum of an offender's prior unlawful conduct. Defendant's sex crime conviction, rather than the unlawful acts that led to his YO adjudication or the YO status itself, triggered SORA's registration requirements. Moreover, YO records are not made public in the SORA registry, and, upon application of the sex offender or the district attorney, the court must “seal any portion of the [B]oard's file pertaining to the sex offender that contains” confidential material (Correction Law § 168-m). Therefore, the Board's consideration of a YO adjudication does not violate the primary intent of CPL article 720 to protect young people from the long-term, societal consequences of their early, misdirected actions. *People v Francis*, 30 NY3d 737.

26. Civil Commitment or Supervision — Mental Abnormality — Serious Difficulty in Controlling Sexual Conduct.—The evidence at respondent's retrial was legally sufficient to establish by clear and convincing evidence that he had “serious difficulty in controlling” his sexual conduct within the meaning of Mental Hygiene Law § 10.03 (i). The State's expert witness opined that respondent's combination of pedophilic disorder with antisocial personality disorder “create[d] a very toxic mixture in the sense that [respondent] [wa]s more likely to act on the urges towards children and not feel remorse,” testimony that was supported by evidence from the relevant scientific community. During sex offender treatment, respondent described his struggle with pedophilia by saying he had experienced sexual desires toward his preteen stepdaughter, which he had been “fighting for a significant period of time,” until “he gave in to them,” and he summarized the urgency of his sexual desires by saying, “I want what I want when I want it.” The State's expert also opined that, because of respondent's failure to cooperate with sex offender treatment, he had not developed the “cognitive skills” necessary to manage his pedophilia, and that respondent exhibited cognitive distortions about what constitutes consensual sex. Moreover, respondent over the years minimized or denied his offending behavior, exhibiting a lack of remorse for his actions, which impaired his ability to control his desires. *Matter of State of New York v Floyd Y.*, 30 NY3d 963.

CRIMES—Cont'd

VACATUR OF JUDGMENT OF CONVICTION.

27. Motion for DNA Testing.—Defendant's post-verdict motion for DNA testing was properly denied since he failed to show that there existed a reasonable probability that the verdict would have been more favorable to him if the requested testing had been carried out and the results admitted at trial (CPL 440.30 [1-a] [a] [1]). *People v Sposito*, 30 NY3d 1110.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCLOSURE.

PENALTY FOR FAILURE TO DISCLOSE.

1. Enforcement of Conditional Order — Preclusion from Damages Inquest.—Supreme Court did not abuse its discretion in precluding a defaulting defendant from participating in the inquest to assess damages against him. Moreover, the denial of that defendant's cross motion to preclude certain evidence from the inquest was proper. *Herman v Herman*, 30 NY3d 925.

SCOPE OF DISCLOSURE.

2. Social Media Information Depicting Post-Accident Activities and Limitations — Material and Necessary to Litigation.—In a personal injury action in which defendant sought access to plaintiff's Facebook account, which purportedly contained photographs and written postings material to her allegations of cognitive deficits and loss of her active lifestyle following her fall from a horse owned by defendant, the Appellate Division erred in modifying Supreme Court's order to further restrict disclosure of plaintiff's Facebook account, limiting discovery to only those photographs plaintiff intended to introduce at trial. With respect to the items Supreme Court had ordered to be disclosed—all photographs of plaintiff privately posted on Facebook prior to the accident that she intended to introduce at trial, all photographs of plaintiff privately posted on Facebook after the accident that did not show nudity or romantic encounters, and authorizations for Facebook records showing each time plaintiff posted a private message after the accident and the number of characters or words in those messages—defendant met his threshold burden of showing that plaintiff's Facebook account was reasonably likely to yield relevant evidence. At her deposition, plaintiff indicated that, during the period prior to the accident, she posted "a lot" of photographs showing her active lifestyle. Likewise, given plaintiff's acknowledged tendency to post photographs representative of her activities on Facebook, there was a basis to infer that photographs she posted after the accident might be reflective of her post-accident activities and/or limitations. The request for those photographs was reasonably calculated to yield evidence relevant to plaintiff's assertion that she could no longer engage in the activities she enjoyed before the accident and that she had become reclusive. In addition, it was reasonably likely that the data revealing the timing and number of characters in posted messages would be relevant to plaintiff's claim that she

DISCLOSURE—Cont'd

suffered cognitive injuries that caused her to have difficulty writing and using the computer. *Forman v Henkin*, 30 NY3d 656.

3. Social Media Information.—The threshold inquiry for courts addressing disputes over the scope of social media discovery is not whether the materials sought are private but whether they are reasonably calculated to contain relevant information. There is no need for a specialized or heightened factual predicate to avoid improper “fishing expeditions.” Courts should first consider the nature of the event giving rise to the litigation and the injuries claimed, as well as any other information specific to the case, to assess whether relevant material is likely to be found on a Facebook account. Second, balancing the potential utility of the information sought against any specific “privacy” or other concerns raised by the account holder, the court should issue an order tailored to the particular controversy that identifies the types of materials that must be disclosed while avoiding disclosure of nonrelevant materials. In a personal injury case it is appropriate to consider the nature of the underlying incident and the injuries claimed and to craft a rule for discovering information specific to each. Temporal limitations may also be appropriate. To the extent the account may contain sensitive or embarrassing materials of marginal relevance, the account holder can seek protection from the court. *Forman v Henkin*, 30 NY3d 656.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ENVIRONMENTAL CONSERVATION.**ENVIRONMENTAL IMPACT STATEMENT.**

1. Hard Look at Areas of Environmental Concern.—Petitioners' CPLR article 78 proceedings challenging respondent Department of Health's State Environmental Quality Review Act (SEQRA) assessment of an application to construct a residential facility on a vacant lot next door to an elementary school and apartment buildings were properly dismissed, as respondent took the requisite hard look at the relevant areas of environmental concern and made a reasoned elaboration of the basis for its determination. Not every conceivable environmental impact, mitigating measure or alternative must be identified and addressed before a final environmental impact statement will satisfy the substantive requirements of SEQRA. Nothing in the law requires an agency to reach a particular result on any issue, or permits the courts to second-guess the agency's choice. Respondent's conclusions as to the potential risk posed by soil-based lead contamination and potential lead dust migration were based on federal and state standards on which the agency was legally allowed to rely. Respondent imposed a battery of construc-

ENVIRONMENTAL CONSERVATION—Cont'd

tion protocols to monitor and contain airborne dust, and reasonably concluded that those mitigation measures were sufficient to ensure that airborne lead levels remained within acceptable limits, and explained its assessment fully. In assessing both the dangers of construction noise and the most appropriate mitigation measures, respondent acted within its considerable latitude in evaluating environmental effects and choosing among alternatives. The fact that petitioners would have preferred different or additional mitigation measures presented a difference of opinion about the best way to address the environmental impacts that the agency, not the courts, must consider and resolve. *Friends of P.S. 163, Inc. v Jewish Home Lifecare, Manhattan*, 30 NY3d 416.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GRAND JURY.

DISMISSAL OF CHARGE.

1. Additional Charges Presented to Second Grand Jury.—Defendant's motion to vacate the judgment convicting him of the murder and robbery charges submitted to the second grand jury was properly denied. Under the circumstances, the People were not required to seek court permission under CPL 190.75 (3) before presenting additional charges to a second grand jury. *People v Carr*, 30 NY3d 945.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

ORDER OF PROTECTION.

1. Final Order of Protection Issued Where Related Family Offense Petition Dismissed.—Family Court had jurisdiction to sustain the petition alleging that respondent husband had willfully violated two temporary orders of protection and issue a final order of protection notwithstanding its dismissal of the related family offense petition filed against respondent. Family Court Act §§ 846 and 846-a

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS —Cont'd

unequivocally grant Family Court jurisdiction and authority to prosecute contempt of its orders, including temporary orders of protection. Further, the statutory text explicitly authorizes the court to enter a new order of protection if a respondent is found to have willfully violated a temporary order of protection (*see* Family Ct Act § 846-a). While section 812 provides Family Court with concurrent jurisdiction over only specified family offenses, and the violation of a temporary order of protection does not necessarily involve a family offense, Family Court Act § 115 (c) states that “[t]he family court has such other jurisdiction as is provided by law.” Family Court Act §§ 846 and 846-a contain no language tying Family Court’s authority to impose specific penalties for the willful violation of a temporary order of protection to the court’s determination of whether or not the family offense petition should be sustained. Thus, the jurisdiction exercised by Family Court here was consistent both with the statutory text and with the purpose of Family Court Act article 8. Allowing Family Court to retain jurisdiction over violations of temporary court orders entered during the pendency of a family offense proceeding reinforces the goal of protecting victims and preventing domestic violence. *Matter of Lisa T. v King E.T.*, 30 NY3d 548.

2. Willful Violation — Requisite Knowledge.—The lower courts did not err as a matter of law by concluding that respondent had the requisite knowledge to support a finding that he violated a temporary order of protection issued in relation to petitioner’s family offense petition under the following circumstances: several successive extensions of the temporary orders of protection were served on respondent, there were no differences between the terms of the challenged order and the most recent prior order, respondent’s attorney was present in court when the order was issued, and each temporary order contained a conspicuous written warning to respondent that a failure to appear in court on the next scheduled date could result in an extension of the order of protection and that the order would therefore remain in force and effect. *Matter of Lisa T. v King E.T.*, 30 NY3d 548.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

ACTION AGAINST INSURER.

1. In an action pursuant to Insurance Law § 3420 (a) (2) to recover the unsatisfied portion of a judgment against defendant’s insured, an order granting defendant insurance company’s motion for summary judgment was affirmed, where the insured’s policy was not in effect at the time of the accident as it was cancelled for nonpayment of premium. There was no ambiguity in the policy as to coverage or divisibility. *Garcia v Government Empls. Ins. Co.*, 30 NY3d 1033.

DUTY TO DEFEND AND INDEMNIFY.

2. Action against Tortfeasor’s Insurer — Policy “Issued or Delivered” in New York — Policy Covering Both Insured and Risk Located in New York.—Insurance Law § 3420, which allows a limited cause of action on behalf of injured parties directly against insurers concerning policies and contracts “issued or delivered in this state” (Insurance Law § 3420 [a]), applies to policies that cover both insureds and risks located in New York. Accordingly, plaintiff’s Insurance Law § 3420 claim against defendant insurer to collect on an insurance policy issued in New Jersey and delivered in Washington and Florida brought after plaintiff’s wife was killed

INSURANCE—Cont'd

in a collision with a truck hired by defendant insured to perform its package delivery services in New York was improperly dismissed on the ground that the policy was not issued or delivered in New York. The term “issued or delivered in this state” refers both to a policy issued for delivery in New York, and a policy issued for delivery outside of New York. A policy is issued for delivery in New York if it covers both insureds and risks located in this state. Thus, “issued for delivery” means where the risk to be insured was located, not where the policy document itself was actually handed over or mailed to the insured. Defendant was located in New York because it had a substantial business presence and created risks in New York. Defendant also purchased liability insurance covering vehicle-related risks arising from vehicles delivering its packages in New York, because its insurance agreements said so. The legislature created this statutory cause of action to remedy the inequity of the common-law rule that an injured person had no cause of action against the insurer of a tortfeasor and to protect the tort victims of New York. Interpreting “issued or delivered in this state” to apply exclusively to policies issued by an insurer located in New York or by an out-of-state insurer who mails a policy to a New York address would undermine the legislative intent of Insurance Law § 3420. *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

LIABILITY INSURANCE.

3. Rights of Injured Party against Tortfeasor's Insurer.—In plaintiff's action to collect on defendant's insurance policies following the death of plaintiff's wife in a collision with a truck owned and used by a nonparty company to perform defendant's package delivery services, plaintiff's claims pursuant to Insurance Law § 3420 (a) (2) and (b) were improperly dismissed on the grounds that the truck was not a “hired automobile” used “with [defendant's] permission.” Plaintiff submitted an expert affidavit providing support for the propositions that, under industry custom and practice, the nonparty's delivery trucks were hired autos used with defendant's permission. According to plaintiff's expert, a portion of the insurance contract that had not been produced would have shown that defendant's insurance policies covered all of the nonparty's vehicles. Additionally, plaintiff pointed to evidence supporting the proposition that defendant actually exercised substantial control over the trucks. Moreover, as to whether defendant granted “permission” to the nonparty to use the vehicle, the record, though incomplete, indicated that defendant, as the financially responsible defendant, had procured coverage that was priced and intended to provide excess coverage for the fleets of trucks when driven by an authorized user. If “permission” could be read to limit coverage for failure to adhere to certain specifications, automobile insurance companies could successfully disclaim coverage for almost any accident when the driver is not the owner of the vehicle. Such an unreasonable limitation on coverage would not comport with the public policy that one injured by the negligent operation of a motor vehicle should have recourse to a financially responsible defendant. *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

NO-FAULT AUTOMOBILE INSURANCE.

4. Claim for Lost Wages.—An order granting defendant summary judgment dismissing the complaint was reversed because triable issues of fact existed as to plaintiff's claim for lost wages. *Frelich v Government Empls. Ins. Co.*, 30 NY3d 1044.

REINSURANCE.

5. Limitation on Liability Clause — Cap on Third-Party Defense Costs.—New York law imposes neither a rule of construction nor a presumption that a limitation on liability clause necessarily caps all obligations owed by a reinsurer, such as defense costs, without regard for the specific language employed therein. *Excess Ins. Co. Ltd. v Factory Mut. Ins. Co.* (3 NY3d 577 [2004]) did not say that third-party defense costs under any facultative reinsurance contract are unambiguously or presumptively capped by the liability limits in the certificate. *Excess* did not supersede the standard rules of contract interpretation otherwise applicable to facultative reinsurance contracts. Like any contract, a facultative reinsurance

INSURANCE—Cont'd

contract that is complete, clear and unambiguous on its face must be enforced according to the plain meaning of its terms. Ambiguity is ascertained by reading the terms of the agreement, not in isolation, but as a whole. If a contract is reasonably susceptible of only one meaning, a court is not free to alter the contract to reflect its own personal notions of fairness and equity. Courts are not permitted to disregard the precise terminology that the parties used and assume, based on their own familiar notions of economic efficiency, that any clause bearing the generic marker of a “limitation on liability” or “reinsurance accepted” clause was intended to be cost-inclusive. *Global Reins. Corp. of Am. v Century Indem. Co.*, 30 NY3d 508.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.**JUDICIAL SALARIES.**

1. Judicial Compensation Clause — Reduction of State’s Contribution to Health Insurance Benefits — Judicial Compensation Protected from Direct Diminution.—Civil Service Law § 167 (8), which authorizes a reduction of respondent New York State’s contribution to health insurance benefits for its employees, does not violate the Judicial Compensation Clause of the New York State Constitution (NY Const, art VI, § 25 [a]), as respondent’s contribution is not judicial compensation protected from direct diminution by the Compensation Clause. The purpose of the Compensation Clause is to promote judicial independence and to ensure that the pay of prospective judges, who choose to leave their practices or other legal positions for the bench, will not diminish. Protected judicial “compensation,” as that term is used in the Compensation Clause, refers to a judge’s salary and any additional monies that serve as a permanent remuneration for costs necessarily incurred in fulfillment of a judge’s judicial obligations. The health care contribution is not part of a judicial salary or a permanent remuneration for expenses necessarily incurred in fulfillment of judicial obligations. Nor does respondent’s expansion of the class of benefits available to its employees, including judges, provide a clear indication that the legislature intended for its contribution towards premiums to be treated as a permanent addition to a judicial salary, whether as part of a judge’s pay or as a fixed amount in lieu of expenses. While the reduction in respondent’s contributions to the costs of health insurance premiums would increase a participating judge’s share of the cost associated with the chosen health care plan, such an increase is not the equivalent of a direct reduction in judicial compensation. It is a cost that is voluntarily assumed by the participating judges, and affects salary only indirectly as the judge must make up the difference. *Bransten v State of New York*, 30 NY3d 434.

2. Judicial Compensation Clause — Reduction of State’s Contribution to Health Insurance Benefits — Disadvantageous Treatment of Judiciary.—Civil Service Law § 167 (8), which authorizes a reduction of respondent New York State’s contribution to health insurance benefits for its employees, does not violate the Judicial Compensation Clause of the New York State Constitution (NY Const, art VI, § 25 [a]), as the reductions in contributions do not have the effect of singling out the judiciary for disadvantageous treatment. The history, context, statutory purpose, and statutory language, taken together, indicate that the category of state employees is the appropriate class against which the asserted discrimination must be measured. When plaintiffs filed their action, the vast majority of state employees also saw respondent’s contribution to their health care premiums diminish. Thus, the law imposes the new financial obligation on all participating state employees, and does not treat judges differently than nearly every other state employee. The new policy does adversely affect judges, as it imposes a substantial cost on judges with no benefit. The benefit enjoyed by the vast majority of other state employees,

JUDGES—Cont'd

however—protection from layoffs for unionized employees who accepted the reduction in premiums as part of the collective bargaining process—is a benefit already enjoyed by state judges as part of protecting their judicial independence. Furthermore, managerial and confidential employees are in the same position. Under these circumstances, where similarly situated employees receive the same treatment, excluding judges would be tantamount to offering a special judicial exemption from the commonly shared burden. The primary goal of the Compensation Clause—protecting the independence of the judiciary—is not implicated when respondent contributes a smaller percentage towards all employees' health care premiums. *Bransten v State of New York*, 30 NY3d 434.

REMOVAL FROM OFFICE.

3. The determination of respondent State Commission on Judicial Conduct that petitioner Justice should be removed from office was accepted. It was improper and a violation of petitioner's ethical duty for him to use his judicial position to interfere in the disposition of his daughter's traffic ticket, and it was further improper for petitioner to tell the prosecutor that in his opinion and that of his colleagues the matter should be dismissed. His imperious and discourteous manner towards the prosecutor on the case undermined the integrity of the judiciary. In addition, petitioner's actions in connection with appeals from petitioner's restitution orders in a criminal prosecution, including his several ex parte communications to County Court advocating for dismissal of the matter and extolling the correctness of his decisionmaking, were also highly improper. The letters disparaged County Court, defendant, and defense counsel, which was also unacceptable, and he persisted in that serious misconduct even after County Court informed petitioner that his comments were "troubling" and further instructed him as to the appellate process and petitioner's proper role. Petitioner's misconduct was compounded by his failure to recognize those breaches of judicial ethical standards and the public trust. *Matter of Ayres (New York State Commn. on Jud. Conduct)*, 30 NY3d 59.

SUSPENSION FROM OFFICE.

4. The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, suspended a Town Court Justice from office, with pay, effective immediately. *Matter of Sherwood*, 30 NY3d 1112.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. What Constitutes Construction Area.—The Appellate Division properly denied defendants' motion to dismiss plaintiff's Labor Law § 241 (6) claim, where the complaint stated a cause of action and defendants' documentary evidence did not establish, as a matter of law, that the work site where plaintiff's injury occurred was not a construction area in accordance with the statute. *Gerrish v 56 Leonard LLC*, 30 NY3d 1125.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.**CONTINUOUS TREATMENT DOCTRINE.**

1. Gap in Treatment Longer than Statute of Limitations.—For purposes of determining whether the continuous treatment doctrine tolls the 2½-year statute of limitations on a medical malpractice claim (*see* CPLR 214-a), a gap in treatment longer than the statute of limitations is not per se dispositive of a defendant's claim that the statute has run. To the extent that lower courts have held to the contrary (*see e.g. Marmol v Green*, 7 AD3d 682 [2d Dept 2004]; *Matter of Bulger v Nassau County Med. Ctr.*, 266 AD2d 212 [2d Dept 1999]), those cases should not be followed. *Lohnas v Luzi*, 30 NY3d 752.

2. Summary Judgment.—In a medical malpractice action brought nine years after defendant physician first operated on plaintiff's shoulder in which plaintiff alleged that defendant negligently performed that surgery and subsequently failed to diagnose the flawed surgery, leading to continued problems with her shoulder and a second surgery, defendant's motion for partial summary judgment was properly denied by the trial court, as there were triable issues of fact concerning whether the continuous treatment doctrine tolled the 2½-year statute of limitations on plaintiff's claims (*see* CPLR 214-a). Plaintiff saw defendant over the course of four years, underwent two surgeries at his hand, and saw no other doctor for her shoulder during that time. She returned to him more than 30 months later, discussed yet a third surgery with him, and accepted his referral to his partner only because defendant was no longer performing such surgeries. Plaintiff's testimony regarding feeling discouraged with defendant's treatment did not demonstrate as a matter of law that she never intended to return to his care; in fact, her testimony revealed that she considered defendant her only doctor during this time. Nor did the fact that defendant repeatedly told plaintiff she should return "as needed" foreclose a finding that the parties anticipated further treatment. Notably, plaintiff's injury was a chronic, long-term condition which both plaintiff and defendant understood to require continued care. Each of plaintiff's visits to defendant over the course of seven years were for the same or related illnesses or injuries, continuing after the alleged acts of malpractice. Moreover, although there was a gap in treatment longer than the statute of limitations, such a gap was not per se dispositive of defendant's claim that the statute had run. *Lohnas v Luzi*, 30 NY3d 752.

MEDICAL MALPRACTICE.

3. When Cause of Action for Extraordinary Expenses Claim Accrues.—The cause of action permitting parents to recover the extraordinary expenses incurred to care for a disabled infant who, but for a physician's negligent failure to detect or advise on the risks of impairment, would not have been born, accrues upon the birth of the child. The action's gravamen is that, but for the defendants' negligence, the parents would not have conceived or given birth to a child requiring extraordinary expenses for treatment and care. Plaintiffs in both actions here alleged that, by failing to take steps to detect that the egg donor that they had selected was a carrier for fragile X and therefore that the embryos may have had the fragile X trait, defendants left the parents in an uninformed state as to whether to avert pregnancy or birth—and the associated costs resulting from birth. Given the nature of those allegations, it follows that until the alleged misconduct results in the birth of a child, there can be no extraordinary expenses claim. Moreover, the legally cognizable injury is that the parents will incur extraordinary expenses to care for and treat the child, which arise as a consequence of the birth, not just the conception. The date of birth appropriately balances the competing statute of limitations policy concerns—it gives parents a reasonable opportunity to bring suit while at the same time limiting claims in a manner that provides certainty and predictability to medical professionals engaged in fertility treatment and prenatal

LIMITATION OF ACTIONS—Cont'd

care. CPLR 214-a—which provides that a medical malpractice action must be commenced within 2½ years of “the act, omission or failure complained of”—does not bar that outcome. Although, in the wake of CPLR 214-a and its companions providing for accrual upon the discovery of malpractice in certain situations, the legislature has exclusive authority to determine when the discovery rather than the traditional rule should apply, nothing in the legislative history suggests an intent to constrict judicial authority to otherwise define when a cause of action accrues, or to mandate that the limitations period should commence prior to accrual. *B.F. v Reproductive Medicine Assoc. of N.Y., LLP*, 30 NY3d 608.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.

UNLAWFULLY EQUIPPING VEHICLE WITH RADIO DEVICE CAPABLE OF RECEIVING POLICE COMMUNICATIONS.

1. Device's Physical Attachment to Motor Vehicle.—Vehicle and Traffic Law § 397's prohibition on “equip[ing] a motor vehicle with a radio receiving set capable of receiving signals on the frequencies allocated for police use or knowingly us[ing] a motor vehicle so equipped” does not require that the prohibited device be physically attached to the motor vehicle and therefore applies to a freestanding device found on a defendant driver's person. “Equips” does not necessitate physical attachment or a special adaptation. Rather, “equip” means to provide something with a particular feature or ability. The essential quality or meaning of the word is the act of outfitting to prepare for the ready, irrespective of whether an item or device has permanent or temporary connection to the object equipped. Other sections of the Vehicle and Traffic Law use the terms “fastened,” “mounted,” “affixed,” or “attached” in combination with the term “equipped” to describe the physical location of the object in the motor vehicle. The legislature's word choice illustrates that when the legislature intends the law to encompass a device or object attached to a motor vehicle, it generally uses terms that require a physical connection and reserves the terms “equips” and “equipped” for a broader category of circumstances. Given the legislation's purpose of reducing access inside motor vehicles to police radio signals, it is irrelevant whether the device is mounted, lying on the seat, or in a defendant's pocket so long as it is readily accessible for immediate use in the vehicle. *People v Andujar*, 30 NY3d 160.

2. Facial Sufficiency of Accusatory Instrument.—The accusatory instrument charging defendant, a tow truck operator, with unlawfully equipping a motor vehicle with a radio device capable of receiving police communications was facially sufficient to establish reasonable cause to believe defendant violated Vehicle and Traffic Law § 397, where defendant was observed at the scene of a motor vehicle accident with a scanner in his jacket pocket, “which was on and receiving signals on the frequencies allocated for police use.” The statute does not require that the prohibited device be physically attached to the motor vehicle. The People's super-

MOTOR VEHICLES—Cont'd

seding information set forth sworn allegations that the deponent officer observed defendant operating a tow truck on a public roadway while carrying a device in his jacket pocket, easily accessible and ready for use, that was capable of receiving police radio signals from two precincts. *People v Andujar*, 30 NY3d 160.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

WATER AND SEWER RATES.

1. Water Rate Increase Notwithstanding Savings from Rental Forbearance.—The 2.1% water rate increase adopted by respondent New York City Water Board was justified notwithstanding the savings resulting from the City's forbearance of rent collection from respondent Board. By using the rental forgiveness to dispense the same amount in one-time water bill credits, respondents did not re-create the funding gap it had identified in the original budget. Respondents' expert stated in his affidavit that the elimination of the one-time credit would not have removed the need for the rate increase because respondent Board set water rates to maintain revenue stability over at least a five-year forecast. The decision to preserve the original planned rate increase was not entirely irrational, particularly in light of the fact that respondent Board would have kept the rate increase at around 2% per year. Respondent was not obliged to set the lowest possible rate every year; it could balance rate-setting with other needs and goals. Therefore, respondents' actions fell short of being utterly arbitrary and unsupported by rational goals. *Matter of Prometheus Realty Corp. v New York City Water Bd.*, 30 NY3d 639.

2. Water Rate Increase — Ultra Vires.—Respondent New York City Water Board did not act ultra vires or levy a tax in adopting a resolution implementing a water rate increase and issuing a water bill credit for certain property owners. Any rate variance can be framed as a decrease in some ratepayers' charges at the expense of other ratepayers, but such a disparity does not amount to impermissible taxation where, as here, the rate increase was tied to a utility's forecast of the cost of furnishing a service. *Matter of Prometheus Realty Corp. v New York City Water Bd.*, 30 NY3d 639.

3. Water Rate Increase.—Respondent New York City Water Board did not exceed its statutory authority in adopting a resolution implementing a water rate increase and issuing a water bill credit for certain property owners. A utility has unfettered discretion to fix rates as it will so long as invidious illicit discriminations are not practiced and differentials are not utterly arbitrary and unsupported by economic or public policy goals, as it reasonably conceives them. Respondent "may take into consideration the views and policies of any elected official or body, or other person" and ultimately "appl[ies] independent judgment in the best interest of the authority, its mission and the public" (Public Authorities Law § 2824 [1] [g]). The class of taxpayers receiving the bill credit had been excluded for years from rate relief programs and had enjoyed other benefits only if individually eligible based on income or usage. The decision to allocate the relatively modest gain from the City's rent forbearance so as to be meaningful to that large category of ratepayer, without requiring a complex eligibility and application process that would entail administrative costs, was not irrational. The preexisting tax class classifications, singling out single-family households and owners of small apartment buildings, served that purpose. There was no burden on respondents to show that the beneficiaries of the one-time credit were, in terms of their personal finances, more needy in comparison with other landowners. *Matter of Prometheus Realty Corp. v New York City Water Bd.*, 30 NY3d 639.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

NEGLIGENCE—Cont'd

MAINTENANCE OF PREMISES.

1. In an action alleging that plaintiff was injured when he tripped over a cord that was tied to a barrel, triable issues of fact precluded summary judgment in favor of one of the defendants. *Lau v Margaret E. Pescatore Parking, Inc.*, 30 NY3d 1025.

NEGOTIABLE INSTRUMENTS.

See *BILLS, NOTES AND CHECKS.*

NEWSPAPERS.

See, *also*, *LIBEL AND SLANDER*, and other specific titles.

OPTICIANS.

See *LICENSES; PHYSICIANS AND SURGEONS.*

OPTOMETRISTS.

See *LICENSES; PHYSICIANS AND SURGEONS.*

PARENT, CHILD AND FAMILY.

See, *also*, *ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES*, and other specific titles.

ABUSED OR NEGLECTED CHILD.

1. Record support existed for the affirmed findings that respondent mother committed acts constituting child neglect and that the child was a neglected child as defined in Family Court Act § 1012. *Matter of Ruth Joanna O.O. (Melissa O.)*, 30 NY3d 985.

PARTIES.

CAPACITY TO SUE.

1. Governmental Entities — Action to Enforce Provisions of Insurance Law Relating to Excess-Line Insurance Policies.—Plaintiff Excess Line Association of New York (ELANY), a legislatively created advisory association under the supervision of the Department of Financial Services (DFS), does not have capacity to sue its members to recover fees that it is statutorily authorized to receive, and to compel an accounting to determine amounts allegedly owed. ELANY was created as an advisory association, pursuant to Insurance Law § 2130 (a), in order to facilitate compliance with the many filing and record keeping requirements for excess line brokers contained in the Insurance Law. The statutory scheme evinces the legislature's intent that DFS be the primary enforcer of the Insurance Law and corresponding regulations (*see* Insurance Law § 109). The statutorily enumerated powers of ELANY relate to record keeping and education, rather than regulatory enforcement (*see* Insurance Law § 2130 [a]). Under those circumstances, a right to sue cannot be derived from ELANY's enabling legislation or some other concrete statutory predicate. While section 2130 does designate ELANY as the recipient of the stamping fees, capacity to sue for recovery of such fees should not be inferred as a necessary implication from its responsibilities. ELANY is both supervised by DFS and required to perform its functions pursuant to a plan of operation approved by DFS, which expressly establishes a method of enforcing the payment of stamping fees by providing that, when such fees go unpaid, ELANY's remedy is to report the matter to DFS. Finally, the legislative history of the statute creating ELANY demonstrates that the legislature characterized ELANY as an "advisory association," not a regulator. *Excess Line Assn. of N.Y. (ELANY) v Waldorf & Assoc.*, 30 NY3d 119.

2. Public Benefit Corporations.—New York's general rule that state entities lack capacity to challenge the constitutionality of a state statute applies to public bene-

PARTIES—Cont'd

fit corporations, and courts need not engage in a “particularized inquiry” to determine whether a particular public benefit corporation should first be treated like the State. Entities created by legislative enactment have neither an inherent nor a common-law right to sue. Rather, their right to sue, if it exists at all, must be derived from the relevant enabling legislation or some other concrete statutory predicate. Municipal corporate bodies are merely subdivisions of the State, created by the State for the convenient carrying out of the State’s governmental powers and responsibilities as agents. The capacity rule reflects the manifest improbability that the legislature would breathe constitutional rights into a public entity and then equip it with authority to police state legislation on the basis of those rights. It also reflects sound principles of judicial restraint, the extreme reluctance of courts to intrude in the political relationships between the legislature, the State and its governmental subdivisions. Although public benefit corporations have been described as enjoying an existence separate and apart from the State, its agencies and political subdivisions, those properties do not bring public benefit corporations outside of the scope of the capacity rule. The features that arguably render public benefit corporations something more than mere subdivisions, such as the separation of their administrative and fiscal functions from the State, do not diminish the considerations supporting the rule. *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PHYSICIANS AND SURGEONS.**MALPRACTICE.**

1. Death Following Discontinuance of Heart Medication — Summary Judgment.—In an action for wrongful death and medical malpractice arising from plaintiff’s decedent’s discontinuance of a certain heart medication prior to a scheduled kidney biopsy and his death three days later, triable questions of fact precluded summary judgment in favor of the defendants who prescribed the medication to decedent. *Burns v Goyal*, 30 NY3d 956.

2. Summary Judgment Precluded.—In a medical malpractice action, defendants doctor and hospital did not preserve for review by the Court of Appeals their argument concerning the admissibility of the expert affidavit submitted by plaintiff in opposition to their motion for summary judgment, and defendant hospital abandoned any other argument. On the record, triable questions of fact precluded summary judgment in favor of defendants. *Torres v Cernul*, 30 NY3d 1024.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCESS.**SERVICE OF PROCESS.**

1. Notice of Violation Issued by New York City Department of Buildings — Affix and Mail Service Permitted after Single Reasonable Attempt at Personal Service.—To the extent that *Matter of First Horizon Home Loans v New York City Envtl. Control Bd.* (118 AD3d 875 [2d Dept 2014]) can be read for the proposition

PROCESS—Cont'd

that, by referencing CPLR article 3, New York City Charter § 1049-a (d) (2) (b) incorporates the CPLR 308 (4) restriction permitting affix and mail service only when personal delivery (including delivery to a person of suitable age or discretion) of a notice of violation at the premises where a building code violation has been discovered “cannot be made with due diligence,” it should not be followed. *Matter of Mestecky v City of New York*, 30 NY3d 239.

2. Notice of Violation Issued by New York City Department of Buildings — Affix and Mail Service Permitted after Single Reasonable Attempt at Personal Service.—New York City Charter § 1049-a (d) (2) (b) permits use of affix and mail service after a single reasonable attempt by a Department of Buildings inspector to personally deliver a notice of violation at the premises where a building code violation has been discovered. New York City Charter § 1049-a (d) (2) begins by stating the general rule that CPLR article 3 service rules apply “except” in certain enumerated circumstances. Thus, to read section 1049-a (d) (2) (b), relating to an exception, as requiring strict adherence to CPLR article 3, including the due diligence standard, would make the exception indistinguishable from the general rule, thereby rendering it superfluous. Further, the plain language of the relevant statute speaks in the singular, providing that “[s]uch notice may only be affixed . . . where a reasonable attempt has been made” at personal delivery, indicating that only one attempt is required (NY City Charter § 1049-a [d] [2] [b]). The affix and mail procedure was added to the predecessor statute to eliminate the time-consuming, costly and often unrewarding process previously entailed in identifying and locating the person responsible for the violation, and the relevant charter provisions have been amended repeatedly over time to liberalize service rules to address the chronic problem of violators avoiding service. Thus, a restrictive interpretation of the statute is inconsistent with the legislative history. Moreover, the alternate service procedure authorized by the statute is reasonably calculated to inform owners of violations relating to their properties. *Matter of Mestecky v City of New York*, 30 NY3d 239.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC AUTHORITIES.

LONG ISLAND POWER AUTHORITY.

1. Governmental Function Immunity.—Defendants, the Long Island Power Authority (LIPA), a wholly-owned subsidiary of LIPA and an electrical energy provider that contracted with LIPA, were not entitled to dismissal of plaintiffs’ complaints on the ground that LIPA was immune from liability based on the doctrine of governmental function immunity, where defendants failed to establish that LIPA’s decision not to shut down power to plaintiffs’ service area before or during Hurricane Sandy, which allegedly caused the fires that ultimately destroyed plaintiffs’ property, was a governmental function. A government entity performs a purely proprietary role when its activities essentially substitute for or supplement traditionally private enterprises. In contrast, a government entity will be deemed to have been engaged in a governmental function when its acts are undertaken for the protection and safety of the public pursuant to the general police powers. Plaintiffs’ allegations concerned the provision of electrical power by defendants, a service that traditionally had been provided by private entities in the State of New York. Moreover, the magnitude of the disaster, without any reference to the circumstances and nature of the specific act or omission alleged, did not render the challenged conduct governmental as a matter of law. *Connolly v Long Is. Power Auth.*, 30 NY3d 719.

PUBLIC HOUSING.

DENIAL OF REMAINING FAMILY MEMBER STATUS.

1. Failure to Obtain Permanent Permission to Reside in Apartment with Tenant.—Respondent New York City Housing Authority’s determination denying

PUBLIC HOUSING—Cont'd

petitioner “remaining family member” (RFM) status with regard to his late mother’s apartment, which he had moved into three years prior to her death in order to care for her through her advanced dementia, was not arbitrary and capricious, as petitioner did not have permanent permission to live with his mother in her one-bedroom apartment. The two requests that had been submitted for petitioner to be granted permanent permission were denied because his presence would have violated occupancy rules for overcrowding. A person lacking permanent permission to reside in an apartment is not eligible for RFM status. Respondent’s rules do allow for a live-in home-care attendant as a temporary resident, even if the grant of permission would result in “overcrowding,” and petitioner was, in effect, afforded temporary residency status. Although respondent could have adopted a policy that encourages people to care for elderly relatives by giving them a succession priority over others, it could not be said on the record that its adoption of a different policy, prioritizing children in need and persons facing homelessness when allocating its insufficient stock of public housing, was arbitrary or capricious. *Matter of Aponte v Olatoye*, 30 NY3d 693.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECORDS.

FREEDOM OF INFORMATION LAW.

1. Attorneys’ Fees.—In petitioner’s proceeding challenging respondent Department of Education’s denial of her Freedom of Information Law (FOIL) request seeking disclosure of “audit standards” pertaining to preschool special education programs, the Appellate Division erred in determining that petitioner failed to meet the statutory prerequisites for an award of attorneys’ fees, where petitioner “substantially prevailed” in the litigation within the meaning of Public Officers Law § 89 (4) (c). The Public Officers Law authorizes an award of attorneys’ fees where the petitioner “has substantially prevailed” in the FOIL proceeding and the agency either lacked a reasonable basis for denying access to the requested records or “failed to respond to a request or appeal within the statutory time” (Public Officers Law § 89 [4] [c] [i], [ii]). The Appellate Division concluded that the statutory requirement that petitioner “substantially prevail” was not met because the majority of respondent’s challenged redactions were appropriate. However, respondent made no disclosures, redacted or otherwise, prior to petitioner’s commencement of the CPLR article 78 proceeding. Although respondent’s redactions in the eventually-released records were upheld, petitioner’s legal action ultimately succeeded in obtaining substantial unredacted post-commencement disclosure responsive to her FOIL request, including both disclosure that was volunteered by the agency and disclosure that was compelled by Supreme Court’s order. *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.

RECORDS—Cont'd

2. Judicial Review — Reliance on Disclosure Exemption Not Specified in Denial of Request.—In a proceeding challenging respondent Department of Education's denial of petitioner's Freedom of Information Law (FOIL) request seeking disclosure of "audit standards" governing fiscal oversight of preschool special education programs, respondent was barred from claiming that the requested materials constituted non-routine "criminal investigative techniques" exempt from disclosure under Public Officers Law § 87 (2) (e) (iv), as respondent failed to invoke that exemption in its denial of petitioner's FOIL request. Judicial review of an administrative determination is limited to the grounds invoked by the agency. Moreover, the agency relying on the applicability of a FOIL exemption has the burden of establishing that the documents qualify for the exemption. To meet that burden, the agency must articulate particularized and specific justification for denying disclosure. Respondent's administrative denial cited to Public Officers Law § 87 (2) (e), without referencing a specific subparagraph. However, the justification offered, that disclosure would "interfere with investigations of compliance," plainly tracked the language of subparagraph (i), not subparagraph (iv), and respondent did not make any contemporaneous claim that the requested materials constituted non-routine "criminal investigative techniques" (Public Officers Law § 87 [2] [e] [iv]). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.

3. Law Enforcement Purpose Exemption — Standards for Auditing Preschool Special Education Programs.—Respondent Department of Education properly redacted portions of documents responsive to petitioner's Freedom of Information Law request seeking disclosure of "audit standards" developed pursuant to Education Law § 4410 for the purpose of increasing fiscal oversight of preschool special education programs, as the redacted portions were exempt from disclosure under Public Officers Law § 87 (2) (e) (i) because they were "compiled for law enforcement purposes" and disclosure "would [have] interfere[d] with law enforcement investigations or judicial proceedings." The exemption does not apply solely to records compiled for law enforcement purposes in connection with criminal investigations and punishment of violations of the criminal law. The statutory scheme of Education Law § 4410, as amended, and respondent's applicable regulations indicate that the audits are specifically targeted at ferreting out the improper and potentially illegal or fraudulent reporting of costs by preschool special education providers. Thus, the obvious inference arising from the statutory requirement that respondent issue guidelines for municipalities conducting the audits is that the legislature sought to increase the efficacy of audit procedures in an effort to strengthen enforcement measures. Moreover, disclosure of the redacted procedures would have given rise to a substantial likelihood that violators could evade detection by deliberately tailoring their conduct in anticipation of avenues of inquiry to be pursued by agency personnel. *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.

4. Confidentiality Exemption — Statements of Nontestifying Witnesses.—The Appellate Division, in determining that respondent District Attorney properly denied petitioner's Freedom of Information Law (Public Officers Law art 6 [FOIL]) request for respondent's case file concerning petitioner's prior sexual abuse prosecution, applied an incorrect standard interpreting Public Officers Law § 87 (2) (e) (iii) to exempt from FOIL disclosure statements of nontestifying witnesses as presumptively confidential. Disclosure under FOIL can only be refused pursuant to section 87 (2) (e) (iii) if the agency presents a particularized and specific justification for denying access based on an express promise of confidentiality to the source, or by establishing that, under the circumstances of the particular case, the confidentiality of the source or information can be reasonably inferred. In determining whether information obtained in the course of a criminal investigation should be treated as confidential or whether a source spoke on the assumption that the source's identity or statements would remain confidential, courts may consider, as they deem relevant, such factors as the nature of the crime, the source of the information in relation to the crime, and the content of the statements or information. Where the content of a statement or information and the circumstances surrounding its compilation by law enforcement convince a court that its confidentiality can

RECORDS—Cont'd

be reasonably inferred, it may be withheld or released with appropriate redactions pursuant to section 87 (2) (e) (iii). Otherwise, absent an explicit assurance of confidentiality, it may not be withheld or redacted under that FOIL exemption. *Matter of Friedman v Rice*, 30 NY3d 461.

5. Confidentiality Exemption.—Sources and information may be withheld from disclosure under the Freedom of Information Law (Public Officers Law art 6 [FOIL]) pursuant to the confidentiality exemption contained in Public Officers Law § 87 (2) (e) (iii) only upon a specific showing of an express promise of confidentiality to the source, or a finding that, under the circumstances of the particular case, the confidentiality of the source or information can be reasonably inferred. The exemption allows an agency to withhold documents “compiled for law enforcement purposes and which, if disclosed, would . . . identify a confidential source or disclose confidential information relating to a criminal investigation” (Public Officers Law § 87 [2] [e] [iii]). In amending the statute, the legislature discarded the broad protections from disclosure found in the previous version of FOIL and adopted discrete, limited exceptions, reaffirming the law’s general policy of public access to government documents. To adopt a rule that categorically permits the withholding of statements of nontestifying witnesses without regard to the specific facts and circumstances of the case would essentially reinstate the previously discarded nondisclosure presumption, clearly in contravention of the statute’s purpose and settled case law. In addition, such an interpretation of section 87 (2) (e) (iii) cannot be reconciled with the statutory language, as it effectively excises the word “confidential” from the statutory exemption. The legislature used the word “confidential” to delineate the type of statements and sources not subject to FOIL disclosure. Given that the legislature established a general policy of disclosure by enacting FOIL, courts cannot undermine that policy by exempting a large category of information from FOIL in a manner inconsistent with the plain language of the statute. *Matter of Friedman v Rice*, 30 NY3d 461.

6. Judicial Review — Exhaustion of Administrative Remedies — Futility Exception.—In a CPLR article 78 proceeding, petitioner’s request for respondent District Attorney’s entire case file concerning petitioner’s prior sexual abuse prosecution was reviewable notwithstanding his failure to include that specific demand in his initial request for disclosure pursuant to the Freedom of Information Law (Public Officers Law art 6 [FOIL]), where requiring petitioner to restart the FOIL process would have been futile. Although petitioner’s FOIL request sought documents provided by respondent to the review panel charged with reinvestigating petitioner’s case, petitioner’s request reasonably described, and therefore clearly sought, all documents that would be part of the reinvestigation called for by respondent. In any event, the general rule requiring a party to exhaust administrative remedies before seeking judicial review of an agency’s determination need not be followed when resort to an administrative remedy would be futile. Respondent’s letter denying petitioner’s FOIL request clearly established that respondent’s office would not release any documents to petitioner from the case file absent a court order, rendering futile any further attempts at administrative review. The goals of the exhaustion rule would not be served by mechanical application of the rule to petitioner’s case, as it would be an exercise in futility and a waste of administrative and judicial resources to require petitioner to request documents merely for respondent to restate the same bases for denial. *Matter of Friedman v Rice*, 30 NY3d 461.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

TEACHERS.

1. Termination of Employment — Judicial Review.—In proceedings pursuant to CPLR article 75 seeking to vacate arbitration awards terminating petitioner teachers' employment, the Appellate Division exceeded its authority by reweighing the evidence and substituting its judgment for that of the hearing officer. That reasonable minds might disagree over what the proper penalty should have been did not provide a basis for vacating the arbitral award or refashioning the penalty. The penalties imposed were not irrational and did not shock the conscience. *Matter of Bolt v New York City Dept. of Educ.*, 30 NY3d 1065.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**CONSTRUCTION.**

1. Prohibition on Assisted Suicide — Physician Aid-in-Dying.—New York's prohibition on assisted suicide applies to a physician who provides aid-in-dying by intentionally prescribing a lethal dosage of a drug because such act constitutes "promoting a suicide attempt" (Penal Law § 120.30) or "aid[ing] another person to commit suicide" (Penal Law § 125.15 [3]). "Suicide" has long been understood as the act or an instance of taking one's own life voluntarily and intentionally, and "assisted suicide" is defined as the intentional act of providing a person with the medical means or the medical knowledge to commit suicide. Aid-in-dying falls squarely within the ordinary meaning of the statutory prohibition of assisting a suicide. The assisted suicide statutes apply to anyone who assists an attempted or completed suicide. There are no exceptions, and the statutes are unqualified in scope, creating an irrefutable inference that what is omitted or not included was intended to be omitted or excluded. *Myers v Schneiderman*, 30 NY3d 1.

VALIDITY OF STATUTE.

2. Claim-Revival Statutes — Due Process.—A claim-revival statute will satisfy the Due Process Clause of the New York State Constitution (NY Const, art I, § 6) if

STATUTES—Cont'd

it was enacted as a reasonable response in order to remedy an injustice. A more heightened standard would be too strict. In the context of a claim-revival statute, there is no principled way for a court to test whether a particular injustice is “serious” or whether a particular class of plaintiffs is blameless; such moral determinations are left to the elected branches of government. While the Court of Appeals has traditionally expressed an aversion to retroactive legislation, of which claim-revival statutes are one species, modern cases reflect a less rigid view of the legislature’s right to pass such legislation. Nonetheless, there must first be a judicial determination that the revival statute was a reasonable measure to address an injustice. *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TORTS.**BREACH OF CONTRACT AS BASIS FOR TORT ACTION.**

1. Negligence Claim Duplicative of Breach of Contract Claim.—In an action against defendant architectural firm alleging that it contributed to faulty excavation and foundation work on a construction project, defendant was entitled to summary judgment dismissing plaintiff Dormitory Authority of the State of New York’s negligence claim as duplicative of its breach of contract cause of action. A simple breach of contract is not to be considered a tort unless a legal duty independent of the contract itself has been violated. Plaintiff’s negligence allegations in the complaint were merely a restatement, albeit in slightly different language, of the implied contractual obligations asserted in the cause of action for breach of contract. The factual allegations set forth in each cause of action were identical, except that the negligence claim was framed in terms of defendant’s failure to comply with professional standards of care. Moreover, despite the fact that the complaint sought an additional unspecified \$4 million in damages under the negligence cause of action, it failed to include a single allegation that contained any distinction between the damages applicable to either claim. Additionally, there was no injury alleged that a separate negligence claim would include that was not already encompassed in plaintiff’s contract claim. Thus, plaintiff essentially sought enforcement of the bargain, and the action should have proceeded under a contract theory. *Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704.

TOWNS.

See MUNICIPAL CORPORATIONS.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

CONTRACT FOR SALE OF REAL PROPERTY.

1. Rescission Action as Anticipatory Breach.—The commencement of an action by plaintiff prospective purchaser of real property against defendant sellers for “rescission and/or reformation” of the contract before the closing date did not con-

VENDOR AND PURCHASER—Cont'd

stitute an anticipatory breach of the contract. An anticipatory breach, or repudiation, of a contract can be either a statement by the obligor to the obligee indicating that the obligor will commit a breach that would of itself give the obligee a claim for damages for total breach or a voluntary affirmative act which renders the obligor unable or apparently unable to perform without such a breach. For an anticipatory repudiation to be deemed to have occurred, the expression of intent not to perform by the repudiator must be positive and unequivocal. The commencement of a declaratory judgment action does not constitute an anticipatory breach because such an action merely seeks to define the rights and obligations of the parties. An action seeking rescission of a contract is not markedly different from a declaratory judgment action, even though the actions necessarily would produce different results. Nevertheless, in this context, where the amended complaint sought reformation of amendments to the contract and specific performance of the original agreement, there was no positive and unequivocal repudiation. There was no material difference between this action and a declaratory judgment action. At bottom, both actions seek a judicial determination as to the terms of a contract, and the mere act of asking for judicial approval to avoid a performance obligation is not the same as establishing that one will not perform that obligation absent such approval. *Princes Point LLC v Muss Dev. L.L.C.*, 30 NY3d 127.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.**EXTENT OF DISABILITY.**

1. Permanent Partial Disability.—The Appellate Division properly concluded that substantial evidence supported the Workers' Compensation Board's determinations as to claimant's degree of impairment and loss of wage-earning capacity. *Matter of Burgos v Citywide Cent. Ins. Program*, 30 NY3d 990.

THIRD-PARTY ACTION.

2. Apportionment of Litigation Expenses Where Third-Party Settlement Consummated before Award.—In a workers' compensation proceeding in which claimant was found to have suffered a 10% schedule loss of use of his leg entitling him to certain benefits after settlement of his action against a third-party contractor, respondent Workers' Compensation Board erred in finding that claimant, who had received some workers' compensation payments but was litigating the extent of his schedule loss of use at the time of the settlement, was not entitled to post-settlement apportionment of litigation expenses. Workers' Compensation Law § 29 was enacted to ensure that insurance carriers pay their equitable share of litigation expenses incurred by injured workers who obtain recoveries from third-party tortfeasors. In the event that a claimant recovers in a third-party action, the compensation carrier is granted a lien on the amount of the recovery proceeds equal to the amount of past compensation it has paid, with interest. The lien, however, is subordinate to a deduction for costs and attorney's fees. Should the employee secure a recovery from a third party, he or she may apply to the court for an order apportioning the reasonable and necessary expenditures incurred in effecting such recovery. Respondent Board misinterpreted prior cases as requiring that

WORKERS' COMPENSATION—Cont'd

litigation costs apportioned against all schedule loss of use awards be either assigned at the time of the third-party settlement or not at all. A court must determine whether an award is quantified at the time a third-party suit is resolved, such that the litigation expenses associated with that suit can be equitably apportioned in the allocation between claimant and carrier. When the present value of the loss of use or other benefits is not finalized at the time of the claimant's recovery in the third-party matter, the carrier must pay its fair share once the present value is determined. *Matter of Terranova v Lehr Constr. Co.*, 30 NY3d 564.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

CIVIL PRACTICE LAW AND RULES.

- 214-a (Action for medical, dental or podiatric malpractice to be commenced within two years and six months; exceptions). *B.F. v Reproductive Medicine Assoc. of N.Y., LLP*, 30 NY3d 608; *Lohnas v Luzi*, 30 NY3d 752.
- 908 (Class actions; dismissal, discontinuance or compromise). *Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488.

CIVIL SERVICE LAW.

- Art 14 (Public Employees' Fair Employment Act). *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109.
- § 167 (8) (Health benefits for state and retired state employees; contributions; modification). *Bransten v State of New York*, 30 NY3d 434.
- § 204 (2) (Recognition and certification of employee organizations; collective bargaining). *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109.

CORRECTION LAW.

- Art 6-C (Sex Offender Registration Act). *People v Francis*, 30 NY3d 737.
- § 168-m (Sex Offender Registration Act; review). *People v Francis*, 30 NY3d 737.

CRIMINAL PROCEDURE LAW.

- Art 720 (Youthful offender procedure). *People v Francis*, 30 NY3d 737.
- 190.75 (3) (Grand jury; dismissal of charge; resubmission of charge). *People v Carr*, 30 NY3d 945.
- 270.20 (1) (b) (Trial jury; challenge for cause of individual juror; state of mind). *People v Wright*, 30 NY3d 933.
- 310.20 (2) (Jury deliberation; use of exhibits and other material; verdict sheet notations). *People v O'Kane*, 30 NY3d 669.
- 380.40 (Defendant's presence at sentencing). *People v Estremera*, 30 NY3d 268.
- 440.30 (1-a) (a) (1) (Motion to vacate judgment and to set aside sentence; forensic DNA testing). *People v Sposito*, 30 NY3d 1110.
- 460.10 (3) (a) (Appeal; how taken; from local criminal court where proceedings were not recorded by court stenographer; filing requirements). *People v Flores*, 30 NY3d 229.
- 460.10 (3) (c) (Appeal; how taken; from local criminal court where proceedings were not recorded by court stenographer; affidavit of errors). *People v Flores*, 30 NY3d 229.
- 460.30 (1) (Extension of time for taking appeal). *People v Flores*, 30 NY3d 229.
- 470.20 (Determination of appeals by intermediate appellate courts; corrective action upon reversal or modification). *People v Smith*, 30 NY3d 626.

EDUCATION LAW.

- § 4410 (Special education services and programs for preschool children with handicapping conditions). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.

FAMILY COURT ACT.

- § 115 (c) (Jurisdiction of Family Court). *Matter of Lisa T. v King E.T.*, 30 NY3d 548.
- § 812 (Procedures for family offense proceedings). *Matter of Lisa T. v King E.T.*, 30 NY3d 548.

FAMILY COURT ACT—Continued

§ 846 (Family offenses proceedings; petition; violation of court order). *Matter of Lisa T. v King E.T.*, 30 NY3d 548.

§ 846-a (Family offenses proceedings; powers on failure to obey order). *Matter of Lisa T. v King E.T.*, 30 NY3d 548.

GENERAL BUSINESS LAW.

§ 349 (Deceptive acts and practices unlawful). *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

§ 349 (a) (Deceptive acts and practices unlawful). *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

INSURANCE LAW.

§ 2130 (a) (Excess Line Association of New York; powers and duties). *Excess Line Assn. of N.Y. (ELANY) v Waldorf & Assoc.*, 30 NY3d 119.

§ 3420 (a) (Liability insurance; standard provisions; right of injured person). *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

§ 3420 (a) (2) (Liability insurance; standard provisions; right of injured person). *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

§ 3420 (b) (Liability insurance; standard provisions; right of injured person; action against insurer). *Carlson v American Intl. Group, Inc.*, 30 NY3d 288.

MENTAL HYGIENE LAW.

§ 10.03 (i) (Sex offenders requiring civil commitment or supervision; “mental abnormality” defined). *Matter of State of New York v Floyd Y.*, 30 NY3d 963.

NEW YORK CITY ADMINISTRATIVE CODE.

§ 8-102 (16) (c) (Civil rights; “disability” defined; alcoholism, drug addiction or other substance abuse). *Makinen v City of New York*, 30 NY3d 81.

§ 8-107 (1) (a) (3) (Unlawful discriminatory practices; employment). *Makinen v City of New York*, 30 NY3d 81.

§ 8-502 (a) (Civil rights; civil action by persons aggrieved by unlawful discriminatory practices). *Chauca v Abraham*, 30 NY3d 325.

NEW YORK CITY CHARTER.

§ 1049-a (d) (2) (Environmental control board; enforcement proceedings; notice of violation). *Matter of Mestecky v City of New York*, 30 NY3d 239.

§ 1049-a (d) (2) (b) (Environmental control board; enforcement proceedings; notice of violation; affix and mail service). *Matter of Mestecky v City of New York*, 30 NY3d 239.

NEW YORK CONSTITUTION.

Art I, § 6 (Due process of law). *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377.

Art VI, § 25 (a) (Compensation and retirement of judges and justices). *Bransten v State of New York*, 30 NY3d 434.

PENAL LAW.

§ 70.85 (Transitional exception to determinate sentencing laws). *People v Estremera*, 30 NY3d 268.

§ 120.30 (Promoting suicide attempt). *Myers v Schneiderman*, 30 NY3d 1.

§ 125.15 (3) (Manslaughter, second degree; aiding suicide). *Myers v Schneiderman*, 30 NY3d 1.

§ 140.00 (5) (Criminal trespass and burglary; “enter or remain unlawfully” defined). *People v Helms*, 30 NY3d 259.

§ 140.25 (2) (Burglary, second degree; dwelling). *People v Helms*, 30 NY3d 259.

PUBLIC AUTHORITIES LAW.

§ 2824 (1) (g) (Boards of public authorities; role and responsibilities of board members). *Matter of Prometheus Realty Corp. v New York City Water Bd.*, 30 NY3d 639.

PUBLIC OFFICERS LAW.

Art 6 (Freedom of Information Law). *Matter of Friedman v Rice*, 30 NY3d 461.

PUBLIC OFFICERS LAW—Continued

- § 87 (2) (e) (Freedom of Information Law; denial of access to records; records compiled for law enforcement purposes). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.
- § 87 (2) (e) (i) (Freedom of Information Law; denial of access to records; interference with law enforcement investigations). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.
- § 87 (2) (e) (iii) (Denial of access to records; records compiled for law enforcement purposes; confidential source or information). *Matter of Friedman v Rice*, 30 NY3d 461.
- § 87 (2) (e) (iv) (Freedom of Information Law; denial of access to records; criminal investigative techniques or procedures). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.
- § 89 (4) (c) (Freedom of Information Law; access to records; counsel fees). *Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67.

UNITED STATES CONSTITUTION.

- Art I, § 10, cl 1 (Contract Clause). *American Economy Ins. Co. v State of New York*, 30 NY3d 136.
- 4th Amend (Unreasonable searches and seizures prohibited). *People v Garvin*, 30 NY3d 174.

VEHICLE AND TRAFFIC LAW.

- § 397 (Equipping motor vehicles with radio receiving sets capable of receiving signals on frequencies allocated for police use). *People v Andujar*, 30 NY3d 160.

WORKERS' COMPENSATION LAW.

- § 25-a (Procedure and payment of compensation in certain claims; limitation of right to compensation). *American Economy Ins. Co. v State of New York*, 30 NY3d 136.
- § 29 (Remedies of employees; subrogation). *Matter of Terranova v Lehr Constr. Co.*, 30 NY3d 564.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 9. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 10. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 11. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 12. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 13. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 14. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 15. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 16. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 17. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 18. 1 NY3d 174 (People v Taylor) | At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840). |
| 19. 1 NY3d 541 (People v Sanchez) | In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings). |

Errata

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|---|--|
| 20. 4 NY3d 739 (Matter of Peter R. [Stacey R.]) | Change the reported below citation from 8 AD3d 567 to 8 AD3d 576. |
| 21. 4 NY3d 857 (People v Smith [DeJesus]) | Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY). |
| 22. 5 NY3d 864 (Matter of Kadeem W.) | At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition. |
| 23. 6 NY3d 427 (People v Boyer) | At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922. |
| 24. 7 NY3d 703 (Matter of Park v Kapica) | Change the page number of the reported below citation from 802 to 801. |
| 25. 8 NY3d 944 (People v Charriez) | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 26. 9 NY3d 923 (People v Jacobs) | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868. |
| 27. 11 NY3d 875 (People v Ford) | On line 5 of the Summary, change Bronx County to New York County. |
| 28. 13 NY3d 511 (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition]. |
| 29. 18 NY3d 667 (People v Rodriguez) | At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10. |
| 30. 21 NY3d 1043 (People v Mackey-Meggs) | Change defendant's name in title from Mackey-Meggs to Marquan M. |
| 31. 22 NY3d 648 (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) | At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet. |

32. **23 NY3d 455** (People v Golb)
- At 23 NY3d 461, in second full paragraph the email address “newsmedia.ucla.edu” should read “newsmedia@ucla.edu”
- At 23 NY3d 461, in third full paragraph the email address “steve.goransongmail.com” should read “steve.goranson@gmail.com”
- At 23 NY3d 462, in the first paragraph the email address “frank.cross2gmail.com” should read “frank.cross2@gmail.com”
- At 23 NY3d 462, in the second full paragraph the email address “larry.schiffmangmail.com” should read “larry.schiffman@gmail.com”
- At 23 NY3d 463, in the second full paragraph the email address “seidel.jonathangmail.com” should read “seidel.jonathan@gmail.com”
33. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik)
- At 23 NY3d 668, footnote 3, last sentence on page should read . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor
34. **24 NY3d 294** (People v Silva)
- At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.
35. **26 NY3d - 28 NY3d**
- Change the spelling of “irrevelant” to “irrelevant” throughout.
36. **26 NY3d 903** (McMillin v Grimditch)
- Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
37. **26 NY3d 903** (Town of N. Elba v Grimditch)
- Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.

Errata

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38. **27 NY3d 1079** (People ex rel. Monte v Mingo) Change respondents' name in title from *Warden* to *Warden Maxsolaine Mingo*.
39. **28 NY3d 1123** (People v Faeth) In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne).